

SOMALIA:

Political and security crises, access limits and donor cuts increasing IDP vulnerability

A profile of the internal displacement situation

10 December, 2009

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

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OVERVIEW

Somalia: Political and security crises, access limits and donor cuts increasing IDP vulnerability

Political stalemate, security crisis and the continuing conflict in Somalia between the UN-backed coalition government and armed opposition groups continue to expose internally displaced people (IDPs) to violations of their rights under international humanitarian and human rights law. An estimated one and a half million people were internally displaced in south and central Somalia as of November 2009. In the relatively peaceful Somaliland, land tension between sub-clans in the Gebille area also led to displacement in 2009.

The security situation has deteriorated since May 2009 due to intensified clashes between government forces and insurgents, causing civilian casualties, injuries and population displacement. Humanitarian and human rights organisations continue to report displacements, child recruitment, attacks, sexual violence, and efforts to protect IDPs and provide humanitarian assistance have been ineffective.

Humanitarian agency staff and property continue to be directly targeted. In July 2009, Al-Shabaab demanded that three UN agencies stop operating in areas under its control; in November the group ordered the World Food Programme to stop importing food and start buying from Somali farmers, even though such a system would lead to even greater food insecurity. Meanwhile, some donors have significantly reduced humanitarian funding in 2009 for fear that it is being diverted to extremist groups, affecting the capacity of most UN agencies.

The government signed the African Union Convention for the Protection and Assistance of IDPs in Africa, and has committed to ratify the Convention on the Rights of the Child; an important development in a country with a massive IDP population and where children face daily risk to their security and general wellbeing. However, the situation in the country will make their implementation impossible in the short term.

Background

In 2007 and 2008, large-scale displacement was caused in Somalia by fighting between Ethiopian forces supporting the Transitional Federal Government (TFG) led by Abdullahi Yusuf and a host of insurgency groups that sprang up to challenge them. This led to the killing of an estimated 18,000 people and the displacement of some 800,000 people between January 2007 and December 2008. Most of the fighting was concentrated in south and central Somalia, especially in and around the capital Mogadishu (HRW, 8 December 2008; UN News, 28 November 2008). Other areas of conflict during this period included Beletweyne on the border with Ethiopia (UNICEF, 22 August 2008) and the southern port town of Kismayo (IRIN, 25 August 2008)

In January 2009 a UN-backed peace process for Somalia led to a peace agreement in neighbouring Djibouti, the election of a president and the formation of a coalition government made up of members of the TFG and the Djibouti wing of the Alliance for the Re-liberation of Somalia (ARS), a grouping of leaders of opposition groups including the Islamic Courts Union (ICU) (IDMC, 20 May 2009). Under the terms of the agreement, the Ethiopian forces withdrew (BBC, January 2009), and the subsequent lull in fighting and ensuing optimism led to the return of

some 74,000 internally displaced people (IDPs) to Mogadishu between January and early May (OCHA, 8 May 2009).

However, despite these positive developments, continuing fighting between the forces of the new government and armed opposition groups prevented the return of many IDPs and led to the new displacement of hundreds of thousands of people (IRIN, 12 May 2009; VOA, 12 May 2009; BBC 13 May 2009). Armed opposition groups vowed to fight on after the withdrawal of Ethiopian troops, and started targeting troops of the small African Union peacekeeping force known as AMISOM. In September 2009, 17 AMISOM soldiers were killed by a suicide bomber (VOA, 8 May 2009; Aljazeera, 24 May 2009; IRIN, 15 July 2009; LA Times, 18 September 2009; UNSC, October 2009).

Fighting between Islamic insurgents over control of territories in Mogadishu and Kismayo led to further loss of life and displacement of civilians. In Kismayo, the violence between armed opposition groups followed the breakdown of their agreement to rotate the administration of the town (IRIN, 29 September 2009).

IDP numbers and new displacement

The estimated number of IDPs in Somalia increased from 1.3 million at the end of 2008 to 1.55 million at the beginning of September 2009, most of them fleeing conflict in Mogadishu and other areas of southern and central Somalia, but also human rights violations and forced recruitment by militias, and drought in the case of pastoralists in some rural areas (IRIN, 7 September 2009; UN News Centre, 21 October 2009). According to UNHCR, the number of civilians displaced by fighting in Mogadishu between May and first week of July stood at some 200,000 people. A further 95,000 people fled the city between July and September (UNHCR, 7 July 2009; IRIN, 7 September 2009).

Many of the displaced from Mogadishu moved to the already overcrowded settlements that line the 30 kilometre road between Mogadishu and the town of Afgooye (Oxfam, 2 September 2009; IRIN, 7 September 2009; UNICEF, 11 November 2009).

Conflict in different parts of the country has since continued to lead to further displacement of the civilian population. During September, fighting between government forces and armed opposition groups for the control of Beletweyne displaced an unknown number of people. In October, the fighting between armed opposition groups in Kismayo displaced hundreds of people. On 23 November, hundreds of people fled in fear of violence when armed opposition groups took control of the town of Afmadow in southern Somalia (UNHCR, 1 October 2009; IRIN, 1 October 2009 and 24 November 2009).

In Somaliland, an estimated 700 families were displaced in July 2009 following conflict between members of the Hared and Mahamoud Nour clans. In the first seven months of 2009 alone, there were four successive clashes between the two clans over the ownership of farm land, with efforts to resolve the dispute unsuccessful (IRIN, 16 July 2009).

UNHCR has estimated numbers of IDPs in different areas based on reported population movements: in November 2009 there were an estimated 610,000 around Afgooye, 370,000 around Mogadishu, 150,000 in Galgadud, 70,000 in Galkayo in the autonomous northern region of Puntland, 66,000 in Baydhaba, and 51,000 in Hiran. However, these figures have not been validated and are thus imprecise estimates. They are largely derived from population movement tracking data, a system designed to measure movements rather than cumulative IDP population data. Given the current context of Somalia, it is extremely difficult to verify these figures. The figures for some regions are based upon field assessments, and additional population movement reported to those areas since the assessment was conducted. However, given the limitations of

the population movement tracking system, it is hard to ascertain who is still in an area and who has moved to another area, with return movements often under-reported (email communication with UNHCR Somalia office in Nairobi, 23 November 2009).

Protection risks facing IDPs

Physical security and integrity

During a visit to Somalia in October 2009, the Representative of the UN Secretary-General on the human rights of internally displaced persons (the RSG on IDPs) observed that serious violations of international humanitarian and human rights law were being committed by all parties to the Somalia conflict. He highlighted cases of indiscriminate attacks and shelling of areas populated or frequented by civilians – acts which could be tantamount to war crimes – and also death threats, targeted killings and forced recruitment by militias. The RSG on IDPs was told that violations, including rapes, were especially rampant in areas controlled by those acting under the umbrella of anti-government groups (UN News Centre, 21 October 2009; IRIN, 11 November 2009). Civilians have borne the brunt of the fighting, with 145 killed and 285 injured in September alone (UN News Centre, 2 October 2009). IDPs are among the most exposed and have sometimes been directly targeted in the upsurge in fighting (UN News Centre, 10 July 2009).

One report focusing on camps in Galkayo suggested that many displaced families in camps are headed by women, and that sexual and gender-based violence is widespread. Some men have reportedly abandoned their families, others have sought livelihoods elsewhere. According to the report, rapes are reported every week in Mustaqbal IDP camp, with the police unable to act against perpetrators (Telegraph, 23 October 2009). Fear of sexual violence is one of the major concerns for women living in the camps, according to women's organisations and camp residents. Women are most vulnerable when working outside camps in the day; most cases are not reported due to the lack of a reporting mechanism and the fear of further victimisation (Reliefweb/IRIN, 23 September 2009).

According to UNICEF, there are between 700,000 and 800,000 displaced children, and violations of their rights have been widespread. An increasing number of Somali children have been recruited by the army and militia groups (Reliefweb/IRIN, 11 November 2009).

Access to basic necessities

Half of the population is believed to be in need of humanitarian assistance, but the delivery of essential supplies has been prevented by the continuing insecurity. The essential needs of IDPs have not been met in many areas (IRIN, 30 September 2009).

In May, militiamen attacked a UNICEF warehouse. In July, camps in Jowhar hosting 49,000 IDPs were cut off from assistance, as the local partner of the World Food Programme (WFP) was unable to distribute food due to insecurity. In southern Somalia in August, increased insecurity forced UNICEF to suspend the dispatch of hundreds of tons of supplies for the prevention and treatment of acute malnutrition (UNICEF, 20 May 2009 and 13 August 2009; IRIN, 27 August 2009).

In September, Oxfam reported that poor sanitation and the lack of access to basic services were creating a public health emergency in camps. Oxfam said that the Afgooye settlements were the world's densest concentration of displaced people and described the situation as a human tragedy of "unthinkable proportions" (Oxfam, 3 September 2009).

In October, flash floods hit IDP camps in Kismayo and Mogadishu, and destroyed the makeshift shelters of thousands of people. In Kismayo, rains left an estimated 36,000 people homeless and

exposed them to mosquitoes and other hygiene-related problems. In Mogadishu, floods washed away shelters and carried with them utensils and other household items (IRIN, 19 October 2009).

A comprehensive country-wide inter-agency assessment, led by the Food Security and Nutrition Analysis Unit (FSNAU) of the Food and Agriculture Organization of the UN, underlined in August 2009 the spread and the severity of Somalia's humanitarian crisis, with half of the population or an estimated 3.76 million people in need of assistance. 75 per cent of them were in south and central Somalia, where the fighting was most intense and where there was least access for humanitarian operations. Given the context of an escalating civil war, FSNAU also issued an early warning of a further deterioration in the situation, depending on the extent of the fighting in the coming weeks and months (FSNAU, 24 August 2009).

The FSNAU estimate of people in humanitarian crisis included 1.4 million people in rural areas affected by severe drought, 655,000 poor city-dwellers who continued to struggle with very high food and non-food prices, as well as more than 1.42 million IDPs fleeing the conflict. Nutrition surveys confirmed that IDP populations were highly vulnerable, as IDPs consistently recorded higher rates of global acute malnutrition rates, at 20 per cent compared to the non-IDP rates of 18 per cent (FSNAU, 24 August 2009).

Emergency nutrition levels in several parts of the country had deteriorated since January and one in five children was acutely malnourished (compared with one in six children earlier in the year), while one in twenty was severely malnourished. The national rates of acute malnutrition were among the highest in the world. The assessment estimated that 285,000 children under five years of age were acutely malnourished, of whom 70,000 were severely malnourished and at increased risk of death if they did not receive the appropriate specialist care. More than two-thirds of these children were located in south and central Somalia.

According to UNICEF, about half the 3.6 million people affected by hunger and severe food insecurity are children. Only 38 per cent of UNICEF's life-saving activities for children had been funded by November (FSNAU, 24 August 2009; UNICEF, 19 November 2009).

National and international responses

Government response

The national response to internal displacement in Somalia has been extremely weak given the lack of institutions that can provide law and order and the poor resource base of the government.

Somalia is one of the 17 African states that has signed the African Union Convention for the Protection and Assistance of Internally Displaced Persons in Kampala on 23 October. The Convention is designed to help prevent and finally eliminate forced displacement in Africa (UNHCR, 23 October 2009). However, in the case of Somalia, this remains a distant and unenforceable ideal given that the large swathes of the country are under the control of the insurgents (VOA, 2 November 2009).

In November, the government committed to ratify the Convention on the Rights of the Child. This is a significant development given that Somalia and the US were the only two countries that had not signed the Convention.. However, this intention is not likely to have any short-term impact due to the prevailing insecurity and lack of implementing institutions (BBC, 20 November 2009).

International response and humanitarian access

In response to the displacement crisis, and as part of a larger coordinated effort among aid agencies to address the humanitarian situation, the inter-agency cluster system has been working to mitigate the situation.

Targeting of humanitarian workers has also affected aid delivery to needy populations. From 2008 to November 2009, some 42 aid workers were killed, 33 abducted, and ten remain in captivity (OCHA, 30 November 2009). Four WFP staff members were killed between August 2008 and January 2009 (VOA, 10 November 2009). In November 2009, 12 international staff working for WFP and World Vision International were evacuated from southern Somalia for security reasons (Reuters, 23 November 2009).

In July, Al-Shabaab announced a ban on a number of UN agencies in areas of south and central Somalia under its control, including United Nations Development Programme (UNDP), the Political Office for Somalia (UNPOS) and the Department of Safety and Security (UNDSS) (BBC News, 20 July 2009). Towards the end of November, Al-Shabab demanded that WFP stop importing food into Somalia from January 2010, and instead buy locally despite the fact that the country cannot meet the food needs of its population (BBC, 25 November 2009).

Despite these threats, provision of food, water and sanitation and health care has continued. WFP has provided food through local and international partners where security permits. In the first half of 2009, WFP provided food aid to some 2.87 million Somalis. UNICEF and other agencies continue providing health care activities and water, sanitation and health (WASH) programmes in IDP settlements. However, the security situation and funding cuts have had serious impact on their programmes (Reuters, 23 November 2009; UNICEF, 19 November 2009).

Given the security situation, most coordination and field management is done in Nairobi, where the international staffs of most humanitarian agencies is based. The RSG on IDPs and also local organisations have urged the humanitarian community to find ways to improve access, by moving operations closer to the populations in need and engaging local organisations more (IRIN, 21 October 2009 and 30 September 2009). However, agencies countered that since the emergence of armed groups in most of south-central Somalia, traditional structures have not been able to ensure access (email communications with INGOs, November and December 2009).

As of November 2009, total available humanitarian funding for Somalia stood at \$571 million (including some \$250 million carried over from last year) compared with \$615 million in 2008 (IRIN, 6 November 2009). According to OCHA, some of the biggest donors in 2008 have either given much less or nothing in 2009.

UN Agencies have highlighted that the USA has withheld millions of dollars of funds. The New York Times has attributed this to the fear that American donations may be reaching Al-Shabaab, which is thought to have growing ties with Al-Qaeda, through the UN's operational partners (New York Times, 1 October 2009; IRIN, 6 November 2009). A British official also told Voice of America that future British government donations would be contingent on the findings of an investigation on the alleged misuse of aid to the country (VOA, 10 November 2009). In November 2009, WFP reported that its food supply to Somalia had been effectively broken as a result of the American policy; the US had been the largest donor to WFP.

The RSG on IDPs has warned the international community not to cut funding in spite of aid diversion. The RSG reported in October that reducing levels of funding would not only punish the most vulnerable among the Somali population, but also play into the hands of radical elements (UN News Centre, 21 October 2009).

The head of the UN Office for the Coordination of Humanitarian Affairs (OCHA) for Somalia also warned that if the funding did not improve soon, the dire situation might lead to mass exodus from the country, which would have major regional implications. At a December news conference in New York, the UN Humanitarian Coordinator for Somalia expressed concern at the lack of pledges for funding through the 2010 Consolidated Appeals Process (CAP), especially in critical

sectors including food, water, sanitation and health; a situation that is likely to increase suffering and lead to further displacement (IRIN, 6 November 2009; Reuters AlertNet, 10 November 2009; UN News, 8 December 2009).

CAUSES AND BACKGROUND

Overview

Background and political developments (Special report, 2006)

The collapse of the Somali state has its roots in a military coup in 1969, led by General Mohamed Siad Barre. He installed a dictatorial regime, whose divide-and-rule policy succeeded in polarising grievances into clan-based wars and eventually splintered its own support-base. In 1991, the state collapsed and Barre was overthrown. The loose anti-government coalition quickly fell apart and proved incapable of changing pre-established war patterns. Thereafter, the country descended into a full-fledged civil war and has remained without an effective central government for 14 years. Various warlords fought over the control of key resources, embedded in the capital Mogadishu, port-towns, and the fertile lands between the Juba and Shabelle rivers. In 1992, a ceasefire between the main warring parties was agreed. As fighting continued into 1993, the UN deployed its largest ever peacekeeping operation (UNOSOM II). It operated without the consent of the parties within the country (ODI, October 2005) and ended in fiasco; the UN's serious misjudgment culminated in the killing of hundreds of Somali civilians and dozens of foreign peacekeepers in Mogadishu. The UN eventually pulled out in 1995.

In 2000, a Transitional National Government (TNG) was created at peace talks in the Djibouti town of Arta. The TNG never gained broad-based recognition and faced continued opposition from all sides. It was unable to assert control over Mogadishu and attempts to impose its authority outside the capital were unsuccessful. Between 2001 and 2004, clans and factions grouped under the umbrella of the Somalia Restoration and Reconciliation Council and Mogadishu-based warlords fought against TNG forces and its allied militias, resulting in heightened armed conflict in southern and central Somalia.

In late 2002, after more than a dozen failed peace initiatives, a National Reconciliation Conference was launched under the mediation of the Inter-Governmental Authority on Development (IGAD), and a temporary ceasefire was agreed. After two years of negotiations in Mbagathi, Kenya, the conference agreed on the composition of a new parliament (Transitional Federal Assembly, TFA), which in October 2004 elected Abdullahi Yusuf Ahmed, the former leader of the self-declared autonomous region of Puntland, as Transitional Federal President of Somalia for a period of five years. In December 2004, the TFA approved Ali Mohamed Gedi as Prime Minister of the Transitional Federal Government (TFG). An equal share of parliamentary seats was allocated to the main clans of southern/central Somalia (Darood, Hawiye, Digil-Mirifle and Dir) and the 31 remaining seats to minorities. Somaliland was not represented. The planned 12 per cent ratio for women was not met.

In June 2005, the new government and parliament moved to Somalia. While President Yusuf, Prime Minister Gedi and a number of cabinet members relocated to Jowhar, some 90 km to the north of Mogadishu, the rest of the government, along with the Transitional Federal Parliament (TFP) moved to the capital itself. Tensions between Yusuf and his main rival, the TFP speaker Sharif Hassan Sheikh Aden, led to some build-up of military power, particularly the gathering of troops loyal to the president in Jowhar during September 2005 (ODI, October 2005, p.23). Nevertheless, the TFG has taken positive steps towards accepting its responsibility and accountability towards the Somali population. Talks between the Jowhar and Mogadishu factions, initiated in June 2005, were beginning to show encouraging results in early 2006.

The TFG faces enormous tasks. It will have to sustain reconciliation and reconstruction throughout the country, consolidate the ceasefire, demobilise and reintegrate about 55,000 militiamen, re-build a functioning judicial system, control weapons, form a police and military force and establish mechanisms to share internal revenues, among others (IRIN, 26 October 2004; IRIN, 8 September 2004).

The transitional government is increasingly involved in local reconciliation processes, which are hoped to eventually contribute to enhancing the humanitarian community's access to needy populations. The international community acknowledges that it needs to be more proactive in providing assistance to existing pockets of security, and to supporting efforts of Somali civil society, including elders and businessmen interested in establishing a more peaceful and secure environment (OCHA, 30 November 2005).

Puntland

Puntland, in the north-east of Somalia, declared itself an autonomous region in 1998, under the leadership of Abdullahi Yusuf Ahmed, the current president of Somalia. Puntland experienced a political crisis in 2001 when Yusuf refused to hand over power to his successor. The ensuing armed conflict was settled in May 2003 by a power-sharing agreement through which cabinet posts were assigned to the opposition and rival militias were integrated into the army. Yusuf, who seemed to derive most of his power from military strength, appeared to have devoted most of his energies to his presidential ambitions. Therefore, and for reasons of limited resources and capacity, the Puntland administration has never been really functional (Menkhaus, UNHCR, August 2003). After Yusuf's election as president of Somalia, General Mohamud Muse Hersi "Adde" was elected president of Puntland in January 2005 (ODI, October 2005).

While Puntland is considered more secure than south and central Somalia, the current political and security situation remains tense in many parts of the region. There is fear of a military build-up and recruitment of troops to Jowhar, which would put an end to negotiations between the two government factions. In addition to potential political instability, Puntland is constantly faced with natural disasters like droughts, cold rains and floods. The urban migration of impoverished pastoralists, the arrival of many IDPs from south and central Somalia, and the recent trend of Ethiopian migrants arriving in Bossaso have stretched the coping mechanisms of Puntland's towns to the limits (OCHA, July 2005).

Somaliland

The self-declared, internationally unrecognised Republic of Somaliland in the north-west has been the most successful in establishing peace and moving towards reconstruction. Somaliland proclaimed its independence from Somalia in 1991, following a brutal campaign of repression of the region's rebel movement by the Barre regime, during which up to 1.5 million people were displaced and hundred of thousands fled abroad (USCR, 2001). The regime's counter-insurgency operation had plunged the region into a civil war in 1988, and the systematic targeting of the region's Isaaq clan members, seen as supporters of the insurgency, led to charges of genocide (IGAD/UNHCR/UNDP, December 2000, p.7). Fighting within Somaliland, between forces of President Mohammed Ibrahim Egal and rebel militias continued until 1995. In 1997, a new constitution was adopted and Egal confirmed as president. In 2001, the Somalilanders reaffirmed their vote for independence by referendum and held peaceful presidential elections in 2003, laying the basis for a multi-party system. Somaliland had refused to take part in the Mbagathi negotiations, reiterating its claim to independence.

Since 1991, Somaliland has re-built cities and established a government with hardly any external support (UN, 18 November 2004, p.7). Peaceful and largely fair parliamentary election in September 2005 bolstered the entity's claim to international recognition of its independence,

which the world community has so far refused to grant, partly because it fears creating a precedent.

Over the past 15 years, Somaliland has reintegrated over 800,000 returning refugees. As in Puntland, these high numbers of returns strain the absorption capacity of towns like Hargeisa and Burao. The majority of the returnees live alongside IDPs in over-crowded settlements.

The two regions bordering Somaliland and Puntland, Sool and Sanaag, belong officially to Somaliland but are claimed by Puntland, on the basis of clan affiliation. The inhabitants of the two regions are sharply divided in their loyalties. During September and October 2004, an unconfirmed number of people died in clashes between Puntland and Somaliland over the contested status of two border regions (IRIN, 1 November 2004). During 2005, political tensions persisted, which is why the Somaliland authorities decided against the participation of the most volatile areas of Sool and Sanaag in the September 2005 parliamentary elections. The release of the remaining detainees from the Sool and Sanaag conflict in late 2005 is a positive sign indicating that both the Somaliland and Puntland authorities appear to be committed to creating stability in the region (OCHA, 6 December 2005).

Regional and international context

Somalia's neighbours have played ambivalent roles, at times mediating peace negotiations and at times involved in virtual proxy wars in Somalia (Menkhaus, UNHCR, August 2003, p.15). The UN Security Council has repeatedly condemned the continued flows of weapons to Somali factions from all neighbouring countries, which violate the 1992 arms embargo, fuel conflict and risk jeopardising lengthy negotiation efforts. Nevertheless, in November 2005, IGAD called for the lifting of a 2002 UN arms embargo, arguing that as a sovereign state, Somalia had the right to recruit, train and equip law enforcement agents (IRIN, 30 November 2005).

Over the past few years, the international community has started to show renewed interest in reconstructing Somalia. Contributing factors are a large Somali diaspora in Western countries, a desire to return refugees and rejected asylum-seekers, and fears that the lawless environment in Somalia could be a breeding-ground for terrorists. The current state building process is therefore much in the interest of the international community. At the same time, the financial means made available for the process are a far cry from the actual sums needed to recreate a Somali state.

In order to function properly, the transitional government needs assistance in terms of capacity building and training. There is an almost tangible sense of disappointment among members of the TFG with regard to the reluctance of international donors to support its activities. International organisations and donors cite security issues as the main reason for their limited engagement. In their view, the TFG will have to demonstrate its good intentions and show progress in broadening its legitimacy, which will in turn enable organisations to substantiate their pledges for financial support to the reconstruction. However, without bold international support at this crucial stage, the TFG may not be able to consolidate its authority and build up functioning state structures and the country may well plunge back into anarchy (Interviews with agencies in Nairobi and Jowhar, October 2005; telephone interview with UNICEF representative, December 2005).

Background

Colonial legacy, Siad Barre's dictatorship and root causes of state collapse: 1961-1991

- The partitioning of Somalia by the colonial powers laid the basis for future conflicts

- Siad Barre military dictatorship installed in 1969 used clan divide and rule tactics in order to hold on to power
- The central state under Barre was notoriously corrupt, authoritarian and patronage-based
- In the 1980s 50% of GNP was foreign aid which allowed Barre to establish a bloated and rent-seeking civil service sector and strong military
- The political class view positions in the state as having a share of the cake not as a responsibility towards citizens
- Barre's regime poor human rights record and genocidal response to an uprising in the north led to a freezing of foreign aid by 1989 which precipitated state collapse
- By 1992 half a million people were killed and an estimated 1.5 people had fled the country

Institute for Security Studies, March 2006:

"...The third major cause of Somalia's civil war was the colonial legacy. The European powers (Britain, Italy and France) partitioned what some would call greater Somalia into five parts. Britain took two, Italy one and France one. The European powers gave the Somali region of Ogaden to Ethiopia's King Menelik to appease him. As Geshekteer noted, from 1891 to the present, Ethiopia has been expanding to the east.⁷

The partitioning of Somalia permanently damaged the Somali people. Hadrawi, a great Somali poet, argues persuasively in several poems that most of the malaise in today's Somalia stems from the colonial system. He claims that the colonial powers destroyed Somalia's socio-economic system.⁸ In addition, most of the resources of Somalia's weak and poor government were used to reunify the Somali people. The effect of the partition continues to haunt the Somali people since, according to this view, two Somali territories remain under the control of Ethiopia and Kenya. In addition, the two regions that formed independent Somalia are experiencing serious problems and the northern region (former British Somaliland) wants to secede from the south".

Freedom House, 1999:

"Siad Barre seized power in 1969 and increasingly employed divisive clan politics to maintain power. Civil war, starvation, banditry, and brutality have wracked Somalia since the struggle to topple Barre began in the late 1980s. When Barre was deposed in January 1991, power was claimed and contested by heavily armed guerrilla movements and militias based on traditional ethnic and clan loyalties. Savage struggles for economic assets by the various factions led to anarchy and famine."

Menkhaus, UNHCR, August 2003, p. 2,3:

"Under Barre, the central state in Somalia was notoriously corrupt, authoritarian, and patronage-based. It was also well-funded, thanks to the country's strategic significance in the Cold War, enabling Somalia to attract one of the world's highest levels of foreign aid per capita. By the 1980s over 50 per cent of the national GNP was foreign assistance, allowing the Barre regime to build up a bloated civil service and military.[...] Political energies were almost entirely devoted to securing one's "piece of the national cake" within the government. Moreover, external military support from the East Bloc (1970-1978) and then the West (1980-1989) enabled a coalition of clans in power to engage in highly authoritarian practices. For Somalis, the only central state they knew was an instrument of repression, expropriation and ethnic hegemony. Anger at the state fuelled the popular uprisings which brought down the Barre regime. It has also left a legacy of fear and distrust towards efforts to revive a central government. The history of the state as cash cow has contributed to a tendency on the part of the Somali political class to view positions in the state as a prize to be won, not as an administrative responsibility to be assumed.

End of the Cold War. The end of the Cold War dramatically reduced Somalia's strategic importance and made it possible for Western donors to place political conditions on foreign aid. The Barre regime's very poor human rights record, including its genocidal response to an uprising in the northwest of the country in 1988-1990, led to a freezing of almost all foreign aid by 1989. Without that aid, the Somali state was a castle built on sand, and within a year the government lost control of most of the countryside, before collapsing entirely in January 1991. The sudden loss of external support is probably the single most important precipitating cause of the collapse of the Somali state, and serves as a cautionary note for current efforts to revive a sustainable central government. Somalia's tax base can only support a minimalist state structure, and external sources of funding for a revived state will remain modest. To the extent that this reduces the ability of leaders to use state resources to seal alliances via time-honoured patronage politics, this increases the difficulty of re-establishing a government."

Ibrahim F. 15 August 2002, p.1:

"In 1991 the Somali State collapsed as the civil war engulfed the capital Mogadishu and the military regime of Mohamed Said Barre was forced from power.

In their 1992 report, Amnesty International described Somalia as a "human rights disaster", at the end of 1992 it was estimated that more than 500,000 people had died in the war and famine in Somalia, this included 300,000 children were children. Subsequently, some 1.5 million Somalis had fled the country, and more have since died.

No single factor can explain the causes of the war. The legacy of colonialism, contradictions between the centralized state and pastoral culture, unequal human development, lack of power and clan sharing, oppression, corruption were among the contributed factors to the armed conflict that has now divided Somalia."

Siad Barre's war against the Isaaq-dominated northwestern Somalia in the 1980s (July 2003)

- In 1981 a group of Isaaq exiles formed the Somali National Movement (SNM) an armed movement with the aim to overthrow the Barre regime
- In 1988 the SNM attacked major towns of Hargeysa and Burco, triggering a full scale civil war in the northwest
- Government response to the northern insurgency was fierce: after years of summary executions, rape, confiscation of property and disappearances, aircraft bombings in 1988 forced half a million people to flee to Ethiopia
- Siad Barre was charged of genocide against the Isaaq clan in the northwestern Somalia in an attempt to control the livestock trade
- Violent struggles have ensued ever since a loose opposition coalition overthrew the dictatorial Barre regime in 1991

Freedom House 1999:

"Siad Barre seized power in 1969 and increasingly employed divisive clan politics to maintain power. Civil war, starvation, banditry, and brutality have wracked Somalia since the struggle to topple Barre began in the late 1980s. When Barre was deposed in January 1991, power was claimed and contested by heavily armed guerrilla movements and militias based on traditional ethnic and clan loyalties. Savage struggles for economic assets by the various factions led to anarchy and famine."

IGAD/UNHCR/UNDP, December 2000, p.7:

"In the aftermath of the Ogaden War, approximately a quarter of a million refugees had been settled in the northwest by the Somali government, with the assistance of UNHCR. [...] Most were ethnic Somalis from the Ogaden branch of the Darod clan, although some were members of the Oromo and other Ethiopian ethnic groups. For several years, traditional competition between the Isaaq and the Ogaden for pasture and water in the southern Haud had been aggravated by the Somali government's provision of arms, ammunition and training to the Ogaden fighters of the Western Somali Liberation Front. Although intended for use against the Ethiopian government, this military assistance was often directed instead against Isaaq civilians in the Haud. [...] Government favouritism towards the Ogaden refugees, who enjoyed preferential access to social services (provided by UNHCR and its Somali government counterpart, the National Refugee Commission), business licenses and government posts, further fuelled Isaaq grievances.

In 1981, a group of mainly Isaaq exiles meeting in London declared the formation of the Somali National Movement (SNM), an armed movement dedicated to the overthrow of the Barre regime. The SNM initially tried to cast itself as an alliance of opposition figures from different clans, but its core membership and constituency was principally Isaaq. The SNM established its first bases in Ethiopia in 1982, and by 1983 it had established itself as an effective guerrilla force in the northwest. In response, government pressure on the Isaaq population, whom it deemed sympathetic to the SNM, took the form of "extreme and systematic repression". [...] Summary arrests, extrajudicial executions, rape, confiscation of private property and 'disappearances' all became commonplace as the government sought to deprive the SNM of the support of the Isaaq public. The government also enlisted the support of the non-Isaaq clans of the northwest, attempting – with only partial success – to exploit traditional kinship affiliations.

In 1988, following a meeting in Djibouti between Siyaad Barre and his Ethiopian counterpart, Colonel Mengistu Haile Mariam, the Ethiopian government instructed the SNM to cease operations in Somalia and withdraw its forces from the border areas. The SNM, fearing the collapse of its long insurgency, instead attacked the major northern towns of Hargeysa and Burco, triggering the onset of full-scale civil war in the northwest. The government response was fierce: artillery and aircraft bombed the major towns into rubble and forced the displacement of roughly half a million refugees across the border into Ethiopia. Isaaq dwellings were systematically destroyed, while their settlements and water points were extensively mined.

ICG, 28 July 2003, pp.5,6:

"The formation in 1989 (with SNM support) of the southern Somali factions, the Somali Patriotic Movement (SPM) and the United Somali Congress (USC), provided the SNM with allies and helped to relieve some of the pressure on its fighters. In January 1991, as USC advances in and around Mogadishu forced Barre to abandon the capital, the SNM staged its final offensive in the northwest. The remaining government forces disintegrated and fled, and the vestiges of civil administration collapsed."

Ibrahim F. 15 August 2002,p.1:

"By 1988 full scale civil war broke out in Northwest, where Siyad Barre's force attacked the city of Hargeysa in a brutal campaign against the Isaaq clan that led to charges of genocide".

May 27,1988 Civil war erupted when the SNM attacked Burao, one of the main towns in the north. On May 31, they attacked Hargeisa the provincial capital of the region and the second city in the country. Devastating the northern region, causing people to flee their homes and possessions into the neighboring countries such as Ethiopia, Djibouti and Kenya.

In 1991 the Somali State collapsed as the civil war engulfed the capital Mogadishu and the military regime of Mohamed Said Barre was forced from power.

In their 1992 report, Amnesty International described Somalia as a “human rights disaster”, at the end of 1992 it was estimated that more than 500,000 people had died in the war and famine in Somalia, this included 300,000 children were children. Subsequently, some 1.5 million Somalis had fled the country, and more have since died.

No single factor can explain the causes of the war. The legacy of colonialism, contradictions between the centralized state and pastoral culture, unequal human development, lack of power and clan sharing, oppression, corruption were among the contributed factors to the armed conflict that has now divided Somalia.”

The fall of Barre regime in 1991 was followed by all out inter-clan war (Aug 2003)

- No other country in the world has been in such a prolonged situation of state collapse
- The Regime's genocidal campaign in the north and freezing of foreign aid led to the rise of clan-based liberation fronts among which the United Somali Congress (USC) which ousted Barre in 1991
- Uncontrolled gunmen and residents looted the capital as well as the agricultural communities in Bay, Lower Shabelle and Juba valley areas
- Inter-clan violence between 1991-1992 notably between factions of the Darood and Hawiye clans led to massacres, ethnic cleansing, mass exodus and killed about 240,000 people
- Humanitarian aid became part of the economy of plunder whereby warlords fought to control key ports and charged taxes to “guard” food aid while diverting some
- Absence of central government authority has left vacuum where violence and lawlessness prevailed and customary and Islamic laws became irrelevant
- Militias uncontrolled by commanders and teen-age gunmen uncontrolled by elders all fought to loot
- Armed conflicts today are mainly sub-clan affairs often a response to criminality

Menkhaus, UNHCR, August 2003, p.1,3,4,7:

“Twelve years after the fall of the government of Siyad Barre in January 1991, Somalia remains without a functioning, recognized central government. No other country in the contemporary era has endured such a prolonged period of complete state collapse. The crisis of the state in Somalia has been accompanied by warfare and armed criminality, which in turn have spawned multiple, chronic humanitarian emergencies. The country consistently ranks among the poorest in the world on key indicators of human development such as life expectancy, per capita income, malnutrition, and infant mortality, making much of the population highly vulnerable. [...] Somalia today has earned a dubious place alongside states such as Congo and Liberia as one of the most intractable “complex political emergencies” in the post-Cold War era.

[...]

The beginning of Somalia's collapse can be traced to an offensive launched by the Somali National Movement (SNM) in the northwest of the country in May 1988. The regime's brutal response against the Isaaq clan in the northwest – a genocidal campaign which drove a half million refugees into Ethiopia – led both to the freezing of aid by western donors and to the rise of numerous other clan-based liberation fronts. When one of those movements, the United Somali Congress (USC), pushed the regime out of Mogadishu in January 1991, the legacy of deep clan divisions and myopic political leadership among the country's multiple armed factions stymied

efforts to create a government of national unity. Instead, the country fell into heavily-armed chaos. Swarms of uncontrolled gunmen and residents looted everything of value in government buildings and in Mogadishu's residential neighbourhoods. Inter-clan violence led to massacres, ethnic cleansing, and a massive exodus of displaced persons in all directions. Hundreds of thousands of Somali refugees crossed the Kenyan and Ethiopian borders. In the south, armed battles pitting factions of the Darood and Hawiye clan-families swept across the countryside. In the midst of the fighting, agricultural communities in Bay region, the Lower Shabelle, and the Jubba valley areas were repeatedly looted and attacked by all sides. The area between Mogadishu and the Kenyan border became a "shatter zone" within which residents were exposed to repeated rounds of looting until they began to starve. Mogadishu itself became the epicentre of very destructive shelling and warfare between the rival USC militias of General Mohamed Farah Aideed and Ali Madhi, reducing much of the city centre to rubble. The massive famine which occurred from late 1991 through 1992, and which ultimately claimed an estimated 240,000 Somali lives, was thus almost entirely due to armed conflict and wartime plundering. [...] Tragically, the populations which suffered the brunt of the famine bore the least responsibility for the crisis which provoked it.

One of the hallmark features of the crisis of 1991-1992 was the rise of an economy of plunder, in which a wide range of social groups – from illiterate gunmen who fought to loot, to merchants of war who made millions of dollars exporting scrap metal from dismantled factories – came to have a vested economic interest in continued lawlessness and armed conflict. International relief supplies became part of this economy, as warlords fought to control key ports of entry and transit of the valuable food shipments brought into the country. Militias charged exorbitant fees to "guard" the food aid, and were complicit in diversion of relief supplies. By 1992, the food aid had become the principal commodity over which warlords fought. Emergency relief became part of the problem rather than part of the solution. [...]

Another important aspect of the civil war of 1991-1992 was the almost complete breakdown of authority at all levels. Militias were under only the loosest control of militia commanders, and fought mainly in order to loot. Clan elders lost control of young teen-age gunmen. Both clan customary law (*xeer*) and Islamic law were rendered largely irrelevant as constraints on lawless behaviour. The result was an epidemic of massacres, rape, and other previously taboo brutalities. [...]

Because armed conflicts are now mainly sub-clan affairs, clan members are much less willing to support the clashes, and clan elders are often in a better position to intervene to contain the fighting. These intra-clan conflicts are often a reprisal for a criminal act, making it increasingly difficult to differentiate outbreaks of armed hostilities from responses to criminality."

UN, November 1999, p.6:

"Virtually all the infrastructure of government - from buildings and communications facilities to furniture and office equipment - has been looted. All government archives and records, libraries, files and museums have been totally destroyed. In most of the country, there are no police, judiciary or civil service. Communications, apart from private satellite and cellular telephones and radio links, are non-existent. Electricity is not available on a public basis, but only to those who can afford generators. There is no postal service.

[...]

As a country without a national government, Somalia remains unique. The functions that states perform, such as the provision of social services, including health and education, the regulation, for example, of the movement of goods and persons, control of the environment, airspace and coasts, and so on, as well as the representation of the Somali people in intergovernmental and international fora, are absent, notwithstanding the fact that administrations in some parts of the country, notably in north-western Somalia ('Somaliland') and north-east Somalia ('Puntland'), have begun to provide some basic services to their people. "

Somaliland declares its independence in 1991; in 2006 still no international recognition (May 2006)

- Somaliland dissolved its 1960 union with the rest of Somalia and seceded in May 1991 along the former colonial border of British Somaliland
- In 1993 Mohammed Ibrahim Egal becomes president of Somaliland
- In May 2001 97% of Somaliland voters approved a new constitution, voting for independence and laying the basis for a multiparty system
- While the south and centre of Somalia has been plunged in civil war and lawlessness Somaliland has reintegrated refugees, rebuilt cities and established a national government
- Apart from two serious conflicts in 1994 and 1996 Somaliland has enjoyed peace and stability
- After President Egal passed away in May 2002, Dahir Riyale Kahin his deputy assumed the presidency peacefully
- Somaliland is suffering economic losses due to livestock ban since 2000 and suffers serious underfunding
- Minister of interior of Somaliland expressed concern that the non-recognition of the independence of Somaliland negatively affected respect for human rights and limited assistance flows
- The insistence of the African Union and the Arab League for the territorial integrity of Somalia could lead to conflict according to ICG (2003)
- In December 2005, Somaliland applies for AU membership - its relationship with Somalia must be considered more seriously, says ICG, if future conflict is to be avoided

CHR, 26 January 2000, p. 22:

"In 1991, when the central Government of Somalia collapsed, 'Somaliland' declared itself independent and sought separation from Somalia, citing the massive discrimination its people had suffered during the regime of Siad Barre. Although, the international community and the United Nations, which upholds the territorial integrity of Somalia, have not recognized the separate status of 'Somaliland', the international community has acknowledged with deep appreciation the good level of security and stability that 'Somaliland' has achieved over the years."

Menkhaus, UNHCR, August 2003, p.4, 25-29:

"In the northwest, Somaliland dissolved its 1960 union with the rest of Somalia and seceded in May 1991, and then set about the task of reintegrating refugees, rebuilding damaged cities, and establishing a national government. [...] Though it suffered two brief but serious episodes of armed conflict in 1994 and 1996, Somaliland was far more peaceful and respectful of the rule of law than the south, and its economy far more prosperous, thanks to booming trade through the all-weather seaport of Berbera. [...]"

Somaliland is currently the only zone of Somalia where a formal administration actually exercises a modicum of authority. To be sure, the Somaliland government is badly underfunded (it operates on a US\$20 million budget, of which 70 per cent is estimated to go toward salaries to militia) and possesses only limited capacity. [...] Its civil servants are paid only token salaries and hence only work part-time. Many of the ministries are hollow, with no staff beneath top officials to implement policies. But the government does maintain functional control over the national army; the police force and courts maintain public order; customs officials collect taxes at the port; the two houses of the legislature convene and debate bills; and at least some of the ministries are making serious attempts to play a constructive role in their assigned sector. Those ministries tend jealously to guard their prerogatives, placing them in competition and conflict with international aid agencies

(which often resist working through the ministries, preferring to operate directly through local NGOs) and with local municipalities. Most of the municipalities have been poorly run, but some of the most effective and capable administrative units in Somaliland have been at the municipal level, where a handful of committed mayors have overseen major public works – housing, water systems, road repair, and other services. Rapid turnover and reassignment of top personnel at both the ministerial and municipal level has eroded efforts to institutionalize good governance. Where effective governance occurs, it is typically personality driven and hence short-lived. The Somaliland government has gradually extended its physical presence into eastern areas, and now is on the ground in about 80 per cent of the country. [...]

Somaliland's political system invests considerable power in the presidency, and the President from 1993 until his death in May 2002, Mohamed Haji Ibrahim Egal, wielded most of the political authority in the country. Upon his death, Vice-President Dahir Rayale Kahin assumed the presidency. That peaceful, constitutional succession was a major political success for the fledgling state, especially because Rayale is a member of the small Gadabursi clan. Acceptance of a non-Isaaq president by the dominant Isaaq clan was a sign of political maturity which earned the administration considerable goodwill abroad. Rayale prevailed as the candidate of the incumbent Ururka Dimuqraadiga Ummadda Bahawday (UDUB – Democratic United Peoples' Movement) in presidential elections in spring 2003. [...]

UDUB. When Somaliland adopted a multi-party system as part of a constitutional referendum in May 2001, President Egal formed UDUB, which became the party of the government in power. As is typical of incumbent parties, UDUB enjoyed unfair advantages in the presidential election, including liberal use of government funds to promote the party. Its very narrow victory in 2003 (in which it won by only 80 votes) served notice that the party is not as strong as many believed. But by virtue of remaining the incumbent party, UDUB is guaranteed to remain a major political force. It does not have a well-defined platform; its campaign focused mainly on its experience in government, and its support base is mainly a combination of patronage and core support from the Haber Awal sub-clan of the Isaaq. [...]

Clans. Somaliland politics is very much dominated by competing clan interests. The numerically and politically dominant clan is the Isaaq, which is divided into rival sub-clans. The two major armed clashes in Somaliland in 1994 and 1996 were both intra-Isaaq affairs, pitting the Habar Awal (the clan of President Egal) against a rival Isaaq sub-clan, the Habar Garhajis, which populate Togdheere region and the important trading town of Burao, as well as the eastern portion of Hargeisa. In addition to enjoying political primacy in Somaliland, the Isaaq also monopolize the top positions in commerce, dominating the lucrative import-export trade out of Berbera. In order to maintain the legitimacy of Somaliland as a state and not merely a clan enclave, the Isaaq have had to ensure the participation of non-Isaaq clans. This has worked to the advantage of the Gadabursi clan, which populates Awdal region in western Somaliland; the Gadabursi were allocated the position of vice-president, which gave them the presidency upon Egal's death. To the east, the Dolbahante and Warsengeli clans in Sool and Sanaag are by all accounts greater in number than the Gadabursi and resent having been relegated to third tier status in Somaliland politics. As noted earlier, the Warsengeli and Dolbahante are badly divided internally over allegiance to Somaliland, Puntland, or to the TNG in Mogadishu, and will likely remain divided over political affiliation for some time to come. Finally, the Issa clan inhabits the coastal portion of Awdal region. The Issa have historically been stakeholders mainly in Djibouti politics, which they dominate, but also seek representation and rights in Somaliland. There are members of other Somali clans who reside in Somaliland – spouses, migrant labourers, and others – but Somaliland considers only the Isaaq, Gadabursi, Issa, Warsengeli, and Dolbahante to be “indigenous” clans. All others are considered foreign guests, with citizenship in Somalia, even if some have lived their entire lives in Somaliland. [...]

Somaliland's prospects for recognition are inversely related to the fortunes of the rest of Somalia; the longer the political impasse continues in Mogadishu, the more attractive the idea of rewarding Somaliland for its political achievements becomes.

Completion of Legislative Elections/Status of Opposition. Somaliland faces a significant political challenge in the aftermath of the controversial April 2003 elections, which left the country divided and disillusioned. One key issue which will dominate Somaliland affairs is the holding of parliamentary elections. At present, the elections have yet to be called, and the sitting parliament has granted itself a lengthy extension – two years for the lower house, three years for the upper house. But the current parliament is unelected and predominantly pro-UDUB. In the absence of a parliamentary election which will allow opposition parties to take at least a portion – and perhaps even a majority – of legislative seats, the opposition parties have no post-election political platform, which temporarily turns Somaliland into something akin to a one-party state. [...] In order for parliamentary elections to be held, however, a series of laws and electoral procedures must be passed, including an accord on the number of parliamentarians elected per region; demarcation of district and regional boundaries must be finalized; and electoral procedures need to be improved, including, some contend, voter registration."

IRIN-CEA, 10 July 2001, Part 1:

"Held on 31 May 2001, the Somaliland referendum was characterised by poor preparation, intimidating diaspora propaganda, and an admirable openness at the polling booths. The vote for independence was combined with the vote for a new constitution which brought in sweeping political changes by Somaliland President Muhammad Ibrahim Egal. The first article of the new constitution asserted the independent status of Somaliland, and Article Nine removes the present clan-based system by laying the basis for a new multiparty system."

USCR, December 2001, p.5:

"In May 2001, a resounding 97 percent of Somaliland voters approved a new constitution, affirming the self-declared nation's ten-year-old independence from Somalia."

UNCHR, 30 November 2003, paras.10, 46:

"The expert had a meeting with the Minister of the Interior, who expressed the opinion that the non-recognition of the independence of "Somaliland" was having a negative effect on the observance of human rights, as it limited the assistance they received."

ICG, 28 July 2003, pp.i,35:

"Recognition of Somaliland, although under consideration by a growing number of African and Western governments, is still vigorously resisted by many members of both the African Union (AU) and the Arab League on the grounds that the unity and territorial integrity of member states is sacrosanct. Furthermore, the creation of a new Somali government emerging from the IGAD process that claims jurisdiction over Somaliland threatens to open a new phase in the Somali conflict. [...]"

Granting Somaliland some kind of increased international profile but without formal recognition – for example, observer status at the UN, the African Union and IGAD – could help to prepare the ground for eventual negotiations between two equals, Somaliland and Somalia. [...]"

Recognition [of Somaliland as an independent state] would establish Somaliland as one of the few genuinely democratic states in the region. And, as David Shinn, former U.S. ambassador to Ethiopia has pointed out, Somaliland's recognition might in fact improve the prospects for a more

equitable, durable Somali union at some point in the future, since “it does not rule out the possibility that an independent Somaliland accepted by the African Union could propose unification at a later date with a Somalia that finally achieves its own peace and unity”.

UN, November 2002, p.18:

“As the least conflict-prone, this zone receives most returning refugees from Ethiopia and Djibouti, many of whom face difficulties re-establishing sustainable livelihoods. Cooperative local authorities, and a recent smooth transition of political power, have allowed for significant humanitarian and development initiatives. However, ‘Somaliland’ continues to suffer economic losses as a result of the ongoing livestock ban. The Sool and Sanag regions are suffering from food insecurity and require assistance leading up to the next *Deyr* rainy season. Additionally, ‘ownership’ of these regions is a source of dispute between ‘Somaliland’ and ‘Puntland’.

Implications of Somaliland's application for AU membership in December 2005:

ICG, 23 May 2006, summary:

In December 2005 President Dahir Rayale Kahin submitted Somaliland's application for membership in the AU. The claim to statehood hinges on the territory's separate status during the colonial era from the rest of what became Somalia and its existence as a sovereign state for a brief period following independence from Great Britain in June 1960.

Peacemakers have so far opted to tackle the issues sequentially: first trying to establish a government for Somalia and only then addressing the Somaliland question. European diplomats warn Crisis Group that even raising the Somaliland issue at this time could destabilise the peace process in the South. This approach risks both sides becoming more entrenched and the dispute over Somali unity more intractable. If the TFG's authority expands, the dispute over Somaliland's status is likely to become an ever-increasing source of friction, involving serious danger of violent conflict. Somaliland has reacted angrily to the TFG's calls for the UN arms embargo on Somalia to be lifted so it could arm itself and has threatened to increase its own military strength if this happens. The prospect of a return to the major violence of the late 1980s is neither imminent nor inevitable but it is genuine enough to merit urgent AU attention.

For both sides, the issue of recognition is not merely political or legal – it is existential. Most southern Somalis are viscerally attached to the notion of a united Somali Republic, while many Somalilanders – scarred by the experience of civil war, flight and exile – refer to unity only in the past tense. For a generation of Somaliland's youth, which has no memories of the united Somalia to which young Southerners attach such importance, Somaliland's sovereignty is a matter of identity.

Resolving Somaliland's status is by no means a straightforward proposition. A vocal minority of Somalilanders, including some communities along the troubled border with neighbouring Puntland (North East Somalia) and a violent network of jihadi Islamists favour unity. Some observers fear that, in the absence of a negotiated separation, the relationship between the two neighbours could potentially become as ill-defined and volatile as that which prevailed between Ethiopia and Eritrea prior to their 1998-2000 border war.

There are four central and practical questions:

should Somaliland be rewarded for creating stability and democratic governance out of a part of the chaos that is the failed state of Somalia?;

would rewarding Somaliland with either independence or significant autonomy adversely impact the prospects for peace in Somalia or lead to territorial clashes?;

what are the prospects for peaceful preservation of a unified Somali Republic?; and

what would be the implications of recognition of Somaliland for separatist conflicts elsewhere on the continent?

These questions need to be addressed through firm leadership, open debate and dispassionate analysis of the issues and options – not ignored, ostrich-like, in the hope that they will disappear. “The AU cannot pretend that there is not such an issue”, a diplomat from the region told Crisis Group. “The issue cannot be allowed to drag on indefinitely. It must be addressed”. Somaliland’s application to the AU offers an entry point for preventive diplomacy. The AU should respond to Somaliland’s request for recognition by seizing the opportunity to engage as a neutral third party, without prejudice to the final determination of Somaliland’s sovereign status.

Puntland: Regional administration established in 1998 (Aug 2004)

- Puntland is a non-secessionist, trans-regional state established in 1998 comprising Bari, Garowe, north Muduq, Sool and Sanaag
- Fierce internal power struggle exploded when former President Abdullahi Yusuf refused to step down and rejected the election of his successor Mr. Jama Ali Jama in late 2001
- Armed clashes between militias of Abdullahi Yusuf and his rival Ali Jama ended with a peace deal in May 2003 by which the opposition was assigned cabinet posts and militias were integrated in the army
- Puntland administration is not functional with the President devoting most of his time to his national presidential ambitions
- On the status of Sool and Sanaag, Yusuf calls the international community to recognize them as Puntland on the basis of ethnicity rather than colonial demarcation
- Yusuf’s reliance on military strength has been resented by his own clan’s businessmen, elders and Puntland’s intellectuals
- Puntland has an active business sector, an export-orientated economy has developed in Bosaso port and housing construction is booming thanks to relative peace in the region
- The largely nomadic population of Puntland has greatly increased since the early 1990s due to people from the south fleeing the war northwards
-
- Relations with Somaliland are strained over determining border areas notably Sool and Sanag regions
- On the contested status of Sool and Sanag, the Minister of Puntland argued the regions should belong to them according to ethnic composition rather than colonial demarcation
- Disagreements between President Abdullahi Yusuf and his deputy, Mohamed Abdi Hashi are ripe, the latter nominated new ministers and reshuffled others however all the appointments were rescinded by the President in August 2004

Menkhaus, UNHCR, August 2003, p.20,21:

“Puntland, a non-secessionist, trans-regional state comprising the Harti-inhabited territory in the northeastern corner of Somalia, was the only region of Somalia which managed to remain almost entirely free of armed conflict in the aftermath of the collapse of the state. For most of the 1990s, the region kept the peace via the mediation of clan elders. In 1998, a formal Puntland administration was declared, one which included Bari, Garowe, north Muduq, Sool, and Sanaag. The latter two regions are claimed by Somaliland and have remained a source of tension between Puntland and Somaliland. The long period of peace in Puntland ended in late 2001,

following a constitutional crisis when President Abdullahi Yusuf failed to call elections and sought an extension to his rule, which was rejected by clan elders and a high court judge. An alternative interim government was declared, leading to tensions and armed clashes between the militia of Abdullahi Yusuf and rival Jama Ali Jama. Throughout all of 2002, Puntland was divided and beset by periodic armed clashes. Abdullahi Yusuf's forces eventually prevailed, thanks in part to Ethiopian patronage, and despite TNG support for Jama Ali Jama. In May 2003, a military successor to Jama, General Ade Muse, came to understand that he lacked the capacity to defeat Abdullahi Yusuf, and instead sued for peace, calculating correctly that Yusuf would welcome the chance to end the conflict and present himself at the Kenyan peace talks as President of a unified Puntland. As part of the agreement, opposition militia have been integrated into the Puntland army and some cabinet posts have been allocated to the opposition. Puntland's new peace is somewhat fragile, but the state appears to have ended the unfortunate period of fighting which plagued it in 2001-2002. [...]

Puntland Administration .

Opposition Groups

UN December 1998, p. 26:

"The majority of the largely nomadic population depends on the livestock trade and to a much lesser extent on fishing and dealing in frankincense. Relative peace and security have allowed an export-oriented economy to develop and the north-east is increasingly developing as a region of transition and recovery."

UNDP Somalia 2001, p.51:

"Formed in 1998, Puntland's administrative structures are still embryonic. Lacking the infrastructure and potential revenue sources of Somaliland the administration's impact on public services and the economy has been more limited. However, Puntland can boast active business and NGO sectors. The population of the region has increased greatly since the war as people originally from there fled the south. This has led to high levels of investment by Somalis in housing and businesses and reflects the public's confidence in the political and security situation."

OCHA, 31 July 2004:

"Talks were held in "Puntland" in early May to end the conflict which began in June 2001 when Abdullahi Yusuf, whose presidential term then ended, claimed that the region's parliament had extended his mandate. In July 2001, clan elders rejected his claim and on 14 November they elected Jama Ali Jama president for a three-year term. Abdullahi Yusuf captured Bosaso from Jama Ali Jama in May 2002.[...] A peace agreement was signed on 17 May 2003, to which all parties have thus far reportedly adhered. [...]

On the question of the contested areas of Sool and Sanaag, the Minister [of Puntland] insisted that the international community must recognize the areas as belonging to "Puntland" based on ethnicity, and not on colonial demarcation." (UNCHR, 30 November 2003, paras.11, 68)

"The Puntland Parliament has settled on an extension of six months instead of the two years that had been voted for unanimously last month. The announcement was well received by residents in Puntland. There were differences between the executive and the legislative branch over the renewal of the authority's term but the current endorsement made by the parliament has been seen as a possible resolution to some of the political tension that was brewing in the region. [...]

The reshuffle resulted in the merging of the Ministry of Planning and Statistics (MOPAS) with the International Relations ministry. [...] Other changes included appointment of new governors for Bossaso, Nugal and Galkayo. Both the Police commander and the commander of the 'Darwiishta - the army' were replaced. The changes took place peacefully."

OCHA, 5 August 2004:

"President Abdullahi Yusuf and his deputy, Mohamed Abdihashi, continues to brew. The Vice President has in the last two weeks defied the President and nominated some new ministers and reshuffled others. However, all his appointments were rescinded by the President who is attending the Somalia Peace Conference in Nairobi. This is unlikely to degenerate to a full fledged conflict."

Sool and Sanaag regions contested by Puntland and Somaliland from 1998 to 2004

- Despite having signed both the 1991 declaration of independence of Somaliland and its reaffirmation in 1993, the Harti leadership of Sool and Sanaag are ambivalent about Somaliland's cessation claims
- The fact that the Harti elite is split between Somaliland, Puntland and Mogadishu, creates disunity in their political aspirations
- The regions of Sool and Sanaag geographically fall within the borders of pre-independence British Somaliland but most of the areas' inhabitants, the Warsangeli, Dhulbahante and Majerteen subclans are associated with residents of Puntland
- When Abdullahi Yusuf proposed that the Harti-inhabited Sool and Sanaag regions be included in the state of Puntland it was in order to gain additional allies to outmaneuver rivals within his own Majerteen clan
- Tensions in Sool and Sanaag simmering since Puntland troops ceased Las Anod (Somaliland) in December 2003, led to armed clashes in September 2004
- 100 dead caused by clashes which are expected to rise since former Puntland leader has been elected President of Somalia, with views of re-uniting with cessionist Somaliland

Menkhaus, UNHCR, August 2003, p.23:

"The two regions of Sanaag and Sool are, in the words of a recent report, "one of the deepest faultlines in Somali politics". [...] When Abdullahi Yusuf proposed that the Harti-inhabited areas of Sool and eastern Sanaag regions – which Somaliland claims as part of its territory – be included in the newly created state of Puntland in 1998, he did so for tactical reasons. Inclusion of the Dolbahante and Warsengeli clans gave him additional allies with which to outmanoeuvre rivals within his own Mijerteen clan. But the move has since been a very costly one for Puntland, as it places the state in direct and seemingly irrevocable conflict with its larger and more powerful neighbour, Somaliland. [...] The regions will continue to pose a nettlesome political problem for Puntland, which cannot give up its claim to the area without losing face, but which lacks the capacity to impose a functional administrative presence there. The Harti residents of Sool and eastern Sanaag are themselves badly divided in their loyalties, with some embracing Somaliland, others Puntland, and still others a Mogadishu-based government. At present, the contested areas of Sool and Sanaag feature "governors" and other officials from both Somaliland and Puntland, living in close proximity to one another. Were Abdullahi Yusuf to assume the position of president of a transitional government of Somalia, the two regions would take on even greater symbolic value and could become a flashpoint for conflict. Ethiopia has a strong interest in preventing Puntland and Somaliland from coming to blows over the two regions, but may not be in a position to prevent trouble there."

ICG, 28 July 2003, pp.28,29:

"Somaliland's eastern border regions, inhabited mainly by the Harti clans (Dhulbahante and Warsengeli), have long been problematic. Despite having signed both the 1991 declaration of independence and its reaffirmation at the 1993 Boorama conference, the Harti leadership remains ambivalent about Somaliland's claim to separate statehood. Like the Gadabursi, key members of the Harti clans were identified with the leadership of the Siyaad Barre regime during the civil war (although a handful chose to align themselves instead with the SNM). Unlike the Gadabursi, however, the Dhulbahante and Warsengeli negotiated separate ceasefires with the SNM without the latter's forces having to enter their areas.

[...]

At present, Harti loyalties are split at least three ways, with members of the clan's political and traditional elite scattered between Somaliland, Puntland and Mogadishu. Some have sampled all three. "The people are divided," an intellectual in Laas Caanood explained to ICG."

OCHA, 29 February 2004:

"Elders from clans living in the contested Sool and Sanaag areas are involved in negotiations with Somaliland and Puntland authorities in a bid to avoid armed conflict over the contested Sool region. Despite the heavy presence of armed personnel in and around Las Anod, the Sool regional capital, the situation remains calm with no reported cases of conflict. Reports indicate that the resident population is not in support of conflict between Somaliland and Puntland, and this has generally had a calming effect."

IRIN, 23 September 2004:

"Troops from the self-declared republic of Somaliland and those of the self-declared autonomous region of Puntland clashed on Wednesday in the disputed region of Sool, to which both sides have laid claim, a local source said.

[...]

The regions of Sool and Sanag, in northern Somalia, geographically fall within the borders of pre-independence British Somaliland, but most of the area's inhabitants, the Warsangeli, Dhulbahante and Majerteen communities, who are members of the larger Darod clan, are associated with residents of Puntland.

[...]

Tension between the two sides had been simmering since Puntland troops took total control of Las Anod, in December 2003. Before then, both sides had official representation in the town."

Reuters, 30 October 2004:

"About 100 people were reported killed on Saturday in fighting between Puntland and the rival Somali territory of Somaliland, which accused Puntland's leader, now Somalia's new president, of waging war on it.

Abdullahi Yusuf, elected president on Oct. 10, has pledged to work peacefully with breakaway Somaliland as he tries to restore order to Somalia,

[...]

But his election alarmed Somaliland, hostile to a man long seen as its arch foe in the neighbouring autonomous territory of Puntland. It warned Yusuf on Oct. 12 against any attempted aggression and said it was on alert against any move to reunite Somaliland with the rest of Somalia.

[...]

A spokesman for Somaliland's Office of Defence said the death toll from the fighting, which erupted on Friday at the village of Adi-Addeye, about 30 km (20 miles) north of Las Anod, had risen to 109.

It was not immediately clear whether that figure referred to combat casualties or civilians or both.
[...]

But the cause of the fresh bout of fighting was not clear, with both sides accusing each other of starting it.

Matt Bryden, a senior analyst with the think-tank International Crisis Group (ICG), said Yusuf's elevation to the presidency had escalated tensions between the two territories."

TNG fails to develop authority, is opposed by businessmen and warlords coalitions (Aug 2003)

- Led by President Abdiqassim Salad Hassan, the TNG was created at the Arte peace talks in Djibouti in August 2000 and was dismissed by many Somalis as 'illegal' and 'unrepresentative'
- The TNG was never capable to control the country and only administers a quarter of the capital Mogadishu
- TNG faces opposition by the coalition Somali Restoration and Reconciliation Council (SRRC), Somaliland, Puntland, the Rahanweyn Resistance Army, powerful warlords including businessmen who supported it initially
- Mogadishu is divided by four main warlords and the areas they control are out of reach of the TNG
- The TNG has no resources is unable to raise taxes, including from Mogadishu's main port which stay closed
- The TNG is divided internally and criticised for being dominated by the Haber Gedir Ayr subclan of the Hawiye clan
- When the mandate of the President of the TNG expired on 13 August 2003, he announced that it would stay in power until elections were held
- TNG president won only 15 votes out of 275 parliamentarians at the October 2004 presidential election
- Opposed to the TNG the SRRC is a loose coalition established in 2001 with Ethiopia's patronage, including clan-based factions and regional administrations
- Abdullahi Yusuf, leader of Puntland is the strong man of the SRRC and has been contender to the presidential position
- Most of the warlords of the SRRC are embroiled in sub-clan conflicts either internally or with rivals, they all could be charged with war crimes and their agendas are disparate
- Although the SRRC is not strong inside Somalia, it controls a portion of the 24 seats at the Mbogathi talks thus has considerable influence on the outcome of the peace negotiations
- The G-8 is a group of political/militias mainly from the Hawiye clan and based in Mogadishu who are not clients of Ethiopia but who oppose the TNG
- Some of the most violent fighting oppose leaders grouped under the G-8. they control the largest militias in Mogadishu and southern Somalia and are the major spoilers of peace
- Members of the G-8 have disparate interests but all veto any new government in which they have no major position and want a Mogadishu-centred government thus oppose decentralization

Menkhaus, UNHCR, August 2003, p.10-11:

"Led by President Abdiqassim Salad Hassan, the TNG was created at the Arte peace talks in Djibouti in August 2000. It was intended to serve as a three-year interim national authority, after which a permanent government would be selected on the basis of national elections. The TNG

was initially greeted with high expectations, and enjoyed the support of the powerful Mogadishu business community. [...] But it quickly ran into a number of serious problems. It failed to attract the level of foreign assistance needed to become operational; what foreign aid it did receive (mainly from Gulf Arab states) was diverted into private pockets; it never established a capacity to control and administer more than a portion of the capital city; its relations with neighbouring Ethiopia quickly soured, leading Ethiopia to support some anti-TNG Somali groups; and it failed to bring important Somali regional and factional authorities into the administration. Puntland, Somaliland, the Rahanweyn Resistance Army, and a number of powerful militia figures in the Mogadishu area (Musa Sude, Qanyare Afrah, and Mohamed Dhere, among others) either rejected the TNG outright or left it shortly after its inception. Even some of the businessmen who had given the TNG token support may have only wanted to use it as bait for foreign aid, while quietly working to ensure that did not become operational and threaten some of their private interests. [...] By 2002, the TNG was moribund; it had almost no resources or operational capacity, was badly divided internally, and was increasingly perceived as a narrow coalition dominated by one Hawiye sub-clan, the Haber Gedir/Ayr.

[...]

The Abdiqassim wing of the TNG has consistently stood to lose the most from the Mbagathi talks, and has been the most reticent about them. Ironically, Abdiqassim sent Hassan Abshir to attend the Mbagathi peace talks at a time when they seemed destined to collapse, as part of an attempt to marginalize him. Instead, the Mbagathi process now appears to have marginalized Abdiqassim.

The fate of the TNG is now uncertain, but it seems likely that whether the Mbagathi talks succeed or fail, Abdiqassim will seek to maintain the TNG as sole repository of Somali sovereignty. On 11 August 2003, he announced that the TNG would continue to operate as the national government until free and fair elections are held, a move which came only two days before the TNG's three-year mandate was set to expire. This extension of the TNG and his presidency has the potential to create two rival national governments in Somalia, one derived from the Mbagathi talks and the other from the Arte talks. In either event, the TNG will be weak and divided but still a political unit of some consequence in Mogadishu."

AFP, 31 August 2001:

"A year after the arrival in Mogadishu of Abdulkassim Salat Hassan as head of Somalia's newly-established interim government, the Horn of Africa nation remains as anarchic as ever.

[...]Salat's Transitional National Government (TNG) was set up with the approval of the international community following talks hosted by Djibouti last year.

[...]

Warlords, who for a decade failed to agree on anything and whose warfare destroyed the country, have now ganged up, united in opposition to the TNG.

They met in Addis Ababa in March and launched a common front, the Somali Reconciliation and Restoration Council (SRRC), bent on TNG's destruction by setting up what they term a more 'representative' government."

IRIN-CEA, 14 May 2001:

"Since its establishment in Mogadishu seven months ago, the new Transitional National Government (TNG) has struggled to assert control over the Somali capital, demobilise thousands of armed militia, and deal with rampant inflation. Initially received with great optimism in Mogadishu, the TNG has faced continued opposition from Mogadishu-based faction leaders; the newly formed southern-based Somali Restoration and Reconciliation Committee (SRRC); the self-declared independent state of Somaliland, northwestern Somalia; and the self-declared autonomous region of Puntland, northeastern Somalia. Opposition leaders have rejected the Djibouti-hosted Somali peace talks in Arta, which led to the election of the TNG in August 2000,

and have dismissed the new government as 'illegal' and 'unrepresentative' – despite the fact the it has received international recognition."

IFRC, 8 May 2001:

"The first quarter of 2001 has been characterised by the TNG's continued attempts of the TNG to establish its credibility in Mogadishu. It has met with very limited success. Attempts to impose its authority outside the capital have been unsuccessful. [...] A number of police stations were reopened in Mogadishu, together with the central prison, while security personnel were put through training courses. But the city remained divided with four well armed factions controlling significant areas."

UNDP, Somalia 2001, p.54:

"However, the hope of attracting substantial foreign aid has not materialized as most Western donors have adopted a 'wait and see' approach and made aid conditional on signs of 'effective government'. With Mogadishu port closed, lacking revenue from livestock exports, and unable to raise taxes, the TNG has had to depend on some friendly states and members of the Mogadishu business community to finance the police force, judiciary, demobilisation and rehabilitation."

UNICEF, 7 September 2001:

"The general security situation in Mogadishu was tense and unstable. The main seaport and airport facilities remain closed. The Somalia Transitional National Government (TNG) started collecting taxes in Mogadishu. Banditry and acts of violence were reported."

UNICEF, 12 June 2002:

"The security situation in Mogadishu deteriorated with an increase in kidnappings, and an upsurge in armed conflict between the Somalia Transitional National Government (TNG) and opposition groups.

Militia loyal to Mohamed Dhere attacked the residence of TNG Interior Minister, Mr. Dahir Dayah. The attack caused significant casualties including death, injuries and destruction of property. Fighting broke out between TNG forces and opposition militias in North Mogadishu resulting in over 30 deaths and 60 injuries."

UN, November 2002, pp.18-20:

"Mogadishu is characterised by inter-factional conflicts and shifting political alliances. The TNG controls less than a quarter of Mogadishu."

Menkhaus, UNHCR, August 2003, p.11, 12:

Main opponents to the TNG: The SRRC and the G-8

"The Somali Reconciliation and Restoration Council (SRRC). This extremely loose coalition of Somali political groups and leaders, established in 2001, is held together only by the common thread of Ethiopian patronage. It is comprised of a number of mainly clan-based factions and regional administrations, including the Puntland administration, led by Abdullahi Yusuf [...]; the portion of the now-split Rahanweyn Resistance Army (RRA) led by Hassan Mohamed Nur "Shatigaduud"; Hussein Aideed (son of the deceased General Mohamed Farah Aideed) and his Haber Gedir/Sa'ad militia; General Mohamed Sayid Hersi "Morgan", who controls no territory but who commands a Mijerteen militia currently based in Bakool region; the self-declared Governor of

Middle Shabelle, Mohamed Dhere, and his Abgal/Warsengeli clan militia; and the Biimaal clan, based in the Merka area and in Lower Jubba. Abdullahi Yusuf is by far the most influential figure in the SRRC, and is poised to claim the position of President of the “Transitional Federal Republic of Somalia” should the Mbagathi talks produce a power-sharing agreement. Few of the other SRRC members enjoy much power. Mohamed Dhere has emerged as a strongman in the greater Mogadishu area, but is locked in a dangerous battle with rival Abgal sub-clans for control of Middle Shabelle and North Mogadishu. Shatigaduud now commands only his own sub-clan within the Rahanweyn, and the RRA in general has been badly weakened by internal armed conflicts. General Morgan is a political pariah, likely to be the first Somali leader charged with war crimes at some point in the future. And Hussein Aideed has only a very small following inside Somalia. The political agendas of these different militia leaders and clans are quite disparate, making it unlikely that the SRRC will act as a coherent political unit if and when a transitional government is brokered at Mbagathi.

Though Ethiopian clients, members of the SRRC are not Ethiopian puppets, and on occasion pursue policies which are at odds with Ethiopia. Thanks to Ethiopian influence in the Mbagathi mediation, the SRRC’s interests have been advanced by the talks. In particular, they have a controlling portion of the 24 seats in the Leader’s Committee, giving them – and Ethiopia – the ability to determine the outcome of the talks. Though the SRRC is not all that strong inside Somalia, it has emerged for the moment as the big winner in the Mbagathi peace talks, thanks mainly to Ethiopia’s leverage.

The Group of Eight (G-8). The G-8 is a set of political/militia leaders in southern Somalia (mainly based in Mogadishu, and mainly from the Hawiye clan-family) who are not clients of Ethiopia but who either are openly opposed to the TNG or choose to remain outside the TNG. They are grouped together not because they act as a single political coalition – on the contrary, some of the fiercest fighting in Mogadishu occurs between the militias of some of these figures – but rather because they collectively constitute a powerful set of potential spoilers controlling some of the larger militias in Mogadishu and southern Somalia. Among the most powerful figures in this group are Mohamed Qanyare Afrah (Hawiye/Murasade), whose business activities in Mogadishu (he operates the Dayinle airport) give him an independent source of revenue; Musa Sude (Hawiye/Abgal), who is engaged in some of the heaviest fighting in Mogadishu, against the militias of both Mohamed Dhere and Omar Finnish; Omar Finnish (Hawiye/Abgal), a former deputy to Musa Sude but now his fiercest rival; and Osman Atto (Hawiye/Haber Gedir), once the financier for General Aideed but now a relatively weak local player in south Mogadishu. The interests of individual members of the G-8 vary, but all seek to veto any new government in which they do not have a major position. The Hawiye figures in the G-8 share a common preference for a more Mogadishu-centred government in Somalia, and are as a result unenthusiastic about proposals for political decentralization and deeply opposed to proposals to establish a provisional capital outside of Mogadishu. Those two issues, among others, are responsible for the growing level of G-8 dissatisfaction with direction of the Mbagathi talks.”

For detailed information on the political situation in the country, refer to the November 2000 paper of Ken Menkhaus [\[External link\]](#).

New president of Somalia elected 11 October 2004 after 13 years of statelessness (Oct 2004)

- Abdullahi Yusuf former leader of Puntland administration was elected president of Somalia for a five years transitional term
- He now will appoint a prime minister to form a government

- Detained by Barre in 1969 for refusing to support his military coup, he failed to oust him in 1978 by a coup
- Yusuf is a lawyer and military officer who formed the Somali Salvation Democratic Front, the first armed group to challenge the dictatorship
- During his Puntland presidency, Yusuf devoted most of his energies to the Mbagathi process as he aspired to be elected president of Somalia
- He refused to hand-over power to his successor in 2002, defeated and absorbed the armed opposition and wielded support from his clan Majerteen and military strength
- Many Somalis who remember UN intervention in Somalia are uneasy about peacekeeping force and militias and gunmen see it as a threat to their job
- The President requested the AU 20,000 peacekeeping troops and said he needed to demobilize about 55,000 militias

Xinhua, 10 October 2004:

"Somali lawmakers on Sunday picked Abdullahi Yusuf Ahmed as president, who will in turn appoint a prime minister to form a government, mandated to lead Somalia through a five-year transitional period.

[...]

Yusuf established the regional administration of Puntland in 1998 with a presidency and a single-chamber quasi legislature known as the Council of Elders. Political parties are banned."

IRIN, 11 October 2004:

"Barre detained him for several years when he refused to support his seizure of power in Mogadishu in 1969. Yusuf, a member of the Darod clan, was one of a group of people who in 1978 tried to oust Barre in a failed coup. Most of the coup plotters were executed, but Abdullahi Yusuf managed to flee the country. Later that year, he formed the Somali Salvation Democratic Front, one of the first armed groups to wage a military campaign against Barre's regime.

IRIN, 8 September 2004:

"According to Bryden, the new authority will have an enormous task to consolidate and monitor a comprehensive ceasefire, control heavy weapons, demobilise militia groups and form a new police and military force. It also needs to sort out the sharing of internal revenues, among other issues. [...] Asha [a women rights activist] however expressed disappointment that some clans did not name their quota of women representatives, who, according to the interim charter, should be 12 percent of the total number of MPs.

Each of Somalia's four major clans has been allocated 61 seats in the proposed parliament, while an alliance of minority clans was awarded 31. [...] But analysts repeat the challenges ahead are great. "The real challenge for Somalia's interim leaders will be to persuade, not the international community, but their own people, of their determination to complete the transitional period and hand over power to a duly elected, representative and legitimate Somali government," Bryden said."

IRIN, 26 October 2004:

"Somalia's newly elected president said on Monday his administration would not remain in exile, but would return to the war-ravaged country before security was completely restored. President Abdullahi Yusuf said once his cabinet was selected they would return - although they would initially establish themselves outside the capital, Mogadishu. He rejected calls for the new government to return only when security is restored. "The first thing this new government should

tackle is security," he told journalists at a joint press conference with Ethiopian Prime Minister Meles Zenawi. "Somalia has been destroyed."

Yusuf has asked the African Union (AU) for between 15 and 20,000 peacekeepers to help restore order in Somalia, which has been devastated by 14 years of civil war. [...] He also pledged to begin as soon as possible the difficult task of disarming the 55,000 militias in Somalia."

Menkhaus, UNHCR; August 2003, p.20,21:

Abdullahi Yusuf was president of the Puntland administration

"The dominant political figure in Puntland is unquestionably Abdullahi Yusuf. Having managed to survive the constitutional crisis he precipitated and defeat and absorb the armed opposition, he now presides over a unified Puntland and stands poised to be named president of the Transitional Federal Republic of Somalia. Yusuf has always sought to use the position of Puntland president as a launch-pad for national ambitions, and as a result never devoted much energy to building a functional Puntland administration. As long as the Mbagathi talks continue, he will devote nearly all of his energies to that national process. If the talks fail, he will fall back on the Puntland presidency and seek to persuade external actors to recognize Puntland as the temporary repository of Somali sovereignty. Yusuf derives core support in Puntland from his sub-clan, the Mijerteen/Omar Mahmud, which is based in Mudug. He has mainly relied on military strength as opposed to financial patronage."

AFP, 3 September 2004:

Peacekeeping

"Accepting the new government is conditional," said Hassan Ibrahim, a gunman who protects aid workers in Somalia.

"If the coming government will not import troops (peacekeepers) to take over our jobs, we may welcome it," Ibrahim told AFP.

[...] "Since there is no warlord capable of over-running his rivals since 1991, negotiation is the only solution for peace without involving foreign troops, who could complicate the matter," Hassan added."

Southern regional authorities: the Rahanweyn Resistance Army (RRA) (July 2004)

- The RRA sets up an autonomous administration over Bay and Bakool regions of south and central Somalia since 1999
- A faction of the Rahanweyn Resistance Army (RRA), Mr. Hasan Muhammad Nur Shatigadud was proclaimed president of the 'State of Southwestern Somalia' with Baidoa as capital in March 2003
- This move makes the RRA an established opposition party and might prove deleterious for the Somali Reconciliation and Restoration Council (SRRC)
- Power clashes between senior ranks of the RRA over control of Bay and Bakool displaced thousands in 2002-2003
- Rahanweyn Resistance Army (RRA) militias reconcile and unify bringing calm in Bay and Bakool regions (2004)
- Al-Ittihad al-Islamiyya (AIAI) is the most prominent radical Wahabist group, ousted of Luuq in 1996 by Ethiopian forces following a AIAI terrorist attacks against Ethiopian government targets
- AIAI favours a strong central Islamic government, supports the TNG however is greatly divided internally among its top figures

UNDP Somalia, 2001, p.34:

"Since 1999, the Rahanweyn Resistance Army (RRA) has begun to establish an administration in the two southern regions of Bay and Bakol that have been chronically insecure for most of the past decade."

UNDP Somalia 2001, p.53:

"Better security since then has improved the food security situation and access for international aid agencies. Although the RRA participated in the Arta peace conference, some of the leaders withdrew their support soon after it was concluded. Since then the RRA has sought to consolidate its own regional administration. While certain civil structures have been established, the RRA has yet to transform itself into an effective civilian administration."

IRIN, 1 April 2002:

" This is the third regional administration to be set up in Somalia, following the establishment of Somaliland (northwestern Somalia) and Puntland (in the northeast).

The decision was reached at a meeting of the RRA central committee and over 70 elders from the Digil and Mirifle clans. The meeting, which had been in session in Baidoa, the capital of Bay Region, 240 km southwest of Mogadishu, since 22 March, elected Colonel Hasan Muhammad Nur Shatigadud, the chairman of the RRA, as president on Sunday. "He was inaugurated in Baidoa today, and will serve an initial four year term," Qalinle told IRIN on Monday. Baidoa will be the capital of the new state.

Shatigadud was a colonel in the notorious secret police, the National Security Service (NSS) of the former dictator Muhammad Siyad Barre,

[...]

The move to establish the autonomous region now is seen by Somali observers as a way for the RRA "to come to the talks as an established administration as opposed to a faction". It may also sound the death knell of the Somali Reconciliation and Restoration Council (SRRC) said one observer. The SRRC is grouping of southern factions opposed to the Transitional National Government."

UN, November 2002, p.3:

"As a result, the second quarter of the year [2002] was marked by considerable internal and cross border displacement. In February, for example, fighting broke out in Bardera between the Juba Valley Alliance (JVA) and the SRRC. Then further north in Gedo, inter-clan fighting in May, which included the laying of landmines, hampered access to seriously drought-stricken pockets of the region. Finally, in Baidoa, a formerly stable humanitarian base, internal division within the Rahanwein Resistance Army (RRA) erupted into heavy fighting in late July and early August. International staff have yet to return to the area."

IRIN, 17 January 2003:

"Tension had been rising in the town as a result of a deepening split within the senior ranks of the RRA, which controls much of the Bay and Bakol regions of southwestern Somalia. The split originated from a power struggle between the RRA chairman, Hasan Muhammad Nur Shatigadud, and his two deputies, Shaykh Adan Madobe and Muhammad Ibrahim Habsade. Baidoa, which changed hands at least three times between July and December, is now in the hands of Shatigadud's rivals. Hundreds were killed and thousands displaced by the fighting."

OCHA, 22 July 2004:

"Meanwhile, the RRA militia groups in Baidoa have unified. The unification took place when all key RRA leaders were away in Nairobi attending the Somali Peace conference. The leaders are yet to reveal their plans for the region. Traditional elders who participated in a peace process, supported by UNOCHA and other agencies, largely drove the unification. Insecurity and lack of administration has affected the security conditions of the different sub'clans in Bay region, as well as limiting humanitarian aid agencies access to vulnerable populations such as the IDPs. Peace in Baidoa is hoped to result in improved security in other parts of the Bay and Bakool region. Reports from Baidoa suggest that the Dabarre and Lu'way conflict in Dinsoor has been resolved."

OCHA, 31 July 2004:

"However, the attainment of peace in Baidoa is likely to have a positive impact on the neighbouring areas. The unification of RRA militias has resulted in a reduction of roadblocks and food prices

[...]

Further peace talks have been reported going on in Baidoa and Nairobi between political and militia leaders from the two RRA factions. Though the talks mainly revolve around security issues in Bay and Bakool, it is believed that formation of a unified RRA administration, and the issue of leadership are also under discussion."

Menkhaus, UNHCR; August 2003, p.13:

Islamist Groups

"Islamist groups have been the subject of intense scrutiny in Somalia since the 11 September 2001 attacks. The most overtly political, and radical, Islamist group is Al-Ittihad al-Islamiyya (AIAI), which embraces a strict Wahabist interpretation of Islam. AIAI is dedicated to the establishment of an Islamic government in Somalia and in Somali-inhabited portions of Ethiopia, and has been implicated in terrorist attacks against Ethiopian government targets. From 1991 to 1996 AIAI controlled the southern city of Luuq, but was subsequently driven out of the town by Ethiopian forces. Since then, AIAI has opted to integrate into local communities and establish itself in key sectors – business, local courts, schools – rather than attempt to assume direct political control. It is decentralized and not able to overcome clan divisions, and some of its top figures, such as Hassan Turki and Mohamed Aweiss, are fierce rivals. No hard evidence has emerged of intimate AIAI links to Al Qaeda, but that possibility remains an enduring concern. AIAI members supported the establishment of the TNG and sought to gain positions of influence within it, leading Ethiopia unfairly to accuse the TNG of being a front for AIAI. The general consensus today is that AIAI is weak and fragmented, but its capacity to draw on external sources of funding makes it a potentially important actor."

Southern regional authorities: Juba Valley Authority (JVA) (Sept 2004)

- Regional authorities use their control over territory as leverage in national power-sharing agreements
- The Juba Valley Authority is a loose alliance of militias and businessmen from the Haber Gedir/Ayr and Marehan clans who control Kismayo port city since 2001
- The Juba Valley Alliance were ousted by Marehan militias after the former rescinded an agreement to collect taxes on goods passing through the port in support of newly established sharia courts (2004)

- General Mohammed Hersi "Morgan's" militias briefly attacked the JVA-controlled Kismayo city port in September 2004 before returning at the negotiation table under threats of sanctions
- Kismayo is the main trading center for Southern Somalia marketing the food produced in the nearby fertile Juba Valley an important tax-base for irregular forces
- Mohamed Said Hersi "Morgan" was expelled from Kismayo in 1999 and tried to regain the town unsuccessfully in 2001

Menkhaus, UNHCR, August 2003, p.12,13,17:

"In several locations of southern Somalia, regional authorities hold some degree of power. Those authorities are primarily interested in using their control over territory as leverage in national power-sharing arrangements, and in some cases to exploit resources in the areas they control. The most significant of these in mid-2003 is the Jubba Valley Authority (JVA), a loose alliance of militia and businessmen from the Haber Gedir/Ayr and Marehan clans who have controlled the strategic port city of Kismayo since 2001. The JVA's principal interest is in the trade through the all-weather seaport, where Ayr and Marehan businessmen are making handsome profits exporting charcoal and importing a range of goods, including sugar and weaponry, destined either for Kenya or Mogadishu. The JVA is essentially an outside occupying force. Because it is composed of two different clans, it does not possess a consistent policy in national affairs – though close to the TNG in the past, it maintains a separate political identity, and in more recent times has been identified with the G-8.

[...]

In Kismayo, the JVA administration has temporarily established a modicum of order in that chronically unstable city, but the JVA is in essence an external occupation, so that the peace in Kismayo is unstable and likely to degenerate at some point."

OCHA, 18 June 2004:

"Kismayo seaport is tense following the ousting of the Juba Valley Alliance (JVA) administration by some Marehan militias. The group was upset when JVA rescinded an agreement to collect taxes on goods passing through the port and hand it over to support the newly established sharia courts. Traders are apprehensive that the dispute could result in armed confrontation. Although peace talks are in progress, there has been a build up of technicals in Kismayo this week signalling their readiness to engage in armed conflict. The vehicles and armed militias are said to come from Mogadishu. Recent fighting in Mogadishu and temporary closure of the Kismayo port caused food shortages in most of south and central Somalia because they rely on the two ports for food and other commodities imports."

OCHA, 31 August 2004:

"In the South-Central Zone, reports of a possible impending attack on the Juba Valley Alliance (JVA)-controlled Kismayo seaport by General Morgan [Muhammad Sa'id Hirsi] has raised anxiety among Juba Valley and neighbouring Gedo residents."

IRIN, 23 September 2004:

"Fighting broke out last week in the southern Somali port city of Kismayo between two rival armed factions in the surrounding areas. An estimated 500 people crossed the border into Kenya, mostly from Dhobley, not far from the border."

Reuters, 6 September 2004:

"Kismayo, 500 km (300 miles) south of the capital Mogadishu, is the main trading centre for southern Somalia, staging a market for food grown in the nearby fertile Juba Valley.

The port also provides lucrative income for irregular forces who protect importers and exporters in the surrounding Lower Juba region.

Morgan captured Kismayo for a few days in 2001 but was swiftly ejected by the Juba Valley Alliance, a militia coalition which also expelled him from the town in 1999, ending a six year period in which he controlled the town.

[...]

Conference mediators drawn from Somalia's neighbouring countries have warned Morgan to halt his advance on Kismayo, saying if he persists they will prepare sanctions against him."

AFP, 26 September 2004:

"Somali warlord General Mohammed Hersi "Morgan" has fled fighting in southern Somalia and returned to Kenya where he is willing to resume talks aimed at ending anarchy in the chaotic African country."

Regional actors vested interests and violations of arms embargoes (Aug 2004)

- Egypt and Gulf states have used foreign assistance to promote Arab and Islamic identity and a strong central Somali state to counterbalance Ethiopia
- Egypt and Gulf states have consistently rejected Somaliland's bid for independence, have supported the TNG and imposed an extended ban on Somali livestock devastating for the Somaliland export sector
- Rivalries between Egypt and Arab states on the one hand and Ethiopia on the other have degenerated in virtual proxy wars in Somalia and divergent regional interests have been a major obstacle to reconciliation
- Following September 11 Somalia has been viewed by the US as a safe haven for international and Somali terrorist activity
- The AU has considered sending peacekeeping forces in Somalia as part of a successful peace accord
- Flagrant violations of arms embargo continue as IGAD mediators to the peace talks and Somali factions all participate at the peace negotiations
- Panel of Experts on Somalia reported to the Security Council that Ethiopia, Eritrea, Yemen, Djibouti and Egypt were involved in arms trade to Somali factions
- In 1996 a Somali Islamic militant group al-Ittihad al-Islamic led a terrorist attack against Ethiopia, who responded by military means and attacked Somalia
- The UN SC accuse Ethiopia of using the threat of the al-Ittihad group as an excuse to intervene in Somalia rather than for legitimate national security concerns
- Ethiopian troops invaded Gedo and Bakool in 2002 providing troops and ammunitions to the Rahanwyn Resistance Army (RRA) opposed to the TNG
- Eritrea, Yemen and the Oromo Liberation Front (OLF) provided arms and troops to the Somali National Alliance (SNA) militias of Hussein Aideed in 2000
- Security Council extended mandate of Group monitoring violations of the arms embargo until March 2005

Menkhaus, UNHCR, August 2003, p.15,28:

"Contemporary Somali politics cannot be understood in isolation from the regional politics which shapes political outcomes inside the country. Of special importance is the regional rivalry – one which can at times degenerate into a virtual proxy war inside Somalia – between Ethiopia on the one hand and Egypt and the Arab states on the other. The Arab states seek a strong central

government in Somalia, one which can serve as a counterbalance to Ethiopia in the region. They have consistently rejected Somaliland's bid for independence and have given financial support to President Abdiqassim and the TNG, which itself has embraced a vision of a centralized state and which calls for close ties with the Arab and Islamic world. For its part, Ethiopia fears the return of a strong central state which could again take up Somali irredentist claims on the Ogaden region of Ethiopia, or which could become an Arab/Islamic beachhead outflanking Ethiopia. It is a matter of debate and speculation whether Ethiopia seeks a decentralized, federal Somalia or whether it is simply unwilling to risk the revival of any central government in Somalia. If the latter, it is a powerful spoiler in the Somali peace process. But what is undeniable is that Ethiopia has vital security interests in Somalia and is willing to do whatever it takes – including periodically injecting its troops into Somalia and supporting a network of Somali client groups – to protect those interests. Other external actors are of consequence as well. The African Union (AU) has recently become a more robust actor in Somali affairs, by exploring the possibility of introducing AU peacekeeping forces into Somalia as part of a successful peace accord. The European Union (EU) remains the major western donor, and plays a diplomatic as well as humanitarian role inside Somalia. And since the events of September 2001, American counter-terrorism policy has the potential to have significant impact inside Somalia.

[...]

Ethiopia has been a quiet partner to Somaliland, channeling some of its imports through Berbera and cooperating informally with the administration on shared security and other matters. Djibouti views Somaliland as a potential rival – an alternative seaport for the Ethiopians – and at times relations between Somaliland and Djibouti have been poor, especially when Djibouti supported the TNG. The Saudis have proved to be Somaliland's least helpful neighbours; they have imposed an extended ban on Somali livestock, devastating the Somaliland livestock and export sectors, and along with Egypt are adamant supporters of the territorial integrity and unity of Somalia."

Menkhaus, UNHCR, August 2003, p.7:

"In addition, since the terrorist attacks in the United States on 11 September 2001, Somalia has attracted renewed interest from the US and its allies as a possible safe haven for both foreign and Somali terrorists linked to Al Qaeda. Though this has not led to any direct military action to date, Somalia's ongoing crisis of state collapse is now viewed as a matter of global security rather than simply a local problem, earning the country somewhat more attention from external states than before."

UNSC, 25 March 2003:

Violations of arms embargoes

"The Panel of Experts has found a clear pattern of violation of the arms embargo on Somalia. Weapons, equipment, training of militia and financial support to Somali factions have been given regularly by neighbouring States and others since the Security Council adopted resolution 733 (1992) on 23 January 1992. Weapons have also been purchased by Somali factions on the international arms market. These flagrant violations of the embargo continue today even as the Somali factions and their neighbours are participating in the Somalia National Reconciliation Conference, sponsored by the Intergovernmental Authority on Development (IGAD). They have signed the Declaration on Cessation of Hostilities and the Structures and Principles of the Somalia National Reconciliation Process (Eldoret Declaration), in which they agreed to implement fully the arms embargo and facilitate international monitoring.

[...]

Ethiopia has played an overt military role in Somalia. Not only has Ethiopia been a major source of weapons for a number of Somali groups, Ethiopia has also invaded and occupied parts of Somalia. Ostensibly, and perhaps justifiably, the first direct military involvement of Ethiopia in Somalia, in 1996 and 1997, was in response to the activities of the Somali Islamic militant group

al-Ittihad al-Islami, including terrorist attacks in Ethiopia. Since then the threat of al-Ittihad and its tenuous links to al-Qa'idah have been used as an excuse for Ethiopian involvement in Somali internal affairs rather than for legitimate national security concerns.

After the establishment of the Transitional National Government, Ethiopia helped to establish the Somali Reconciliation and Restoration Council, which is made up of factions hostile to the Transitional National Government and its allies. The Ethiopian military has provided training and limited amounts of arms, ammunition and other supplies to all members of the Council.

Eritrea has also been a major supplier of arms and ammunition to Somali groups. As the war between Ethiopia and Eritrea descended into a protracted and bloody stalemate, Somalia became a secondary battleground between the belligerents. Unfortunately, the hostility engendered by the war between Eritrea and Ethiopia continues, and apparently continues to motivate Eritrean support for factions hostile to Ethiopia.

Yemen provided a small amount of military assistance to the Transitional National Government, soon after it was established at the Arta Conference in Djibouti.

[...]

Djibouti, according to reliable local and international sources, is also a significant trans-shipment point for weapons to Somalia, principally the Transitional National Government.

[...]

Egypt has acknowledged providing training and uniforms to the Transitional National Government police."

UN SC, 12 February 2004:

"In accordance with the Council's request, I have established a Monitoring Group composed of four experts, for a period of six months, to be based in Nairobi. The Monitoring Group is mandated, inter alia, to investigate violations of the arms embargo covering access to Somalia by land, air and sea and to provide a draft list of those who continue to violate the arms embargo inside and outside Somalia, and their active supporters, for possible future measures by the Council."

UN News, 26 August 2004:

"In a bid to continue identifying violators of the 1992 weapons embargo against Somalia and find ways to strengthen compliance, United Nations Secretary-General Kofi Annan has reappointed the members of an expert panel tracking the ban.

[...]

Mr. Annan's action came in response to a recent Security Council [resolution](#) which called on the experts to "continue refining and updating information on the draft list of those who continue to violate the arms embargo inside and outside Somalia, and their active supporters, for possible future measures."

UNDIP, 17 May 2002:

" Briefing correspondents on the latest developments in Somalia, he said that in the last few weeks Ethiopian troops had continued to invade two major regions in south-western Somalia: Gedo and Bakool, capturing the capital of the Gedo region, Garbahaarrey, and a vibrant commercial centre near the Kenyan border -- Bulla Hawa. [...]Mr. Hashi responded that since 1996 Ethiopia had been repeatedly crossing the border, and its aggression had become a pattern.."

AI, 2000, "Background":

"Eritrea and Ethiopia were directly involved in the inter-factional fighting, with Ethiopia supplying troops, hardware and humanitarian support to the Rahenweyn Resistance Army (RRA) in Bay and Bakol. The RRA used its increased military power to contain the advances of Hussein Aideed's forces. Ethiopia also reportedly supported the Somali Salvation Democratic Front which had formed a government in the self-proclaimed Puntland State, and a faction of the United Somali Congress–Peace Movement. Eritrea and Yemen provided arms to the Somali National Alliance (SNA) militias of Hussein Aideed. Around 200 fighters from the Ethiopian armed opposition group the Oromo Liberation Front (OLF), supported by Eritrea, were also involved in the Somali conflict on the side of the SNA."

ACF 2000, "Contexte":

"Mogadiscio est toujours divisée entre différentes factions, avec d'un côté une alliance de circonstance entre Aideed et Mahdi, visant à mettre en place une administration centrale dans la région, et de l'autre une opposition puissante. Les deux alliances sont soutenues respectivement par l'Erythrée et l'Éthiopie, et donc indirectement parties prenantes du conflit."

For more details on the supply of ammunitions delivered by Ethiopia to factions opposed to the TNG see UN Security Council document (22 May 2002) [\[External link\]](#)

UNOSOM intervention embroiled the UN into the conflict, from 1992 to 1995 (Aug 2003)

- In 1992 UNITAF United Nations Task Force on Somalia, deployed about 30,000 peace keeping troops to protect the delivery of emergency food
- In 1993 UNOSOM United Nations Operation in Somalia, UN-led peacekeeping mission was mandated by the Security Council to promote reconciliation and state-building
- UN efforts to build locally-selected district councils represented a direct threat to warlords who controlled the territory at gunpoint rather than by referendum
- Tensions culminated with Aideed's militias entering in direct fight with UN peacekeepers
- US Special Forces then led a UN armed response aimed at capturing and defeating Aideed and his militias, thus drawing the UN into conflict with the Haber Gedir sub-clan
- After the killing of UN peacekeepers and US Army Rangers, the US and the UN pulled out in 1995
- Besides empowering warlords UNOSOM also helped develop civil society and local administrations
- Businessmen in Mogadishu (mostly from Hawiye clan) were empowered through procurements and aid-contracting

Menkhaus, UNHCR, August 2003, p.5,6:

"In December 1992, a US-led, UN-sanctioned peacekeeping force intervened to halt the fighting and provide security for emergency relief to famine victims in southern Somalia. The surprise decision to intervene in Somalia was proposed by the Bush administration, and appears to have been driven by a desire on the part of that administration to build up the UN's capacity to manage the growing number of complex emergencies in the aftermath of the Cold War. [...] The initial UNITAF (United Nations Task Force on Somalia) intervention, composed of nearly 30,000 peacekeeping troops, succeeded in quickly bringing an end to the famine. That mission was

followed in May 1993 by UNOSOM (United Nations Operation in Somalia), a UN-led peacekeeping mission which was given a much broader and more difficult Security Council mandate to promote reconciliation and the rebuilding of a central government – with a much weaker contingent of peacekeeping forces. [...]

UNOSOM's nation-building mandate quickly put it at odds with several of the country's warlords, who controlled territory by force of arms, not by popular referendum. They viewed UN efforts to build locally-selected district councils as a direct threat to their power. General Aideed was especially distrustful of the UN and the intervention. On 5 June 1993, rising tensions and a UN misjudgment culminated in an ambush by Aideed's militia on UN peacekeepers in Mogadishu, an incident which left 24 Pakistani soldiers dead and over 60 injured. Thereafter, the UN was at war with General Aideed and his militia; most of the UN armed response aimed either at capturing Aideed or destroying his militia was conducted by US Special Forces. Those efforts failed to capture or kill Aideed, and instead drew the UN into an unwanted conflict with Aideed's entire sub-clan, the Haber Gedir, which controlled most of the area surrounding the UN compound. On 3 October 1993, the conflict reached a tragic end, when 17 US Army Rangers and hundreds of Somalis were killed in intense street fighting following a failed raid on a meeting of Aideed's top officers. The "Black Hawk Down" incident led to a dramatic reversal of policy. The US halted operations to apprehend Aideed, and began a phased withdrawal from Somalia. Though the UN remained in Somalia until March 1995, it quickly lost control of the streets. It departed from Somalia having failed to promote national reconciliation and revive a central government. [...]

While it temporarily empowered and legitimized warlords (who became the centrepiece of a flurry of failed peace conferences), UNOSOM also helped to cultivate the rise of civil society groups and local administrations which would later play a more robust role in Somalia. The failed mission deepened both external fatigue with Somalia and Somali scepticism regarding the motives and capacity of external actors. Perhaps the most important and unintended impact of the intervention was its effect on the Somali economy. By pouring hundreds of millions of dollars into the economy (mainly in Mogadishu), and by generating lucrative opportunities for local businessmen in procurement, money changing, property rental, and other contracting, UNOSOM helped to create and empower a new class of Mogadishu businessmen. Thanks to UNOSOM, many of the figures who initially profited from the war economy shifted into more "legitimate" forms of business, a transformation which made the business class as a whole less interested in warfare and more interested in predictable, safe commercial environments. [...] Because most of these Mogadishu businessmen were from the Hawiye clan (especially the Haber Gedir/Ayr sub-clan), UNOSOM also inadvertently helped that clan to establish itself as a hegemonic economic group in southern Somalia."

IRIN-CEA chronology of the conflict in Somalia (1960-2000)

IRIN-CEA, 1 September 2000:

(As found in UN Consolidated Appeal March 2001, Annex III, p. 128)

"NAIROBI, 1 September (IRIN) - The following is a chronology of recent events in Somalia leading up to the establishment of a new interim administration which will govern the country for three years, pending elections:

26 June 1960: The former British Somaliland Protectorate gains independence

1 July 1960: The former Italian colony becomes independent. The former British (northwest) and Italian (south) colonies unite

15 October 1969: Democratically elected President Abdirashid Ali Sharmarke is assassinated by one of his police bodyguards

21 October 1969: The army under Major-General Muhammad Siyad Barreh overthrows the civilian government, after parliament hits deadlock trying to select a new president. The army suspends the constitution, bans all 86 political parties, and promises to end corruption. Siyad Barreh heads the 25-member Supreme Revolutionary Council, consisting of army and police officers

21 October 1970: The army junta declares Somalia a socialist country and adopts "Scientific Socialism". This signals a shift towards Soviet backing, and security organs and intelligence networks are given greater powers

21 October 1972: A written script for the Somali language is established. A modified Roman alphabet is adopted as the official orthography for the Somali language

1974: Somalia becomes a member of the Arab League

July 1977: A low-level war of attrition between Somali-backed insurgents and the Ethiopian army becomes an all-out battle between Somalia and Ethiopia, when Somalia declares war on Ethiopia. The war goes down in history as the fiercest Cold War battle on the continent, played out in the Ethiopian Ogaden region

13 November 1977: Somalia expels about 6,000 of Russian, Cuban and other Soviet allies, after the Soviet Union switched sides and allied itself with the Ethiopia

March 1978: The Somali Government announces the withdrawal of its forces from the Ogaden

8 April 1978: After the defeat of the Somali army, a group of army officers try to topple the Siyad Barreh regime. The attempted coup is crushed and Siyad Barreh tightens his grip further. He begins a process of putting power into the hands of his relatives, and sub-clan, the Darod Marehan. He also empowers the related Dulbahante and Ogadeni sub-clans

May 1988: The Somali National Movement (SNM) mounts an offensive in the north of the country, as a result of the regime's brutal post-Ethiopian war policies. Siyad Barreh responds by bombing the area. Hundreds of thousands of civilians are displaced, and many killed. It is the first real challenge to Siyad Barreh's rule, and the beginning of the proliferation of armed opposition to the regime

May 1990: A manifesto is published in Mogadishu calling for an all inclusive national reconciliation convention to avert protracted civil war. It is signed by 144 people, including politicians, religious leaders, professionals and business people, representing all Somali clans

December 1990: Armed uprising erupts in Mogadishu.

27 January 1991: Siyad Barreh flees Mogadishu. Forces loyal to the Hawiye-based United Somali Congress (USC) capture the city

28 January 1991: The Manifesto Group of USC appoints an hotelier, Ali Mahdi Muhammad, as president. The military wing of USC, led by General Muhammad Farah Aydid, rejects the appointment

17 November 1991: Full-scale fighting starts between the two factions of the USC

3 March 1991: A ceasefire comes into effect between the warring factions in Mogadishu

1991: Fighting erupts in the northeast region between the Al-Ittihad Islamic fundamentalists and militia loyal to the Somali Salvation Democratic Front (SSDF), lead by Colonel Abdullahi Yusuf Ahmad

18 May 1991: The former British Protectorate of Somaliland declares independence from the rest of Somalia, in the town of Burao

July 1991: A conference was held in Djibouti, in which Ali Mahdi in which was chosen as interim president

April 1992: The United Nations Operation in Somalia, UNOSOM I, begins work in Somalia

December 1992: UNITAF forces under American leadership land in Mogadishu

February 1993: A three month conference in Borama seeks a new leader for the self-declared state of Somaliland. Muhammad Haji Ibrahim Egal, a former prime minister, is elected in May

March 1993: The next serious attempt at peace talks. An Ethiopian initiative evolves into a joint UN-Ethiopian sponsored reconciliation conference held in Addis Ababa

4 May 1993: UNITAF hands over to UNOSOM II

5 June 1993: 23 Pakistani peacekeepers are killed by Aydid loyalists

12 July 1993: American helicopter gunships kill over 50 unarmed Somalis holding a meeting in a private house in Mogadishu, increasing local hostility to the international intervention forces

3 October 1993: American-led forces looking for Aydid's senior aides are involved in a shoot-out, which leaves 18 Americans and hundreds of Somalis dead. The body of a dead American is dragged through the Mogadishu streets, and, caught on camera, sparks an international outcry

August 1996: Aydid dies of gunshot wounds sustained in operations against his former lieutenant, Osman Ali Atto. His son, a former American marine, Husayn Muhammad Aydid, is chosen by the clan to replace his father

November 1996: Ethiopian government-sponsored reconciliation conference brings most of the factions together. But it is boycotted by Aydid's son

November 1997: All faction leaders met in Cairo, with limited success, leaving Somalia without a national leader and Mogadishu still divided and insecure

2 May, 2000: On the initiative of the Djibouti government, the Somali National Peace Conference brings together more than 2,000 participants in Arta, Djibouti. It is the first conference where the warlords do not have control of the conference agenda

26 August, 2000: A 245-strong Transitional National Assembly, based on clan representation, elects Abdiqasim Salad Hasan as the new president of Somalia

27 August, 2000: President Abdiqasim Salad Hassan is sworn in an inauguration ceremony attended by the heads of governments of Eritrea, Ethiopia, Sudan, Yemen, and the host country Djibouti, along with representatives from the UN, EU, Arab league, OAU, France, Italy, Kuwait, and Libya."

Minorities in Somalia: a history of segregation and land expropriation (Aug 2002)

- Although minorities represent one third of Somalia's 7 million people their existence has been downplayed
- Bantu, Bravenese, Rerhamar, Bajuni, Eyle, Galgala, Tumul, Yibir and Gaboye minorities have faced prior and after the war discrimination and exclusion
- Minorities like the Bantu have had their lands confiscated
- Minorities like the Galgala, Gaboye and Yibir have been manipulated and armed against Barre's enemy clans as a result suffered retaliations when the regime fell
- Bantu people who live on fertile lands had two of their villages burned down in 2001 and fled to Hiran region
- Previous rival Habargedir and Maerhan clans have allied to control Kismayo
- Conflict between these two allied clans and General Morgan's forces in the Bay region continue
- In Jowhar security improved since 2000 when Mohamed Dheere from Wersengeli clan took control
- In Beletweyne since General Aideed's forces were ousted in 1996 security improved

UNCU/OCHA, 1 August 2002:

"Until recently, many people perceived Somalia as a country with a population of 7,000,000 people who share one culture, one language and one religion. This was the impression given during previous regimes in order to sustain the illusion of homogeneity. One of the things that were deliberately downplayed was the existence of minority groups. Although the population of minority groups living in Somalia has not as yet been established, estimates indicate that they constitute one third of the total Somalia population; approximately 2,000,000 people. The minority groups include **Bantu, Bravenese, Rerhamar, Bajuni, Eyle, Galgala, Tumul, Yibir and Gaboye**. These groups continue to live in conditions of great poverty and suffer numerous forms of discrimination and exclusion.

The Socio economic problems faced by minority groups in Somalia existed prior to the armed conflict that continues in parts of Somalia following the overthrow of the dictator Siyad Barre in 1991, and the subsequent collapse of a Somalia national government. These problems have arisen as a result of cultural values that segregate and exclude the minority groups from dominant clan societies. These minority groups are considered inferior, without full rights, hence their low social, economic and political status. As a result of social segregation, economic deprivation and political manipulation minority groups were systematically excluded from mainstream government positions and the few minorities who held positions had no power to speak on behalf of their communities. Furthermore, as a result of their distinct ethnic identity, some minorities, particular the Bantu and Bajuni have suffered systematic confiscation of their lands and properties. In other cases, minority groups have been politically manipulated to oppose certain dominant clans. This resulted in animosity between some minority groups and dominant clans. When the Somalia state collapsed, the minority clans suffered brutal reprisals.

Unlike other clans from dominant groups, minorities lack international support in the form of regular remittances. Recurrent insecurity caused by conflict creates an environment where minority groups are vulnerable and abnormally displaced from their homes. Notably, some minority groups who were abnormally displaced lost their lands, which were reallocated.

Insecurity further affects the delivery of services to minority groups post-displacement in areas such as Kismayo, Jilib and Luuq. However, in areas like Hargeisa, Beletweyne, Jowhar and Ballad where security is not a big problem, minority groups \ receive very little assistance from aid agencies. Estimates indicate that about seventy per cent of the minorities who live in IDP camps or returnee settlements have difficulties in accessing adequate food, proper shelter and education.

In a country where there is no national Government that would be responsible for safeguarding and upholding the rights of minority groups, Somalia minorities are truly in a vulnerable position. Careful and thorough attention needs to be focused on the issues faced by vulnerable populations in order to develop concrete assistance strategies that will have a positive impact on the security and livelihoods of minority groups.

[...]

In 1975, large sections of Bantu agricultural lands in Jilib and Jamame were systematically appropriated by the Siyad Barre regime under the pretext of development projects through the Resources Sharing Policy of *Hawl iyo Hantiwadaag*. This is a Leninist and Marxist ideology that the regime adopted.

[...] Other Bantu lands in the same area were distributed as political rewards to Siyad Barre's supporters from the Marehan and Dhulbahante clans. All these violations resulted in the suffering of Bantu families in the Lower and Middle Juba riverine areas.

[...]

The situation of minority groups deteriorated when the armed conflict broke out in both Somaliland and south Somalia. Some minorities such as the Galgala, Gaboye and Yibir were perceived as enemies because of their working relationship with the Siyad Barre regime. They therefore suffered grievous human rights violations, which included extra judicial killings, appropriation of lands and properties, and forced displacement from their lands to IDP or refugee camps situated along the Somalia Ethiopia border.

The Galgala people in Mogadishu and Gedihir in Jowhar suffered brutal reprisals from the Abgal clan with whom they lived. These reprisals took place at the beginning of the 1991 war. During the last days of his rule, Siyad Barre misused the Galgala community by arming them against the Abgal. Following his defeat, the Abgal killed many Galgala and forced many others to abandon their houses. There are now nearly 5,000 Galgala IDPs in Kismayo and elsewhere. Important to note, as already mentioned, since the Galgala identify themselves with the Majerten sub clan, they have received minimal clan support from the Darod clan in Kismayo.

The Bantu did not participate in clan-based conflicts. Notwithstanding, they still suffered attacks and violations of their rights. In January 2001, heavily armed militia from the Wersengeli (Abgal clan) carried out a well organised attack on the Bantu (Shidle) farmers in Bananey and Barey villages in Jowhar, following a dispute over grazing land for cattle. According to unconfirmed reports from the Bantu farmers, ten Bantus were killed, all houses in the two villages were burnt down and farming equipment including two generators and three water pumps were looted. To date, no compensation has been given to the Bantu by the Abgal [...]. The Bantu (Makane) in Beletweyne suffered mistreatment and violation from the Hawadle, Galjele, Badi Adde and Jijeje clans. Most of them were displaced from Beletweyne town to rural areas in Hiran region.

The Bajuni from Kismayo and Bajuni Islands were attacked by militiamen from Habargedir (Eir) and others during the initial periods of armed conflict. They suffered violations including confiscation of their lands and rape of the women. Most of them abandoned their homes and sought refuge in Kenya camps.

The Gaboye, Tumul and Yibir in Hargeisa and elsewhere in Somaliland suffered both during and after the armed conflict between Siyad Barre's army and the Somali National Movement of the Isak clan. These groups have similar physical characteristics as the Isak and it was difficult for Siyad

Barre's army to differentiate between the Isak and other clans. When Siyad Barre was defeated, the Isak meted harsh punishments on the Gaboye, Tumul and Yibir because they were perceived to be Siyad Barre supporters."

Some clan alliances have improved security for some minorities:

"The current condition of minority groups has changed as a result of changing social, economic and political environments in the various regions of Somalia. In Kismayo, for instance, previous rivals (Habargedir and Marehan) have now become allies and are now in control of Kismayo's social and political affairs. There is less insecurity between these clan groups, positively affecting the minorities. However, conflicts between these allies and General Morgan's forces that are currently in Bay region are expected. In general, security conditions have improved. Nevertheless, there are unconfirmed reports of rape of Bantu and Galgala women in IDP camps.

In Jowhar, security conditions have improved since 2000 when Mohamed Dheere from the Wersengeli clan took control of Jowhar and other parts of Middle Shabelle region. Nevertheless, the Bantu and other vulnerable groups in the area complain about taxes taken each month from every household. They report that most of the Bantu families are economically vulnerable and therefore unable to pay taxes. Each household is required to pay 15,000 Somali Shillings every month. Failure to remit the taxes on time results in arrest until the right amount is paid.

In Beletweyne, there appears to be power equilibrium between the Hawadle, Galjeel and Jilele. The town is divided into east and west sections. The eastern section is controlled by the Hawadle and the west by Galjeel. There has been no major fighting between the clans since 1996 when General Aideed's force was ousted jointly by the Hawadle, Galjeel and Jilele communities in Beletweyne. In spite of the seemingly placid environment, the Bantu (Makane) are still vulnerable.

In Somaliland, the security conditions are better than those of any other place in the south. There is a functioning administration, which has not received international recognition. Properties confiscated from minority groups during armed conflicts were returned. However, the minority groups report that they suffer discrimination because they do not benefit from social services and activities and remain unemployed."

Causes of displacement

Conflict continues to displace Somalis [November 2009]

- Conflict still the major cause of displacement in Somalia

FSNAU, 2 November 2009

"The security situation in the south and the central regions has deteriorated due to intensified clashes between government forces and insurgents, causing civilian casualties, injuries and population displacement.

UNHCR estimated that 123,000 people were displaced in Somalia since July '09, mainly due to insecurity and conflict, while drought and loss of livelihood are the second main reason for displacement, mostly affecting central and southern regions.."

IRIN, 24 November 2009

"Somalia's Islamist Al-Shabab militia group has taken control of the southern town of Afmadow, 620km south of the capital Mogadishu, causing hundreds of families to flee in fear of violence.

The town fell on 21 November after another Islamist group, Hisbul-Islam, left a day earlier, allowing Al-Shabab to move in without much resistance.

"Sporadic gunfire can be heard today but nothing serious," a resident told IRIN on 24 November. "They [Al-Shabab] are in control."

Most of the fighting took place on the outskirts of the town and has reportedly claimed 15 lives.

Al-Shabab now controls most of southern Somalia.

Tension had been building between Al-Shabab and Hisbul-Islam in Afmadow since the former allies fell out in October in the coastal city of Kismayo, leading to fighting and Al-Shabab taking Kismayo last month. The two have been fighting for control of the Juba Valley.

The Afmadow resident, who requested anonymity, said many families fled just before the group took control and many more were trying to do the same.

"Many of the most senior elders and business people have fled," the resident said. "They [Al-Shabab] met what is left of the elders and business community and told them they should tell the people not to be afraid and resume their activities..."

IRIN, 7 September 2009

"The number of conflict- and drought-displaced Somalis has reached 1.55 million, despite a drop in the past two months in the rate of displacement from the capital, Mogadishu, according to the UN.

Roberta Russo, a spokeswoman for the UN Refugee Agency, UNHCR, told IRIN on 7 September that hundreds of families were still fleeing the city, despite a significant drop since the beginning of July, with almost 95,000 leaving all areas "in the last two months"; 77,000 of whom were from Mogadishu.

The UN estimates that up to 3.8 million Somalis, almost half the population, urgently need humanitarian aid.

"The displaced people are among the most affected by the crisis," Russo said.

The displaced, most of whom are women and children, are living in desperate conditions, she said.

The main reason for their flight is insecurity, although drought and the lack of livelihoods are also cited as causes, Russo added.

Ali Sheikh Yassin, the deputy chairman of the Mogadishu-based Elman Human Rights Organization, told IRIN that people were continuing to flee Mogadishu, "because the insecurity is increasing, not decreasing. As we speak, people are leaving and I am sure many more will join them. There is nothing to stay for. No peace and no hope for peace."

He said indications were that the violence - pitting government forces and African Union peacekeeping troops (AMISOM) against two insurgent groups, Al-Shabab and Hisbul-Islami - would get worse.

"All sides are preparing for what they think is a final battle but nothing is ever final in Somalia," Yassin said..."

Fighting between Government of National Unity and insurgents displace tens of thousands in Mogadishu (May 2009)

- Fighting between government and insurgents lead to displacement from Mogadishu
- Some 34,000 people displaced in eight days of fighting
- Government accuses Eritrea of arming insurgents

VOA, 11 May 2009:

"Fighting has resumed in the Somali capital Mogadishu, where Islamist insurgents fired mortars at the presidential palace. More than 50 people have now been killed in fighting between insurgents and pro-government forces since Thursday.

For the fifth day, Islamist insurgents exchanged machine gun and mortar fire with government troops and allied militias. Hours after Somali president Sharif Sheikh Ahmed held a news conference at his Mogadishu residence, Islamist insurgents fired several mortars into the compound. Insurgents also attacked a base housing African Union peacekeepers from Burundi, and gun battles took place in several areas of the city.

The latest round of fighting is the fiercest that Mogadishu has seen in months, bringing activity in much of the capital to a standstill. Witnesses say the clashes have left more than 200 people wounded and prompted the largest wave of people to flee the city since the start of the year.

The President of Somalia's fragile government, Sheikh Sharif Sheikh Ahmed, says the government will defend the country's sovereignty and use any means necessary to stop the fighting. He accused foreign countries of pursuing their own interests in Somalia. While he did not name any countries, the government has accused Eritrea of funneling arms to the insurgents.."

IRIN, 12 May 2009:

"Thousands of people have fled five days of fighting between government troops and insurgents in the Somali capital, Mogadishu, a human rights group told IRIN on 12 May.

At least 27,500 people fled their homes between 7 and 11 May, according to Ali Sheikh Yassin, deputy chairman of the Mogadishu-based Elman Human Rights Organisation (EHRO).

With no let-up in the fighting, more families were fleeing, he said.

"Last night [11 May] saw some of the heaviest shelling in both the north and south of the city," Yassin said, adding that he feared the city could soon be empty.

The displacement has been fuelled by indiscriminate shelling..."

UNHCR, 15 May 2009:

"The latest fighting, some of the heaviest seen in Mogadishu this year, between forces loyal to the Transitional Federal Government and opposition groups, erupted last week and have so far claimed the lives of more than 135 people and 315 injured, while dislocating an estimated 30,000 people.

Hospitals in central Mogadishu are reported to be overwhelmed by the large number of casualties in need of urgent medical attention.

Reports from our partners in the capital say that some people have been trapped in their homes for days, unable to flee because of the raging street battles. Those who are able to escape spoke of indiscriminate nightly bombings of residential areas and the targeting of civilians. Some witnessed many people dying, including children and the vulnerable who were unable to leave the conflict area.

Among the newly displaced are families that had recently returned home following a period of relative peace in Mogadishu. The rate of displacement is rapidly increasing as the conflict escalates.

Many of the displaced are heading towards the Afgooye corridor, some 30 km south-west of Mogadishu, an area with over 400,000 IDPs, while others have moved to other parts of the city. The most badly affected areas are the north Mogadishu neighbourhoods of Yaaqshiid, Wardhiigleey and Hawl Wadaag.

Hundreds of mini-busses ferried people out of Mogadishu. As a result of the high demand, the cost of transportation is going up daily, forcing people with no money to remain in the embattled city.

The latest fighting is a major set back to efforts to establish stability in Mogadishu, which saw the return of some 65,000 IDPs to the city between January and April..."

Displacement in central Somalia as a result of fighting between Islamists (April 2009)

- Fighting between Islamists groups for territory in Galgadud
- At least 30,000 people displaced
- Fighting making aid efforts difficult

IRIN, 16 March 2009:

"An estimated 30,000 people were displaced in Wabho town in the Galgadud region following fighting between Islamist groups over the weekend, locals told IRIN.

"Most of the residents of Wabho and the surrounding villages fled after intense fighting between two groups," said Khalif Kariye, the deputy district commissioner of Eil Buur, 40km northwest of the area of fighting.

He said local people had helped the displaced with food and shelter.

"Many residents and [members of the] diaspora have contributed money to buy food, but it was not enough," Kariye said, adding that water was a big problem. "We have, so far, been unable to deliver water because we don't have enough resources."

Those displaced fled to the countryside, "with some areas lacking even one water well", he said. "Hopefully the situation will stabilise and we can begin returning people but at the moment it is desperate."

A local journalist, who requested anonymity, said the fighting between the Al-Shabab and Ahlu Sunna Waljama'a (ASW) Islamist groups began on 14 March, with ASW trying to dislodge Al-Shabab from the area..."

IRIN, 21 April 2009:

"Humanitarian workers are worried that clashes in Somalia's central town of Beletweyne, 340km north of Mogadishu, and the current rains, could hinder aid efforts in the area.

Hundreds of families have been displaced by the clashes, pitting militias of the Union of Islamic Courts, which supports the Government of National Unity, against the pro-opposition Hizbul-Islami.

Mahamud Hassan Guled, a senior public information assistant for the UN World Food Programme (WFP-Somalia), said on 21 April the agency had distributed 3675.52 metric tonnes of food to 181,314 people in Hiiran Region in the last two weeks but "our food distributions to the west of Beletweyne town were affected by the conflict on Monday [20 April]". However, Guled said WFP was hopeful the distributions would continue.

Beletweyne was reported to be tense on 21 April. Seven people have been killed and 35 wounded, said a local journalist who requested anonymity. "There is fear in the town that the clashes could resume any time..."

Garoweonline.com, 20 April 2009:

"At least 9 people were killed including civilians in central Somalia Monday after fierce fighting erupted among Islamist factions, Radio Garowe reports.

The fighting erupted around noon and was still continuing into the early evening, as fighters loyal to the Islamic Courts Union (ICU) rulers in Hiran region and Hizbul Islam faction fought for control of Beletwein, the provincial capital.

The battle was preceded by an overnight explosion, where an employee with Somali money-wiring transfer Amal Express was wounded after a hand grenade was thrown into his home. A female relative was also wounded the blast and both victims were taken to Beletwein General Hospital, witnesses said.

Fighters loyal to the ICU administration in Beletwein driving three armed trucks were reportedly searching for the attackers Monday morning when they arrived at a base belonging to Hizbul Islam faction, independent sources told Puntland-based Radio Garowe..."

Conflict-induced displacement in Somalia from October 2007 to June 2008 (June 2008)

- Clashes between Ethiopian forces and insurgents in June displace inhabitants of Guri-Eil town in Galgadud region
- Inter-clan fighting between in Lower Juba displace Bantu families
- Inter-clan conflict over resources displace nomadic families in Middle Shabelle and Hiiraan regions
- Over 60% of the population of Mogadishu displaced since November 2007

IRIN, 30 June 2008:

"Officials in Guri-Eil town in Galgadud region have appealed for urgent help for thousands of people displaced after fighting between Ethiopian troops and insurgents over the weekend.

"Most of the [30,000] residents and thousands of displaced fled the town after intense fighting between the Ethiopians and the insurgents on Sunday [29 June]," Osman Isse Nur, the deputy district commissioner, told IRIN on 30 June.

He said the fighting began on 28 June when Ethiopian troops arrived in the area, "but was most intense on Sunday. At least 100 shells landed in the town last evening [29 June]."

Nur said Guri-Eil, 440km north of Mogadishu, was hosting about 30,000 displaced people from Mogadishu, who were now again displaced. "Everyone is now a displaced person."

He said people scattered in three directions. "Some have sought refuge in the northwest; others in the south and the rest have gone northeast," he said.

Eleven people died in the fighting and 31 were injured, he said.

Most of the displaced were reported to be sheltering on the outskirts of the town, without water, food or proper shelter.

Zahra Abdulkadir, a mother of six, said: "I left Mogadishu to find peace here, now I am running again. I don't know when this will end."

She said the shortages of water, food and shelter were their main problems. "We did not take much when we left and with the hot weather, there is no shelter from the sun," she added.

She said many of the displaced were already weak and "could not last very long in the open. I don't know how long we will survive under these conditions."

A local journalist told IRIN the two sides were still facing each other, "with insurgents digging in on both sides of the Ethiopian lines. They [insurgents] don't seem to be going anywhere."

He said the town was quiet on 30 June but fears of a major military offensive had sparked another civilian exodus from the town. "Those who had not left last night are taking advantage of today's lull in the fighting to do so."

IRIN, 19 May 2008:

"Hundreds of Somali Bantu families have been displaced in the southern region of Lower Juba after days of inter-clan fighting in which 10 people were reportedly killed and more than 20 wounded, locals told IRIN.

The conflict, mostly around Jamamme, the district capital - 440km south of Mogadishu - broke out on 14 and 15 May between Bantu clans and the Biyamal clan of the main Dir community.

The minority Bantu, sedentary farmers who live in riverine areas, are of Bantu origin, unlike most Somalis, who are Cushitic in origin.

Hassan Yusuf, a resident of Kamsuma, 20km northeast of Jamamme, said the fighting was most serious in and around the villages of Balad Amiin, 15km south of Jamamme, and Sabatuni, 16km to the southeast.

He said the clashes were triggered by revenge for the recent killing of a Bantu youth by the Biyamal after an argument over charcoal burning, a lucrative trade in the region.

He said the village of Balad Amiin was razed to the ground, while Sabatuni was partially damaged.

"The 600 Bantu families who lived there are now displaced," he added.

The Bantus for their part raided two Biyamal villages and took some livestock, he added.

Ugas Muhyadiin Ibrahim Sabtow of the Jarrer Weyn (Bantus), told IRIN that most of the displaced families from his side were encamped on the eastern side of the Juba River.

In retaliatory raids, the Bantu militia attacked two Biyamal villages, displacing 400 families, according to Haji Mahamud Ali Hamuun, a Biyamal elder.

"The villages of Bulo Muse and Bulon Jeele were raided and they took many heads of livestock," he said."

IRIN, 20 February 2008:

"Hundreds of nomadic families have fled the Middle Shabelle and Hiiraan regions of south-central Somalia after clashes between two communities claimed dozens of lives, sources said.

The latest clashes, which began on 18 February between the Hawaadle and Abgal sub-clans of the main Hawiye clan, were concentrated around the small towns of Eil Qoryaale, and Eil Baraf, 260km north of the capital Mogadishu, and the surrounding villages.

"The clashes have displaced hundreds of nomadic families on both sides," Yusuf Ahmed Hagar, the governor of the Hiiraan region, told IRIN. "We don't have exact figures but reports we are getting indicate a few thousand are on the move."

Many of those affected have moved into the hinterland or towards major towns in the area for safety. A local journalist told IRIN that the Hawaadle were moving to the town of Jalalaqsi, about 270km north of Mogadishu, while the Abgal were moving south towards the town of Mahaday, 120km north of Mogadishu.

The fighting, Hagar said, was being fuelled by insurgents loyal to the ousted Islamic courts and water shortages. "They [insurgents] are providing weapons to the nomads and exacerbating the situation," he said, adding that water shortages in the area were "a contributing factor. We are appealing to aid agencies to assist the affected people, with water trucking a priority."

However, a local elder, who requested anonymity, said: "I don't think there is any involvement from the Islamic courts or anyone else," adding that the area was instead experiencing serious water shortages and people and livestock were in danger. "They have no access to wells or water points, because the areas they moved to were already dry."

Another local source said the two groups had in the past fought sporadically over grazing land and water points, but the latest clash was linked to revenge killings and the competition for water. "The water situation is really desperate and that is making it a matter of life and death."

Each side blamed the other for starting the fighting, he said.

While fights over grazing pasture and water were not unusual in these areas, he said, "what is unusual is for the clashes to continue for over a month".

Hagar said elders from both sides had been dispatched to the area to contain the situation. Adow Rage, the Mahaday district commissioner, said he was confident they would bring the situation under control very soon.

"It is the first time and probably won't be the last but we intend to stop it from getting out of hand," he said. "We have sent officials to assess and report on the extent of the needs of the people affected."

Other sources said tensions remained high in the area even though the fighting had subsided.

Hagar, however, said: "I am hopeful we can contain the situation and there will be no new fighting."

Swiss Peace: Fast Update, pp2; 31 January 2008:

"...Clashes between Ethiopian and TFG forces on one side and anti-government elements on the other – both in Mogadishu and in other regions of the country – are contributing to an increase in population displacement..."

Reuters, 28 March 2008:

Somalia now has 1 million internal refugees, aid workers say, and their numbers increase by an exodus of some 20,000 civilians each month from the capital, where Islamist insurgents are battling the Ethiopian-backed government

IRIN, 21 January 2008:

"Forces opposed to the Somali government have expanded their insurgent activities to areas that were previously peaceful and could be planning attacks in the Middle and Lower Juba regions, the African Union (AU) has warned.

"Their strategy seems to be to further weaken the TFG [Transitional Federal Government] by destabilising as many areas as possible, fully aware that the government does not, at the moment, have the capacity to deploy significant numbers of troops in all the regions," according to a report by AU Commission Chairman Alpha Konare on 18 January.

[...]

Prevailing insecurity has resulted in civilian casualties, massive displacements and constrained the delivery of assistance to needy people"

Chatham House, January 2008:

A YEAR ON FROM THE ETHIOPIAN INVASION AIMED AT removing the Islamic Courts government, sixty percent of the population of the capital Mogadishu has fled, the poorest among them to destitution in surrounding areas. Some 230,000 people are camping out in makeshift settlements along the fifteen-kilometre stretch of road between Mogadishu and Afgoye.

An insurgency that joins Islamist and nationalist elements grows ever stronger. Ethiopia digs in and the transitional government formed at the turn of last year falls apart. Growing desperation stokes fear of a return to all out clan warfare of a kind not seen in Somalia since 1991.

Whether military intervention can reduce the threat of international terrorism or whether it acts as a motor for greater radicalisation still dominates international debate over both Afghanistan and Iraq. Like the forces there, Ethiopian troops in Somalia have found themselves bogged down in low-level asymmetrical warfare after an early victory. Other similarities are the methods of the insurgents, the heavy toll on the civilian population, the perceptions of a foreign occupation and the reluctance of weak local partners to engage in serious political reconciliation.

Human Rights Watch, December 2007:

"...The conflict in Somalia has steadily intensified since last December, when Ethiopian forces supporting the Somali Transitional Federal Government ousted the Islamic Courts Union from Mogadishu. Ethiopian forces quickly came under attack from a growing coalition of insurgent groups, and fighting in March and April 2007 forced as many as 400,000 residents of the city to flee their homes..."

BBC, December 2007:

According to the BBC, the Ethiopian invasion of Somalia not only changed the power balance in Somalia (by displacing the Islamic Courts Union from power), but also displaced a staggering 600,000 people from Mogadishu in 2007 as a result of upsurge in the fighting that pitted the insurgents against the TFG and the Ethiopian army.

Department of Foreign Affairs, South Africa, November 2007:

"On the security front, Somalia continued to plunge into instability. Thousands more civilians fled their homes and more than 30 people were killed after some of the worst fighting - between Islamist insurgents and allied Ethiopian-Somali government troops - Mogadishu has seen during the month of October and early November. The three districts of Hodan, Hawl-Wadag and Wardhigley [south Mogadishu] were most affected by the latest fighting. Fears of a major military offensive have sparked a further civilian exodus from the Somali capital Mogadishu. The deputy chairman of the Eritrea-based Somali opposition group, Alliance for the Re-Liberation of Somalia, Zakaria Mahamud Abdi, warned that well armed rebels are prepared to step up attacks against Ethiopian troops in the city."

OCHA, 25 October 2007:

"Sool region is geographically located former British Somaliland province in the horn of Africa during the colonial period, but later reunited Italian Somaliland in the south of Somali after the independence of Somalia. The region, Sool, suffered its independence under the British colony in 1960, so that after the collapse of the Somali government in 1990s the region became lack of administrating area. But self independent state of Somaliland in the north and autonomous self administration Puntland state in the east had established in 1991 and 1998 respectively, sooner after the collapse of the Somali's regime, the two administrations Puntland and Somaliland both began to claim the region of Sool due to different reasons.

Somaliland claims on this region based on as geographical territories, since it was former British pre-independent administration, while the Puntland claims based on clan based autonomous administration.

However the dispute over the region by these two administrations has sharpened and deteriorated the relationship between them, as well as it wasted the humanitarian aids to reach their allotted locations in the region; the worsened situation has caused to increase the tension,

confusion and propaganda actions for the past years, while the civil society were almost in chaos situation who were unwilling these disputes over them.

In late December 2003 Puntland administration has fully succeeded controlling most of the region including Las-sanod and some other districts while Somaliland also still controlling party of Sool region.

In October 2007 serial clashes between Puntland and Somaliland had broke out the outsides of the Las-anod town nearly 18 km to the northern of Las-anod, these clashes have caused many casualties as lose of many lives, wounds and insecurity fears for the community, it also affected the security stability and business services, and also developmental issues in the region. This dispute has also blocked the region to gain the international aid assistance from the donors and international agencies.

In October 15, 2007 the heaviest and largest clash between Somaliland and Puntland troops occurred in an area not far from La-sanod more then 8 km to the west which later extended to the direction of the town of Las-onod in this war the Somaliland troops took the control of Las-anod, the capital of Sool region. This war has displaced more than 7000 families those fled to nearby districts such as Hudun, Taleeh, Bocama, Buuhoodle, and the other villages of Las-anod district as well as the neighboring regions such as Garoe, Bossasso, and Galkaio, while some others reported they have crossed through the border of Ethiopia with the region. The most displaced people are women and children those are in fear of persisting wars and possibility of renewed wars in the region."

Action by Churches Together, 01 November 2007:

" Increased tension between the self-declared republic of Somaliland and the neighbouring self-declared autonomous region of Puntland has led to the displacement of thousands of people from the area. The dispute was at its peak on 17 October 2007 when forces loyal to the Somaliland administration took control of the Sool regional capital Las Anod, which was previously controlled by Puntland.

Due to the high tension and insecurity in the affected area, assessments of damages could only be conducted recently. A preliminary assessment estimates about 9,000 families (roughly 54,000 people) who have been displaced from Las Anod and its surrounding areas. Many of them fled to different directions seeking refuge in the adjoining remote districts."

Peace efforts

New President elected by MPs in Djibouti (January 2009)

- Somali Members of Parliament elect President in Djibouti
- UN praises the 'democratic' nature of the process
- EU congratulates the new President

BBC, 31 January 2009:

"Moderate Islamist leader Sheikh Sharif Ahmed has been elected Somalia's new president, after a secret ballot of members of parliament.

Mr Ahmed comfortably won a majority in a second round of voting after one of the frontrunners, Prime Minister Nur Hassan Hussein, withdrew.

The election followed the resignation of President Abdullahi Yusuf Ahmed.

MPs met in Djibouti because of instability in Somalia, where Islamist militias control much of the country.

Mr Ahmed was until recently the leader of an opposition movement accused of having links to al-Qaeda..."

UN News Centre, 31 January 2009:

"After a long night of voting the newly expanded Somali parliament elected opposition leader Sheikh Sharif Sheikh Ahmed as the new president of the Horn of Africa nation, as the United Nations envoy to the country applauded the "open and transparent" nature of the voting.

[...]

"We are finally seeing progress from the hard work by all sides to create an inclusive Parliament," he said. "I would like to congratulate and encourage all the Parliamentarians to work for the good of the country."

The Special Representative said he was pleased that the candidates had pledged to support a government of national unity based on inclusion, tolerance and political cooperation in a country that has been plagued by violence and humanitarian suffering"

Reliefweb, 03 February 2009:

"The European Union congratulates the new President of the Republic of Somalia Sheikh Sharif Sheikh Ahmed on his election. The EU looks forward to working with President Sheikh Sharif Sheikh Ahmed, the enlarged Transitional Federal Parliament and the Government of National Unity, to be appointed, to restore peace and unity in Somalia. We are also ready to work with Somali civil society and other key players to this end.

The EU commends the other candidates in the Presidential election, the Speaker of Parliament and the Honourable Members of Parliament for their hard work to achieve political progress. The EU further commends the active role of the Special Representative of the UN Secretary General, H.E. Ahmedou Ould-Abdallah, and expresses its appreciation to the Government of Djibouti for its unfailing support to the political process in Somalia".

Fighting continues unabated; Ceasefire agreement under strain (July 2008)

- Continued fighting between the TFG forces and insurgents make ceasefire agreement with the Opposition Alliance for the Re-Liberation of Somalia hinders peace

Reliefweb, 09 July 2008:

"The ceasefire agreement signed last month between the Somali transitional government and a main faction of the opposition coalition, the Alliance for Re-liberation of Somalia (ARS), which should come into effect Wednesday, seems to be no more than "ink on paper," according to analysts.

The two sides, in a UN mediated peace talks in Djibouti last month, agreed on a ceasefire that should come into force throughout Somalia Wednesday, which is 30 days from the signing of the agreement.

But since the agreement was signed back in June, the mechanism needed for its implementation and the confidence building measures spelled out in the agreement which are necessary

elements for its full enforcement on the ground have never been carried out, says Farah Jumale, a political commentator in Mogadishu.

"Some sides in the talks have good intentions, particularly the host country Djibouti and the United Nations, which was mediating the talks, but the parties to the talks were even farther apart when the talks ended than when it started," Jumale told Xinhua.

He said the call in the agreement for both sides to "refrain from declarations and actions inconsistent with the peaceful spirit" of the agreement, was never respected.

Under the agreement two committees -- a Joint Security Committee "to follow up the implementation of security arrangements" and a High Level Committee, chaired by the UN, "to follow up on issues relating to the political cooperation between the parties and concerns over justice and reconciliation" -- should have been formed both within 15 days of the signing of the agreement.

But no word has been heard of the formation of the two committees which should theoretically help build confidence and trust between the two sides and pave way for implementation of the agreement.

Since the agreement was signed, the near daily clashes between the two sides continued unabated, if not further exacerbated.

According to conservative estimates, nearly 200 people, most of them civilians, were killed and almost 500 others were wounded in clashes involving the Somali government forces backed by Ethiopian troops and insurgent fighters. Hundreds more have been forced out of their homes.

Not all opposition groups agree to the ceasefire agreement, as a hardline faction of the ARS and the Al-Shabaab military group boycotted the Djibouti talks and rejected the agreement reached.

The two groups and the armed wing of the ARS faction which signed the agreement continued their attacks on the Ethiopian troops and Somali government forces.

The insurgents vowed not to stop fighting as long as Ethiopian troops are on Somali soil while the transitional government and their Ethiopian allies say they reserve the right of self-defense and retaliation if their are attacked.

"Their diametrically opposing stances show the two sides are stuck in their pre-agreement positions which breeds mistrust and further antagonism leading to continued confrontation," says Kamaal Barise, a Somalia affairs analyst.

The agreement thus cannot be more than "ink on paper" if the preliminary steps of trust building are never followed through and concrete measures not taken for its scope to be broadened to include those outside it, Barise contends".

Sceptism despite the signing of cease-fire Agreement (June 2008)

- UN brokered Peace agreement signed between the TFG and the ALS on 09 June 2008
- Deal calls for cessation of hostilities and withdrawal of Ethiopian troops in 4 months on condition that they are replaced by UN forces
- Eritrea-based hardline Islamists reject the agreement
- Analysts and some local people sceptical about success of the agreement

Hiiraan online, 09 June 2008:

"

1. The Transitional Federal Government (TFG) of Somalia and the Alliance for Re-liberation of Somalia (ARS) attending a meeting from 31 May to 9 June 2008 in Djibouti, facilitated by the UN. They are hereafter referred to as "the Parties".

2. The Parties gave their respective analyses of the 18 year old crisis and made proposals aimed at restoring trust, confidence and at ending the conflict. Their discussion led to the present Agreement.

3. The primary requirement of this Agreement is to: ensure the cessation of all armed confrontation and a political settlement for a durable peace; promote a peaceful environment; avoid a security vacuum; facilitate the protection of the population and the unhindered delivery of humanitarian assistance and call for the convening of a reconstruction and development conference.

4. The Parties noted that:

a. Over the past eighteen years, Somalia has suffered massive human losses, insecurity and vast destruction of its physical infrastructure and other vital public investments. A whole generation of young people and adults has been sacrificed or denied education and development;

b. The human and humanitarian situation is continuously deteriorating. At the same time, the country's international image and standing have been seriously undermined;

c. This tragic situation, and the fact those eighteen years of war and conflict have brought neither durable peace nor stability and inspired by patriotic and religious examples of compromise.

5. Decided to:

a. Reaffirm the dignity, sovereignty and the territorial integrity of Somalia;

b. Take courageous measures to finally bring this situation to an end and resolve the crisis through peaceful means.

6. Agreed on:

a. The termination of all acts of armed confrontation by the Alliance for the Re-liberation of Somalia (ARS) and its allies and by the Transitional Federal Government (TFG) and its allies;

b. The cessation of armed confrontation shall come into force thirty (30) days from the signing of this agreement throughout the national territory;

c. The cessation of armed confrontation is approved for an initial period of ninety (90) days, renewable.

7. The Parties agreed from the date of coming into effect of this Agreement:

a. To request the United Nations, consistent with UN Security Council Resolution 1814 and within a period of one hundred and twenty (120) days, to authorize and deploy an international stabilization force from countries that are friends of Somalia excluding neighboring states;
b. Within a period of 120 days of the signing of this agreement the TFG will act in accordance with the decision that has already been taken by the Ethiopian Government to withdraw its troops from Somalia after the deployment of a sufficient number of UN Forces;
c. The ARS shall, through a solemn public statement, cease and condemn all acts of armed violence in Somalia and dissociate itself from any armed groups or individuals that do not adhere to the terms of this Agreement.

8. To ensure the effective implementation of this Agreement, the Parties agree to:

a. Undertake all necessary measures to ensure unhindered humanitarian access and assistance to affected populations;
b. Refrain from declarations and actions inconsistent with the peaceful spirit of this Agreement;
c. Establish a Joint Security Committee to follow up the implementation of security arrangements within fifteen (15) days of the signing of this Agreement. The composition and mandate of this Committee, chaired by the UN, shall be adopted within the same period.

9. A High Level Committee, chaired by the UN, should be established within fifteen (15) days of the signing of this Agreement to follow up on issues relating to the political cooperation between the Parties and concerns over justice and reconciliation. These issues will be discussed at a conference to be organized by 30 July 2008.

10. The Parties will work with all other relevant Somali stakeholders to ensure the full and effective implementation of this agreement.

11. The Parties call on the international community to help provide the adequate resources for the implementation and follow-up of this Agreement. The Parties also consider it a priority to convene within the next six (6) months an international conference aimed at addressing Somalia's Reconstruction and Development.

"

Reuters, 10 June 2008:

"Hardline Islamist leaders rejected a U.N.-brokered peace pact signed by the Somali government and some opposition figures, and vowed on Tuesday that war would continue.

"We don't see that as a peace deal, we see it as a trap," Sheikh Hassan Dahir Aweys told Reuters by phone from Eritrea. "We encourage the insurgents and the Somali people not to be tired of combating the enemy."

Somalia's interim government and some members of the exiled Alliance for the Re-Liberation of Somalia (ARS) signed a deal in Djibouti late on Monday calling for the deployment of U.N. peacekeepers and agreeing to a ceasefire after one month.

"The people have been waiting a long time, so we have a weight of responsibility on our shoulders," Somali Prime Minister Nur Hassan Hussein said at Monday's ceremony.

He shook hands with ARS chairman Sheikh Sharif Ahmed in the first face-to-face contact between the two delegations during two rounds of talks in Djibouti. "It is an historic agreement ... it gives back hope," an ARS spokesman said.

But Sheikh Hassan Abdullah Hersi al-Turki, who along with Aweys is on U.S. and U.N. lists of al Qaeda associates, said those who signed did not represent those fighting the insurgency against the government and its Ethiopian allies.

"There will be no talks, there will only be bullets and mortars until we recapture our country by force," Turki told reporters in Mogadishu via radio phone. "We will continue ... until we bring back sharia law."

The reaction of the hardliners underscored the split between militant Islamists and more moderate members of the coalition that ruled much of Somalia for the latter half of 2006 with a combination of military force and sharia law.

'Dead on arrival'

Few believe the Djibouti pact will bring peace to Somalia after 18 years of conflict.

The sticking point is the presence of Ethiopian troops in Somalia, who are fighting with the government against the Islamist-led insurgents. The pact called for the replacement of the Ethiopians by U.N. troops.

"It was dead on arrival. How many dozen of these have we seen?" said Mark Schroeder, a Somalia analyst with Stratfor.

"A Somalia peace pact is dialogue for the consumption of the international community, but as far as the impact for the insurgency on the ground, it's negligible."

Schroeder said Ethiopia was in no position to withdraw and leave its national security at risk unless U.N. troops arrive, a deployment that had serious difficulty gaining traction before the Djibouti agreement.

Ethiopia's foreign ministry said in a statement it would withdraw "as soon as U.N. troops are deployed."

But Aweys and Turki both said they would fight any foreign troops, including any U.N. peacekeepers.

The African Union (AU) has 2,200 peacekeepers in Somalia, but they have done little to stem the violence and have been targeted themselves. The AU wants the U.N. to take over.

"U.N. peacekeepers could not be neutral, and we believe that they serve the American government," Aweys said.

Longing for an end to conflict in their Horn of Africa nation of 9 million people, some Somalis welcomed the government-ARS pact but others were sceptical.

"I think assassinations will continue because the Islamists (who signed the deal) in Djibouti do not control the local Islamist fighters," said mother-of-six Amina Farah.

A six-week peace conference in Mogadishu last year also produced a supposed ceasefire pact but had no real impact on the insurgents' Iraq-style campaign of bombs and assassinations.

IRIN, 10 June 2008:

"The Alliance is split between the wing currently in Djibouti, who favour talks despite the presence in Somalia of Ethiopian forces, and those in Asmara who insist the Ethiopians must leave before any dialogue takes place.

The latter group rejected the Djibouti agreement as a conspiracy orchestrated by the enemies of the Somali people. In a statement issued on 10 June, the Asmara faction said: "The Djibouti exercise has no validity and shall not be binding on the ARS and the Somali people." It called on the Somali people "to redouble their heroic struggle against the occupation."

Welcoming the accord, the African Union Commission said it marks a "significant step" in efforts to promote an all-inclusive political process and bring about lasting peace and stability in Somalia.

"The AU Commission hails the sense of responsibility and the spirit of compromise demonstrated by the two parties, and strongly urges all other relevant Somali actors to join this process and commit themselves to the peaceful and negotiated settlement of the conflict in their country," it said in a statement.

The accord, among other things, calls for the cessation and termination of all armed confrontation by the two sides within 30 days.

The parties also agreed to a request from the UN for the deployment of international stabilisation within 120 days.

June was the first time they held direct talks. The Alliance has repeatedly refused to open dialogue with the TFG until Ethiopian troops leave Somalia.

However, according to analysts, the Djibouti accord, although a positive step, could be insufficient to restore peace to Somalia.

"The accord has three main weaknesses: it does not include an unequivocal commitment to the withdrawal of Ethiopian forces; the signatories do not control the main belligerent forces on the ground; and its implementation hinges on the highly unlikely prospect of the timely deployment of a UN force," said a Nairobi-based Horn of Africa analyst, who requested anonymity.

The success of the accord would depend on whether other parties, including some of the Asmara wing of the Alliance, and clan and political leaders on the ground, "can be persuaded that it has a real chance of achieving both an Ethiopian withdrawal and a broadly acceptable political and security 'road map' for completion of the transition".

[...]

Mohamed Hassan Haad, the chairman of the Hawiye [which is a dominant clan in Mogadishu] elders' council said that the signing would not change much in Mogadishu. "It will not improve the situation. It can only widen the split in the Alliance and that is not good."

UN sponsored peace talks in Djibouti facing obstacles (June 2008)

- UN brokered peace talks in Djibouti facing serious obstacles
- Presence of Ethiopian troops in Somalia a 'sticking' point in peace negotiations
- Opposition ARS want Ethiopian withdrawal before agreeing to a face to face negotiation with the TFG

BBC News, 09 June 2008:

"Prospects for peace in Somalia are fading, a United Nations envoy has said, as UN-brokered talks came to an end in Djibouti.

Ahmedou Ould Abdallah said busy international diplomats could not be held hostage by personality disputes.

He said the continuing fighting was terrible for the people of Somalia.

On Sunday at least 12 people were killed in a third consecutive day of heavy fighting near the main Bakara market in the capital, Mogadishu.

Mr Abdallah said neither side was willing to make any concessions."

Hiiraan online, 08 June 2008:

"The Special Representative of the UN Secretary General for Somalia Mr. Ahmedou Ould-Abdallah reported in a press conference that the UN organized Somalia peace talks in Djibouti have failed to make the necessary progress.

The UN's Somali envoy Ahmedou Ould-Abdallah said that the talks will be closed without any result and without setting any date for the resumption of the talks.

Mr. Ould-Abdallah said that he is disappointed that Somalia may continue to be in a civil due to the failure of the peace talks. Mr. Ould-Abdallah added that because of the long civil war there is no trust between the opposing groups which complicates the success of the peace talks.

The opposition delegation this week briefly withdrew from a seminar held for both sides in protest after Ethiopian ambassador in Djibouti attended the seminar but returned when the UN asked all ambassadors not to attend the seminar.

Mr. Ould-Abdallah's announcement of the failure of the peace talks comes after heavy fighting has erupted in Mogadishu this morning which killed over 15 people and injured over 50 people."

Reuters, 09 June 2008

"A U.N.-led peace initiative for Somalia appears to have failed, with government and opposition delegations refusing to meet face-to-face in Djibouti to try to end 18 years of conflict.

"I made the decision to terminate the conference," U.N. envoy for Somalia, Ahmedou Ould-Abdallah, told a news conference in Djibouti late on Sunday.

In the most recent failed international diplomatic initiative, Ould-Abdallah persuaded teams from both sides to come twice to neighbouring Djibouti in May and this month.

But they declined to meet directly, the sticking point said to be the presence of Ethiopian troops in Somalia helping the government fight Islamist-led insurgents.

"Both the government and opposition delegations were in Djibouti on Monday, however, and sought to put a softer spin on events than the U.N. envoy.

"There was no face-to-face meeting between us and the government," said Dahir Mohamud Gelle, spokesman for the opposition Alliance for the Re-Liberation of Somalia (ARS).

"We have not yet decided to pull out of the talks but we feel that the talks cannot go on if the government insists on its agenda of keeping the Ethiopians in our country."

A Somali government spokesman, Abdi Haji Gobdon, also said he hoped the peace initiative had not broken down irretrievably.

"We have high hopes that talks can succeed," he said in Mogadishu, adding, however, that Ethiopian troops could only leave once a U.N. peacekeeping mission came to Somalia.

A contingent of 2,200 African peacekeepers has made little headway stemming the conflict, and the United Nations is reluctant to intervene until security improves.

Fighting between Islamist insurgents and Somali-Ethiopian troops killed at least 28 people over the weekend in Mogadishu.

The rebels are waging an Iraq-style insurgency of roadside bombings, ambushes and assassinations.

The violence has triggered a humanitarian crisis that aid workers say may be the worst in Africa, with at least a million refugees in a nation experiencing constant civil conflict since the 1991 toppling of a military dictator by warlords.

Ould-Abdallah said both sides had, separately, agreed on some topics like humanitarian assistance, but with leaders still far apart, "it is impossible to prolong negotiations indefinitely because of budgetary constraints".

Some hardline opposition leaders of the Eritrea-based ARS had boycotted the Djibouti talks, while insurgent leaders inside Somalia had also denounced them."

UN Sponsored talks take place in Djibouti 2008 (June 2008)

- UN sponsored talks open in Djibouti
- Presence of Ethiopian troops in Somalia bone of contention
- UN Security Council shows keen interest
- Mediation by UN Special envoy, Ambassador Ould-Abdalla

Reuters, 11 May 2008:

"Rare peace talks between Somalia's interim government and opposition exiles have made a slow start in Djibouti, but a senior U.N. official said he was encouraged both sides had turned up.

"I am more than hopeful, the Somalis who I met today are committed to peace and reconciliation and they are ready to do it for the sake of Somalia," the U.N. envoy to Somalia, Ahmedou Ould-Abdallah, told reporters in Djibouti late on Saturday.

Delegates from the government and exiles based in Eritrea have yet to meet face-to-face, but Ould-Abdallah and Arab League officials shuttled between the two sides."

BBC, 2 June 2008:

"The UN Security Council has held its first discussions with Somalia's government and its opponents as a peace mission to Africa gets underway.

Somalia's Islamist opposition said face-to-face talks will not happen at the meeting in neighbouring Djibouti unless Ethiopian troops leave Somalia.

[...]

The Security Council is holding separate meetings in Djibouti with the Somali government and the opposition at a luxury hotel on the shores of the Red Sea, although key hard-line militia opponents are not present.

"We believe that the people of Somalia are ready to move to another stage in your history and to move towards peace and security," said South Africa's UN ambassador Dumisani Kumalo at the start of the talks with the government delegation.

Somalia has not had a functioning national government since 1991.

Somalia's foreign minister told the BBC that he was ready to hold direct talks with the opposition Alliance for the Re-Liberation of Somalia (ARS).

But the talks are being boycotted by the hard-line al-Shabab militia, blamed for many of the attacks on government troops and their Ethiopian supporters.

They refuse to hold talks until the Ethiopian troops leave the country."

IRIN, 3 June 2008:

"Representatives of Somalia's civil society said they were hopeful that the presence of a visiting UN Security Council delegation in Djibouti would pressure the two sides to reach a compromise settlement.

"For this [dialogue] to succeed both sides need to show flexibility and compromise and think of the interests of the millions who are suffering,"

Abdullahi Shirwa of the Civil Society Forum told IRIN.

However, he expressed fear that divisions within both camps could derail the talks.

"The divisions on both sides are very worrying and could scuttle the process."

He said that Somali civil society groups in Djibouti had called on the international community to help the millions of people who were either displaced or affected by the drought in the country.

"There is a need for a more robust humanitarian intervention in the country to avert a catastrophe," he added.

He said that in their meeting with the UN Security Council delegation, they made it clear that the Ethiopian troops should leave and be replaced by an international force.

"We are of the opinion that the presence of Ethiopian troops is one of the main contributing factors to the current crisis," Shirwa said.

He added that they were calling for the removal of all Ethiopian forces from civilian populated areas "even before an international force arrives".

The UN Security Council delegation, on a 10-day mission to Africa, met with Somali leaders in Djibouti after a briefing by Ould-Abdallah, who is chairing the talks between the TFG and the Alliance."

POPULATION FIGURES AND PROFILE

Overview

Numbers and recent displacements (Special report, 2006)

At the end of 2005, the UN estimated internal displacement at 370,000 to 400,000, out of a population of 6.8 million (OCHA, 30 November 2005). Tracking displaced populations in Somalia is particularly difficult as virtually all Somalis have been displaced by violence at least once in their life. In addition, many IDPs are dispersed, or living in unplanned settlements alongside destitute rural and urban populations rather than in camps. The displacement occurs in a society, in which two thirds of the population led a nomadic or semi-nomadic existence, traditionally moving with their herds to and from grazing and agricultural lands, water sources and trading centres. Wars and natural disasters have complicated and hampered these seasonal migrations.

An estimated 40,000 IDPs live in Somaliland, most of them in Hargeisa and Burao (OCHA, 22 November 2005). Puntland hosts an estimated 60,000 IDPs (OCHA, Puntland, 22 November 2005). The large majority of them live in urban agglomerations: over 21,000 IDPs live in Bossaso, some 12,600 in Garowe and around 10,000 in Galkayo. The rest live in smaller towns or in spontaneous settlements along major roads.

Mogadishu has attracted the largest population of displaced people, despite the volatile security situation and extremely poor living conditions in the city. Two recent surveys estimate the IDP population at 233,000 and 300,000 respectively (FUPAG, 30 May 2005; UNICEF, October 2005), while another estimate puts the number of IDPs in Mogadishu at 250,000 (OCHA, South/Central, 22 November 2005). The displaced live in some 200 settlements of varying sizes. Access to basic infrastructure or income-generating opportunities is minimal. Some 90,000 IDPs are reported to live along the Shabelle river, Gedo and Lower Juba, 15,000 of them in Kismayo (OCHA, South/Central, 22 November 2005). There are strong indications that the recent drought has increased the number of IDPs in Kismayo, but there is no international presence in Kismayo to confirm this trend.

For 2006, UN OCHA plans a countrywide assessment of the IDP population in Somalia. In doing so, the UN coordination body hopes to be in a position to subsequently identify the needs of the most vulnerable and to target humanitarian assistance, particularly in areas of south and central Somalia where humanitarian access continues to be very limited.

New displacement in 2005

Since 1995, there have been few large-scale displacements in Somalia. However, tens of thousands of people are temporarily displaced by localised conflicts every year. According to ICRC, some 40,000 families were newly displaced between January and August 2005 alone, most of them due to conflict situations. The majority of the displaced remained in their home region and were able to return after a few weeks or months (Interview with ICRC representative, Nairobi, October 2005, and email, November 2005). Despite the peace process launched in 2002, intermittent conflicts have made the ceasefire meaningless, preventing people from cultivating their lands and forcing thousands of Somalis to flee again, mostly in the regions of Mogadishu, Gedo, Juba, Shabelle and Galgaduud.

In El Wak (Gedo), continued violence between the Marehan and Gare clans increased the number of displaced from 10,000 in 2004 to 15,000 at the end of 2005, while many fled across the border into Kenya. After a ceasefire agreement in 2005, an unconfirmed number of IDPs have returned (OCHA, August 2005). Gedo bordering Kenya and Ethiopia is affected by regional political instability hampering the delivery of assistance and food, and little improvement is expected for the first half of 2006. Increased tensions between Ethiopia and Eritrea may have negative repercussions for the Somali border region (OCHA regional support office, November 2005). Clan fighting in Idale, Baidoa district, caused the displacement of around 1220 households in August 2005 (OCHA, August 2005).

While the situation in Mogadishu seems to have stabilised somewhat, violent inter- and intra-clan conflicts involving, among others, the Abgaal and Hawiye clans, continue to displace substantial numbers of people who often return later, resettle elsewhere in Mogadishu, or move to safer areas in the north. (AFP, 9 July 2005; OCHA, 31 May 2004; 9 July 2004).

The Indian Ocean tsunami struck the Somali coast on 26 December 2004 and caused the displacement of some 44,000 people. Among those affected were IDPs and seasonal migrants in search of work in the fishing industry. In towns like Bossaso and Garowe an increase in new arrivals was registered following the tsunami. As a result, donor interest has increased and a number of NGO have stepped up their activities since the tsunami, making attempts to also include vulnerable non-tsunami affected populations in their operations (IDD, May 2005).

Global figures

Number of displaced in Somalia now stand at 1.55 million people [September 2009]

- Combined number of conflict and drought displaced stand at 1.55 million
- Majority displaced as a result of conflict

IRIN, 7 September 2009

“The number of conflict- and drought-displaced Somalis has reached 1.55 million, despite a drop in the past two months in the rate of displacement from the capital, Mogadishu, according to the UN.

Roberta Russo, a spokeswoman for the UN Refugee Agency, UNHCR, told IRIN on 7 September that hundreds of families were still fleeing the city, despite a significant drop since the beginning of July, with almost 95,000 leaving all areas “in the last two months”; 77,000 of whom were from Mogadishu.

[...]

Ali Sheikh Yassin, the deputy chairman of the Mogadishu-based Elman Human Rights Organization, told IRIN that people were continuing to flee Mogadishu, “because the insecurity is increasing, not decreasing. As we speak, people are leaving and I am sure many more will join them. There is nothing to stay for. No peace and no hope for peace.”

He said indications were that the violence - pitting government forces and African Union peacekeeping troops (AMISOM) against two insurgent groups, Al-Shabab and Hisbul-Islami - would get worse.

"All sides are preparing for what they think is a final battle but nothing is ever final in Somalia," Yassin said..."

Number of internally displaced people estimated to be 1.3 million (January 2009)

- Number of internally displaced persons estimated to be over a million
- 700,000 people were reported to have fled from Mogadishu since February
- A staggering 200, 000 people were displaced from Mogadishu in November

Reliefweb, 07 January 2009

[...]

In Somalia, the number of IDPs has continued to grow as a result of internal conflict and general insecurity. The number of internally displaced persons in Somalia rose by 200,000 between July and December 2008 and now stands at 1.3 million..."

FSAU, pp.1:

"Swelling number of IDPs. One year ago the number of protracted Internally Displaced Persons (IDPs) was estimated at 400,000 people, but today are more than 1 million people. The situation of the new IDPs continues to deteriorate, as the number of people fleeing Mogadishu has more than doubled from 325,000 in August 2007, to more than 700,000 in the last six months. "

UNHCR, 20 November 2007

"The UN refugee agency announced on Tuesday that by its latest estimates the number of displaced people inside Somalia has risen sharply to a staggering one million.

UNHCR said 60 percent of the population, or some 600,000 people, are believed to have fled from the lawless Somali capital, Mogadishu, since February – nearly 200,000 of them in the past two weeks alone, leaving entire neighbourhoods in the volatile capital empty. The numbers of displaced this year are in addition to some 400,000 people displaced by previous fighting.

The displacement figures, updated regularly through information received from a network of local partners and compiled by UNHCR, show the number of internally displaced people (IDPs) in Mogadishu has risen to an estimated 43,000 people from 33,000 a week ago."

Geographical distribution

Conflict-induced displacement continues in south-central Somalia despite UN facilitated peace agreement (May 2009)

- New Displacement in 2009 in Beletweyne, Galgadud and Mogadishu

UNHCR, 15 May 2009

"The UN refugee agency said on Friday that it was deeply concern about a fresh eruption of fighting in the Somali capital of Mogadishu that has left many people dead and sparked a new wave of displacement.

So far, at least 135 people have been killed and 413 injured, while more than 34,000 people have fled their homes to escape the heavy fighting that broke out in Mogadishu last week between forces loyal to the Transitional Federal Government and opposition groups..."

IRIN, 12 May 2009

"Thousands of people have fled five days of fighting between government troops and insurgents in the Somali capital, Mogadishu, a human rights group told IRIN on 12 May.

At least 27,500 people fled their homes between 7 and 11 May, according to Ali Sheikh Yassin, deputy chairman of the Mogadishu-based Elman Human Rights Organisation (EHRO).

With no let-up in the fighting, more families were fleeing, he said.

"Last night [11 May] saw some of the heaviest shelling in both the north and south of the city," Yassin said, adding that he feared the city could soon be empty.

The displacement has been fuelled by indiscriminate shelling..."

IRIN, 16 March 2009

"An estimated 30,000 people were displaced in Wabho town in the Galgadud region following fighting between Islamist groups over the weekend, locals told IRIN.

"Most of the residents of Wabho and the surrounding villages fled after intense fighting between two groups," said Khalif Kariye, the deputy district commissioner of Eil Buur, 40km northwest of the area of fighting.

He said local people had helped the displaced with food and shelter.

"Many residents and [members of the] diaspora have contributed money to buy food, but it was not enough," Kariye said, adding that water was a big problem. "We have, so far, been unable to deliver water because we don't have enough resources."

Those displaced fled to the countryside, "with some areas lacking even one water well", he said. "Hopefully the situation will stabilise and we can begin returning people but at the moment it is desperate."

A local journalist, who requested anonymity, said the fighting between the Al-Shabab and Ahlu Sunna Waljama'a (ASW) Islamist groups began on 14 March, with ASW trying to dislodge Al-Shabab from the area..."

IRIN, 21 April 2009

"Humanitarian workers are worried that clashes in Somalia's central town of Beletweyne, 340km north of Mogadishu, and the current rains, could hinder aid efforts in the area.

Hundreds of families have been displaced by the clashes, pitting militias of the Union of Islamic Courts, which supports the Government of National Unity, against the pro-opposition Hisbul-Islami.

Mahamud Hassan Guled, a senior public information assistant for the UN World Food Programme (WFP-Somalia), said on 21 April the agency had distributed 3675.52 metric tonnes of food to 181,314 people in Hiiran Region in the last two weeks but "our food distributions to the west of Beletweyne town were affected by the conflict on Monday [20 April]". However, Guled said WFP was hopeful the distributions would continue.

Beletweyne was reported to be tense on 21 April. Seven people have been killed and 35 wounded, said a local journalist who requested anonymity. "There is fear in the town that the clashes could resume any time..."

Fighting between insurgent groups displace 50,000 people in Guriel (January 2009)

- Fighting between insurgent groups uproots some 50,000 people in central Somalia
- UN calls for cessation of hostilities to allow for humanitarian aid

UN News Centre, 05 January 2009

"The top United Nations relief official in Somalia has voiced grave concern at the deteriorating humanitarian situation in the strife-torn nation, where fresh clashes last week have reportedly killed more than 40 people and displaced over 50,000.

Up to 90 per cent of the population of Dhuusamarreeb and Guriceel towns, in Galgaduud region in central Somalia, have fled their homes since fighting began on 27 December. Many of them had already been displaced due to previous violence in the capital, Mogadishu.

"I am extremely alarmed by the fighting that has taken place in central Somalia during the past week," stated UN Resident and Humanitarian Coordinator Mark Bowden. "I strongly condemn the unacceptable number of casualties and massive displacement of civilians who continue to bear the brunt of conflict and insecurity in the country."

Mr. Bowden called for a cessation of all hostilities to allow urgently needed humanitarian assistance to be provided to the internally displaced persons (IDPs) in Dhuusamarreeb and Guriceel, as well as in other parts of Somalia, where the UN estimates that some 3.2 million people, or 40 per cent of the population, are in need of assistance.

The majority of those recently displaced are scattered in the surrounding villages and are in desperate need of shelter, water, non-food items and food assistance, according to a news release issued by the UN Office for the Coordination of Humanitarian Affairs (OCHA). The

situation for the recently displaced is made worse by a general lack of humanitarian access in Galgaduud region due to deteriorating security.

The recent fighting has compounded an already grave humanitarian crisis in Galgaduud region, which is experiencing a serious drought in addition to hosting some 130,000 IDPs from Mogadishu..."

Displacement in Sool region as a result of border conflict between Somaliland and Puntland (Nov 2007)

- About 54,000 people displaced by clashes between Somaliland and Puntland forces
- Somaliland-Puntland clashes because of border dispute (Sool region)
- Clashes concentrated around Las-Anod area

Action for Churches (ACTS), 01 November 2007:

"Increased tension between the self-declared republic of Somaliland and the neighbouring self-declared autonomous region of Puntland has led to the displacement of thousands of people from the area. The dispute was at its peak on 17 October 2007 when forces loyal to the Somaliland administration took control of the Sool regional capital Las Anod, which was previously controlled by Puntland.

Due to the high tension and insecurity in the affected area, assessments of damages could only be conducted recently. A preliminary assessment estimates about 9,000 families (roughly 54,000 people) who have been displaced from Las Anod and its surrounding areas. Many of them fled to different directions seeking refuge in the adjoining remote districts."

IRIN, 22 October 2007:

"Increased tension between the self-declared republic of Somaliland and the neighbouring self-declared autonomous region of Puntland over the disputed region of Sool has led to the displacement of up to 20,000 people from the area, local sources told IRIN on 22 October.

Forces loyal to the Somaliland administration took control of the Sool regional capital Las Anod, which was previously controlled by Puntland, on 15 October.

"There are demonstrations against the arrival of Somaliland forces and large numbers of people have been leaving the town," a local journalist said. "Most of them have gone to neighbouring towns and villages for safety reasons."

A report issued on 19 October by the UN Office for the Coordination of Humanitarian Affairs, Somalia, said an estimated 500 families had fled Las Anod, mostly to the neighbouring southeastern district Ba'ome.

Others had fled to Garowe, nearby villages and to northeastern districts such as Hudun and Taleh. "The population is said to be in dire need of food, shelter material and medical assistance," the report said.

Abdirahman Mahamud Bankah, the Puntland minister of information told IRIN on 22 October: "Our estimate is close to 20,000 people are now displaced."

Tension created by the arrival of the Somaliland forces, he added, was hampering humanitarian assistance to those affected. Somaliland, however, dismissed the claim, saying many of the displaced were forced to flee by Puntland propaganda that said they would be harmed."

OCHA, 25 November 2007:

"Sool region is geographically located former British Somaliland province in the horn of Africa during the colonial period, but later reunited Italian Somaliland in the south of Somali after the independence of Somalia. The region, Sool, suffered its independence under the British colony in 1960, so that after the collapse of the Somali government in 1990s the region became lack of administrating area. But self independent state of Somaliland in the north and autonomous self administration Puntland state in the east had established in 1991 and 1998 respectively, sooner after the collapse of the Somali's regime, the two administrations Puntland and Somaliland both began to claim the region of Sool due to different reasons.

Somaliland claims on this region based on as geographical territories, since it was former British pre independent administration, while the Puntland claims based on clan based autonomous administration.

However the dispute over the region by these two administrations has sharpened and deteriorated the relationship between them, as well as it wasted the humanitarian aids to reach their allotted locations in the region; the worsened situation has caused to increase the tension, confusion and propaganda actions for the past years, while the civil society were almost in chaos situation who were unwilling these disputes over them.

In late December 2003 Puntland administration has fully succeeded controlling most of the region including Las-anod and some other districts while Somaliland also still controlling party of Sool region.

In October 2007 serial clashes between Puntland and Somaliland had broke out the outsides of the Las-anod town nearly 18 km to the northern of Las-anod, these clashes have caused many casualties as lose of many lives, wounds and insecurity fears for the community, it also affected the security stability and business services, and also developmental issues in the region. This dispute has also blocked the region to gain the international aid assistance from the donors and international agencies.

In October 15, 2007 the heaviest and largest clash between Somaliland and Puntland troops occurred in an area not far from La-anod more then 8 km to the west which later extended to the direction of the town of Las-anod in this war the Somaliland troops took the control of Las-anod, the capital of Sool region. This war has displaced more than 7000 families those fled to nearby districts such as Hudun, Taleeh, Bocama, Buuhoodle, and the other villages of Las-anod district as well as the neighboring regions such as Garoe, Bossasso, and Galkaio, while some others reported they have crossed through the border of Ethiopia with the region. The most displaced people are women and children those are in fear of persisting wars and possibility of renewed wars in the region."

Majority of the displaced in 2007-2008 live in the Shabelles and Hiran regions (Feb 2008)

- Majority of people displaced from Mogadishu concentrated around the town of Afgoooye

FSAU, February 2008, pp.6

"In the last six months, the number of people fleeing Mogadishu has more than doubled, from 325,000 in August '07 to more than 700,000, an increase of 116%. Most, or 82%, of these newly displaced people are heavily concentrated in the same regions that already face the worst problems in the country in terms food access, collapsing livelihoods, and emergency nutrition levels, including Lower and Middle Shabelle, Hiran, and Central regions"

Chatham House, January 2008, pp.1

"YEAR ON FROM THE ETHIOPIAN INVASION AIMED AT removing the Islamic Courts government, sixty percent of the population of the capital Mogadishu has fled, the poorest among them to destitution in surrounding areas. Some 230,000 people are camping out in makeshift settlements along the fifteen-kilometre stretch of road between Mogadishu and Afgoye."

Recurrent displacements in southern and central Somalia due to intermittent inter-factional conflicts (Sept 2004)

- An estimated 86,000 people were displaced in southern and central Somalia excluding Mogadishu
- There are about 15,000 IDPs in Kismayo among whom 8,000 from Bantu and 5,000 from Galgala origins (2002)
- Displacements caused by conflicts in Kismayo and Lower and Middle Juba regions in 2004
- Conflict between rebel forces and pro-government troops over the main port of Kismayo displaced hundreds of thousands of people in 2001
- Violent inter-clan conflict in Gedo in May and June 2004 forced 10,000 people to flee to Beletamin camp already hosting 4000 IDPs
- Violent conflict between the SRRC and the Juba Valley Alliance (JVA) have displaced 6000 people from Bulo Hawa in Gedo in 2002
- Conflict between the RRA over the establishment of the self-declared autonomous region of the South West State of Somalia which displaced about 5250 people in Baidoa Bay region subsided in 2004
- 240 families were displaced by clan fighting along the east and west bank of the Shabelle in Hiraan in February 2004
- In Galgaduud between 2000-9000 families were displaced by conflict in November 2003

UNCU, 30 July 2002, p.1

"IDP caseload in southern and central Somalia, excluding Mogadishu, is approximately 86,000 persons (UNCU study 2002)."

UN, 15 June 2004, p.2,3

Middle and Lower Juba, capital: Kismayo

"Low-level conflict also continued in the far south, in Kismayo and the Lower and Middle Juba regions. While reports indicate that large-scale displacement resulting from clan warfare have taken place in each of the Bu'aale and Jilib districts of the Middle Juba region, insecurity has so far prevented a full assessment of these situations."

UN, 18 November 2003, p.11,13

"These, together with 15,000 [...] IDPs in Kismayo, are the most acutely vulnerable in southern and central Somalia, suffering from food insecurity and health threats."

FSAU Nutrition Update, 31 December 2002

"About 60,000 of the estimated Kismayo District population of 88,000 (WHO NIDs figures, Oct 2002) live in Kismayo town. Among the residents are many internally displaced persons (IDPs) who have settled in over twenty camps [...] within Kismayo town since 1992/93. These IDPs fled some high potential areas of Mareley, Sanguni, Mugambo, Jowhar, Mahaday, Brava and Bay Region due to insecurity."

UNCU, 30 July 2002, p.25

"The portal town of Kismayo, which is the largest town in the Juba valley region, accommodates the largest **IDP** population in the region. Approximatey 15,000 **IDPs** the majority of whom are Bantu (8,000 persons), Galgala (5,000 persons), Tuni, Werdai, Ajuran and Ormala ethnic minority groups. The majority of IDPs are women and children."

AFP 3 September 2001

"The JVA and Morgan have clashed in the nearby Lower Juba since July 27, leaving some 200 people dead and displaced hundreds of families, militia and medical sources said."

'Already dozens of families left and more others who can afford to get food during the voyage would go to Mogadishu and the port town of Merka,' said another Jilib resident, Asha Ibrahim."

AFP 6 August 2001

"The forces that captured Kismayo are made up of Morgan's Somali Patriotic Movement, drawn from the Darod clan, the Rahanwein Resistance Army, and the South Somali National Movement."

ACT, 17 September 2004

Gedo:

"A violent inter-clan conflict that broke out in Somalia's region of Bula Hawa in May, has caused an extensive internal displacement. ACT member on the ground has reported that 10 people were killed, hundreds injured, hundreds of households looted, and over 5,000 people displaced in Mandera, Kenya and Dolo in Ethiopia. The consequences of another wave of violence which followed in the beginning of June were even more catastrophic with 58 more people killed, 200 injured and 10,000 people internally and externally displaced. Trade within the town has been disrupted hindering alternative source of livelihood. The displaced population remains in poorly maintained collective camps and is lacking basics such clean drinking water and food. These already precarious conditions have been further exacerbated by this year's drought."

[...]

A population of 4,000 was displaced in Mandera and Dolo and a further 10,000 people have gone to Beletamin displacement camp which already hosts 4000 people. Other people are displaced in Siftu (Ethiopia) shirko and Malarey 15 Kms away from Bula Hawa and Mandera in Kenya."

UNCU/OCHA 30 July 2002, p.25

"In April 2002, situation in Gedo drastically deteriorated due to intra-Marehan clan conflict, which flared up and caused the displacement of around 15,000 persons either across the Kenya border or throughout the region away from armed conflict area."

UN, May 2002, p.2

"The most significant conflict during this reporting period took place in Gedo region in April, involving pro Somali Reconciliation and Restoration Council (SRRC) and pro Juba Valley Alliance (JVA) militia. These clashes have resulted in the death of innocent civilians and have left many injured. Approximately 6,000 people from Bullo Hawa have been displaced as a direct result of the conflict."

UNICEF 12 July 2001, sect. 1

"Heavy fighting in Bullo Hawo in April claimed the lives of over eighty militia and an unconfirmed number of civilian casualties. Up to 10,000 persons fled across the border to Mandera, Kenya. Although IDPs are now slowly returning to Bullo Hawo, the area remains tense and prolonged displacement may have an impact on food security."

UN, 15 June 2004, p.3

Bay region:

"Meanwhile, reconciliation efforts among the Rahanweyn have triggered the return of large numbers of IDPs to the villages surrounding Baydhaba in Bay region, more than 2,500 of who fled fighting amongst the Rahanweyn Resistance Army (RRA) in 2003. An estimated 1,200 remain in Waajid but these too are expected to return home. While the talks have yet to conclude, the area has been peaceful since they began in January 2004, and access has improved considerably."

FSAU, 10 December 2003

"Civil insecurity in October [2003], close to Baidoa, led to an assessment by WFP, UNICEF, World Vision and ACF during November which found that up to 6,000 persons are estimated to have been displaced from civil insecurity in the area."

OCHA, 28 November 2003

"The humanitarian situation in Bay and Bakool is dominated by the conflict and displacement of mainly women and children. As well as older men indicating the nature and severity of the conflict. Since June 2002, fighting in and around Baidoa between the combined militias of Muhammad Ibrahim Habsade (RRA Deputy Chairman) and Shaykh Adan Madobe (RRA Deputy Chairman), and the militia of Hasan Muhammad Nur Shatigadud (RRA Chairman) has led to

population displacement on a large scale. This fighting, predominantly between the clans of the Leysan and Harin, has led to some of the worst killings in the region since 1991. Although reliable information remains poor, fighting and the targeting of unarmed civilians, including women and children, the burning of huts and the looting of grain stores has been reported in a wide northern arc from Daynoney to the east (between Baidoa and Buurhakaba) to Awdiinley in the west. [...] This has led to waves of displacement of people from Harin villages in Baidoa district to other Harin villages in Bay and Bakool regions, Buurhakaba, and Mogadishu.”

IRIN, 4 July 2002

“Tension had been rising in Baidoa, the headquarters of the RRA, due to a deepening split between Shatigadud and his deputies over the establishment of the self-declared autonomous region of the South West State of Somalia (SWS). Shatigadud was declared SWS president in late March [2002].”

WV, 29 January 2004

Bakool:

“The fighting that broke out in July 2002 escalated late last year leading to the displacement of an estimated 3,000 women and children who are now crowded into four camps in Waajid district, Bakool region.”

UN, 15 June 2004, p.2,3

Hiraan:

“Clan fighting in February 2004 displaced about 240 families from the west to the east bank of the Shabelle river in Belet Weyne, Hiraan region, as well as the more secure areas of the west bank. These families have for the most part been absorbed by relatives and are expected to return once the conflict subsides.”

UN, 15 June 2004, p.2

Galgaduud:

“Most notably, clan conflicts that started in April 2003 and continued intermittently into 2004, have displaced approximately 5,250 Somalis, primarily women, children and old men, in the Abudwaq district of Galgaduud region. A prolonged dry season and the resultant scarcity of water has compounded their hardship and also stressed host communities’ ability to cope with the influx. As a result, the displaced persons have begun cutting trees to sell for charcoal and firewood, causing further damage to land. Water, shelter, food and health needs are significant and some assistance has been provided. But the fragile security situation continues to hamper a more comprehensive response. Efforts by religious leaders to reconcile the parties to the conflict have not yet taken root.”

UN SC, 12 February 2004

“Intense inter-clan fighting in the central region of Galgaduud, in Abudwaq and Murusade districts (see para. 26), forced some 9,000 people to flee to surrounding towns whose inhabitants are themselves suffering from food insecurity because of drought conditions.”

IDPs in Puntland state of Somalia (March 2006)

- Puntland hosts some 60-70,000 IDPs, among which 25-28,000 in Bossaso
- Some 12,600 vulnerable people live in Garowe, most of them IDPs from the south
- Most of Bossaso's IDPs live in about 10 camps grouped according to clan affiliation
- About 2,400 IDPs lived in Baadweyn as of April 2004
- The Northeast has no infrastructure to absorb an indeterminable numbers of IDPs from southern Somalia as well as influx of returnees

OCHA, 21 March 2006:

"In the last three years and attracted by Puntland's relative stability, the number of people spontaneously moving into the region has risen - fleeing the south for security and economic reasons. IDPs and returnees occupy the major towns particularly Bossaso, Galkayo, Garowe and Gardho. However, reports suggest this has detrimentally impacted on the standard of living of the host population who are obliged to assist (with whatever support they can) through the extensive Somali family network and putting great additional strain on the area's limited resources.

[...]

It is estimated that up to 60,000 IDPs are languishing in IDP settlements in the major towns of Puntland with contaminated water and no sanitation facilities, lack of access to basic social services, rampant disease and regular outbreaks of fire/arson. However, there is a very active inter-agency IDP working group consisting of UN agencies, INGOs and local partners who are providing assistance to the Puntland authorities on the provision of humanitarian assistance to IDPs in Bosasso and Garowe, as well as looking at the implementation of longer term responses which focus on IDP reintegration.

[...]

There is an urgent need to build roads and communication facilities so rural areas do not remain cut off from the rest of Somalia and the outside world. The remote north eastern coastal areas of the region had never received any form of humanitarian assistance before the tsunami struck in late 2004.

Puntland is facing rapid urbanization, which is creating another vulnerable group – the urban poor. This group includes destitute pastoralists, economic migrants and people who are unable to make ends meet through lack of livelihood opportunities. Private sector business remains relatively limited so there are few employment opportunities."

UNDP, May 2005, p.4:

"The estimated number of households for the vulnerable population was 1,500 or 12,605 people, thus Garowe has the third highest number of vulnerable populations in Puntland following Bossaso, and Galkayo.

- Most of these people arrived from the south/ central parts of Somalia, within Puntland, Somaliland and others from Ethiopia in search of economic opportunities, peace and stability.
- Households average 6 members
- Darood, Rahanweyn and Jareer clans dominate the IDPs, returnees and the urban poor in Garowe.
- There are more females (54,2%) than males (45,8%) in the town.
- 53,8% of the population is below 17 years of age while 44,3% is between 18 and 65 years.
- 82,0% have attended Madrassa, despite that, they can neither read nor write.
- 46,6% of the household members survive on casual labour, women are mostly engaged as housemaids, selling wares, clothes, tea, hired to sale mirror, garbage collection and washing

clothes. Men are involved in digging toilets, water reservoirs, wells, assisting in the construction industry, loading vehicles, slaughtering of animals and working in small farms around Garowe.

- Common skills include masonry, carpentry, driving and mechanics that they acquired whilst they were in the south.

Water and sanitation

- All the communities have access to water, however the main concern is poor quality of the water that is contaminated, and the main sources are shallow dug wells.
- Above 52,0% of the households use more than 40litres of water per day and children are also involved in water collection.
- 75,0% of the households have no access to sanitation"

UN, 15 June 2004, p.3:

"Puntland already hosts some 70,000 IDPs – the largest concentration of about 25,000 is based in Bossaso – and the government's capacity to provide for them is limited.

[...]

But, the protective environment for "foreigners" in general, and IDPs from southern Somalia in particular, has continued to deteriorate. Harassment, exploitation and extortion of these groups are not uncommon. These conditions have forced many to flee southwards and into Puntland where they are living in squalid conditions."

UN, 18 November 2003, p. 153:

"The port city of Bossaso in northeastern Somalia has a total estimated population of 120,000 people. In addition, an estimated 22,000 IDPs live in various camps around the city in a very precarious situation. The IDPs are mostly from the regions of southern Somalia where they fled sporadic fighting and clan skirmishes. Some of the camp dwellers are internal migrants from the nomadic inland areas, attracted to the town by trading needs or by the possibility of jobs in the transport industries. [...] The IDPs are grouped according to clan affiliations in some ten major camps around the city. These camps are places of extreme deprivation. Overcrowding and lack of services have turned them into hotbeds of infectious diseases. "

IGAD/UNDP/UNHCR, June 2002, p.3, 4:

"Due to its relatively unscathed status the Northeast has been the destination for many of Somalia's IDPs, particularly from the war-ravaged south. It is impossible to quantify the precise numbers of IDPs who have moved to this region since many of them have integrated into communities where they have family ties. However, it is clear that there has been a considerable influx of population into the region, which does not have the infrastructure to cope with such a population increase.

In addition to this, an estimated 33,000 IDPs are living in camps on the outskirts of Bossaso and Gal kayo [...] in Northeast Somalia, with minimal infrastructure and economic livelihood opportunities.

[...]

The total population of Bossaso District is estimated at 250,000 persons. Bossaso town suffered a moderate level of physical destruction and has to cope with poverty and environmental problems. Strongly affected by a large influx of IDPs (including an estimated 28,000 in settlements around the town [...]) the district has a limited absorption capacity because of its

weak urban services. After the war Bossaso became the most important port of the Northeast, which is a unique employment source."

UNHCR/UNDP, December 2000, p.34:

"Bossaso town suffered a moderate level of physical destruction and has to cope with poverty and environmental problems. Strongly affected by influx of IDP estimated at 165,000 and returnees (close to 8,000), the district has a limited absorption capacity because of its weak urban services. After the war Bossaso became the most important port of the Northeast, which is a unique employment source."

USCR 2000, pp. 115-116:

"Tens of thousands of people remained internally displaced in relatively calm Somaliland and Puntland, according to aid agencies. Thousands of residents from southern Somalia fled to northern areas, particularly to Puntland, hoping to escape Somalia by boat to Yemen. Hundreds drowned in overcrowded boats en route to Yemen. Another 7,000 reached Yemen during the year."

See OCHA's complete table of IDP Estimates for Somalia by district or town, as of April 2004 in the bibliography below.

Disaggregated data

Categories of IDPs and their specific vulnerabilities (July 2005)

Somaliland

1) Those displaced by conflict from South/Central Somalia into Somaliland or Puntland They find themselves away from their clan base; (the majority belonging to clans originating from riverine areas, i.e. Digil, Mirifle, Bantu and others). A decree issued by the Somaliland authorities in 2003 calling for deportation of "foreigners", although never formally enforced, actually resulted in a number of these IDPs moving to Puntland. Nevertheless, many still remain in Somaliland. They are easily identifiable by their physical appearance and dialect, which mark them as prey to harassment, exploitation and discrimination. Mostly from an agricultural (farming) background, they are unable to find steady jobs in the urban areas where they are located, therefore they resort to casual labor and begging. The majority are women and children with a large number of households headed by females, adding to their overall vulnerability. Due to their extreme poverty, they live in appalling conditions and lack access to protection and basic services.

2) Nomads mostly from Sanag/Sool regions who were affected by the drought in the 1970s and resettled in central and south Somalia to work as fishermen. A significant number of this group fled the unrest and returned to urban areas in Somaliland, where they also have difficulties finding jobs. In addition, further displacement has been created with the "border" conflict currently ongoing between Somaliland and Puntland.

3) Those displaced by natural disasters, such as drought and floods, and forced to flee to areas within Somaliland; some of these IDPs were living in south/central Somalia but had their clan

base in Somaliland and decided to move there during the conflict. Mostly nomads who were displaced by the severe droughts that have affected the region, they have no skills other than those associated with livestock raising but have lost their pastoral livelihoods. They are often hosted by their tribesmen in urban areas who provide sustenance and protection for them. In cases where their clansmen are unable to assist them, they resort to casual labor and begging. They maintain the hope that circumstances will allow them to return to their previous pastoral lifestyles. However, even though restoration of their livestock is a possibility, unless the massive degradation of traditional grazing pastures is remedied, this option would be unsustainable and is therefore unadvisable, according to both international and Somali specialists.

4)Returnees, while at one point almost all Somalilanders were refugees, some particularly vulnerable returnees have indeed found that even years after their return, reintegration is still a difficult challenge. So they find themselves in vulnerable settlement areas and, while not strictly IDPs, do need to be considered at risk and do need to be targeted for assistance at the same time as their IDP neighbors.

Puntland

1) Those who have their clan-base in Puntland but who have lived for 2 or 3 generations in South and Central Somalia where they own property and businesses. They fled to Puntland to escape the unrest in Somalia.

2) IDPs from South and Central Somalia who were displaced by conflict, the majority of whom live in Bosasso. Since they are not ethnic Puntlanders, they face discrimination in access to protection and basic services. It is unlikely that they will be able to integrate.

3) Conflict related IDPs “expelled” from Somaliland who originally fled South/Central Somalia to go to Somaliland but later decided to move towards Puntland under the threat of being expelled by the Somaliland authorities.

4) Nomads who have been displaced by the drought and flood and lost their pastoral livelihoods. They have no skills other than those associated with animal husbandry. They are often hosted by tribesmen in urban areas who provide sustenance and protection for them. In cases where their clansmen are unable to assist them, they resort to casual labor and begging.

5) Tsunami affected IDPs also constitute a vulnerable group. A considerable number are IDPs, since they have moved from their homes which were destroyed. Others, who have not moved, are destitute and desperately in need of assistance to rebuild their homes, communities and livelihoods. According to the Tsunami Assessment Report, the areas most affected by the Tsunami are Hafun, Bender Beyla, Dharin Raqas and Kulub, where substantial damage was caused to housing and infrastructure and where roughly 20% of the population is facing a humanitarian emergency. A further 40% of the affected population is facing an “income crisis”. Approximately 16,000 people will require sustained food assistance and/or cash.

6) Returnees As noted that there are more than a significant number of returnees in the urban settlements inhabited by IDPs, there must also be interventions under the broader returnee reintegration programmes that address the needs of the vulnerable populations living in the settlements. The observable fact of urbanization can be mitigated through many of the recommended interventions highlighted below—specifically focused on the development of rural and coastal areas and the use of Local Economic Development methodologies.

South/Center and Mogadishu

Conflict related IDPs from rural areas moving to urban centers where there is sense of security

1) IDPs in areas where there is certain stability (Adale in middle Shabelle) have been there for 15 years, absolute poverty but want to remain there.

2) IDPs in Mogadishu, from rural areas, scattered over 175 settlements, many of them public/government buildings (69%). Close to 30,000 families (times 8 members per family) equals approximately 240,000 IDPs, which accounts for around 25% of the total population of the city. According to the most recent studies (BY WHOM), 80% want to stay in Mogadishu.

These differentiating factors govern access not only to physical protection and support, but also access to basic services, income generation and other opportunities and resources that may be available.

[...]

Conclusions of various assessments carried out by UNHCR and UNDP:

In the so-called IDP settlements, a mixed population comprising of IDPs, returnees, poor local people, and in some cases even refugees and other foreigners are found.

All share same dire living conditions and immediate needs.

Thus, the categorization of IDPs as a distinct group becomes a thorny issue.

Targeting IDPs only would, in addition to be quite difficult, create major problems for them as the other groups would “resent” being left out of any assistance program.

Conditions in the settlements vary depending on whether they are “permanent” or “official” (land which has been allocated by the authorities) or “temporary” or “unofficial” (private land where IDPs rent a plot, occupation of public buildings/lands, etc.).

In the “permanent settlements” some basic infrastructure related to water, sanitation, schools, police stations and the like has been constructed with the support of UN agencies and some INGOs, providing some minimum conditions for living.

In the “temporary” settlements, on the contrary, little has been made available in terms of basic services and infrastructures, and the living conditions are thus much harsher.

The lack of this basic infrastructure is linked to the perception of the authorities and the land-owners that any “investment” in these settlements will make them “permanent”, and they want to leave open the possibility to have them vacated at any particular time.

Any intervention must take account of these realities.

On how the IDPs and returnees in the settlements view their own future, the vast majority of them replied that they would opt for “local integration” in terms of a “durable solution” to their plight, rather than return to their places of origin. This in spite of the terrible living conditions they face both in the “temporary” and the “permanent” settlements.

PATTERNS OF DISPLACEMENT

Overview

Causes and patterns of displacement (Special report, 2006)

Since the 1970s, Somalia has drifted from one emergency to another: civil and inter-state wars, fragmentation, repression and famine. The conflict, which has claimed up to half a million lives since 1991, has centred on control over power and resources, notably land, water, the livestock trade and aid. Warlords have deliberately displaced people, looted and destroyed food stocks, mined watering places, grazing lands and major trading roads, and destroyed medical and administrative infrastructures, in order to prevent people from other clans from sustaining a livelihood. At the height of fighting in 1992, up to two million people were internally displaced and another million had fled to neighbouring countries (UNICEF, 10 December 2003).

The most ravaged regions are the southern and central areas and the main ports of Mogadishu and Kismayo. Armed factions have fought to gain control over their supposed “native territories”, often forcing local minority groups and clans – many of them farmers – to either become subservient, or to leave. The farming minorities traditionally inhabiting the fertile riverine lands in the south have been worst affected by these practices. While they constitute only about one fifth of the Somali population, they account today for most of the displaced (UN, 18 November 2004, p.9).

Since the 1990s people have increasingly moved to the main towns such as Mogadishu, Kismayo, Bossaso or Hargeisa, in search of work, food, water and medical assistance. Today, urban migration is seen as an inextricable consequence of the conflict, and its consequences become apparent in the form of a dramatic rise in property prices, increased conflict over scarce resources like water, and high unemployment. Focused aid to pastoralist communities and the creation of livelihoods in areas of origin are intended to curb that trend and to create incentives for rural migration. At the same time, resettlement projects in Somaliland and Puntland have been designed to provide IDPs in urban areas with more permanent living conditions (OCHA, July 2005). Transparency in resolving property issues will be a central precondition to facilitating returns to all areas of origin, both urban and rural (IRIN, 2 August 2005; Interviews with UN representatives, Hargeisa, October 2005).

People tend to flee within their region of origin and seek protection where their clan is dominant. However, the protracted nature of conflict which has changed the ethnic map of certain areas, has forced many people to flee far away from their kin. Many reached the relatively secure areas of Somaliland and Puntland in northern Somalia, where they mingled with other indigent groups and waves of returning refugees. Occasional settlement surveys indicate much fluctuation among the population (OCHA, 20 June 2005). The vast majority of IDPs in Mogadishu fled drought and inter-clan fighting in rural areas of Lower and Middle Juba, Bay, Bakool and Lower Shabelle, Hiran and Middle Shabelle (UNICEF, October 2005).

General

IDPs movements (2007-2008)

- Approximately 200,000 IDP settle along the Mogadishu Afgooye road
- An estimated 600,000 displaced in 2007 move to Lower Shabelle, Galgadud, Mudug, and Middle Shabelle regions
- Puntland hosts about 70,000 IDPs
- Number of IDPs in Somaliland estimated at 40,000 in May 2007

UNOCHA Fact-Sheet; Afgooye January 2008; pg 1:

"Afgooye is a district in the Lower Shabelle region of South/Central Somalia, on the western boundary of Mogadishu. The district came to the limelight in February 2007 when intense fighting in Mogadishu sparked the movement of displaced persons into the area, and which continues today.

At the end of April 2007, intense fighting between Ethiopian/Transitional Federal Government (TFG) forces and anti-government elements triggered the movement of about 84,000 displaced people into various parts of Lower Shabelle. These included an estimated 40,000 who set up temporary settlements along the 30km Mogadishu/Afgooye Road. Majority of the displaced were women and children as many men remained behind in Mogadishu to protect assets and property."

To date, approximately 240,000 IDPs have moved to Lower Shabelle from Mogadishu since 2007. Of these, an estimated 200,000 are in more than 100 IDP settlements between Mogadishu and Afgooye on the 15-kilometer stretch of road."

UNOCHA Fact-Sheet; South-Central, December 2007; pg 2

"Since the beginning of 2007, anti-government elements continue to fight Ethiopian/TFG forces based in Mogadishu triggering massive movements of people in and out of the city. According to UNHCR's Population Movement Tracking, an estimated 600,000 people have been displaced from the capital to relatively calm areas of the city and with the vast going to other parts of the country such as Lower Shabelle, Galgadud, Mudug, and Middle Shabelle regions."

UNOCHA Fact-Sheet; Puntland, December 2007; p 1

"It is estimated that Puntland hosts up to 70,000 IDPs living in congested settlements often with returnees and other urban poor."

UNOCHA Fact-Sheet; Somaliland, May 2007; pg

"The number of IDPs in Somaliland is currently estimated at 40,000. Between January/March 2007, new IDP arrivals were reported during the fighting in Mogadishu thus exact numbers are unknown."

Southern IDPs often flee to Somaliland and Puntland (March 2006)

- Puntland's relative safety attracts many IDPs from the southern parts of Somalia

UNHCR, 1 March 2006

Bossaso is an unlikely El Dorado. It's a dusty town without a single paved street, not one neon sign, and scarcely a building over one storey. But it's largely peaceful and relatively secure, and that counts for a lot in Somalia. (Puntland has its own government and has proclaimed its autonomy to distinguish itself from lawless south and central Somalia, but it has not declared independence.)

So people are pouring into Bossaso – former refugees who have returned to their own country but not their own villages, Somalis who have given up on their homes in the south of the country, migrants from southern Somalia and Ethiopia passing through to catch smugglers' boats for Yemen and the Gulf States, and some Ethiopians who say they are fleeing persecution and need asylum.

"I would rather stay in Bossaso," says Raho Rasoni, a Somali woman who's been displaced from her home village for more than half her life. Two years ago she fled the country's violent capital with her husband and 10 children, afraid that it was inevitable one of them would die in the senseless gunfire on Mogadishu's lawless streets.

"One hundred percent, this is much better than Mogadishu," says Raho, welcoming visitors to the three shacks made of sticks lined with empty cement bags, which she shares with her family in Shabelle shanty settlement on the outskirts of Bossaso. "I pray God will not take me back to Mogadishu."

UN, May 2002, p.2

"At the same time, this reporting period has seen modest improvements in the security situation in some regions including "Somaliland", Bay, Bakool and Middle Shabelle. Cooperation of local authorities in these regions towards maintaining peace and stability has resulted in the increased ability of humanitarian agencies to expand programmes. The Northwest/"Somaliland" hosts the highest number of IDPs who tend to flee northwards to escape drought, poverty and conflict. It also hosts the largest number of refugee returnees. It is imperative that humanitarian and development work continue as "peace dividends" in these more peaceful parts of Somalia."

UNDP Somalia, 2001, p.58

"For a time during the war this process was reverse as people fled the main towns and moved to areas that their clans came from. Consequently, the populations of previously small regional towns such as Beletweyne, Galkaiyo, Qardo or Baidoa, and rural villages such as Jeriban, rose dramatically. The population of Bosasso is estimated to have increased from 10,000 to 60,000 since 1991, as people fled fighting in Mogadishu, the Lower Juba and the interriverine areas. [...]Smaller towns are experiencing similar trends, which present a challenge for urban planning. The concentration of aid agencies in urban centers such as Hargeisa, and a lack of clear policies by the administrations on investment in rural areas, exacerbate this trend."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Overview

Protection needs (Special report, 2006)

South and central Somalia

The internally displaced are among the most vulnerable people in Somalia. Many were deliberately displaced by warlords and militias aiming at gaining or maintaining control over resources and power and unwilling to recognise any rule of law. International protection standards as set forth in the UN Guiding Principles on Internal Displacement have proven difficult to implement during the years of state collapse. IDPs are not protected by local or de facto authorities, nor do they have access to due process of law in the absence of a properly functioning legal system (UNCHR, 30 November 2003).

Now that a Transitional Federal Government is in place, it is expected to take on responsibility for the Somali population and the protection of displaced citizens. This will be a long process, but at the time of writing, many observers and UN staff expressed cautious optimism as the TFG seemed committed to moving the state building process forward and to engaging in negotiations with local authorities where the situation permitted such contacts (OCHA, July 2005, IDP strategy; phone interview, Nairobi, December 2005).

Puntland

Surveys among IDPs in Bossaso and Garowe indicate that IDPs from south and central Somalia generally face no targeted discrimination from the authorities and often manage to integrate with the local population. They do, however, live in extremely poor conditions and have less access to facilities and economic opportunities than the local population, which in itself creates situations of vulnerability. This holds especially true in settlements removed from the towns. Resettlement programmes are intended to regularise the IDPs' situation and improve access to basic facilities (UNDP, May 2005; UNDP, June 2005; DRC, October 2005).

Somaliland

In line with their self-declared sovereignty, the Somaliland authorities had issued in 2003 a decree by which it would deport all "illegal immigrants" not of Somaliland origin (UNSC, 12 February 2004, para.35). People displaced from south and central Somalia are considered foreigners by the Somaliland authorities. Many of them preferred to leave Somaliland for Puntland in 2003 and 2004 (OCHA, 23 April 2004). While the Somaliland authorities never actually implemented the decree, they also never revoked it. Many IDPs continue living in fear of deportation and exposed to stigmatisation because they are often associated with the crimes of the Barre dictatorship (Interviews with NRC representative, Hargeisa, October 2005; Ibrahim, 15 August 2002, p.5).

In 2005, UN agencies started to engage in discussions with the Somaliland and Puntland authorities on creating situations of good practice which could then be integrated into legislation.

In Somaliland, the main issues discussed include land allocation for returnees and the revocation of the 2003 deportation decree.

Impact of clan structures

Clan structures in south and central Somalia are generally more complex and diverse than in the north. A degree of stability exists where majority clans or coalitions of clans rule over a certain area. This has been the case in Kismayo, where the Mareexaan and Habr Gedir clans have formed a duopoly of power within the Juba Valley Alliance.

Most IDPs in Somalia belong to ethnic minorities such as the Bantu, Bajuni and Galgala communities or minor clans with a low social status. As protection is granted through clan affiliation, displaced people from minority groups, not belonging to the clan system or seeking refuge far away from their clan-home area, are particularly exposed to serious human rights abuses including physical violence, rape, forced labour, evictions, land dispossession and theft.

Mogadishu, home to most of Somalia's IDPs, is divided by a "green line" separating the north and the south of the city, dominated by the Abgal and Habr Gedir clans respectively, with each part being fragmented into smaller fiefdoms controlled by seven to ten rivaling warlords fighting each other. As a result, IDPs and local residents are often caught in the cross-fire of violent conflicts and are forced to flee again, putting their lives at risk when trying to cross from one part of town to another. Galkayo in Puntland is also divided by a "green line" with IDPs living in that insecure dividing zone (Interview with MSF representative, Nairobi, October 2005)

IDP settlements in Mogadishu and other southern towns are often controlled by "black cats" or "gatekeepers", who sometimes offer some degree of security to settlement residents but in exchange extort money and food aid rations from IDPs. Some reportedly extorted as much as 75 per cent of aid destined for IDPs (ODI, 31 December 2003, p.13-4). If the inhabitants cannot pay, they are forced to work for the gatekeepers for free. Rape and forced labour at gunpoint are common occurrences in these IDP settlements (OCHA IDP Unit, 16 April 2004). There is cautious optimism that neighbourhood security guards and Islamic courts which take on the armed gangs in Mogadishu, in combination with the establishment of the Transitional Federal Government, will be able to somewhat reduce the high degree of instability (UNICEF, October 2005).

Displaced people from south and central Somalia in Hargeisa (Somaliland) were discriminated against by returnees originating from Somaliland who sometimes restricted their access to resources and services as they did not consider these "outsiders" as being entitled to assistance, according to observers (Interviews, Hargeisa, August 2004).

Women and children

Women and children constitute three quarters of the displaced population in Somalia and are particularly vulnerable (UNCU, 30 July 2002). Rape has been used frequently as a weapon of war by militias in retaliation or to humiliate a subjugated ethnic group (Menkhaus, UNHCR, August 2003; UNCU/OCHA, 1 August 2002).

A 2003 UNICEF study concludes that IDP women and girls are not adequately protected (UNICEF, 10 December 2003, p.29). They are at particular risk of rape when they walk long distances away from the settlements in search of water or firewood. At night, the lack of latrines forces them to walk to the margins of the settlements where they are at risk of attack. As a result of war, many households are headed by women.

Their small huts made of cloths with often no proper door offer no protection against assaults by men stealing belongings and raping women at gunpoint with impunity (Interviews, Bossaso, August 2004). Displaced women from minority groups or outside their clan home area pose no threat of retaliation let alone punishment. Women have often little recourse to systems of justice – whether through clan customary law (xeer) or Islamic law (sharia). They are also afraid to report sexual abuses because they are often not welcome in the areas where they have taken refuge and because of the social stigma associated with rape. Often, the matter is settled the traditional way through the intervention of an elder and subsequent compensation payment to the woman's family. Where a perpetrator is actually arrested, he is generally released later without charges. Therefore, violence against IDP women, while a regular occurrence, produces little concrete evidence and mostly goes unrecognised (UNIFEM, 22 November 2005). Local authorities in Hargeisa have repeatedly denied the existence of structural protection problems for IDPs and particularly IDP women, suggesting in one conversation that women may report having been raped to attract attention (Interview with local authorities, Hargeisa, October 2005).

Poor living conditions increase vulnerability

IDPs tend to have less access to employment, education and other facilities, and most of them are constrained to living in great poverty. Improving IDP protection also means addressing the clan-based discrimination in terms of living conditions and livelihoods.

Fires in IDP settlements are a recurrent reminder of the suffering and vulnerability of the displaced throughout Somalia. Every year, thousands of IDPs lose all their meagre belongings when fires break out in the overcrowded settlements, often in connection to women building cooking fires in close proximity or inside the huts made of cardboard, rags and sticks. Many cannot afford to rebuild their huts. As IDP settlements tend to become more crowded over the years, the risk of fires intensifies (Interviews, Hargeisa and Bossaso, October 2005; OCHA, 30 November 2005). The displaced continue to build their huts with cheap and highly inflammable materials. Fear of eviction, hopes of being resettled and the wish to return to their home areas once the security situation allows, have deterred many of them from investing in their housing (Interviews, Hargeisa and Bossaso, August 2004; Clark, June 2002, p.28).

Physical security

Protection risks for IDPs (October 2009)

- Women very vulnerable in camps
- Displaced faced further attacks on fleeing from fighting in Mogadishu
- Attackers motive is to steal
- Government forces and insurgents clash near IDP camps which in turn leads to further displacement
- Reported cases of attack on displaced people on the increase

Telegraph, 23 October 2009

"The wastelands on the edge of Galkayo, a large swathe of low thorn scrub where millions of plastic bags flutter in the breeze, are home to several camps.

In a camp called Mustaqbal, which translates as "future", Halima, a divorcee of 35, recounted from behind her veil how she fled shelling in Mogadishu, 430 miles to the south, with her five children.

"We are the breadwinners for our families. We have no husbands and our daily earnings are not enough to survive on," she said, gesticulating with henna-patterned hands.

Halima has what is known locally as a "shoulder shop": she hawks goods, in this case clothing, from door to door.

The huts consist of acacia branches twisted into a dome shape and covered with ragged cloths and rice sacks. A typical hut for a family is between two and four square metres.

Without men the women are constantly at risk of attack. They have to pay for guards at night.

"Not a week goes by when we don't have a rape case," said Hawa Adan Mohamed, a women's rights activist who runs vocational training schemes and manufacturing projects in Galkayo.

"If you go to the police there's no follow-up. They say that because of the clan issue they cannot touch the perpetrator..."

Human Rights Watch, August 2007, Vol. 19, No. 12(A); pages 93-94

"...After leaving their homes and surviving the intense fighting in the city, thousands of displaced people from Mogadishu suffered further attacks from criminal elements as they fled the city in March and April. Many of the fleeing civilians were attacked in an area between Marka and Jilib along the route to Kismayo. Others who took the road to Baidoa were attacked near Lego village. Those people who fled north used the main road that leaves Mogadishu towards the central regions, and Human Rights Watch heard many accounts of attacks on this group between Bulaburte and Beletweyne and between Beletweyne and Mataban.

The armed individuals and groups responsible for the attacks varied depending on the location, though the attacks often shared certain characteristics. The attackers appear to have been motivated by the opportunity to steal cash, goods, and other assets from unarmed civilians. In addition, in some areas there was a pattern of rape and sexual violence against women and girls.

Witnesses blamed bandits and other criminal elements for the attacks, not TFG or Ethiopian forces or the insurgency. However, even in locations like Marka and Afgoi that were under TFG control, the TFG failed to take steps to improve security for those in flight. Likewise, Ethiopian troops present in locations where attacks were occurring made no effort to intervene to stop or prevent attacks. For instance, many fleeing people were attacked near Lego village, which is close to Ballidogle airport, where the Ethiopian military has one of its biggest bases in Somalia.

Human Rights Watch interviewed dozens of individuals who told consistent accounts of armed men firing on them, stealing their possessions, and occasionally raping women and girls..."

IRIN, 4 December 2007

"Despite ongoing relief efforts, humanitarian agencies have yet to meet the needs of many internally displaced persons (IDPS) in Somalia, especially those who remain inaccessible, John Holmes, the UN Under-Secretary-General for Humanitarian Affairs, said.

Indiscriminate violence had continued in the capital, Mogadishu, malnutrition rates in IDP camps were alarming and family members were being separated as they fled the violence, Holmes told a news conference in the Kenyan capital, Nairobi, on 3 December, at the end of a day-long mission to Somalia.

Travelling along a 17km stretch of road between Afgoye and Mogadishu where at least 200,000 IDPs have sought refuge, Holmes visited IDP camps and a therapeutic feeding centre for malnourished children in a clinic run by a renowned Somali doctor.

"The displaced people I spoke to told me about the difficulties they underwent; those fleeing were arriving with nothing but a few clothes," Holmes said. "It is the civilians who are getting caught in the crossfire of this ongoing conflict. Violence, pressure and intimidation of all kinds are clearly getting worse."

Fighting between government forces and insurgents intensified in Mogadishu in early 2007 and has caused the deaths of hundreds of people and the displacement of an estimated 450,000 civilians."

IRIN, 10 January 2008

"Civil society organisations in Somalia have urged government-allied forces and insurgents to avoid clashing near camps for displaced civilians, saying such violence creates further displacement.

Hundreds of families were caught up in fierce fighting on 8 January between Ethiopian and government forces and insurgents in Dayniile district in the northwestern outskirts of the capital, Mogadishu.

The families that were earlier displaced from Mogadishu and sought refuge in Dayniile had to flee again, Asha Sha'ur Ugas, a senior member of Mogadishu's civil society groups, told IRIN.

"They fled further into the bush and are now even worse off than they were before," she said on 10 January. Some of the displaced had moved "three to four times already".

Not many aid agencies operate in the area due to the security situation in Mogadishu and its environs, making the plight of the displaced families more serious.

"Some of the displaced have begun returning to their previous camps but others have gone into the nearby village of Saqiirow," Ugas said. "We are appealing to both sides to stop using the camps as a battleground."

An estimated 13,000 families (78,000 people) are camped around the district, with little or no help coming in, according to Haji Omar Ali, the Dayniile district commissioner.

The fighting in Dayniile started when Ethiopian troops entered the area to flush out suspected insurgents, said a local source."

Amnesty International, 6 May 2008; pg 20

"Displaced persons from southern and central Somalia frequently reported being attacked on the road from Mogadishu to several destinations to the north and the southwest where they sought

safety. Unidentified robbers stole their money, food and other possessions; at multiple check points and road blocks, operated by all parties to the conflict, they were forced to pay to pass by. Those interviewed also reported incidents of men being beaten, and women being raped or “mishandled” while traveling. One of the most dangerous areas reported was between Jowhar and Beletweyne. Some displaced persons reported abuses on the road committed by clans linked to the TFG, while others reported abuses by clans in opposition.

One woman stated,

“On the road from Mogadishu, there are robbers who come and take your money or just fire directly at the buses. Sometimes, there are roadblocks where they stop and ask you for money. If you don’t stop, they will kill you. Other bandits will jump out and shoot straight at the car, killing the driver and robbing the occupants. They will rob them of everything, and drive away with the car, leaving the women and children abandoned on the road. Sometimes, bandits will threaten and rape women—even if they are pregnant or breast feeding. My own family members have experienced things like this.”

The number of attacks on displaced Somalis fleeing along roads leading out of Mogadishu was reportedly on the rise, as was the level of violence exhibited toward those already vulnerable, most notably gender-based violence including rape, as well as shootings, beatings and abductions. Amnesty International received reports of violations committed against IDPs on the road in Somalia by all parties to the conflict, as well as common bandits and clan militias. Sometimes perpetrators covered their faces to mask their identity, but often survivors believed that they could still identify them by language or appearance.”

Fires in IDP settlements are a recurring disturbing phenomenon in all of Somalia (June 2006)

- The international community acknowledges the problem of fires in IDP settlements, reacting to the most recent in a long row of incidents
- Efforts are undertaken to improve living conditions in IDP settlements, particularly in Hargeisa, Bossaso and Garowe, while the living conditions in south Somalia are not adequately addressed
- Fire in an IDP camp east of Bosaso, killed five displaced people, destroyed a thousand homes and left 1,200 homeless in July 2003
- IDPs who lived from begging had dispersed and were without assistance with sick children, lack of access to food, water and education
- The Acting Governor of Bosasso, reported that in the view of the civil society, IDPs in camps were considered as economic migrants who brought bad habits such as drug abuse
- It was decided to relocate the camps hosting about 2,800 families and provide the IDPs with land, electricity and water

IRIN, 10 May 2006

More than 5,000 internally displaced persons and returnees were left homeless when a fire gutted their camp in Somalia's northeastern port town of Bossaso late on Tuesday.

Witnesses said the fire broke out at around 7.30 p.m. at the Boqolka Buush camp and spread quickly because of strong winds.

"There were more than 5,300 people living in the camp, and virtually all the huts were destroyed by the fire. Firefighters, the security forces and residents were still trying to put out the fire three hours after it started," said Muuse Gelle, the governor of Bari region. He said at least 10 people were taken to hospital and treated for superficial burns. Dozens of people, mostly children, were missing.

"All camp residents scampered for safety when the fire started. They left their belongings and food rations behind, all of which were destroyed. Only a few have been accommodated by locals, but many others had no place to sleep," said local journalist Mohammed Deq.

No deaths have been reported as a result of the inferno. Bossaso district leaders and representatives from aid agencies including the United Nations World Food Programme (WFP), the UN refugee agency (UNHCR) and the UN Children's Fund (Unicef) were meeting in a bid to help those displaced by the blaze, said Moulid Haji Abdi of the Somali Broadcasting Corporation.

Boqolka Buush is the largest camp for internally displaced persons in Puntland, a self-declared autonomous region in northeastern Somalia. It was home to thousands of people who fled their homes during the civil strife that engulfed Somalia following the overthrow in 1991 of dictator Muhammad Siyad Barre. Former refugees who had returned to Somalia from neighbouring countries also lived at the camp.

A similar fire in June 2005 destroyed Buulo Eelaay camp in Bossaso, leaving more than 2,000 people homeless. In November 2005, at least three children were burnt to death when fire swept through another camp for the displaced on the outskirts of the Somali capital, Mogadishu.

UNSC, 20 June 2006, p.9:

50. More than 2,500 internally displaced persons and returnees were left homeless at Boqolka Buush settlement on 9 May 2006 when a fire gutted their settlement in Bossaso. Boqolka Buush is the largest settlement for internally displaced persons in "Puntland". Virtually all the huts were destroyed by the fire. This was just one of several fires in settlements for internally displaced persons in recent months.

International Community acknowledges the problem of fires in IDP settlements

"The outbreak of fire that swept through a settlement for internally displaced people (IDPs) in Mogadishu on 21 November continues to highlight the immense suffering and vulnerability of this group of the population in the war ravaged country.

'As unfortunate as it is, the fires signify and are a consequence of a deep rooted problem' said the Acting UN Humanitarian Coordinator for Somalia, Mr Elballa Hagona. 'The real issue is overcrowding on marginal land, the lack of economic opportunity and continuing human rights abuses. They (the internally displaced people) are often seen as outsiders - and are often not given the protection of host clans.'

Most IDPs pay rent for a small piece of land barely large enough to build their rudimentary shelters made of scavenged materials such as plastic sheets, metal scrap, plastic cartons and branches. Latrines are virtually non-existent (as most landlords do not allow them) and access to clean water remains a major challenge.

As a result of overcrowding and the flimsy nature of shelter, the risk of fires has intensified in IDP settlements over the years. Earlier this year 2,000 people were left homeless when fire gutted the Buul Eelaay camp close to Bossaso in the Puntland region of Somalia.

Being a resilient society, 'Somalis are now taking strides in trying to redress this situation' said Mr Elballa Hagona. 'We are witnessing enhanced partnership with the international community in

addressing both the immediate and underlying issues of IDP vulnerability including improved service delivery and planning for longer term resettlement and reintegration. Concrete actions in Hargeisa and Bossaso demonstrate that a lot can be done to give hope to these people who are after all, Somalis themselves.'

In the course of 2005, UN agencies, Non Government Organisations and Community Based Organizations have strengthened partnerships with Somali authorities in Hargeisa and Garowe, and are collaborating to implement a strategy for improved services and resettlement options for displaced persons. Much less has been undertaken in southern Somalia, largely due to the continuing constraints of insecurity and limited access. However, there is increased optimism that the presence of the Transitional Federal Government will make it possible for humanitarian agencies to deliver services to displaced people, and for IDPs to resettle in decent homes in communities with proper services."

IRIN, 23 November 2005

Fire in Mogadishu

"At least three children were burnt to death when flames swept through an internally displaced persons (IDP) camp on the outskirts of the Somali capital, Mogadishu, early this week. [...] The fire flattened more than 100 huts belonging to the IDPs and destroyed virtually all their belongings, including bedding, utensils and clothes. Some of the IDPs spent Monday night in the open and it was raining," a local witness said. Residents also lost their stocks of food.

[...]

The camp is home to between 500 and 600 people, according to Dainille district head Bashe Mohammed, who said neighbours were responding to his appeal for humanitarian assistance for those affected by the fire. 'People have responded well to our appeal. Since Monday night we have received both food and nonfood items, including cooked food, jerricans, bedding, mats and even cash from residents. The store in the mosque is almost full," observed Hashi Aralle, an imam at a mosque close to the camp.

[...]

On 26 June this year, at least 2,000 people were left homeless when fire gutted the Buul Eelaay camp for IDPs and returnees in the self-declared autonomous region of Puntland in northwestern Somalia."

UNCHR, 30 November 2003, paras.50, 59, 66, 69

Earlier fires throughout Somalia

"It is reported that on 9 July the Buulo Elay IDP camp east of Bosasso caught fire, causing the deaths of five persons and making 1,200 homeless. At the end of July, a second fire was also reported in the same camp. UNICEF and WFP had responded with assistance.

[...]

The expert visited the IDP camp called "New Hargeisa", which housed an estimated 300 families. Part of the camp had recently burnt, causing the death of one old woman and two children. The expert was told that most inhabitants earned a living through begging. At the time of the visit, women and children were visibly in the majority, and there was no apparent security.

[...]

The expert met with the Minister of Commerce, then serving as the "Acting Governor" of Bosasso. [...] He said that he had consulted with sheikhs, women's groups and others in the community on the problems posed by IDP camps, whose inhabitants were largely viewed as economic migrants who had brought with them bad habits such as drug abuse. It was decided to relocate the camps, estimated to house 2,800 families, and to provide land, electricity and water.

[...]

The expert visited the Buulo Elay IDP camp where a fire in July had destroyed many of the dwellings. It was reported that the former inhabitants had dispersed and were now without assistance. One of the IDPs stated that many of the children were sick, there was inadequate food and water, and that the only school was without teachers.”

OCHA, 31 October 2003, p.7

“Five people were killed when a fire broke out in the Buulo Elay IDP camp in Bosaso, Puntland in early July. An estimated one thousand dwellings were destroyed as well as the personal belongings of 1,200 families living in the camp. One half of the camp was destroyed by the fire and 600 families left homeless. The camp is home to *circa* 28,000 IDPs. Many of the IDPs in the camp are displaced from southern Somalia because of the insecurity. In 2002, The United Nations-appointed independent expert on Human Rights for Somalia condemned conditions in the camp as ‘sub-human’ and among the worst he had ever seen.”

IDPs who belong to minorities from south and central Somalia are discriminated in Somaliland (June 2006)

- IDPs from Digil, Mirigle, Bantu and minorities suffer social discrimination in Somaliland negatively affecting their standards of living and access to services
- Minority groups: Bantu, Bravenese, Rerhamar, Bajuni, Eyle, Galgala, Tumul, Yibir, Ogadenis, Rahanweyn and Gaboye), represent one third of the Somali population and have been forcibly displaced from valuable agricultural lands
- Most of the IDPs who fled to the north come from minority groups such as Rahaywen sub clan, Bantu, Ajuran, Jarso, Madhiban and Ashraf
- Southern IDPs in the north are considered as ‘criminals’
- IDPs from minority groups lack political representation, and are denied basic rights including access to humanitarian assistance
- Minorities are subject to human rights abuses, attacks, discrimination, exploitation, displacement and land dispossession by militias and bandits
- Some minorities like the Galgala have traditionally been prevented from buying animals and houses

Gashan, 15 June 2006:

Gashan Women Development Organization is humanitarian non-profit seeking organization working with the southern Somali IDPs, whom fled from south and central Somali, especially the adjacent of the two rivers, Shabelle and Juba.

They had displaced because the 15years long running civil war in south Somalia. The origin of these people are from clans of DIGIYO MIRIFLE, JAREER and other minor Somali Clans, whom had no much of political and economical access and were

very vulnerable at the time of the regime of siyad barre and after its collapse. They had fled to Somaliland to where they thought, as there was a peace, law and order and suitable life. As long as they had put their foots on here. Gashan had sent alarms to UN agencies and international NGOs and also Somaliland Government to deal with the vast need of the upcoming IDPs.

To gain better life and future for themselves and their uprising children was the prime objectives on which the IDPs had came and stayed in here. But the situation turned into different, all basic facilities of human life wasn't set into complete. They had no camps to protect them selves away

from outside attacks, schools, health facilities, they are subjected multiple human right violation, children have an access for neither formal nor informal education which resulted the children to become drug edicts and beg from the streets of the cities. Child labor become common in the areas of the IDPs because the low income of the IDPs parent to cope with the daily need of the family, (majority of female headed families), since per capita is not enough it forced the parents to sent the children as shoe shiners, water fetchers and also begging to contribute the per capita of the family. Malnutrition of children and pregnant mother is also common at the life of the southern Somali IDPs. The issue of shelter is another important factor which deserve to be publicly addressed, the IDPs had no enough and/or appropriate shelter to keep them selves away from sun, wind and rain, especially the children are more vulnerable to the affect environmental factors.

UN, 18 November 2004,p.9

“Minority clans make up approximately 20% of the population, living primarily in the southern riverine areas and towns, and fare poorly in terms of protection from human rights abuses and access to basic services including shelter, water, sanitation, health and education. The displaced population's lack of integration into local communities and continued discrimination have kept them in a cycle of poverty and repression, even though some may have been displaced for more than 10 years.”

OCHA, 22 June 2004

“The IDPs can be divided into three different groups; (1) The IDPs from the drought affected parts of Somaliland, (2) The major clans (Dir, Hawiye, Darood) from the South, and (3) Digil, Mirifle, Bantu, and other groups considered minorities.

The workshop members were of the opinion that the IDPs had equal rights as any Somalilander, such as right to education, employment, freedom of movement, etc. However, following further discussions it was acknowledged that there is a social discrimination against certain groups, many of them being IDPs of the third group. This discrimination affects the standard of living as it determines the degree of integration into Somaliland society. Their lack of economic access in turn affects their access to other rights, such as right to education, health, etc. The majority clans from the South are more integrated and hence are in a more favourable situation with greater access to basic needs.”

UN, 18 November 2003, p. 14

“But historically, minority groups in Somalia have suffered from greater levels of discrimination and exclusion, and thus are generally among the poorest of the poor. Cultural values that label them as inferior and not deserving of equal rights contribute to their low social, economic and political status. Insecurity, and sometimes forced displacement from valuable agricultural lands, has further impoverished this group. Comprised of an estimated two million people, or about one third of the Somali population, these groups include the Bantu, Bravenese, Rerhamar, Bajuni, Eyle, Galgala, Tumul, Yibir and Gaboye.”

UNCHR, 31 December 2002,p.15;19:

“Links were also made to the minority status of many IDPs, who were reported to be driven from their lands and disproportionately victimized by dominant groups following the outbreak of civil

war in 1991. It is further noted that refugees benefit from significantly more protection than IDPs insofar as refugees fall under the authority of UNHCR, and some authorities, such as in "Somaliland", recognize the rights of returnees. Other international instruments of protection are rendered ineffective, given the predominance of faction leaders and weak administrations.

[...]

It was especially noted that IDPs were viewed as criminals and a burden to society, which created tensions in the community and significant discrimination against them."

"The security of each Somali individual or clan is mainly influenced by the position of the individual person or clan in the Somali's social structure. Those who have no clan lineage and particularly the minority groups are the most vulnerable ones. Because of their position as minorities, the IDPs from the Bantu and Galgala suffer a wide range of human rights violations which include discrimination and economic exploitation by the Habrgedir and Marehan Militia who are now in control of the city. On the ground that they are affiliated with the Majerten, the Galgala suffered more than even the Bantu IDPs because they are considered as part of the enemy. As a consequence many Galagala were summarily executed during the conflicts between the Majerten and Habargedir, and between Majerten and Marehan in Kismayo. Because of fear of persecution, many Galagala IDPs fled Kismayo to Kenya, while others remained as IDPs.

[...]

The Bantu IDP, being ethnically different from the rest, suffer discrimination and exclusion from all social and economic activities in the city. Some Bantu elders in the camps claimed that they were denied even access to relief food. They claim that during General Morgan's period, before aid agencies ceased their humanitarian operation in Kismayo, relief food intended for them was diverted to other communities in Kismayo or elsewhere or to the markets for sale. They also claim that they are denied access to profitable work such carpentry, driving etc.

Since they are also less dominant in Kismaio town, the Ajuran, Ormala, Tuni and Werdai are also treated as the Bantu and Galgale IDPs. They are discriminated, marginalized and persecuted. In April 2001, a young Werdai IDP boy selling second hand cloths was stabbed to death by a Marehan man in a robber attack at the market. No any form of legal action against this has been taken by either the Marehan elders or local authorities.

[...]

Over 99% of the Bantu live in absolute poverty and have no access to their basic needs. Periodic attacks and robbery of food has further deteriorated the situation of Bantu and their IDPs.

[...]

The Galgala IDPs complain that their traditional symbol on their animals for identification was erased by the Abgal, with an intention to appropriate the Galgala livestock. The Galgala IDPs also suffer discrimination. They allegedly claim that some members of the IDP community were denied to buy animals and houses in Adale. They were also denied integration into the main population." (UNCU, 30 July 2002, pp.25-6;39; 47)

IDPs in Somalia are deliberate targets of gross violations of human rights and humanitarian law (March 2006)

- Over 500 houses including the market place have been burnt in Bula Hawa as a result of inter-clan conflict
- Somalis are deliberately displaced by warlords and militias aiming at gaining or maintaining control over resources
- Lack of competent central authority hampers implementation of international protection standards as set forth by the Guiding Principles on Internal displacement

- Yearly, about 1,000 IDPs try to leave Puntland to Yemen or Saudi Arabia on overcrowded boats which often capsize and this caused the death of 950 people in 2002
- Civilians continue to be deliberate targets of attacks as militias do not recognize any rule of law international or customary
- In the absence of a functioning state, murder, looting and destruction of property, child soldiering, kidnapping, discrimination against minorities, torture, arbitrary arrests without trial are recurrent and remain unchecked

UN OCHA, 21 March 2006:

Often IDPs remain displaced long even after the violence that caused their original displacement has abated. This can be due to deadlocks in peace talks or difficulties in repossessing properties or land. While remaining in situations of protracted displacement, many IDPs and other vulnerable populations face discrimination, restrictions on their freedom of movement and political rights, difficulties accessing basic social services as well as limited income earning opportunities. Unresolved displacement crises remain festering sources of instability.

ACT, 17 September 2004:

“Over 500 houses have been burnt, including the biggest market in Bula Hawa town. Household goods worth thousands of shillings have been burnt and far more looted.”

UN, 18 November 2003, p.11,13, 14

“Throughout the country, human rights violations remained endemic. These include murder, looting and destruction of property, child soldiering, kidnapping, discrimination against minorities, torture, unlawful arrest and detention, and denial of due process by local authorities.

[...]

In both the CAP Workshop for 2003 (August 2002) and 2004 (August 2003), as well as in numerous other reports [...], aid actors in Somalia have re-affirmed the three most vulnerable groups in Somalia to be IDPs, returnees and minorities. While many other categories of vulnerability have been identified, [...] these groups, which include women and children, qualify as the “most vulnerable of the vulnerable,” primarily due to having suffered from: 1) the loss of assets through exposure to a major shock, whether it be economic, climatic or conflict-related; 2) having little to no access to protection from clan affiliations, and 3) being exposed to multiple vulnerabilities or risks..”

UNCU, 30 July 2002, pp1;6

“For the protection of IDPs, there are international instruments and particularly the UN Guiding Principles, which specifically and comprehensively address the rights of IDPs. However, in Somalia, a collapsed state, with no competent central government, the key problem is implementation and enforcement of the international instruments and principles. The country is divided into armed fiefdoms ruled by clan militia that do not respect or adhere to the rule of law.

UN agencies and NGOs representing the main humanitarian actors, they have limited influence on clan militia and their leaders to respect the protection instruments. However, it yet appears that constructive engagement in collaboration with the civil society in the form of non-governmental organizations, as they can contribute invaluable experiences, local knowledge and insights, is only way forward to propomting local protection mechansims.”

McNamara, 10 February 2004

“Because of lack of basic services/status IDPs continue to leave Puntland (Bossaso) by risky boats to Yemen (about 1,000 per month currently) – trafficking and loss of life involved. Authorities very concerned to prevent these movements.”

UNCU/OCHA, 30 July 2002, p.3

“Although there are international instruments and UN guidelines for the protection of IDPs and civilians in conflict, in most parts of Somalia the implementation and enforcement of international laws and principles is weak as the conditions of a collapsed state prevail. These conditions also mean that IDPs are often not afforded protection by authorities in the absence of a functioning legal system in many areas. Thus, IDPs in Somalia are especially vulnerable as a result of their ambiguous status with the various *de facto* authorities across most of the country.”

UNCU, 30 July 2002, p.36-7

“Though the IDPs are not combatants, they are treated as enemies during conflicts. In Somalia clan militia do not fight decent wars. Because reasons for fighting as understood by many may not be only political, but span a broad spectrum from competition for economic and natural resources to attempted genocide or even unrestrained lawlessness. The warring militia are not prepared to acknowledge any existing rule be a traditional or an international one. For example article 3 of the 1948 Geneva Convention; article 38 of the CRC, and the Birimageydo customary law all protect non-combatants. However, they are less applicable in today’s conflicts in Somalia. To the clan militia, it is not relevant, whether the people they harm are IDPs or not. Since they belong to the same groups as the enemy, they are seen to have no rights to exist.”

Freedom of movement

IDPs face restricted movement and attacks (May 2008)

- Displaced people fleeing from Mogadishu face constant attacks and extortion

Amnesty International, 6 May 2008; pg 20

“Displaced persons from southern and central Somalia frequently reported being attacked on the road from Mogadishu to several destinations to the north and the southwest where they sought safety. Unidentified robbers stole their money, food and other possessions; at multiple check points and road blocks, operated by all parties to the conflict, they were forced to pay to pass by. Those interviewed also reported incidents of men being beaten, and women being raped or “mishandled” while traveling. One of the most dangerous areas reported was between Jowhar and Beletweyne. Some displaced persons reported abuses on the road committed by clans linked to the TFG, while others reported abuses by clans in opposition.

One woman stated,

“On the road from Mogadishu, there are robbers who come and take your money or just fire directly at the buses. Sometimes, there are roadblocks where they stop and ask you for money. If you don’t stop, they will kill you. Other bandits will jump out and shoot straight at the car, killing the driver and robbing the occupants. They will rob them of everything, and drive away with the

car, leaving the women and children abandoned on the road. Sometimes, bandits will threaten and rape women—even if they are pregnant or breast feeding. My own family members have experienced things like this."

The number of attacks on displaced Somalis fleeing along roads leading out of Mogadishu was reportedly on the rise, as was the level of violence exhibited toward those already vulnerable, most notably gender-based violence including rape, as well as shootings, beatings and abductions. Amnesty International received reports of violations committed against IDPs on the road in Somalia by all parties to the conflict, as well as common bandits and clan militias. Sometimes perpetrators covered their faces to mask their identity, but often survivors believed that they could still identify them by language or appearance."

SUBSISTENCE NEEDS

Overview

No access to most basic services and low nutritional status

IDPs' access to the most basic services was said to be close to non-existent in Somalia, one of the world's poorest countries. Intermittent fighting and drought mean that conditions in IDP settlements are more crowded than ever, with associated high levels of disease. Dehydration from diarrhoea is one of the main causes of death, reflecting the fact that close to 80 per cent of the Somali population have no access to safe water and nearly half have no access to sanitation (UN, 18 November 2004, p.22). Moreover, IDPs often have to pay to use latrines in addition to paying rent, in the insalubrious settlements where they live. As a result most camps are littered with garbage and faeces, increasing the incidence of disease.

In Gedo, women and girls displaced within and outside Belet Hawo town walked 10 km daily to fetch water, increasing the risk of being raped by militias. This is why most families lived on less than 10 litres of water per day per person, far below the minimum recommended of 15 litres (ACT, 17 September 2004). In a desert environment, water has been a highly coveted resource; as a result, most existing water sources have been destroyed or contaminated by warring factions in order to deprive the enemy; for example, out of 175 wells in Bay and Bakool, over 100 have been damaged beyond repair (UNICEF, 6 September 2000). When available, water is often sold at prices unaffordable to IDPs, who have no choice but to drink from contaminated streams. In Hargeisa IDPs paid three times as much as local residents for water (ACC/SCN 41, April 2003). Due to the lack of safe drinking water and sanitation in IDP camps, there are endemic outbreaks of cholera every dry season in the main towns like Mogadishu. In the rainy season, floods are common and about 1,000 displaced families in Mogadishu had their huts washed away and destroyed in June 2004 (OCHA, 9 July 2004).

At least 1.3 million people require emergency food assistance in Somalia until early 2005 (FEWS, 27 September 2004). The North is suffering a fourth consecutive year of drought in 2004, something not experienced since 1974. Many pastoralists have lost up to 90 per cent of their stocks and seen their livelihood and way of life destroyed, often irreversibly. Despite the comparative fertility of their lands, the southern and central regions are also seriously food insecure, mostly due to intermittent fighting and consecutive years of below normal rainfall. As concerns the nutritional status of the displaced, they are at three times greater risk of malnutrition than resident populations (ACC/SCN 39, 31 October 2002, p.16). IDP malnutrition rates at about 20 per cent in 2004 far exceeded the emergency threshold, particularly affecting Bosaso, the Juba riverine areas and Galgadud (FSAU, 13 October 2004). Malnutrition among displaced children in Mogadishu, where high insecurity impedes the conducting of regular assessments, peaked at 39 per cent in 2002, falling to 15 per cent in 2004 (FSAU, 31 May 2004; 31 August 2002). The southern riverine areas, once Somalia's breadbaskets, are the most affected by conflict-induced food insecurity, with Gedo registering the worst malnutrition rates at 34 per cent in 2004 mainly due to insecurity (ACT, 17 September 2004). In 2004, the riverine areas are suffering from unusual crop losses of between 60-80 per cent in some parts (FEWS, 27 September 2004). As a result, food prices reached record highs and with purchases being the main source of food for 99 per cent of IDPs, their nutritional intake seriously shrank (FSAU, 31 May 2004).

High malnutrition rates among IDPs not only reflect low purchasing power but also the poor quality of the intake of nutrients and early weaning practices. In Bosaso and Somaliland for example, two-thirds of displaced children were weaned before the age of six months, resulting in high incidence of diseases. This was often due to the fact that poor women, often the main bread-winners, engage in petty trade and casual work, at the expense of child care practices (FSAU, 31 May 2004).

Health services and infrastructures have been ravaged by war and only one-fifth of the Somali population have access to health care. Most hospitals lack equipment and drugs and there are fewer than 15 qualified doctors per million people (MSF, 9 December 2002). Nearly a quarter of Somali children die before they reach the age of five and mortality rates among displaced children are up to 60 per cent higher than among the local population (UNICEF, 10 December 2003; UN, 18 November 2003, p.12). The maternal mortality rate is one of the highest in the world due to the fact that most deliveries take place at home and the widespread practice of female genital mutilation increases the incidence of maternal mortality. The health status of IDPs is considered to be even worse as most of them lack access and/or cannot pay for medical care. For example, Bosaso has only one mother and child health centre for a population of over 120,000 people including about 28,000 IDPs (UN, 18 November 2003, p.153).

Humanitarian situation (Special report, 2006)

IDPs' access to the most basic services is close to non-existent in most parts of Somalia, one of the world's poorest countries. Intermittent fighting and drought mean that conditions in IDP settlements are more crowded than ever, with associated high levels of disease. Dehydration from diarrhoea is one of the main causes of death, reflecting the fact that close to 80 per cent of the Somali population have no access to safe water and nearly half have no access to sanitation (UN, 18 November 2004, p.22). Moreover, IDPs often have to pay to use latrines in addition to paying rent, in the insalubrious settlements where they live. As a result most settlements are littered with garbage and faeces, increasing the incidence of disease.

Health services and infrastructures have been ravaged by war and only a small minority of the Somali population have access to health care. Most hospitals lack equipment and drugs and there is a great lack of qualified doctors (MSF, 9 December 2002). Nearly a quarter of Somali children die before they reach the age of five and mortality rates among displaced children are up to 60 per cent higher than among the local population (UNICEF, 10 December 2003). The maternal mortality rate is one of the highest in the world due to the fact that most deliveries take place at home and the widespread practice of female genital mutilation increases health risks during birth. The health status of IDPs is considered to be even worse as most of them lack access or cannot pay for medical care. For example, in 2003, Bossaso only had one mother and child health centre for a population of over 120,000 people including about 28,000 IDPs (UN, 18 November 2003, p.153).

Given its scarcity, water is an extremely coveted resource. Many wells have been destroyed or polluted during the conflict in order to deprive the enemy from access to water. For example, out of 175 wells in Bay and Bakool, over 100 were damaged beyond repair (UNICEF, 6 September 2000). When available, water is often sold at prices unaffordable to IDPs, who have no choice but to drink from contaminated streams. The unavailability of close-by water sources, combined with situations of insecurity impact on the nutritional and health status of displaced populations. For example, in Belet Hawo, Gedo, families lived on less than 10 litres per person per day, about half of the recommended minimum requirement set by WHO, because of the risks faced by women and girls to be raped by militias (ACT, 17 September 2004).

Due to the lack of safe drinking water and sanitation in IDP settlements, there are endemic outbreaks of cholera every dry season in the main towns like Mogadishu. In addition to cholera, outbreaks of polio and measles have also been registered in south and central Somalia during 2005, and vaccination campaigns for all three diseases have been carried out (OCHA, November 2005). In the rainy season, floods are common in Mogadishu and the riverine valleys, displacing tens of thousands of people each year, many of them permanently.

South Somalia drought could lead to major humanitarian emergency

While by the end of 2005 sufficient rains for two consecutive seasons have somewhat stabilised the water and food situation in the north, enabling those pastoralists who had not yet moved to urban centres to begin re-stocking their herds and re-engaging in livestock trade, the south is considered at high risk of experiencing serious food shortages due to years of below-normal rainfall and intermittent fighting. In addition to significant crop losses, the number of livestock has decreased significantly (FSAU, November 2005). Some drought-related displacement towards urban centres was already reported at the end of 2005.

The nutritional status of internally displaced is of particular concern in the south, but also in Bossaso and Burao. IDP malnutrition rates at about 20 per cent in 2005 far exceeded the emergency threshold, particularly affecting Bossaso, the Juba riverine areas and Galgaduud (FSAU, October 2005).

Malnutrition among displaced children in Mogadishu, where high insecurity impedes the conducting of regular assessments, peaked at 39 per cent in 2002, falling to 15 per cent in 2004 (FSAU, 31 May 2004; 31 August 2002). The southern riverine areas, once Somalia's breadbasket, are the most affected by conflict-induced food insecurity, with Gedo registering the worst malnutrition rates at 34 per cent in 2004 mainly due to insecurity (ACT, 17 September 2004). Nutritional surveys conducted in Gedo in October 2005 revealed consistently high levels of malnutrition, while humanitarian access remained poor (FSAU, 29 November 2005).

Puntland

High malnutrition rates among IDPs not only reflect low purchasing power but also the poor quality of the intake of nutrients and early weaning practices. In Bossaso and Somaliland for example, two-thirds of displaced children were weaned before the age of six months, resulting in high incidence of diseases. This was often due to the fact that poor women, often the main bread-winners, engage in petty trade and casual work, at the expense of child care practices (FSAU, 31 May 2004).

Somaliland

Nutrition surveys carried out in Hargeisa in September 2005 showed a significant improvement of the nutritional status among IDPs in comparison to 2003, with the Global Acute Malnutrition Rate having dropped from 15.3 per cent to 7.6 per cent; 75 per cent of IDPs and returnees now have access to water and sanitation, compared to 45 per cent in 2003. This improvement is attributed to political stability, improved access to the vulnerable populations and a certain degree of income opportunity for IDPs and returnees (FSAU, October 2005; OCHA, October, 2005; OCHA Hargeisa IDP Working Group meeting, October 2005).

At the same time, malnutrition rates remained high Burao which in contrast to Hargeisa offers fewer economic opportunities to IDPs, and the social and clan ties, where they exist, seemed extremely strained (OCHA, November 2005).

Improved nutrition rates in Hargeisa do not necessarily go in parallel with better health status. During a visit to Daami settlement, it was suggested that while children generally receive enough

food, mothers often do not, as they give preference to feeding their children (Visit to Daami settlement, October 2005).

Food

Agencies fear food insecurity as a result of cut in donor funding and insecurity (November 2009)

- Up to half of Somali population in need of emergency food assistance
- Situation worsened by rising food prices, donor cuts, and insecurity
- displacement as a result of insecurity no longer confined to Mogadishu

VOA, 10 November 2009

"Aid groups are raising increasing alarm over a delay in international food aid towards famine-stricken Somalia. Concerns over the misdirection of aid to an Islamic militant group has threatened contributions from the United States and other Western donors.

The World Food Program says nearly half the Somali population is in need of emergency food relief.

Ongoing lawlessness, plus a brutal drought has left much of central and southern Somalia with a severe food deficit, threatening millions of Somalis. Meanwhile, the United Nations says thousands more have been displaced by El-Niño related flash floods in the past week. The international body warns more than 280,000 additional Somalis could flee into neighboring countries if humanitarian conditions do not improve.

But the WFP said Friday the food supply line is "effectively broken", as warehouses full of food intended for Somalia sit untouched on the Kenyan coast.

Anti-government forces, including the extremist group al-Shabab, control much of the worst-affected areas in the war-torn nation, and U.S. authorities became concerned that portions of the famine relief aid were being siphoned off by the rebel groups..."

IRIN, 6 November 2009

"Aid agencies operating in Somalia say they need more money but that some donors are holding back, concerned at where resources might end up in areas too dangerous for international staff.

"Some of the largest donors in 2008 have given much less or almost no support so far this year," said Kiki Gbeho, head of UN Office for the Coordination of Humanitarian Affairs (OCHA) for Somalia.

Large parts of Islamist rebel-dominated southern and central Somalia are classified as just below the worst "famine" level on a five-point scale used by food security analysts. Aid planners are considering where needy people might move, in or out of the country, and where aid could be delivered securely.

As of November 2009, total available humanitarian funding for Somalia stands at US\$571 million, compared with \$615 million in 2008 (according to the OCHA-managed Financial Tracking

System). However, this masks the fact that over \$215 million was carried over from unspent or late 2008 monies.

Gbeho warned that if the funding situation did not improve soon, it could have a negative impact on the whole region, as fleeing Somalis sought relief not only within safer areas of Somalia as but in neighbouring countries too..."

Los Angeles Times, 27 May 2008; pp1&7:

[...]

"About one-third of Somalia's population needs emergency food assistance. One million people have been displaced over the last 18 months, including 40,000 in April. Thousands have been killed in the fighting."

IRIN, 02 May 2008:

"Faced with a worsening humanitarian crisis, 3.5 million people - nearly half of Somalia's population may need food aid by the end of the year, a food security analysis has warned.

The Somali situation was deteriorating fast due to rapidly rising food prices, an abnormally harsh dry season and a delayed start to the main April-June rains, the Food Security Analysis Unit (FSAU) of the UN Food and Agriculture Organization (FAO) said in a statement.

"The number of people in need of assistance [right now] has increased to 2.6 million people... an increase of more than 40 percent since January," it said. "This increase is mainly due to the addition of 600,000 urban poor."

The number of pastoralists in crisis and of internally displaced persons fleeing clashes in Mogadishu, has also increased.

For the first time, the FSAU said, the 600,000 urban poor (20 percent of the total urban population) were facing an acute food and livelihood crisis and a humanitarian emergency, as they struggled to cope with rising food and basic commodity prices."

FSAU, 09 May 2008:

"The humanitarian situation in Somalia is deteriorating at an accelerated pace due to the combination of sky rocketing food prices, a significantly devalued Somali Shilling, a deepening drought following an abnormally harsh dry season and a delayed and poor start to the seasonal rains (mid-April to June), and increasing civil insecurity. As result the number of people in need of assistance has increased to 2.6 million people (35% of the total population), which is an increase of more than 40% since January '08 (up from 1.83 million).

This increase is mainly due to the addition of 600,000 urban poor, who now face conditions of Acute Food and

Livelihood Crisis (AFLC) and Humanitarian Emergency (HE). The number of internally displaced people from Mogadishu has also increased, by 21% since January and is now at 857,000 people, bringing the total number IDPS, both newly displaced IDPs from Mogadishu and the long-term protracted, to 1.1 million people. In addition, the drought is deepening in Bakool and Central regions, pushing a further 60,000 pastoralists into Acute Food and Livelihood Crisis.

FSAU and FEWSNET issue an early warning that the humanitarian situation is likely to continue to deteriorate and worsen in the coming months, especially for the urban poor and drought affected rural communities. In the worst case scenario, in which the *Gu* seasonal rains are

significantly below normal, the Somali Shilling continues to lose value, food prices increase further, and civil insecurity worsens, then we could be facing a situation whereby 3.5 million people, or half the total population of the country are in either Acute Food and Livelihood Crisis (AFLC) or Humanitarian Emergency (HE) by the end of the year." pp 1

[...]

Throughout southern and central Somalia, the security situation continues to deteriorate. Military movements, and the threat of fighting, are increasingly common, and this is restricting trade and other activities. Most recently there have been notable increases in military activity in the areas of Jowhar, Buloburti and Belet Weyne. In addition, the presence of Ethiopian troops raises tension.

Displacement as a result of insecurity is now affecting other parts of the country and is not only restricted to Mogadishu. Larger centers are commonly targeted and there is a noticeable increase in families moving out of urban centers into rural locations for security reasons. In addition, there have been reports that a significant number of people are looking beyond Somalia to seek refuge, most notably over land to Kenya and Ethiopia, and departing by sea for the Gulf States from Bossaso. According to the latest Protection Cluster estimates the current number of recent IDPs (since early 2007) has reached 857,000.

There is a significant increase in the number of insecurity epicenters . In addition to locations identified in January, there have been incidents in Garowe, Bulo Burti, Luuq, Sakow, Buale, Baidoa, Jowhar, Marka and Adale. In these areas the impact is felt through continued limited trade of goods, the restriction of movement by the population, increased transportation costs and increased prices. Humanitarian access and the cost of humanitarian response remains a serious concern especially in Central, Hiran and the Shabelles.

Resource based conflict and clan retaliation, especially in areas where there have been significant shortages in pasture and water, have also increased. Reports from Central, Hiran, and Shabelle regions indicate clashes have occurred over the last month, mostly over access to water. The deterioration of security, the increase in the number of the IDP caseload and the compounding effects of the increasing levels of rural and urban food insecurity has resulted in a revision of the phase classification for the country." pp 7

IDP camps run out of food (September 2009)

- Agencies using insecurity as an 'excuse' not to provide assistance for IDPs
- Insecurity led to suspension of food distribution in Jowhar IDP camps
- IDP food situation worsened by civil insecurity, macro-economic crisis, and weekend social support system

IRIN, 30 September 2009

"...Most of the IDP populations across the country live in appalling conditions, but the worst are those living around Mogadishu," Abdullahi Shirwa, of Civil Society in Action, an umbrella organization, told IRIN.

The needs of hundreds of thousands of IDPs across the country were not being met, Shirwa said, adding that IDPs around Mogadishu had the added problem of "total lack of security, and very little access to help".

He said the security issue had been used by agencies as the main reason for "little or no assistance to the IDPs. Unfortunately, insecurity has become a way of life in the country and can no longer be used as an excuse not to help people in desperate need."

Shirwa said there were traditional structures that can help in delivering aid to the displaced. "They can make use of elders, women's groups and religious leaders - but they don't."

He said more needed to be done to reach the displaced. "In my opinion, fewer than 20 percent of IDPs' needs are being met at the moment."

[...]

The UN Refugee Agency, UNHCR, estimates there are 896,000 IDPs in the Mogadishu-Afgoye corridor.

Roberta Russo, spokeswoman for UNHCR Somalia, told IRIN on 30 September "the needs of the people are not adequately addressed and a lot more should be done to assist the growing number of displaced.

"The main problem of humanitarian agencies is the lack of access to the needy population, due to the highly insecure environment."

The UN Office for the Coordination of Humanitarian Affairs (OCHA) Somalia told IRIN that access, security and funding were "considerable constraints". According to OCHA, eight aid workers had been killed this year alone.."

IRIN, 27 August 2009

"Two months after food deliveries to Somalia's south-central town of Jowhar were halted, several thousand internally displaced persons (IDPs) are facing a food crisis, sources said.

"The little food we were given in June is gone; we have had nothing in the last two months," Asiyo Jilibey, a community leader, told IRIN on 27 August. "I don't know what will happen next but if help does not arrive soon we are in trouble."

An estimated 9,000 IDP families (49,000 people), live mostly in seven camps in the town, 90km north of the capital, Mogadishu. The camps are Dayah, Kalagoye, Bada Cas, Baryare, Bulu Matuuni, Biyafo and Sheikh Omar Camp.

Jilibey said most of the IDPs had been in the camps since early 2007, when an upsurge in violence in Mogadishu sent hundreds of thousands of people fleeing, "but we had a new influx in May, June and early July [2009]".

Food distributions were stopped in Jowhar after June due to insecurity, according to the UN World Food Programme (WFP).

"We last distributed 124.46MT of assorted food assistance to 8,190 Jowhar IDPs in June," Mahamud Hassan "Guled", a spokesman for WFP Somalia, said. "But due to the insecurity, our local partner could not distribute the planned July food rations to the IDPs and the situation remains the same this month."

The Islamist al-Shabab has been in control of Jowhar since May 2009. The group raided and looted UN offices there. Jowhar was the UN Children's Fund (UNICEF) main hub for the southern and central regions of Somalia..."

"Increased civil insecurity is leading to distressed population movement both internally and cross-border. Since July '08, it is estimated that the number of IDPs has increased from 870,000 to 1,020,000 (UNHCR, January 9, '08), and there are more than 275,000 protracted IDPs (Table 3). Livelihood options are limited and food access has deteriorated for many IDPs, worsened by the ongoing macro-economic crisis. Social support systems are overburdened and there is limited access to basic services..."

[...]

pg60

"...Intensified fighting in Mogadishu has forced a large number of IDPs to different parts of the region, straining already limited resources of host communities. In addition, the Deyr '08/09 rainfall deficit, which resulted in another season of below average production, high input costs, prolonged hyperinflation, poor pasture and browse conditions and constant flooding have all contributed to the deterioration of food security in the Shabelle regions. The severity of the situation has forced most livelihoods to employ several different coping mechanisms including purchasing cheaper cereals, reducing the quantity and portion of meals and skipping meals. In addition, there is increased livestock and labour out-migration, food aid dependence and increased reliance upon collection and sale of bush products. Poor households also continue to rely upon social support in the form of loans/credit, cash gifts and remittances in order to cope..."

IRIN, 6 March 2009

"Three months after aid deliveries to the south Somali coastal town of Merka stopped, several thousand displaced people are facing a food and water crisis, sources said.

"What little food we had is gone; we have had no help in almost three months," Zeinab Sheikh Hassan told IRIN. "We are in a desperate situation and we need help now."

An estimated 9,000 internally displaced persons (IDPs) live mostly in four camps in the town's outskirts, 100km south of the capital, Mogadishu. The camps are Buur Bishaaro, Dajuma, Shiirkole and Bufow.

Most of the IDPs, community leader Abdulkadir Mohamed said, have been in the camps since early 2007, when an upsurge of violence in Mogadishu sent hundreds of thousands of people fleeing.

The UN World Food Programme (WFP) halted general distributions in Merka in January because of insecurity – except for some distributions to hospitals and supplementary feeding that has continued..."

IDPs surviving on less than one meal a day (March 2008)

- IDPs lives threatened by food shortages

IRIN, 11 March 2008:

"Large numbers of families displaced by violence in Somalia are surviving on less than one meal a day and spending large proportions of their meagre income buying drinking water, according to the International Committee of the Red Cross (ICRC).

"We visited places where the displaced population had little food and scarcely any possessions," Daniel Gagnon, an ICRC relief specialist in Somalia said in a statement issued on 11 March. "People told us that the shelling in [the capital] Mogadishu was so intense they had fled, leaving even the most necessary personal items behind."

An ICRC assessment team reported that shortages of food and water had become life-threatening in the regions of Mudug, Galgadud, Nugaal and Bakool, among others.

Voicing concern over the worsening humanitarian situation in the country, the ICRC said while the media's attention had been riveted on other crises in Africa in recent weeks, the protracted armed conflict in Somalia had intensified, not only in Mogadishu but in other parts of the country."

IDPs face food shortages, high food prices (March 2008)

- Insecurity in Mogadishu and surrounding areas displacing people
- IDP families surviving on less than a meal a day
- Shortages of food and water
- Host communities severely stressed
- IDPs and host communities faced with record high food and nonfood prices

IRIN, 11 March 2008

Large numbers of families displaced by violence in Somalia are surviving on less than one meal a day and small proportions of their meagre income buying drinking water, according to the International Committee of the Red Cross.

"We visited places where the displaced population had little food and scarcely any possessions," Daniel Gagnon, a specialist in Somalia said in a statement issued on 11 March. "People told us that the shelling in [the capital] Mogadishu was so intense they had fled, leaving even the most necessary personal items behind."

An ICRC assessment team reported that shortages of food and water had become life-threatening in the regions of Mudug, Galgadud, Nugaal and Bakool, among others."

FSAU, 21 December 2007, pp3

"The ongoing and increasing levels of tension and instability, both within Mogadishu, as well as the surrounding areas, have resulted in another wave of population displacement in the last month. The current best estimate of the number of people who have left Mogadishu since February is now roughly 670,000. The main destinations of these recent IDPs are the Shabelle and central regions, as well as Hiran region. The IDP breakdown by regions is Lower and Middle Shabelle 295,000 representing 45% of the displaced, Mudug and Galgadud 173,000 or 26%, Hiran 47,000 or 8%, and Bay 37,000 or 6%, and the remainder in Juba, Bakool, Gedo, the northeast and the northwest.

The recent displacement of another 70,000 people only in the last two weeks will lead to further deteriorations in the humanitarian situation in many areas. The impacts will be felt particularly in centres such as Afgoye, Merka and Jowhar in the Shabelles, as well as in the central regions where host communities are already severely stressed and faced with water shortages. People fleeing the fighting in Mogadishu are leaving behind their livelihoods and livelihood assets. The presence of IDPs is increasing pressure on host communities, placing additional burdens on water and health infrastructure, increasing the demand for rental properties, and increasing

competition for available employment opportunities. In addition, IDPs and host communities have to cope with record high food and nonfood prices."

Health

UNICEF postpone health programme activities due to insecurity (August 2009)

- UNICEF compound attacked and looted
- UNICEF suspends life saving programme intervention in an area with the most need
- Insecurity an obstacle to accessing healthcare

UNICEF, 20 May 2009

"UNICEF Somalia strongly condemns the looting and destruction of humanitarian supplies and its facilities in Jowhar by militiamen and is deeply distressed by the impact this will have on UNICEF's programmes supporting the children and women of Somalia, said Christian Balslev-Olesen, UNICEF Representative to Somalia, in a statement today.

After Al Shabaab took over control of Jowhar town – located 90 kilometers north of Mogadishu - on 17th May 2009, reports were received of militiamen raiding UNICEF's compound and undertaking large scale looting and destruction of humanitarian supplies, assets and equipments.

The cold chain (vaccine storage) equipment has been affected, destroying thousands of doses of measles, polio and other vaccines that were meant to prevent serious diseases among Somali children. Supplies of food for the prevention and treatment of acute malnutrition among children were also looted.

The loss and damage of crucial supplies for children and women and the break in the supply chain will have an enormous impact on UNICEF's overall programmes as Jowhar is the main hub for the provision of services and supplies to the whole of the Central and Southern regions of Somalia.

Our programmes, including provision of immunization against preventable diseases like measles and polio, operation of feeding centres for acutely malnourished children, implementation of Child Health Days Campaign, as well as provision of safe drinking water will be severely hampered, putting the lives of vulnerable children and their communities at risk.

Over 50,000 severely malnourished children who are in life-threatening conditions, in addition to over 85,000 moderately malnourished children, will be affected by the break in nutritional and medical supplies. This incident will disrupt the implementation of the second round of the Child Health Days Campaign targeting to reach over 1.2 million under-five children and 840,000 women with a high-impact life-saving health and nutritional package..."

UNICEF, 13 August 2009

"UNICEF today had to postpone the dispatch of hundreds of tons of life-saving nutritional supplies for the prevention and treatment of acute malnutrition in over 85,000 Somali children in certain areas in central and southern regions of Somalia due to increased hostility towards aid organisations.

Distribution of malaria prevention bed-nets to more than 100,000 women and children has also been disrupted. In areas of these regions, where security assurances are provided, UNICEF continues to deliver its humanitarian supplies and programmes.

"We need concrete assurances from local authorities for the safe delivery and storage of supplies to ensure that we can carry out programmes for the survival of Somali children and women," said Ms Rozanne Chorlton, UNICEF Representative to Somalia. "We hope these assurances will be forthcoming very soon so that we can continue our operations at a level that matches the needs of children and women and prevent the deaths that will otherwise certainly occur."

UNICEF's compound in Jowhar (Central Somalia) - the main hub for its programme operations in Central South Somalia - was taken over on 17 May 2009 where large volumes of life-saving humanitarian supplies and communications equipment were destroyed or taken from the compound and from UNICEF warehouses in Jowhar. In addition, reports indicate that UNICEF emergency supplies stored in a partner's warehouse in Jammame (Lower Juba region) were taken in early August..."

IRIN, 11 March 2008:

[...]

"For a large number of the displaced living a few kilometres away from Mogadishu, healthcare was a major concern, ICRC said.

"In the districts of Afgoy and Dayniile, people are worried about an increase in illnesses and disease, such as diarrhoea and malaria," Rodolfo Rossi, the ICRC's medical delegate for Somalia, said. "And there is nowhere for them to go for appropriate treatment because it's too dangerous in Mogadishu."

The ICRC assisted the Somali Red Crescent Society in opening three temporary clinics in Afgoy and one in Dayniile in January and February. It said the high number of weapon-related injuries in Mogadishu remained a source of great concern."

Humanitarian agencies overwhelmed by demand for health services; appeal for urgent funding (Feb 2008)

- Global acute malnutrition rates in Somalia above the WHO emergency threshold levels
- High rates of malnutrition among IDP children
- Fighting malnutrition includes information campaigns on the importance of micronutrients
- UNICEF trains local NGOs to improve nutrition information in areas difficult to access

UNICEF, 12 February 2008:

"With close to two million Somalis in need of emergency humanitarian assistance and shortfalls in funding against the agency's 2008 Appeal, UNICEF Representative to Somalia, Christian Balslev Olesen, warned of dire consequences for the country's children.

[...]

Global acute malnutrition rates in Somalia are above the WHO emergency threshold levels and when combined with low immunisation coverage, poor hygiene and lack of access to safe water, the impact on the children of Somalia is devastating.

[...]

Somali children and women face one of the most difficult battles for survival and development in the world. Last year (2007) was an exceedingly difficult one for them, coming after a year of floods and drought (2006) and turning into a year of violence, insecurity and uncertainty, with unprecedented number of families fleeing Mogadishu.

Generous humanitarian funding in 2007 allowed UNICEF to ensure enough nutrition supplies until April 2008 as well as to purchase lifesaving oral rehydration salts and chlorine to treat water sources in areas that typically see cholera outbreaks.

"Due to the generous backing of donors, our partners were able to treat 80,000 children under five for acute malnutrition last year, " said Balslev Olesen. " Over 450,000 children were vaccinated against measles, approximately 230,000 flood victims and suspected cholera cases were provided increased access to safe drinking water, thus averting a major outbreak of cholera and enable 26,000 displaced children in the central-south to continue their education."

Reuters, 31 January 2008:

"Camp life is taking its toll on young children, the most vulnerable among the more than 200,000 displaced Somalis who have settled along the road between Mogadishu and Afgoye after hostilities escalated in October and November of last year. International Medical Corps runs three mobile clinics in the area since the exodus from Mogadishu turned the 30 kilometer long so-called 'Afgoye corridor' into the fastest growing displacement camp in the world.

[...]

Humanitarian assistance from international and local NGOs is reaching the displaced, but the demand is overwhelming. Families sleep up to ten people in huts made from sticks, plastic sheets, and bits of fabric that hardly protect them from the sun and the dust. Although latrines have been built, more than 40 people share one outhouse, in some places even more. Lack of hygiene and clean water have made diarrhea cases among young children increase dramatically. "We are concerned about this trend because diarrhea causes severe malnourishment and we are seeing more and more of it with young children," says Mweki."

IMC's mobile clinics see approximately 8,000 patients in the displacement camps per month. The number of diarrhea cases among children under five has increased from 165 in November to 670 in December of last year alone. Health staff observe similar trends for anemia, respiratory infections, and intestinal parasites.

Every child coming to the clinics has her height and weight measured. The most severe cases of malnutrition like Xaawo will be referred to inpatient facilities run by partner organizations. Within the next few weeks IMC will provide nutritional support to children with severe malnutrition who can still be treated as outpatients.

IMC, 23 November 2007:

"The demand for health care, nutrition, and sanitation support is overwhelming and outstrips our current response. We are glad that we are able to assist many of the displaced, but we need to scale up our response to reach out to more people," says Dr. Patrick Mweki, IMC Country Director for Somalia. IMC is poised to scale up existing services and to initiate nutrition interventions, water and sanitation services, and the distribution of non-food items in the area, in coordination with local NGOs and the international humanitarian community.

International Medical Corps teams have found that there are no latrines for the majority of the displaced, increasing the risk of a cholera outbreak. Children, in particular, suffer from acute watery diarrhea, malaria, malnutrition, and respiratory tract infections. IMC is the only international NGO providing mobile health assistance in Afgoye, but the health needs of the rapidly growing community far outstrip the current capacities.

Most of those arriving in Afgoye already have experienced displacement two or more times. Amina Omar's husband was killed when their camp in Mogadishu was destroyed by mortars and missiles. The young widow fled to Afgoye with her eight month old son and Asha, her four year old daughter, who contracted pneumonia on the road. After seeing the health workers at one of IMC's mobile clinics, the girl is currently stable. "I am not intending to go back to Mogadishu," says Amina, "and even if I do, I do not know where to start. Here in Afgoye life is hard but we can at least survive."

UNICEF, 7 July 2006, p.3:

"A one week public awareness campaign was conducted in Hargeisa focusing on control of micronutrient deficiencies including Iron Deficiency Anaemia and Vitamin A Deficiency. In Central/Southern Somalia, 8,200

pregnant women attending ante-natal care at maternal and child health centres were provided with iron-cum-folic acid supplementation. About 6,200 children benefited from supplementary feeding in Central/Southern Somalia. About 1,500 severely malnourished children were admitted for rehabilitation

at therapeutic feeding centres. Currently UNICEF is airlifting emergency nutrition supplies from Nairobi to the Wajid and other accessible location in the South as a measure of improved emergency

supplies provision. Capacity building for national NGOs has also been embarked as a strategy to providing nutrition rehabilitation to the inaccessible regions Southern Somalia.

[...]

Training: Somali Red Crescent Society trained 200 people from flood-affected communities in Middle Shabelle region in sanitation and hygiene. A five-day training course in hygiene and sanitation was carried out for teachers in Puntland."

WFP, 30 April 2006, p.13

"4.3 High levels of malnutrition, particularly in drought stricken districts, demands supplementary feeding centres. Several centres are currently operating under UNICEF supervision. Malnourished children receive fortified foods from the centres and their families are supplied with general food aid from WFP. This ensures supplementary foods are administered to the needy children instead of being consumed by their poor and often desperate families. This arrangement practiced in SouthCentral should be implemented in the North. Children with severe malnutrition are admitted to Therapeutic centres where lifesaving nutrients are administered. With such a high prevalence of malnutrition, both Supplementary and Therapeutic feeding centres must be established in each district with malnutrition rates above 10%. Currently there are 14 supplementary and 11 therapeutic feeding centres in SouthCentral (UNICEF). Regular monitoring would allow

estimates of expansion. The overall objective should be to provide supplementary feeding and therapeutic feeding to mitigate and eliminate suffering from malnutrition.

Micronutrient Deficiency

4.4 In middle and lower Shabelle riverine areas agriculture produces more food than in food insecure areas such as Guldood region. Yet anaemia incidence is higher due to malaria and hookworm infestations (UNICEF Jowhar). Somalis are fond drinkers of tea, which being an iron inhibitor, contributes to ferro-ferric deficiency. Iodised salt is nonexistent in diets. Most salts used are either locally harvested or imported from Ethiopia. This leads to iodine deficiency. Incredibly neither WFP nor UNICEF foods include

iodine. The National Immunization Days (twice a year) are used to administer micronutrient deficiencies and these programs must be continued. Each livelihood group interviewed,

complained of micronutrient deficiency disorders. Most empirical data, gathered from MCH centres, is not representative of the general population."

Worrying mortality rates among IDP children [Dec 2007]

- Mortality rate among IDP children twice above the global rate

IRIN, 11 December 2007

[...]

"Médecins Sans Frontières (MSF), which has been providing medical and nutritional care to internally displaced persons (IDPs) around the town of Afgoye, about 30km south of Mogadishu, said mortality rates were worrying.

"In Hawa Abdi, a camp with 32,000 IDPs, where humanitarian assistance is available, the mortality rate of children under five is more than twice the emergency threshold - 4.2 deaths per 10,000 people per day, and the global mortality rate is 2.3 deaths per 10,000 people per day. Diarrhoea is the main cause of death in the camp (over 50 percent) due to disastrous sanitary conditions," according to an MSF statement."

Vast majority of IDPs have no access to health facilities and have alarming health status (June 2006)

- Mortality rates among displaced children up to 60% higher than other conflict-affected populations
- Diarrhea-related diseases, respiratory infections and malaria account for more than half of all child deaths (2002)
- Somalia has among the highest incidence of TB in the world
- MSF estimates there are 15 qualified doctors per 1million people in Somalia (2002)
- Under five mortality rates of 210 per 1000 and maternal mortality rates at 1,600 per 100,000, amongst the highest in the world
- Lack of safe water and sanitation leads to cholera outbreaks every dry season
- Somalis totally dependent on the international community for delivery of health care as no medical staff have been trained since 1991
- Most IDPs cannot afford to pay for health care and drugs

Somalia JNA, June 2006, p. 34:

"Health care concerns include poor quality and limited coverage, inadequate and old assets, and a shortage of technical and management skills. Health care costs are higher in *South-Central* regions, as well as provision being more uneven and unstable.

Lack of access to health facilities, safe drinking water and adequate sanitation facilities for a large segment of the population contributes to the high morbidity and mortality rates, and to low life expectancy World Bank, *Socio-Economic Survey*, 2002.. Although private health care is available in urban areas, IDPs and returnees are typically unable to pay for medical consultation and drugs, and resort to alternative methods. A recent survey in Bosaso, *Puntland*, reports that 88% of IDP/returnee households seek help from traditional healers and/or traditional birth attendants Draft assessment of Internally Displaced Persons/Returnees in Bossasso, Puntland, May 2005.. Even where suitable facilities are offered freely, lack of attendance is attributed to chronic insecurity and population movement. "

UNDP, June 2005, p.13

"The study [on vulnerable groups in Garowe] noted that most of the communities have strong traditional beliefs which they resort to when a family member is sick. In addition, the study concluded that due to economic hardships, vulnerable populations rely on cheap and traditional methods of treatment. There is an urgent need to improve on incomes of the communities complimented with the provision of better medical facilities. The study recommends the provision of a fully functional MCH for these communities, within their locality. An important observation from the study is the distance by which the communities travel to access a health facility. As reflected in Table 10, majority (87,0%) of the households travel for more than 2 kilometers to reach a health source."

UNDP, May 2005, p.15:

"The study [on IDPs and returnees in Bossaso] recommends the need to intensify accessibility to provision of public health and education. In addition, the table above reflects that IDPs and returnees do not have access to better services. Group discussions revealed that majority of the population travel between 1-2 kilometres while the rest travel for less than 1 kilometre to reach a health facility. Because of the poor sanitation, personal hygiene and weak accessibility to health services and education, IDPs and returnees are at high risk of diseases thus immediate attention is required from both the government and the international community to provide adequate health facilities. A proportion of 9,0% of the households indicated that they have household members with learning disabilities. They usually rely on traditional healers to solve the problems. In addition, 7,0% of the households indicated that there are household members with physical disabilities"

General health indicators:

"Mortality rates for internally displaced children can be as much as 60% higher than the others in the same conflict-affected areas." (UNICEF, 10 December 2003, Introduction)

"Diarrhoea-related diseases, respiratory infections and malaria continued to account for more than half of all child deaths in the country, while neonatal tetanus and other birth-related problems also contributed significantly to infant mortality. Although measles immunisation levels reached 40% in 2001, a record high for Somalia, outbreaks continued to cause many deaths in 2002. Polio also remained a continuing threat to children. Somalia remains amongst the countries with the highest incidence of tuberculosis in the world and meningitis and cholera are endemic in most areas." (UN, November 2002, p.4)

WHO, 23 April 2002:

"As of 22 April, WHO has received reports of 1 191 cases and 63 deaths (CFR, 5.3 %) in the country since the outbreak began on the 12 March 2002. Five out of 18 regions are affected: Banadir (Mogadishu), Lower Shabelle (Merka), Middle Shabelle (Jilib and Haranka), Hiraa (Belet Weyne) and Bari (Bossaso) regions."

MSF, 9 December 2002:

Health care system:

"Lack of adequate health care is one of the biggest problems facing Somalis today. A staggering 78% of the population has no access to health services. MSF has estimated that the country has less than 15 qualified doctors per million people. Trained healthcare professionals fled the country to safety during the 1990s. The only nurse training facilities are in Bosasso and Hargeisa - and the few health workers that remain tend to be based in the more secure urban centres. The whole of eastern Sanag, for instance, had only one doctor in 2001.

[...]

MSF's OPD/MCH in North Mogadishu is in the Yaqshid area, near the Green Line. Many of the patients here are Internally Displaced Persons (IDPs) from elsewhere in the country. It sees an astonishing 250-300 consultations per day, around 95,000 consultations per year - a reflection of the absence of other, affordable health services in the area. Immunisation of under-fives, pregnant women and women of child-bearing age (16-45), plus monitoring the nutritional status of under-5s, are automatically part of any treatment given to women and infants."

IGAD/UNDP/UNHCR, June 2002, p. 19:

"The health status of the Somali population as a whole reflects the years of crisis the country has experienced. Average life expectancy is 47 years of age, one of the lowest in the world, while the maternal and infant mortality rates are considered to be the highest in the world, with an infant under five mortality rate of 210 per 1000. [...]

The Somali health care system was never very comprehensive. Before the civil war health services and health professionals were concentrated in Mogadishu. The conflict destroyed most facilities, disrupted the supply of medicines, ended all training and broke down the already poor management systems, which were based on government ministries and departments. As with other social services, the health care system in Northwest and Northeast Somalia has had to be developed from scratch.

At the moment, the health system takes a more curative than preventive approach to health problems. To date there has been little emphasis on health education, and consequently the health system is characterised by late treatment seeking behaviour among patients, low prioritisation of health care expenditure among communities and a general reluctance to pay for health services at public facilities."

Water and sanitation

IDPs in desperate need of water (March 2008)

- IDPs in desperate need of water
- Shortages of food and water have become life threatening in some regions
- Water shortage expected to worsen across the country

IRIN, 25 February 2008

[...]

"Kabe, a father of three, said: "We are appealing to the world to come to the rescue of our children, before it is too late for many of them."

At least 6,000 families (about 36,000 people) most of them children, fled the violence in Mogadishu and have settled in the area, according to Jawahir Ilmi, who coordinates the 12 IDP camps in the area.

Kabe said the world seemed unconcerned about their plight and the demonstration was "a way to remind them of our problems". Some of the children were malnourished and needed "immediate assistance".

[...]

He said the displaced were in desperate need of water, shelter material and food for children, adding that "the water problem was most acute".

ICRC, 11 March 2008

[...]

"Large numbers of destitute families staying in drought-hit regions after fleeing Mogadishu over the past year are having to survive on less than one meal a day and spend more of their meagre income to buy drinking water, the agency said.

"In recent weeks, the humanitarian situation in Somalia has continued to deteriorate alarmingly," ICRC spokeswoman Anna Schaaf told a news briefing in Geneva.

Shortages of food and water have become "life-threatening in the regions of Mudug, Galgadud, Nugaal and Bakool", the ICRC said in a statement, referring mainly to areas in central Somalia as well as Bakool along the Ethiopian border."

IMC, 26 March 2008

[...]

"There are now more than one million internally displaced people in Somalia. Intense conflict in Mogadishu continues to force an average of 20,000 people from their homes each month. This, combined with record high food prices, hyperinflation and drought in large parts of the country is leaving communities struggling to survive. Extreme water and food shortages are expected to worsen across the country if the seasonal rains (April - June) fail as they are predicted to."

Shelter and non-food items

IDPs live in squalid conditions along Mogadishu-Afgoye road (Feb 2008)

- IDPs fleeing conflict settle in areas without adequate shelter
- An estimated 700,000 people fled Mogadishu in 2007
- About 300,000 IDPs took refuge along the Mogadishu-Afgoye road living in overcrowded and precarious shelters

Allafrica.com, 13 July 2008,

"...More than 300,000 people fled Mogadishu to escape fighting between Islamist forces and allied Somali-Ethiopian troops, turning parts of the city into a ghost town.

Many of those who escaped are living in squalid camps with very little food or water, or adequate shelter."

MSF, 26 June 2008

[...] "In 2007 an estimated 700,000 persons fled Mogadishu. Every month, thousands of people continue to abandon their homes to escape from the continuous violence taking place in the capital. Along the road between Mogadishu and Afgoye, more than 250,000 displaced people have built precarious shelters in crowded settlements lacking the most essential services"

OCHA Fact Sheet, Afgoye January 2008

"Afgoye is a district in the Lower Shabelle region of South/Central Somalia, on the western boundary of Mogadishu. The district came to the limelight in February 2007 when intense fighting in Mogadishu sparked the movement of displaced persons into the area, and which continues today.

At the end of April 2007, intense fighting between Ethiopian/Transitional Federal Government (TFG) forces and anti-government elements triggered the movement of about 84,000 displaced people into various parts of Lower Shabelle. These included an estimated 40,000 who set up temporary settlements along the 30km Mogadishu/Afgoye Road. Majority of the displaced were women and children as many men remained behind in Mogadishu to protect assets and property

Living conditions of IDPs in the area were described as deplorable. The few houses to rent became unaffordable. Some 80% of new IDPs did not have access to potable water. People found temporary settlements wherever they could find open space with others "renting" trees as shelter.

Intense fighting broke out once again during the last week of October displacing additional 264,000 people from early November to end December. It is estimated that a total of 600,000 people have fled Mogadishu in 2007.

To date, approximately 240,000 IDPs have moved to Lower Shabelle from Mogadishu since 2007. Of these, an estimated 200,000 are in more than 100 IDP settlements between Mogadishu and Afgoye on the 15-kilometer stretch of road..."

UNHCR, 20 November 2008

"The UN refugee agency announced on Tuesday that by its latest estimates the number of displaced people inside Somalia have risen sharply to a staggering one million.

UNHCR said 60 percent of the population, or some 600,000 people, are believed to have fled from the lawless Somali capital, Mogadishu, since February – nearly 200,000 of them in the past two weeks alone, leaving entire neighbourhoods in the volatile capital empty. The numbers of displaced this year are in addition to some 400,000 people displaced by previous fighting.

The displacement figures, updated regularly through information received from a network of local partners and compiled by UNHCR, show the number of internally displaced people (IDPs) in Mogadishu has risen to an estimated 43,000 people from 33,000 a week ago.

Many IDPs in Mogadishu are sheltering with relatives and friends, sharing cramped rooms with several other families. An increasing number of IDPs have also headed to makeshift settlements in Mogadishu neighbourhoods such as Madina/Wadajir, Dayniile, Waaberi, Dharkenley and Kaaran.

At the same time, estimates on the number of IDPs living in desperate conditions in more than 60 makeshift settlements along the 30-kilometre stretch of road linking Mogadishu westwards to the town of Afgooye have shot up to nearly 200,000 – a 50 percent increase in the past two weeks alone.

"We are also beginning to see new arrivals from Mogadishu in areas as far afield as Afmadow, Sakow, Jilib and Bu'uale in the Juba valley about 350 km south-west of Mogadishu. There are an estimated 8,500 IDPs in these areas," UNHCR spokesperson, Jennifer Pagonis, said in Geneva on Tuesday.

A UN inter-agency mission to Afgooye on Saturday echoed reports of dire living conditions for IDPs living in the area. Families continue to lack proper shelter and consistently resort to using any material – mostly plastic bags and rags – to patch up their flimsy dome-shaped shelters.

ACCESS TO EDUCATION

Overview

Access to education (Special report, 2006)

Primary school enrolment in Somalia is the lowest in the world. Only one in five children attend primary school and girls constitute roughly one third of the pupils (IRIN, 15 December 2005). Yet education remains one of the most chronically under-funded sectors in the Somalia UN Consolidated Appeal (CAP). The requirements for 2005 were only 27 per cent met at the end of the year (OCHA, 30 November 2005).

In 2005, UNICEF started a countrywide back-to-school campaign which includes the training of teachers and parents' sensibilisation of the importance of education (UNICEF, 2005). The task is enormous: in 2004, fewer than 40 per cent of teachers had gone through training and many had not completed their own primary education (UN, 18 November 2004, p.10). Whole generations of Somalis have little to no formal education and few marketable skills and, as a result, are more likely to be drawn into militia activities, which in turn poses serious threats to the security and socio-economic development of the country. As a result of the war, the entire public school system has collapsed, virtually all school facilities have been either completely or partially destroyed and when classroom space is scarce, local children are given priority over displaced children.

Most schools now are private and many parents cannot afford school fees or prefer their children, especially the girls, to help them generate income by working or begging. Another issue is the reluctance of aid organisations to build permanent education facilities in temporary IDP settlements, particularly in Bossaso. Local authorities in Somaliland and Puntland are equally reluctant to build any kind of infrastructure in the settlements in order to avoid these settlements to become permanent. A recently developed solution is the setting up of mobile infrastructure, like school tents.

General

Access to education worst in the world (March 2008)

BBC, 26 March 2008

[...]

"In terms of child malnutrition, access to education, lack of access to clean water and sanitation facilities, indeed the situation in Somalia is the worst in the world... to be a child in Somalia today is something that means lots of suffering and a grim future."

Poor access to education in Puntland (Dec 2007)

- Access to education limited, especially for the girl child

OCHA Puntland Fact Sheet, December 2007; pg 2

[...]

"Access to education is limited in Puntland. Out of a total number of 451 schools in Puntland, 51,051 boys and 34,222 girls are currently enrolled in primary school education. According to UNICEF (August 2007), an estimated 60% of children of school age (including nomadic population) in Puntland are still out of school."

Low school enrolment may foster extremism (Sep 2006)

Reuters, 21 September 2006:

"Somalia has become the "optimum" breeding ground for extremism because of levels of malnutrition and education that are among the worst in the world, the United Nations children's agency said.

Child malnutrition rates of 15-20 percent have become normal for Somalia while 10 percent or more would be regarded as an emergency elsewhere, UNICEF Somalia representative Christian Balslev-Olesen said in an interview. Despite recent improvements, only 22 percent of children have access to primary school education in the Horn of Africa nation, which has been without government since 1991. "That's the worst ever case you can find globally," he said.

The international community has largely forgotten Somalia and aid has dropped off since a failed international intervention in the early 1990s, he said. "If you have generations and generations out of school...we should not be surprised there is extremism in Somalia... "We have left Somalia alone for so long. There has been a space and a vacuum, it is the optimum breeding ground for all kinds of extremism."

Washington and others fear Somalia could be a haven for al Qaeda-linked extremists, a belief fuelled by the slaying of an Italian nun in Mogadishu and an assassination attempt against President Abdullahi Yusuf in recent days.

Those events forced the cancellation of a visit to Somalia this week by top U.N. officials and make humanitarian efforts more difficult, Balslev-Olesen said late on Wednesday.

"The nun's death means the ICU (Islamic Courts Union) is not fully in control" of its area, he said. "And the bombing in Baidoa is an indication that the TFG (Transitional Federal Government) is not in control of Baidoa."

Somalis want education over peace

What most Somalis crave is an education for their children and decent healthcare. "A survey asked 7,000 people around the whole country 'what is the No. 1 priority for you?'," he said.

"It was quite clear that number one was education, two was health, three was water sanitation. Issues like law and order, peace and reconciliation, the kind of issues high on the global agenda, they were not mentioned."

Run by warlords for 15 years since the ouster of dictator Mohamed Siad Barre, Somalia has received only a fraction of the international aid of other developing nations.

"It's a forgotten country. It was simply too difficult, too dangerous. We all had very traumatic experiences after the withdrawal of peacekeepers at the start of the 90s," he said.

"No other country has seen that kind of total disappearance of the international community. There is no one with an embassy there... no one present."

Balslev-Olesen said that at an initial meeting in Mogadishu, Islamist leaders said their priority was education. UNICEF was hoping to work with them, particularly to improve the quality of education in Koranic schools.

With only a third of Somalia's few schoolchildren being girls, a priority would be to ensure education was equally accessible to both sexes, he said.

The Islamists' relative pacification of Mogadishu has given cause for hope, he said. A recent polio vaccination campaign, for example, reached 90 percent of the capital's children, compared to 70 percent under the warlords."

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Overview

Self-reliance (Special report, 2006)

During the past 13 years of protracted war, Somalis have survived in one of the most extreme environments, lacking a functioning government or basic services, and with hardly any foreign assistance. Recurrent droughts and war have stretched their coping mechanisms to the limit. The fine socio-economic balance between pastoral and agricultural communities based on the exchange of milk and meat products against cereals and the right to seasonally graze on fallow lands has been disrupted. Somalia is the third poorest country in the world, with nearly half of the population living in extreme poverty, on less than \$1 per day (UNDP, 2004; UNHCR, 30 January 2004). Many displaced, particularly in the more food-insecure south, live in even poorer conditions as they have lost their properties and productive assets, are in a difficult social and political environment and lack relief food and assistance from aid agencies.

In Somalia, the division of labour is established along identity. Each clan or ethnic group has specific skills adapted to their survival needs and environment. For example, the Galgala are traditionally wood craftsmen, other minority groups like the Tumal are blacksmiths, the Midgan work with hides. The Bantu are traditionally small-scale farmers whose agricultural skills are not transferable to the urban environment where they flee; the same applies to displaced agro-pastoralists and nomads. These groups usually work in labour-intensive, low-skill and low-income jobs. The men find irregular employment as porters, builders, latrine diggers or casual labourers and the women work as domestic servants, garbage collectors, cleaners or petty traders (UNCU, 30 July 2002, p.26).

The labour market is also regulated by clan and sub-clan networks. IDPs lack the capital and the social connections to have access to trade and market activities which tend to be dominated by sub-clans of the Isaaq in Somaliland and by Majerteen and other Harti sub-clans in Puntland. In both regions, IDPs competing with local labour or begging on the streets have been subject to harassments, and as “guests” they do not enjoy full legal rights and protection (Menkhaus, UNHCR, August 2003, p.24).

Not all IDPs from the south living in Somaliland have access to gainful employment. But they have a reputation of working hard and of bringing valuable skills. In Hargeisa, they are therefore appreciated for carrying out menial work in the official or the lucrative informal economy. Nevertheless, begging is now also seen in Hargeisa, supporting southern IDPs, and people referred to as “seasonal beggars”: Somalilanders who temporarily move to towns each year to bridge the dry season (Interviews, NRC, Hargeisa, October 2005). In other, less economically active parts of Somaliland, the vast majority of displaced households depended exclusively on begging, which is often barely sufficient to provide one meal per day (UNCU, 30 July 2002, pp.15, 27). Most IDPs are unable to access any assistance or business opportunities, unlike returnees, who are able to get small income-generating loans from international organisations, and draw support from their clan and the council of elders. It is unlikely that displaced southerners in Somaliland will be socially and economically integrated, according to analysts, due to the fact that they are associated with the crimes of the Barre regime committed against the people of Somaliland, and are easily identifiable by their different speech and look to northerners (Ibrahim F., 15 August 2002).

IDPs in Puntland also tend to be viewed as undesirables by the local community. But they appear not to be actively discriminated against and have more job opportunities, especially in Bossaso where the building sector is booming and port activity is thriving. Many displaced families in Bossaso earn between two and four dollars a day, over twice what most displaced earn in Hargeisa. Casual work and small-scale trade are the main sources of income for 80 per cent of displaced households in Bossaso (UNDP, May 2005, p.21, 22). The average income of IDPs in Garowe is one dollar a day per family (UNDP, June 2005).

In Juba (southern Somalia), nearly half of the displaced households surveyed had to borrow money or food. As women in IDP settlements outnumber men, they are the primary breadwinners, often at the expense of childcare. But since the income earned is very limited, displaced households depend heavily on the income of children who often beg or shine shoes instead of attending school (UNICEF, 10 December 2003).

Food shortages and poor health and water access in southern and central Somalia undermined host communities' ability to cope with the influx of displaced people. The price of imported food remained high as transport costs between Mogadishu and the Juba Valley were inflated by militia checkpoints extorting illegal taxes (FEWS, 8 May 2003).

As food shortages become more acute, targeted food distribution can become problematic. For example, the World Food Programme (WFP) was unable to distribute food aid to IDPs in Dinsor district (Bay region), because the local communities complained that given the poor *Deyr* performance (October to December rainy season), selective food aid could contribute to tensions between IDPs and the host communities and cause further displacements (OCHA, November 2005).

Unlike returnees and local residents, IDPs generally do not benefit from remittances or from kin support, therefore they are more vulnerable to economic shocks. The prolonged and continued livestock import ban imposed by the Gulf States since 2000, as well as the closure of the Al-Barakaat Bank (main channel for remittances), following accusations of abetting terrorism in 2002, seriously reduced income levels and purchasing power. The ban seriously affects nomadic pastoralists, who comprise nearly half of the population, and particularly north-western and north-eastern Somalia, where the livestock trade is the main source of livelihood for 70 per cent of the population (UN, 18 November 2003, p.10; IGAD/UNDP/UNHCR, June 2002, p.17). At the same time, opportunities for casual labour at ports like Bossaso are beginning to become saturated. Consequently, competition over scarce jobs had increased sharply between urban residents and the displaced from the south who have been increasingly excluded and discriminated against. This discrimination affects IDPs' standard of living as it determines the degree of access to income, which in turn affects their access to food, health and education.

Self-reliance

Lack of opportunities drive IDP children into joining militias (November 2009)

Reliefweb, 11 November 2009

"An increasing number of Somali children are being recruited by the Somali armed forces or militia groups in violation of international law, civil society activists have warned.

"Children as young as 8-9 are joining militias in greater numbers than at any time in the past," Abdinoor Ilmi of Peaceline, a Somali civil society group, told IRIN on 11 October: "They are being recruited at an alarming rate."

Many of the children are joining because their families are unable to provide for them, he said. "For many it is a question of survival and a sense of belonging. Simply put, they get to eat and find some sort of support network."

Hodan Hussein, a displaced mother of four, told IRIN that her 16- and 14- year-old boys had left the camp they were living in without her knowledge, and she was not sure what they were doing.

"There are days that I cannot find enough for one meal," she said. "The boys simply left to find something better. I could not stop them."

Katherine Grant, a child protection specialist in Nairobi with the UN Children's Fund (UNICEF) Somalia, said violations of children's rights to protection were widespread, though exact figures were not available.

"UNICEF is appalled by the scale of the recruitment of children into militias by all sides," she said.

There are 700,000-800,000 displaced children, roughly half of the total number of displaced, according to UNICEF. Most, Ilmi said, were lucky if they got one meal a day. Peaceline conducted a survey this week in camps in the Afgooye corridor, near Mogadishu..."

IDPs' survival strategies eroded by years of protracted conflict and drought (Nov 2009)

- Conflict and uncertainty have negative impact on livelihoods
- IDPs' skill often not useful in locations of displacement
- Internal displacement and the collapse of the industry and service sectors has led to 65% urban unemployment rates which sustains large number of militias
- Women are often the main income-earner through the sale of khat (amphetamine) or charcoal, but they are exploited and receive lower wages than men
- Several surveys found that the majority of IDPs have low-skill, low-income and labour intensive jobs as porters, domestic workers and casual labourers
- A significantly higher percentage of children from IDP families work compared to the general population
- Coping mechanisms like clearing land for agriculture, producing charcoal, overgrazing and selling timber cause long-term environmental damages
- Most IDPs receive hardly any assistance, have no economic safety net as they do not benefit from the clan system nor from remittances
- Seasonal migration to key towns, adoption into another clan area and exogamy are traditional survival strategies
- Mutual trust and reciprocity between kin considerably eroded by protracted conflicts

IRIN, 23 November 2009

[...]

"These people have been displaced numerous times; the little they get from WFP [UN World Food Programme] is not enough and most used to supplement it by doing casual work in the town," Haji Abdulle Mumin, an elder, said.

However, Mumin said since there was little business going on in the town, "no one is hiring". He said poor residents who depended on petty trade were also suffering.

He added that many of the displaced lacked adequate food and there were reports of children dying of malnutrition.

The frequent changes of administrations have compounded the suffering, he said. "You cannot settle and start a business when you don't know what tomorrow will bring."

Peter Smerdon, spokesman for WFP, told IRIN: "Changes in administration do complicate our work. We have to build new operating contacts, so that everybody knows what we are doing, every time a new one comes."

But, he added, "Security permitting, we will be carrying out food distribution in November in Beletweyne".

Mumino Haji, an IDP and mother of six, said two of her children were suffering from malnutrition. "They cannot go anywhere or move; all I have to give them is maize and porridge and I got that only yesterday," she said.

She said the last food distribution before 22 November was three months ago.

Haji said she used to find work in town but now there was no work. "Even those who used to hire us have no jobs. Many shops and businesses have closed," she added...

OCHA, 30 November 2005

"Based on the 2005 FAO/FSAU post Gu assessment, an estimated 922,000 people are in need of immediate assistance in Somalia, of which 200,000 people are in a state of Humanitarian Emergency, 345,000 people face an Acute Livelihood Crisis, and a further 370-400,000 are the most vulnerable IDPs as identified by UN OCHA. IDPs survive largely on casual labour (73% in Bossasso, 47% in Garowe) and to a lesser extent on small-scale trade (9% Bossasso, 21% Garowe). Women are mostly engaged in casual labour as housemaids, selling wares, clothes, and tea, garbage collection and washing clothes. Most IDPs who claim to have any skills say they are farmers (Bossasso 42%, Garowe 25%), a skill they cannot put to use in their present locations. As a result, IDPs earn a meagre living that does not allow them to meet their most basic needs. Consequently child labour is common to supplement the family income. Returnees from exile, most of them bereft of the assets with which they used to make a living before the flight, find it difficult to establish sustainable livelihoods once back home.

The response strategy of the Food Security and Livelihoods sector builds on lessons learnt in 2005 and has been geographically designed and prioritised in conjunction with the FAO/FSAU Food Security Phase Classification⁵. The strategy aims at preventing families in "Alert" phase to fall to "Acute Livelihood Crisis" and "Humanitarian Emergency" phases, while it should allow families in "Humanitarian Emergency" to resume livelihoods and productive assets and return progressively to the "Alert" phase.

Finally and recognising the key role of Food Security and Livelihoods in rural development, the response strategy (coordinated by UN OCHA) is tailored to facilitate linkages and complementarity between the Common Humanitarian Action Plan (CAP Appeal) and the Reconstruction and Development Programme (JNA exercise).

UNDP, 2003, p.20, 24

"Therefore, unemployment rates amount to 65.5 percent for urban, 40.7 percent for non-urban and 47.4 percent for the country.

[...]

The proportion of population living in extreme poverty is estimated as 43.2 percent for Somalia."

UN, 18 November 2003, p.10

"This deterioration of traditional livelihoods has forced thousands of Somalis to migrate to urban areas -- such as Mogadishu, Bosasso, Galkayo and Hargiesa -- as they can no longer meet the minimal requirements for life in their home communities. [...] Nearly 60% of the urban population aged 15 to 64 are unemployed. [...] Unemployment among youth, who were aged 10-30 and have come of age since the time of complete state collapse, is a particularly disturbing problem. This generation has little to no formal education, few marketable skills, and in many cases has been drawn into militia activities and/or criminality. As such, they pose a serious challenge to peace and security as well as the economic and social development of Somalia."

UNICEF, 10 December 2003, pp.19,22,25

"In the displacement camp sample, 56% of the adults and 84% of the children reported poverty as the overriding problem of being disadvantaged, while 50% of the children reported feeling excluded from society. This corresponds with UNCU\UN-OCHA's 2002 findings that IDPs constitute nearly half of all Somalis living in a state of chronic humanitarian need.

[...]

This is supported by UNCU\UN-OCHA, which found that the majority of IDPs and returnees are porters, domestic workers or casual labourers. They reported that this type of employment actually perpetuates their poverty, as it is "labour intensive, low-skill and low-income" employment. As employment is so difficult to secure, there is often a great deal of competition between urban residents and the displaced population.

[...]

Children and adults living in displacement 'camps' reported a significantly greater dependence upon the income of children for their family upkeep. This suggests that a higher number of children living in the camps are working."

UNICEF, 30 October 2003

"IDPs generally largely remain marginalized. Most of the families have an average of 5-7 persons and in many of these, women are usually the income-earners through, for instance, petty businesses like the sale of *khat* (an amphetamine leaf akin to the coca leaf of South Africa widely chewed in Somalia) or charcoal. Some men could be employed as artisans or labourers in the relatively booming construction business. Some have small kiosks where they sell items."

UNCU, 30 July 2002, p.35

"For their survival, the IDPs generate their income from marginal jobs. They work as farm attendants or domestic servants. Others collect firewood or deliver water. Yet women do not get equal treatment as men, though they perform the same job as men. Women's wages do not exceed 5000 So Sh per day. Reports also indicate that some women work only for some subsistence food, and are economically exploited. They have no bargaining power to demand an increase of wages to improve their livelihoods. Harsh living conditions and their need to survive forces them to accept any wage and any work conditions, even if it exposes them to economic exploitation.

In addition to poor wages, inflation and steady increase of the prices of food jeopardizes the purchasing power of IDPs. For example, the price of one KG of maize, the main diet of IDPs had increased from So.sh 2000 to 6000 between May and July 2001. The IDPs can not therefore afford to buy the quantity of food they require. Most of the IDPs eat once in 24 hours a day."

UNDP Somalia 2001, p.69

"Individuals and communities are not passive in the face of crisis but employ their intimate knowledge of the environment, or political and social relations to mitigate against disaster. Rural households in Somalia employ a range of strategies to cope and survive in adverse circumstances. These can include the diversification of livelihood strategies through seasonal migration for employment, changes to dietary intake, or the consumption of famine foods. Often, short-term needs are sacrificed to preserve a 'way of life'. In the absence of any formal welfare system in Somalia, resource transfers and wealth redistribution within social networks play a crucial role in the maintenance of livelihoods. Anecdotal evidence suggests that in hard times, resources from their informal networks can account for 25-60% of the household economy.

[...]

Migration is an integral part of people's way of life in Somalia and a critical coping strategy in a risk-prone environment. Migration, resettlement through adoption into another clan (*sheegata*), and exogamous marriage mean that most Somali families have relatives spread among clans and over a large geographic area. These personal and familial networks can be drawn on in times of conflict or drought. Mobility as a coping strategy of pastoralists during drought, however, is restricted during conflict.

[...]

Clan affiliation and identity with a place of residence form a system for the sharing and co-operative control of resources at the level of the household, compound, community and clan. [...] [T]raditional obligations of assistance, in the form of food, shelter, and water [...]. Other forms of assistance include the loan of farmland (*hoorsi*) or a milking animal (*irmaansi*), the restocking of livestock, and the giving of credit (*amaa*). Helping those most in need is also integral to the religious and social obligations of Islam, institutionalised in the giving of *zakat* and *sadaqa*.

[...]

When widespread conflict and drought are combined, as witnessed in the early 1990s, the impact can be devastating. Production systems and household and community assets, such as food stores and livestock, were destroyed or looted and the option of migration was constrained by warring militia. As livelihood options were reduced and trust within and between clans was eroded, the geographical spread of the resource networks contracted, and families retreated to the reassuring safety of the community."

UNDP Somalia, 2001, p.70

"Prior to the war it was estimated that over 70% of the population lived in the rural areas and that over 75% of the population drew their livelihoods from pastoralism and agriculture, 16% from the

service sector and 8.4% from the industry [...]. There are currently no estimates of levels of income or employment for various sectors [...]. The rural sector continues to provide the main source of employment of people, but due to massive internal and external displacement and the collapse of industry and public services a high percentage of the population in both rural and urban areas is unemployed or underemployed. Lack of employment opportunities is one factor sustaining the large numbers of militia, particularly in the urban areas of southern Somalia."

UNDP 18 June 2001

"Ironically, some efforts to earn a living – clearing land for agriculture, producing charcoal, overgrazing herds on shrinking pastureland, selling timber for construction – contribute to the problem, are jeopardizing Somali's ability to eke out a living from the land in the future. "

Self reliance in southern and central Somalia (June 2004)

- Fighting and roadblocks in Mogadishu resulted in the rise of prices of food and water
- IDPs working as casual labourers in the market were particularly affected by its closure (2004)
- IDPs in Mogadishu survived on begging, food scraps and portering for 2,000-3,000 Sosh but have limited access to the lucrative informal economy
- To make a living IDPs use their own skills which run along ethnic identity
- Bantu farmers work in non-skilled jobs in the urban centres where they take refuge
- IDP women generate the largest income working as domestic servants, cleaners or petty traders
- Displaced women in Bu'ale sell water from the river or firewood
- Displaced Bantus in Jilib exploited by the Habargedir people who grabbed their lands

UNCU, 30 July 2002, pp1;2

"The majority of IDPs have been living in poor shelter in camps or in destroyed houses as in Mogadishu for about 10 year. They have limited access to food, water, health and sanitation facilities. This coupled with the fact that most IDPs are farmers and agropastoral groups who lack the right skills to generate income in the main urban centers. Therefore, the majority of IDPs are working as porters, domestic workers and casual labourers. Women remain to be the breadwinners despite the poor working conditions, which affects their health conditions and their caring capacities.

[...]

In south and central Somalia where intermittent insecurity prevails such as Gedo, Lower and Middle Juba and Mogadishu, IDPs have limited access to the informal economy. Their main benefit from the market is in the form of service provision such as porters and casual labour. The IDPs are dependent on social network support for their livelihood, besides the limited assistance from the international community in some regions e.g. Gedo."

OCHA, 30 June 2004

Mogadishu:

"Apart from increased insecurity, disruption of water supplies and market access for traders and consumers by the recent fighting resulted in water, food and non-food items shortage and price

hikes in Northern Mogadishu. IDPs who worked as casual labourers in the markets were particularly affected following closure of the markets in May and early June."

IRIN-CEA 27 April 1999

"Many families in the camps have been repeatedly displaced, and for some, it is their second or third time in the capital. Some arrive seeking relatives, but others come because it remains a traditional migration route – even with Mogadishu's precipitous decline, the displaced still expect the capital to provide opportunities. The majority [of IDPs] said they survived by begging, by receiving food scraps, and by earning a little cash by providing 'carrying services' to people in the market – earning about 2,000-3,000 Somali shillings a day."

FSAU Nutrition Update, 31 December 2002

Kismayo:

"Many of the displaced now live in or close to destitution with the main sources of income consisting of casual work (farm labour, household chores, loaders/porters at the port) and bush product collection (firewood and charcoal burning). Although the unskilled labour rates in Kismayo (less than 25,000Ssh/day) are lower than in other areas of Lower Juba, they remain well over those in other areas of Southern Somalia. Unlike the local residents, IDPs have no kinship support and tend to be engaged in less regular and lower status occupations. On the other hand, the *urban poor* of Kismayo are involved in petty business, sale of water and farm labour."

UNCU, 30 July 2002, p.26

"The IDPs in Kismayo are in extreme poor economic conditions because of loss of their properties, productive assets, difficult social and political environment and lack of relief food and assistance by aid agencies. For their survival, IDPs use their own skills and each IDP community has its own skills, which correlates with its distinct identity and culture, which shape its own way of survival. For example, the Bantu IDPs are traditionally small-scale farmers whose major skill is farming, while, the Galgala IDPs are traditionally wooden craftsmen. The Galgaala IDPs capitalized on their skills depend on that for survival. The Bantu IDPs prefer obviously in working on non-skilled work such as carrying goods, loading and offloading of trucks, digging latrines etc. Their women work as domestic servants as washers and cleaners."

The IDPs have no bargaining power. They are forced to work cheaply and under unfair working conditions that have led them to be in servitude conditions. The maximum wage earned by is about 3000 to 5000 So.Sh, which is equivalent to \$0.15-0.25. Although that small income it doesn't help IDPs to meet their basic needs. A Somali household of 6 to 10 family size needs a minimum of 80,000 So.Sh (USD 4) for its daily subsistence food.

Some Bantu IDPs have profitable skills and they can work as carpenters and mechanics. However, ethnic discrimination denies them to get access to such jobs. IDP's access to land is also very limited. There is no farming land inside Kismayo town. However some Galgala IDPs are engaged in some sort of farming activities on the outskirts of the city, and near the airport. Because of lack of resources and high dependence on rain, the production is very little food. No crop sharing practices is practiced in this area.

Being more dominant than men, IDP women a key role in generating the largest household income in the camp. Some work as domestic servants as cleaners, while others generate their

income through petty trading, selling tea or cooked food in the market. The only way they can generate their income is to work as street peddler or porters.”

FEWS, 8 May 2003

Juba:

“Vulnerability assessment and baseline work recently carried out by FEWS NET and FSAU in March 2003 suggests that 15-25 percent of the houses in Buaale town were burned down. Moreover, properties and food stocks were looted. Houses, business, standing crops and underground granaries (*bakaar*) were destroyed or looted and civilian populations displaced.

[...]

The IDPs put an additional burden on the resource-poor community hosting them. Food shortages and poor health and water access are worsening the situation. Imported food prices remain high due to the high exchange rate between the US dollar and Somali Shilling and high transport costs between Mogadishu and Hagar, inflated by many 'toll-collecting' militia checkpoints. Apart from Buaale town and Hagar, staple foods are generally available in the markets. But for poor displaced households without sufficient income that find themselves priced out of the markets, food accessibility is becoming a critical issue. Access to paid employment is also limited due to surplus labor in areas where households fled, especially Salagle and Sakow.”

UNCU, 30 July 2002

“IDPs in Bu'ale are very poor. Their economic livelihoods depend largely on subsistence income that comes from non-skilled work or begging. Being more dominant than men, women play a greater role than men do in household income. They sell water from the river at 500 SoSh per jerrycane of 20 liters. However, because most IDPs collect their own water, there is less demand for water IDP in the camp. A woman could generate between So.sh 10,000 to 15,000 as income, which is much below the required income for subsistence (average So.sh 30,000). Other women generate income by selling of firewood at 500 SoSh per bundle, while others beg in the markets.

Most of the IDPs men are agropastoralists with no profitable skills. They generate marginal income through non-skilled work, such as digging latrines and constructing huts. They have no bargaining power to demand an increase of their wages, which range from So.sh 5000-10,000 per day.”

UNCU, 30 July 2002, p.31

“These living conditions have exposed many IDPs to economic exploitation by the Habargedir and those who took over agricultural lands in the area. Some IDPs alleged that they are forced to work the whole day for only So.sh3000 to 5000. This is not even enough for the breakfast of an IDP household. Others claimed that instead of money, they are given only some cooked maize for the heavy work leaving their families remain without food in their houses. The work the IDPs undertake includes ploughing, sowing, harvesting or guarding harvest from birds and other animals.”

FSAU 16 August 2001, Overview and Update on Bakool

Bay and Bakool:

“Although the IDPs are engaged in coping strategies like selling firewood, water and construction materials; digging toilets and seeking for community support (mobilised handouts) for their food supply, the general downturn of economic avenues occasioned by drought and inflation weighs

heavily against any significant contribution to their food security. Food availability is also reported to be low in the market. Gifts from the community have also reduced, as the community does not have sufficient stocks to allow sharing to take place."

Self-reliance in the Northwest: Somaliland (June 2006)

- IDPs bare the brunt of unemployment and receive only a tiny proportion of total remittances
- While some settlements in Hargeisa host mostly returnees, others are populated by IDPs - those settlements need particular attention
- IDPs in Somaliland, unlike returnees have no social networks or family support
- The majority of IDPs are agro-pastoralists or farmers who lack the skills to generate income in urban settings
- Most IDPs work as porters, domestic workers and casual laborers
- Women are the main bread winners but they receive lower wages than men
- The closure of remittance companies after September 11 adversely affected IDPs as purchasing power and job opportunities in dramatically decreased
- 50% of IDPs in Hargeisa are destitute compared to 7% of urban residents (2002)
- Residents of Hargeisa have prevented IDPs to get jobs on the informal market
- In the Haryan and Ajjuran camps only 9% IDPs generate income from service and market-oriented jobs

Somalia JNA, June 2006, p. 33, 34 (see also under 'Self-reliance in the North-east: Puntland):

"Puntland and Somaliland's economies are too weak to generate employment for returnees and displaced populations, given a high unemployment statistic of more than 80%. Field assessments reveal that most IDPs and returnees derive income from casual labour such as portage, petty trade, water and food selling, artisanal, and part-time construction work. A high proportion of women lack marketable skills and must resort to petty trade or begging. Financial support IDPs receive through remittances account for under 1% of income, which is far less than the national average, according to recent field findings.

[...]

Lack of adequate employment opportunities force many young girls into the informal labour market. In situations where the mother works in the market, young girls are the caretakers of the family, irrespective of age. A survey conducted in Bosaso notes that 42% of families are fully or partially dependent on the earnings of children Ibid.. The physical and psychological repercussions of these activities require further investigation."

OCHA, October 2005:

Hargeisa

"The majority of the residents of Mohamed Mogeh, Sheikh Nur, Aw'aden & Stadium are returnees, with displaced ranging from 10% to 15%. Hence majority have access to kinship support and most own land except for Stadium. As mentioned above, basic social services are better established in Mohamed Mogeh, Sheikh Nur & Aw'aden. Besides the Returnee Assessment of 2002 indicated relatively higher economic indicators within Mohamed Mogeh, Sheikh Nur & Aw'aden. Hence it might be concluded that these settlements are less vulnerable compared to other settlements in Hargeisa. It is therefore recommended that within Hargeisa agencies should focus their interventions within Daami, State House, Ayaha & Stadium. Since the

last comprehensive assessment was conducted in 2002, it is recommended that a PRA be conducted in Stadium to identify prior needs and to establish community action plans.

This does not imply that assistance should be halted within Mohamed Mogeh, Sheikh Nur & Aw'aden, as some vulnerable groups within these settlements remain in need of assistance. As such ongoing initiatives such as School Feeding by WFP and Emergency Education by NRC should be maintained. It is also foreseen that the upcoming Joint Needs Assessment (JNA) would identify needs of poor neighbourhoods and settlements such as Mohamed Mogeh, Sheikh Nur & Aw'aden. The JNA is aimed at supporting sustained reconstruction & development, among the JNA clusters there is one dedicated for Social Services & Protection of Vulnerable Groups.

[...]

The percentage of female-headed households increased to 31.5% compared to 9.1% in 2003. Indicating additional burden on women, who have to cater for both domestic & economic responsibilities. Average family size is 7, with 2 children under five. About 90% of those surveyed were residing in Hargeisa for more than 2 years now. Around 84% of households were rated very poor earning a daily average of 2.5 USD per HH. Main source of income is casual labour, followed by petty trade mainly practised by women."

Ibrahim F., 15 August 2002, p.2;4-5:

"The difference between the internally displaced persons and returnees is a very fundamental issue that needs to be clearly understood. ***Returnees are returning to their former hometowns and cities and are therefore able to look towards their clan members or relatives for assistance and guidance. Where as the IDP's have travelled a long distance from their home cities and are unable to call on any clan member or relative for assistance. Their voices are not heard because they have no representatives in the parliament, ministries and other government institutions; thus there are no influential members who, they can turn to in their distress.***

[...]

"Unfortunately the IDP's are unable to access any of these employment or businesses opportunities, unlike the returnees who are able to access small income generating loans from UNHCR and a few INGO's and are able to look towards their clan elders for support and assistance.

[...]

Integration is impossible stated the community of the IDP camps, as we have two very distinctive characteristics that cannot be overlooked: a) distinctive face features and b) different dialogue from the Somalilanders, which will not assist them to integrate.

They are also associated with the previous crimes that have been alleged to have taken place in Somaliland."

OCHA, October 2005:

"During discussions, concern was raised that general improving results might obscure deteriorating conditions at specific sites. Shiek Nur, Aw Aden & Mohamed Mogeh are currently normalised settlements, State House & Stadium remain overcrowded temporary settlements, Ayaha 2 settlers are still struggling due to their relatively recent arrival (2004), while Daami remains among the most unfortunate. It was hoped that the final results would highlight different levels of vulnerabilities across the different settlements. While improvement was recorded, care should be taken to investigate the extent to which these communities are practising negative

coping mechanisms e.g. high dropout rates are common among children in seek of labour to contribute to HH income.

[...]

Mohamed Mogeh, Sheikh Nur & Aw'aden are permanent, municipalityplanned settlements where land was provided freely by authorities to returnee residents. On the other hand Stadium is an informal temporary area that the authorities plan to reallocate. Some of Stadium's residents were relocated in 2001 to Ayaha 1. Most of the residents in all 4 areas arrived in Hargeisa between 1997 and 2001. Women are mainly engaged in domestic labor & petty trade: sale of milk, vegetables charcoal, meat and Khat. Men practice casual labor: constructions worker, charcoal producers and livestock brokers."

UNCU, 30 July 2002, pp.8-9;11:

"Not surprisingly there is a stark difference between urban residents and the IDPs and returnees living in camps on the outskirts of Hargeisa. While only 7 percent of urban residents can be categorized as destitute, as many as 50 percent of the Returnees and IDPs in the camps belong to this category.

[...]

There are no large-scale labor market surveys of the Hargeisa municipality. However, according to our survey the majority of urban residents (a total of 61percent) are involved in largely informal market and service oriented economic activities. A similar proportion (67percent) of returnees and IDP households earn the majority of their income from market and service oriented work mostly in petty trade and unskilled labor including work in construction and as porters. This implies a keen competition between resident and returnee/IDP in these sectors. For example, urban residents working in the construction sector have organized informal labor unions to keep out displaced persons, particular from southern clans, from competing in the construction sector. Both IDP and returnees complain bitterly of the lack of job opportunities, and the importance of clan and familial contacts in securing gainful employment.

The key distinction between resident and returnee/IDP populations is that the 23 percent of urban households enjoy access to remittances from overseas as a major source of income. In addition, while few households in Hargeisa proper derive income from begging, as many as 9 percent of the displaced –primarily among the Ajjuran of Dima camp—live almost exclusively by begging. Indeed, taking into account the IDPs from the south alone, the percentage of households whose income includes begging is over 80 percent.

[...]

in terms of sub-clan categories the dominant Isaak sub-clans in Hargeisa receive remittance on a largely even basis. No particular sub-clan has a monopoly of remittance inflows. Consequently it is safe to assume that who benefits from them is dependent on a previous asset base that is contingent on the fortunes of particular households, rather than a particular sub-clan."

Clark, June 2002, p.7, p.50:

"- 73% of men work to bring income into their households, while only 32% of women work to bring income into their households.

- The most common jobs are market activities and casual employment.

- Men have received vocational training at four times the rate that women have. 16% of adults have been through vocational training." [...]

"In Daami, Sheikh Nur, and Stadium the women also work as household servants. On the other hand, men tend to work as construction laborers, charcoal producers, livestock brokers, and porters. Day laborer incomes were reported as between US\$1 and US\$2 per day. Some men in Sinai and Stadium generate income through donkey cart businesses, while it is worth noting that

only the men in Stadium were identified as bringing in income through work as soldiers, waiters, or latrine diggers. Only in Ayaha, Daami and Mohamed Mooge were men identified as working in the livestock brokerage business.

Daami was the only area where notably different skills and trades were relied on for generating income. Immigrant and Southern Somali men work as farm laborers, livestock brokers, and construction laborers while the women beg with their children. In contrast, the minority groups rely on their traditional skills to generate income. The men work as barbers, blacksmiths, shoemakers, and rubbish collectors while the women earn money through practicing female circumcision and producing traditional items such as water pots, wedding pots, brooms, and stoves."

FSAU, 31 May 2004

Toghdeer region:

"The main source of income was casual work (61%) while small businesses accounted for about 20%. Purchasing was the main source of food for 85% of the population, followed by own crop production in small plots within town (3.9%) and various other means including hunting (4.5%).

[...]

An interesting observation is that in 41% of the households surveyed, females were the primary bread-winners. Casual employment for women appears to be more easily sources in households and restaurants whereas casual manual labour and portering for men is more scarce. This was observed to be having particularly negative effects on the time available for women to look after children, particularly in an environment of reduced social support."

FSAU, 19 November 2003

"Casual employment as porters, cleaners in restaurants, construction related activities and house-helps form a main source of income for this population. All these activities are not sustainable and pay a relatively low wage rate. Considering that purchases are the main food source, the limited and unsustainable income available to these populations places them in a vulnerable food security situation. Additionally, borrowing (60%) and begging (9.4%) were the main coping strategies while remittances were reported by only 7.5%."

UNCU, 30 July 2002, p15

"The socio-economic picture for IDPs from the south residing in Haryan (Burao) and Ajjuran (Yirowe) camps is far worse. In the absence of a formal administrative and legal framework, the labor market in Burao-Yirowe (as elsewhere) is regulated by clan and sub-clan networks. As a result, IDPs from Bay and Bakool, in this instance, find it very difficult to find gainful employment in the service, market or trade activities. Only 9 percent of households in Haryan and Ajjuran camps generate income from service and market oriented jobs, and there are no families that are engaged in trade dominated by the Isaak sub-clans of Haber Younis and Haber Jaalo. The fact that they are not pastoralists or merchants from the south has made it difficult for most to integrate into the local informal economy. They are separated from Yirowe residents and all its commercial activity As a consequence southern IDPs rely on their traditional survival mechanism, begging. As many as 93 percent of households depend exclusively on the women and children of the household begging for either money or cooked food to sustain them. Nor do any families among the southern IDPs receive financial assistance from relatives living and/or working abroad."

Self-reliance in the Northeast: Puntland (June 2006)

- IDPs from the South in Bossaso compete for low-paying jobs and do not enjoy full legal rights and protection
- Many IDPs work as housemaids in the construction business, as porters in the port or collect garbage
- Most IDPs in Bossaso live off purchased food and the loss of jobs and reduction in income have critical consequences for their food security
- The vast majority of Bossaso's IDPs work as unskilled and semi-skilled laborers
- 17% of IDP households rely on market activities as major source of income and only 4% have the capital and networks to enter the more lucrative informal trade
- Only 2% of IDPs receive remittances compared with 38% of urban residents
- Bossaso IDPs earn about US\$1 daily which represents 50% higher wage than for Hargeisa IDPs
- IDPs' chances to find seasonal work in the Gulf were restricted by Bossaso port security regulations

Somalia JNA, June 2006, p. 33 (see also under 'Self-reliance in the North-west: Somaliland):

"Puntland and Somaliland's economies are too weak to generate employment for returnees and displaced populations, given a high unemployment statistic of more than 80%. Field assessments reveal that most IDPs and returnees derive income from casual labour such as portage, petty trade, water and food selling, artisanal, and part-time construction work. A high proportion of women lack marketable skills and must resort to petty trade or begging. Financial support IDPs receive through remittances account for under 1% of income, which is far less than the national average, according to recent field findings.

[...]

Lack of adequate employment opportunities force many young girls into the informal labour market. In situations where the mother works in the market, young girls are the caretakers of the family, irrespective of age. A survey conducted in Bossaso notes that 42% of families are fully or partially dependent on the earnings of children Ibid.. The physical and psychological repercussions of these activities require further investigation."

UNDP, May 2005:

The 2005 UNDP Assessment of IDPs and returnees in Bossaso provides important insight into the situation of self-sufficiency, local integration, sense of security etc.

A stakeholder workshop that was organized and funded by UNDP-RRIDP (October, 2004) established the perceptions of how IDPs are categorized by the Puntland authorities. These include:

- The visible internally displaced persons with no clan or kinship affiliation to the community they reside with.
- The invisible IDPs that ethnically belong to Puntland regions but found difficult to integrate with their host communities
- Invisible IDPs that tried to integrate with their societies through the initiation of business related to Kat sales, livestock sales, cigarette sale and other small scale business at the streets of the towns, but found difficulties in the production of household income.

The visible poor pastoralists, which during periods of drought lose their livestock due to lack of pasture and at times due to dire need for cash they sell their animals at reduced prices. In this scenario, the pastoralists become stripped of the productive assets and fall out of the pastoral lifestyle with fewer efforts to adopt their coping mechanism. They therefore manifest similar behaviours as the IDPs, perform casual labour, beg for their livelihood and make use of kinfolk for gifts and remittances.

FSAU, 30 September 2004:

“Further findings [among IDPs in Bosaso] indicate purchase as the main source of food, and casual work as the main source of income for 95% of the households. The majority (94%) of the households engaged in borrowing as a coping strategy while the rest depended on begging.

[...]

The levels of retrospective mortality for under fives and the general population indicate an alert situation.”

Menkhaus, UNHCR, August 2003, p.24:

“Another pressing humanitarian issue is the status of the growing number of IDPs and migrants arriving from southern Somalia in search of work. There are now an estimated 28,000 such IDPs in Bosaso alone. [...] Many of these migrants are from the weak Rahanweyn or Bantu groups in the south. They come to fill positions ranging from houseboys to construction workers, and in Bosaso live in sprawling shanty-towns which have been dangerously prone to catastrophic fires. Some travel to Bosaso in the hope of crossing by boat to Yemen to seek refugee status. These migrants are very vulnerable – they lack a social safety net, they compete for very low-paying jobs, they are viewed as undesirables by the local community (subject to beatings, robberies, and other harassment, especially if they compete with local labour or beg in the streets), and as “guests” they do not enjoy full legal rights and protection. They are unquestionably the most vulnerable social group in Puntland.”

UNCU, 30 July 2002, p.20-1:

“The majority (77percent) of Bosasso's estimated 28,000 IDPs work as casual laborers, rarely finding regular work. However, given the fact that few of IDP households possess significant capital or other assets and they hail from marginalized clans and castes they have minimal opportunity to enter the market or trade sectors. The Majerteen and other Harti sub-clans dominate the latter. In fact, only 17percent IDP households can count on market activities as their major source of income; while only 4percent have the capital or social networks to enter the more lucrative informal trade sector.

Remittances also play an important role in supplementing incomes and establishing a modicum of economic well being. However, while as many as 38percent of urban residents enjoy assistance from expatriate relatives, only 2percent of IDP households receive remittance on a regular basis. Consequently, in addition to their vulnerability stemming from ethnic and geographical marginalization, the lack of access to remittance compounds the relative poverty of residents living in IDP camps.

[...]

In comparison to Hargeisa, Bosasso residents enjoy a higher standard of living if we compare average daily incomes. While urban residents of Hargeisa earn, on average, about \$1 a day, Bosasso residents earn over \$4. Naturally, with respect to Bosasso, IDPs earnings are far lower. Most IDP households in Bosasso earn a daily wage of a little over a \$1, which is more than

50percent, more than most returnee/IDP families living in and around Hargeisa. However, for Bosasso's IDPs these earnings are seasonally dependent.

There is less economic activity in Bosasso's main port during the summer months and since most IDPs work in activities associated with port trade, the figures cited above reflect earnings during the more busy winter months. Many IDPs said that since job opportunities decrease greatly in the summer, they often migrate southward towards Nugal and Mudug regions of Puntland. However, the significant income earning opportunities for IDPs explains the fact the most cite shelter, health and food as priorities rather than job opportunities. Nevertheless, conditions for IDPs in Bosasso are the most severe in northern Somalia. The majority are economic migrants, many with hopes of continuing their migration to nearby oil-producing Gulf countries. However, in recent years local authorities have tightened regulations and security around Bosasso port restricting the chances of many IDPs from travelling to the Gulf. In Bosasso, the issues are largely related to urban planning. In contrast, as noted below, IDPs in Mergaga camp north of Gelkayo are victims of drought. As such, they require different kinds of interventions."

Livestock ban has led to major income deficits for pastoralists and IDPs (Dec 2003)

- Livestock ban imposed by Gulf States since 2000 due to outbreaks of Rift Valley fever have hurt pastoralists, representing 44% of the population
- The re-direction of trade inside Somalia and concentration of livestock has led to overgrazing and environmental depletion
- IDPs in Mogadishu and Bosasso hit by loss of trade-related employment
- Printing of new currency leads to hyperinflation, devaluation and reduces purchasing power and labor opportunities placing IDPs at particular risk
- Livestock ban severely eroded purchasing power undermining food security in main livestock producing areas Puntland and Somaliland
- Somaliland is particularly hard-hit with shortfall in export earnings of US 2.4 million
- On alleged links with terrorist networks the US closed Somali remittance companies the single most powerful business generating the bulk of the national product
- Remittances are estimated to reach up to 1\$ billion yearly, while foreign assistance amounted to 115\$ million in 2000
- As most IDPs must purchase their food income is determinant for access to food

UN, 18 November 2003, p.10

Livestock ban imposed by Gulf countries since September 2000:

"Other factors have combined to threaten Somalia's traditional livelihoods. The prolonged and continuing ban -- in place since September 2000 -- on the import of Somali livestock by the Gulf states in response to outbreaks of Rift Valley fever in Saudi Arabia and Yemen has badly hurt nomadic pastoralists, who comprise roughly 44% or 2.7 million [...] of the population, and depend on the livestock trade as a vital source of income. Terms of trade for livestock have continued to drop against the value of dry food rations, placing greater stress on poorer pastoral households. While livestock continue to be exported today to alternative markets, their numbers have increased within Somalia since the ban. This overpopulation has left some rangelands in the north and central portions of the country overgrazed and fragile, adding still more pressure on pastoralist livelihoods. Riverine farmers, who at 400,000 [...] comprise about 6% of the population, have also suffered. Only a fraction of riverine land devoted to irrigated agriculture is under production, and rain fed farming has been hurt by insecurity and the displacement of many of Somalia's small farmers. Post war grain harvests have generally totalled less than 40% of pre-war levels."

IGAD/UNDP/UNHCR June 2002, p.17

"The economy of northern Somalia is significantly dependent on livestock production. It is estimated that livestock production contributes to 60% of the income of Northwest Somalia and 90% of the income of the Northeast. Livestock production is estimated to be the main source of livelihood for 70% of the population. The ongoing livestock ban imposed by Saudi Arabia has had a devastating impact on the social and economic systems of Somalia. ."

IRIN-CEA 22 September 2000, "Introduction" and "Somalia"

"The first reported outbreak of Rift Valley Fever (RVF) outside of Africa, in Saudi Arabia, has resulted in a regional ban on imported livestock from Somalia, Ethiopia, Eritrea, Sudan, Kenya and Djibouti.

[...]

Most seriously affected by the regional ban is likely to be Somalia, a country which depends heavily on export of livestock. It lacks an established government and institutions to cope with the ban, and has very limited opportunities for economic diversification. Without a recognised central government for almost a decade, Somalia has struggled to find ways to get livestock certified for export.

[...]

According to one Somali livestock expert, the ban 'reflects not just on export quality but also on local markets and the environment. It will result in the over-production of herds, without the usual market outlet, which will cause environmental damage.'

Somali sources told IRIN that there was an urgent need for international agencies to assist by helping to establish systems to 'investigate the health of animals.'"

FSAU/FEWS 15 October 2000, "Highlights"

"The current livestock embargo was initially imposed by the Saudi government on the 19th September 2000, following a reported outbreak of Rift Valley Fever in early September. Many of the Gulf countries followed suit some days later, banning the importation of all livestock from the main livestock exporting countries in the region. [...] The knock-on effects of restricted trading are expected to reduce employment opportunities and effect access to other important income sources. The economy in the northern and central parts of the country being most susceptible."

Menkhaus November 2000, p. 7

"The last time the Saudis issued such a ban, in 1998, it was only partially enforced, due to widespread smuggling through Yemen. This time, however, Yemen appears to be clamping down as well, making this episode potentially much more disruptive."

UNDP Somalia 2001, p.68

Ban has resulted in significant loss of income at macro and micro levels for Somalis:

"The livestock bans have particularly hurt urban populations, including returning refugees and IDPs who, being dependent on the market, are reliant on a healthy economy for access to jobs and income generating opportunities."

UN Appeal, November 2001, p.5

"Other Urban Areas, including Mogadishu Estimated Vulnerable Population: 40,000

Urban areas are largely dependent on the modern trade economy, including domestic food produce and imported commodities such as sugar, salt and non-staple items. This makes urban residents and IDPs particularly vulnerable to economic shocks that may limit increase price levels and limit market access. In addition to the livestock ban, the printing of new currency has placed a severe strain on the purchasing power of poor households. Further, opportunities for casual labour at the ports have diminished."

UN Appeal, November 2001, p.4

"Bari, Nugal and northern Mudug Estimated Vulnerable Population: 33,400

The most vulnerable pastoral population group is lying along the coast where food availability and market access are severely reduced by the impact of the livestock ban and the poor state of infrastructure. Pastoralists in the Iskushuban area are particularly affected. In general, however, northeastern pastoral areas are not considered to be severely at risk to food insecurity or cholera outbreaks at the moment. That said, poor urban households and IDPs in the surroundings of Bossaso are extremely vulnerable following the loss of trade-related employment."

IRIN-CEA 12 February 2001, Somalia

"There has been substantial loss of income at macro and household levels, which had limited the purchase of many goods, including medicine, and had accelerated the depletion of assets. Market failure because of the livestock ban would 'threaten livelihoods for many groups'. FSAU monitors and nutritionists said there was particular concern for the urban poor and Internally Displaced Population (IDPs) in and around most towns in the north. Burao, in Somaliland, was marked out as of particular concern as it was a 'heavily livestock dependent'. Bosaso and Galkayo in the self-declared autonomous region of Puntland, northeast Somalia, were also of concern, the report said. However, the worst effects of the livestock ban on food security had been mitigated by 'unusually good livestock production and reproduction', resulting in a high level of milk for consumption and sale."

FSAU, 17 December 2003

Closure of remittance companies by the US because of alleged links to terrorist activity, led to the country's economic collapse:

"Remittances contribute a significant proportion of many households income in Somalia. However with reference to nutrition surveys, it is estimated that the figure ranges between 0.3% to 14.3% among the IDPs compared to 1.6% to 18% in the general population. With purchases being the main source of food among all the IDPs surveyed (ranging between 85% and 99%), income availability is crucial in defining the food security status of these populations."

UN, 18 November 2003, p.10

"Remittances from the more than one million Somalis living abroad have mitigated the effects of poverty. While estimated annual flows of remittances into Somalia, including Somaliland, vary, it is estimated between US\$ 750 million to 1 billion [...] is sent each year, far more than the country receives in foreign aid (US\$ 115 million in 2000). [...] This income forms not only the backbone

of the commercial and service sectors, but of individual and household purchasing power. It is estimated that of the total amount remitted each year, US\$ 360 million directly contributes to household incomes. [...] Keeping this lifeline of Somali remittances from the Diaspora open is critical to ensuring that some of the most vulnerable populations receive an income. But the downside of this survival buoy is that it has fostered gaps between the relatively privileged and the destitute who often lack access to remittances."

UNDP Somalia, 2001, pp.38-9

"Families with access to overseas remittances enjoy privileged access to social services and have better food security than households without.

[...]

Remittances have long been a critical part of Somalia's economy. Currently, with very low levels of agricultural production and manufacturing, remittances from the large Somali diaspora enable the country to run a balance of trade deficit and to enjoy higher levels of food security and access to private social services than would otherwise be the case. Future trends in remittances will be a key factor in sustaining human development.

[...]

The service sector is the most dynamic part of the economy. Money transfer companies and telecommunication companies have expanded throughout Somalia and increased the range of financial services, facilitating the flow of remittances from the diaspora and commercial transactions.

These companies, which did not exist a decade ago, are amongst the most powerful businesses in Somalia today."

UNDP Somalia, 2001, pp.104-105

"Another study estimates that remittances to Somaliland alone could be as high as US\$500 million per year. That is four times the value of livestock exports from Somaliland in a normal year [...]. Another study estimates annual remittances to Somalia of US\$800 million.

[...]

A study in Hargeisa, Burco, and Bosasso calculated that remittances constitute nearly 40% of the income of urban households.

[...]

The rural poor and the internally displaced from groups who have fewer relatives abroad receive fewer remittances and are less well served by telecommunications. One study found that while the majority of households in Hargeisa received remittances, only 5% of rural households did [...]. In Hargeisa and Bosasso, there is clear evidence of significant differential access to remittances between urban residents and displaced populations and economic migrants from southern Somalia."

Public participation

Deep-rooted gender discrimination in Somalia hinders participation (May 2006)

- Conflict and displacement have opened new opportunities for women's participation beyond traditional gender roles

- Women's newly acquired roles and skills as widows and household-heads need to be carefully considered during the rehabilitation and return processes
- Women prevented from participating in decision-making and from accessing resources
- Increased role in commerce sometimes makes women more vulnerable to discrimination

UN OCHA, 19 May 2006:

Gender-based violence and discrimination against women: In a broader context, Somali women are systematically discriminated and subordinated such as limited inclusion in decision making structures and leadership roles, limited access to reproductive health, higher rates of stigmatization from HIV/AIDs and Sexually Transmitted Diseases, denial of due process rights, abuse of women's rights in divorce cases, denial of custody of children, denial women's rights of property ownership and inheritance under customary law. A general lack of awareness of women's human rights both in the judiciary and law enforcement have a negative impact on women in custody and during police detention. Gender based violence is on the increase; violations in the form of rape as a means of intimidation and weapon of war and domestic violence are rife. Female Genital Mutilation (FGM) forced early marriages and using violence as a tool for discipline have caused tremendous suffering. Perpetrators of sexual and gender-based violence are rarely prosecuted, given the weakness of the judiciary system and the lack of recognition of these violations. IDP women are particularly vulnerable, having lost their clan protection and common victims of murder, rape and kidnap. Lack of protective environment conducive to the respect of human rights, with the absence of central and authoritative government able to enforce the rule of law as well as of functioning legal and social institutions, individuals are left without appropriate channels for claiming their rights. Traditional Somali society is conditioned not to openly discuss issues such as domestic violence and rape which hampers women's rights to access justice against gender based violence. Women from minorities experience particular difficulty accessing legal mechanisms. A decade of conflict, displacement and impoverishment of the Somali people have also weakened the capacity of communities and families to provide protection to the most vulnerable individuals among them. At community level, duty bearers have neither the capacity nor the commitment to fulfill their obligations towards vulnerable and marginalized populations."

UNICEF 2000, paras. 7 and 8:

"Gender discrimination is deeply rooted in the traditional socio-cultural structures of Somali society and remains a formidable barrier to women's participation in decision-making and access to resources. Violence against women and girls, resulting either from tradition or the civil war, includes the almost universal practice of female genital mutilation and sexual violence against the displaced, particularly against members of rival clans and minority groups."

UN December 1998, pp. 7, 47:

"Female-headed households are particularly vulnerable; in some areas half of the households are headed by women, who shoulder all household responsibilities while generating family income through commerce or farming. There is throughout Somalia an increased role of women in meeting household needs, in participating in community affairs, in agricultural production and in business activities. Since the collapse of the state, the role of women in commerce has grown markedly. The element of rapid change has been important; for many women it has made them more vulnerable, while for others it has opened vistas of opportunity virtually impossible in Somalia before the war.

[...]

In line with this changing role of women in post-war Somali society, evidence is emerging of women gaining political awareness. However, gender discrimination is deeply rooted in the traditional, socio-cultural structures of Somali society and remains a formidable barrier to women's participation in formal decision-making processes and bodies."

DOCUMENTATION NEEDS AND CITIZENSHIP

General

No functioning judicial system available in Somalia, traditional system shows gaps (June 2006)

- Due to their lack of status, minority IDPs are particularly vulnerable to human rights violations.
- The three systems of law in Somalia coexist secular, Shariah and customary law
- The expert on the situation of human rights in Somalia reports that members of the judiciary in Kismayo had no written laws and made judgments based on memory
- Women are particularly disadvantaged by the lack of harmonisation between the three male-dominated systems of law
- The few functioning regular courts in Somaliland sometimes dismissed judges arbitrarily
- Sharia courts functioning in Mogadishu and other areas do not adhere to international standards of fair trial
- Faction militias enjoy impunity for their human rights abuses

Somalia JNA, June 2006, p. 33:

"Despite the existence of national constitutions reaffirming a commitment towards human rights, all authorities (*TFG*, *Puntland* and *Somaliland*) lack the capacity of enforcement. IDPs are particularly vulnerable to human rights violations because they lack status. Border demarcations for *Puntland* and *Somaliland* have involved concepts of "citizenship". Many locals who have lived in either state for generations, have, in the post-conflict era, become "foreigners" or "outsiders". They live with ambiguous, undefined status in both *Somaliland* and *Puntland*."

UN OCHA, 19 May 2006:

"Conflict related violence: The conflict and inter-clan fighting have led to a prevalence of violence and terror such as rape, killings and burning of villages targeting civilians and resulting in forced displacement. Violence, attacks and repression of civilians as well as the use of children by militias and forced displacement of populations are violations of international humanitarian and human rights law. People who then become displaced are more vulnerable to violence and abuse as they may no longer benefit from the protection afforded by the clan. Furthermore, the capacity of families and communities to protect the most vulnerable is weakened.

Discrimination and marginalization of vulnerable groups such as IDPs, refugees, economic migrants and minorities. Somalis in south/central are often chased away from their normal place of residence or are forced to flee because of conflict. Various assessments of IDP camps describe how IDPs live in appalling conditions with very poor access to basic services and protection from the wider or local authorities.

Minorities are routinely persecuted and marginalized, having weak political representation and few employment opportunities. Arbitrary arrests are not uncommon leading to security and protection problems for vulnerable groups, hampering freedom of movement. Children without primary caregivers, living or/and working on the streets or in conflict with the law are also

particularly vulnerable to violations of their human rights. The largest IDP population (an estimated 250,000) lives in Somalia's most dangerous city – Mogadishu, where they are often forced to flee militia clashes and are exploited or abused by gunmen who control their settlements. These 'gate keepers' extort aid rations or money from IDPs and force them to work or evict them when they cannot pay. Poverty forces girls into exploitative work relationships and child labour is one of several survival mechanisms for many IDP families."

DRC, 21 August 2004, p.10, 11:

"Aside from revenge killings, there are other traditional practices that impinge on the human rights of vulnerable individuals and groups. These include arranged and inherited marriages which deny a woman's right to freely choose her husband without fear of reprisal. These are particularly strong among the nomadic pastoralist communities.

The minority groups complain of social and political discrimination. These groups include the Gaboye, Tumaal and Yibir. Traditionally, they possess specialised skills and trades and are known to be craftsmen, leather workers, barbers and blacksmiths. They are seen as social outcasts and intermarriage with the main

clans is a social taboo. They are heavily marginalized in employment and political representation. Those who dared marry from the "majority" clans are heavily persecuted and in most cases forced to separate.

Adherence to the cultural norms is almost inescapable and a violation can immediately trigger condemnation and violent reprisal unless properly compensated.

While disputes remain unsettled, a significant number of suspected wrongdoers are being kept in jails for an indefinite period to avoid violent conflicts. With the very slow pace of settling the cases in courts, more violations occur to the individuals' rights to freedom, security and livelihood. Somaliland society has experienced major changes during the twentieth century and the beginning of the twenty first century. But the existence of its social structure, tradition, culture and customary law has persisted and continues to be the underlying framework governing the political and social affairs of the country."

UNSC, 13 October 2003:

"Technically, Somalia follows three systems of laws: secular law, Shariah and customary law. Although these three systems coexist, there is a lack of harmonization in the way they address crimes and other legal issues. The ability of Somali women to claim and defend their rights is affected by their social status and the prevailing legal environment, which consists mainly of a combination of Shariah and customary law and is applied differently in each region."

UN, 18 November 2004, p.6:

"In the absence of a functioning government, clan-based groups have taken up the responsibility to provide security to their communities, with varying degrees of success. The establishment of sharia' courts throughout central and south Somalia has reasserted modest levels of rule of law. [...] "When human rights violations take place, in the absence of any properly functioning mechanisms for the rule of law, individuals from 'minority' or weak clans in Kismayo often have little recourse to systems of justice".

UNCHR, 30 November, paras. 25,26,32:

"The denial of due process

The legal framework throughout the country remains poor. Persistent challenges include untrained staff, low salaries, lack of basic equipment, training and reference materials, gender inequity and lack of harmonization among secular, customary and Islamic laws. On his visit to Kismayo the expert met with members of the judiciary who informed him that they had no copies of the laws and made judgements based on memory.

[...]

In a report on gender justice published in August 2003 by the United Nations Development Fund for Women (UNIFEM), the observation is made that:

"There are three parallel systems of law, the Secular law, the Shariah law and customary law. ... Our findings revealed that this environment that allows operation of more than one system is inequitable, restrictive and disadvantageous to women. For example on a murder charge men who murder their wives are tried under customary law where the sentence is *diya* which is blood money/compensation, women are tried under the secular law where the sentence is death. ... There is limited access to secular justice for women, due to economic and social restraints, and low literacy amongst women. Customary law is perceived as gender unfriendly as the traditional elders who convene the traditional courts are all male, and their points of view and traditional norms influence decisions. Shariah law is the most preferred system of law amongst women because of its divine source, however it is open to misapplication due to the fact that there are no mechanisms in place for certifying judges or recording precedence in the context of Islamic jurisprudence" (p. 3)."

AI, January 2003:

"Regular courts functioned only in Somaliland, although many judges were arbitrarily dismissed in mid-2002. Puntland had an embryonic court structure incorporating *Sharia* (Islamic) law, but these courts did not function regularly. In other parts, the few functioning courts, other than at the customary clan level, included a number of *Sharia* courts in Mogadishu and other regions. These did not adhere to international standards of fair trial and there was generally impunity for faction militias which committed human rights abuses. Courts imposed several death sentences which were swiftly carried out. An amputation sentence from the Benadir regional court in Mogadishu in June was widely criticized as unfair, and withdrawn under TNG pressure for a retrial."

For more background information see in list of sources: 'Traditional authorities in northern Somalia: Transformation of positions and powers', Max Planck Institute, May 2006.

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

Overview

Somali identities and culture (Special report, 2006)

Based on their patrilineal kinship, the Somali people are divided into five major clans, which split into numerous sub-clans and minority groups. The major clans are the Darood, Dir, Hawiye and Isaaq known as the Samale group, and the Digil-Mirifle categorised as the Sab group. Clans have formed alliances which provide their members with physical security and a social welfare safety net. Exogamous marriages into another clan are ways to establish alliances which can be drawn on in times of hardship. Conflicts are minimised and managed by customary law (*xeer*), and the tradition of blood payment (*diya*) serves to deter crime and prevent retaliation (Menkhaus, UNHCR, August 2003, p.2).

However, elders' conflict mediation mechanisms and the traditional systems of reciprocal help have been seriously eroded by conflict in many parts of the country, and the clan system has proved to be a divisive and destructive force when manipulated for economic and political gain. Now, freelance militiamen rule at gunpoint and communities have grown mistrustful. On the other hand, in the absence of a state structure the clan system has been virtually the only source of law and order. The interest of businessmen in creating conditions conducive to market activities in a secure environment has become an increasingly important stabilising force, cutting across clan differences (Menkhaus, UNHCR, August 2003).

Minorities make up about 20 per cent of the population. They are outside the clan system, and have been marginalised and subject to attacks and violations by the dominant clans (UN, 18 November 2004, p.9). They are divided into two main groups. The first includes the Midgan, Tumaal, Yibir, Gaheyle, Galgale and Boni. Each of these caste-like groups specialises in a specific profession like hunting, crafts, leather and metal work, which are considered "polluting" by the Somali clans. A second group includes the Bantu, Benadiri and Eyle who are not considered "ethnic Somalis". Some are believed to come from early non-Somali agricultural communities and others to be descendants of people who were taken to Somalia in the 19th century by Arab slave traders from areas which are now Tanzania, Mozambique and Malawi. They are small-scale farmers and come from the riverine areas of southern Somalia. Bantus have never been recognised as "real" Somalis and thus have been discriminated against and placed in servitude, treated as second-class citizens (UNCU, 30 July 2002, pp 5-6).

IDPs from these groups have limited access to the judicial system. The three systems of law in Somalia (secular, *sharia* and customary (*xeer*) law), coexist in a chaotic and gender-discriminatory way. The legal framework throughout the country remains poor and minorities or displaced people, either outside the clan system or outside their area of origin are not protected by customary law. Besides, *sharia* courts do not adhere to international standards and militias generally enjoy impunity for the human rights abuses they commit (AI, January 2003).

The University of Hargeisa Faculty of Law, supported by UNDP and UNHCR, has set up a Legal Clinic providing legal advice to vulnerable people, including IDPs. In view of the great need for legal assistance, participants in the October 2005 IDP Working Group meeting suggested that the Legal Clinic increase its capacity, inform vulnerable populations of the services available and open an office in the centre of town (IDP Working Group, Hargeisa, November 2005).

General

Lineage identity is central organizing force in Somalia (Aug 2003)

- Clanism in Somalia provides physical security, social welfare safety net and conflict management through customary law (xeer)
- The dictator Barre manipulated clan for political purposes and it became a line of fragmentation
- The six major Somali clans are Darod, Dir, Hawiye and Issak forming the Samale group, and the Rahaweyn (Digile and Mrifle) known as the Sab group
- Minority groups who fall outside major clan lineage divisions are often discriminated and marginalized in Somali society
- Bantu minority groups tend to be small scale farmers and lived in the riverine areas
- Bantu were victims of cultural genocide and they now all speak Somali except the Mushunguli group

Menkhaus, UNHCR, August 2003, p.2

"Somalia is a lineage-based society, in which virtually all members of society enjoy membership in a patrimonial clan-family. Each clan-family is in turn subdivided by clan, sub-clan, and sub-sub-clan, all on the basis of a Somali's extended family tree. Depending on circumstances, different levels of lineage identity can be mobilized politically, making Somali clannism very fluid and unstable in nature. A clan may be cohesive against an external threat one month, only to fall prey to internal disputes the next month. Clannism has a range of virtues – it provides its members physical security, a social welfare safety net, and a rich body of customary law (xeer) designed to minimize and manage conflict. Blood payment (*diya*) groups, which serve to deter crime and prevent cycles of retaliatory violence, are also lineage-based. But clan can also be a force for division and fragmentation, especially when manipulated for political purposes. The government of Siyad Barre (1969-1990) exploited clan identity in a campaign of divide-and-rule. That regime is widely blamed for the rise of the destructive clannism which has afflicted Somalia since 1990 and which has made reconciliation and cooperation much more difficult to achieve."

UNCU, 30 July 2002, pp 5-6

"Based on their patrilineal kinship and lineage segmentation, the Somali people are divided into six major clans, which in turn branch out into numerous sub clans, and minority groups. The major clans include Darod, Dir, Hawiye and Issak collectively known as Samale group, and the Rahaweyn (Digile and Mrifle) community categorized as Sab group. The Hawiye clan includes Habargedir, Abgal, Murusade, Hawadle, Galjel, Moblen, Sheikal, Djijeje, Badi Adde, and Ajuran while the Darood group include Majerten, Marehan, Dhulbahante, and Ogaden, LeelaKase, Ortole, Kaskiiqabe and Dashiishe. The Dir sub clans include Biyamal, Gadsan, Gadabursi, Fiqi Muhumud, Samaron, Qubeys, Werdai and Akishe. The Issak are subdivided into Habar Awal, Habar Jalo and Habar Yunis, Edigale, Ayub and Arab. The Digil and Mirifle are subdivided into sub clans. The Digil include Geledi, Shanta Aleen, Bagadi, Garre, Tunii, Jido, and Dabarend while the Mirifle are divided into Siyed and Sagal. Some of the major subclans in the Mirifle group are Laysan, Harin, Elay, Boqol Hore, Jiron, Jilibile, Gelidle, Hadame, Luway, Huber and Yantar."

Those who fall outside the major clan lineage divisions are considered as minorities. They are disadvantageous of being minorities except when they have patrons or patron clan that support them. This lack of clan protection puts them at the mercy of arbitrary action by major clans.

According to their lineage, the minority groups are divided into two groups: A group, which has similar ethnic origin with the Samale group, but traditionally considered as cast people who have no equal rights with others. This group includes Midgan, Tumal and Yibir (collectively known as Baidari group), Gaheyle and Galagale and Boni. They are traditionally hunters, leather and metal workers, and craft makers living in some parts of north, central and southern Somalia.

A second group, which is distinct from other Somalis in ethnic identity, cultural and tradition. They include Bantu, Benadiri and Eyle. The Bantu, who are refer to as "Jarer", which literally means thick hair are small scale farmers or labourers who live in the riverine areas in southern Somalia. They are also divided into various sub clans with different ethnic origin. Some for example the Mzigua, Mzaramo, Magindo, Myao, Makua, and Manyasa collectively known as Wa Gosha "forest people" or Oji are believed be descendents of Tanzanians, Mozambicans and Malawi's who were taken to Somalia in the 19th century by Arab slave traders (MRG, 1998). They live and practice some subsistence farming in the Gosha area in the Lower and Middle Juba regions.

Second Bantu sub clans, which include Shidle, Shabelle, Makane and Kabole, are believed to have descended from early non-Somali agricultural communities. They are also small-scale farmers who predominantly live in the Middle Shabelle and Hiran regions. The third Bantu group lives in the Lower Shabelle region. Because of cultural genocide, and most importantly for protection reasons they have identified themselves with the other Somali communities in the region. These include Jarer-Hintire, Jarer-Wacdan, and Jarer-Biyamal. Except the Mushunguli group who retained their Mushunguli language, the other Bantu speak Somali language and have become assimilated into local Somali communities. However, they have never been recognized as real Somalia, as a result, they suffer ethnic discrimination which placed them into servitude class. They are marginalized and excluded from main stream of administration, education and minimum social and economic development.

[...]

The Somali clans are grouped into clan bonds or clan alliances formed to safe guard the mutual interest and protection of the members of the alliances. The Social contract or "xeer" is the most important component that cements together the alliances. It calls upon the collective response of any threat to members of the alliance. As marginalized groups, the minorities are outside this system, and they are vulnerable to attacks and human rights violations by the dominant clans."

IRIN-CEA 15 June 2001

"In Somali culture, clan is the inherited patriarchal lineage of ancestors, passed down orally in detail, generation to generation, determining origin, social standing, and access to territory, property and power. In times of trouble, the clan also pays a penalty for inflicting death or injury, which relieves the burden from individuals and families. At its worst, clan leads to conflict, xenophobia and control. 'But at its best, the clan works like the western world's social security welfare system. It protects, it means that all actions against you and your family will have consequences,' said a Somali source."

UN December 1998, p. 7

"The social context of human development in Somalia cannot be understood without reference to clan affiliation. Lineage identity is a central organizing force in Somali society. At the grassroots level, clan elders and other community leaders play a vital role in providing most of the day-to-day governance throughout Somalia, in the absence of effective state authority, and are often instrumental in maintaining local stability. [...]; the clan is a vital source of group protection, social security and customary law in the absence of state infrastructure. On the other hand, clannism is a powerful force contributing to unstable alliances, diffusion of power and communal conflict over scarce resources. In the period of state collapse, it has proved to be a divisive and destructive tool in the hands of political leaders. A second force, economic and business interests, at times promotes inter-clan and inter-factional accords for the sake of improved market conditions. However, these players also resort to armed conflict in pursuit of market control and price-fixing."

PROPERTY ISSUES

Overview

Property issues (Special report, 2006)

Control over power and resources, notably land, is the main driving force behind conflict in Somalia. The war has redrawn the ethnic map of some areas, as strong clan militias have taken possession of valuable and fertile lands in the south. The legitimate inhabitants were often evicted or fled massacres and sometimes were conscripted as forced labour onto the lands they once owned (Menkhaus, UNHCR, August 2003, p.32). Many displaced caused new displacement situations themselves when settling in a new area, thus creating very complex and multi-layered property issues.

Access to land during displacement

Along with land dispossession in areas of origin, lack of access to land in areas of refuge is one of the most serious problems affecting IDPs. Since land in Somalia tends to belong to specific clans, displaced people from minority groups and outside their clan home area usually do not have access to land other than rented plots. The dominant clans are generally reluctant to sell land to “outsiders” or members of other clans (Lindgaard, 23 March 2001). Even where possible, buying land would increase the risk of IDPs being dragged into conflicts which they normally want to avoid given their particular vulnerability. Local authorities usually have no or very little public land available to allocate to IDPs. As a result, the vast majority of IDPs rent plots on privately-owned land while the rest squat temporarily on government sites or abandoned buildings. Most IDPs are unprotected and can be evicted by landowners or authorities at any time. The insecurity of land tenure and ownership was cited as the primary concern of IDPs during a survey conducted in 2002 (UNCU, 30 July 2002, p.19).

South and central Somalia

In a number of towns in south and central Somalia, the issue of evictions from public buildings has taken on acute importance during the last months of 2005. The Transitional Federal Government (TFG) in Jowhar threatened to evict an estimated 1,000 IDP families from public buildings, which it intended to occupy. At the time of writing, it was unclear if an adequate area could be found for the families (Interview with UNICEF representative, Jowhar, October 2005; telephone interviews with UNICEF and OCHA representatives, Nairobi, December 2005). In Garowe, IDPs were also being threatened with eviction from public buildings and private properties, and possibilities for relocating them to the old airport area were being examined. In Kismayo, at the end of 2005, more than 600 IDP families were threatened with eviction without alternative living space. At the time, no international agencies were present in Kismayo to promote the provision of alternative accommodation (OCHA, November 2005). UN officials were intending to take up the issue of occupation of public buildings with the federal and local authorities concerned, in order to find acceptable solutions for both the authorities and the displaced. During a Joint Needs Assessment meeting, the Somali authorities expressed commitment to ensuring a fair reclaiming process of public buildings for community service (Telephone interview with OCHA representative, Nairobi, 16 December 2005; email from OCHA representative, January 2006).

Puntland

In Bossaso, the issue of land tenure of IDPs is largely related to urban planning. Because of return movements, displacement and general urban migration of impoverished pastoralists, Bossaso has seen its population increase nearly 30-fold over the past 15 years and has become a major port and trading city, attracting Somali and Ethiopian migrants, returnees and IDPs. The phenomenon of human smuggling has taken on worrying dimensions over the past couple of years and the number of new arrivals is on the increase. While the Bossaso authorities seem willing to understand the particular vulnerabilities of migrants and IDPs, the extent of uncontrolled migration to, and settlement in, Bossaso puts a strain on the willingness to assist IDPs in finding more permanent housing, not least for fear of attracting more people from the south (Interviews with agencies in Bossaso, September 2004 and October 2005).

In this context, the agreement between local authorities and the UN at the end of 2005 for allocating five plots within the city limits to IDP resettlement is a very positive development. IDP settlements in Bossaso have so far been built on private land. Extortion of IDPs by landowners were common, and humanitarian organisations were reluctant to become operational in the settlements because landowners would regularly obstruct their activities. UN agencies have been actively supporting local authorities to find appropriate plots for new settlements. After a failed attempt in 2002, the new plots allocated in 2005 were intended for permanent settlement for a few hundred IDP families. A municipal by-law was to be drawn up to institutionalise the arrangements between land owners, municipality and inhabitants. The development of minimum standards for basic services in the current settlements was to be encouraged. From the UN side, the process is led by UN-Habitat, which plans to use Bossaso as a pilot project, hoping to engage other towns, particularly Hargeisa, in a similar process of resettlement land allocation. A task force of several agencies is to implement projects to improve public services (Telephone interviews with OCHA and UNICEF representatives, Nairobi, December 2005; email from UN Habitat, December 2005).

Somaliland

In Somaliland, the land problem is exacerbated by the need to absorb 800,000 returning refugees in the past decade, of whom 470,000 were assisted by UNHCR. The vast majority of the returnees moved to Hargeisa rather than to their areas of origin. In an attempt to regularise the rapid irregular urban growth, the Hargeisa local authorities have allocated a couple of permanent settlements and recently created two new ones, Ayaha I and II. The settlements have some schools and local markets, and the inhabitants own a plot of land. While returning refugees were registered for relocation on the presentation of a refugee card, IDPs are not eligible for relocation, as the authorities still consider them foreigners and do not want to create a pull factor by giving the impression that IDPs can settle permanently. Some IDPs rent plots from returned refugees who have moved on or had multiple refugee cards, while many others got stranded on the streets, having nowhere to settle. In Hargeisa, as in most towns, there is fierce competition for land and access to scarce basic facilities, particularly water, and many returnees end up destitute among IDP populations, once their UNHCR return package is used up (Interviews with NRC representative and other agencies, Hargeisa, August 2004 and October 2005).

International agencies have also been reluctant to invest in water points, latrines or other infrastructure development projects in IDP settlements situated on privately-owned land, as there have been numerous cases of landlords or militias appropriating and privatising such facilities in order to charge fees from IDPs for their use (UNCU, 30 July 2002, p.19). Recently, the international community has become somewhat more confident in investing in infrastructure in the settlements, including market places. But access to basic facilities remains highly insufficient (Interviews with UNICEF and WFP representatives, Bossaso, October 2005).

Solving property issues to foster return movements

Property issues are one of the core obstacles to IDP return and must become a fundamental component of any meaningful reconstruction process. For most IDPs originating from Mogadishu,

Juba, Shabelle or Gedo regions, return is neither safe nor sustainable. Most of their lands have been occupied by other clans, and many villages were burnt to the ground, like in Bu'ale, Middle Juba, during the clashes of 2003 and 2004. Over 80 per cent of southern Somalis in Hargeisa cited war and insecurity as the main obstacle to return (Clark, June 2002, p.31; NRC, State House Survey, 2005). The lack of viable return opportunities consolidates the illegal, nepotistic and violent transfer of property started under the Barre dictatorship, undermines prospects for durable solutions and ultimately is an obstacle to reconciliation if it is not correctly addressed in the current process of peace-building and reconstruction. The Minister of Land and Settlement declared that the TFG would engage in a land reform as soon as it had firmly established itself in Mogadishu. He suggested that the still existing land records from before the civil war should serve as a basis, together with traditional conflict resolution mechanisms, to solve land disputes (IRIN, 2 August 2005).

General

IDPs most vulnerable to HLP violations (August 2008)

- Displaced population most affected by conflict and HLP violations
- The Somali Minister of Land and Settlement acknowledges the daunting task of property restitution after many years of conflict
- He envisages using pre-conflict land records to settle disputes, along with traditional dispute resolution mechanisms
- The Somali traditional leaders will have an important role
- The international community is asked to assist the process by providing expertise in land-mapping

Displacement Solutions, August 2008

"The displaced population of Somalia faces a series of housing, land and property challenges linked to the massive displacement that has taken place in the country during the past two decades. The lack of a central State authority, prolonged armed conflict among different clan-based militias, perpetual lawlessness and violence, the destruction of economic and social infrastructure, repeated natural disasters and an ever unclear prognosis of Somalia's political future, have all combined to create one of the world's most complex HLP rights quagmires where more than 850,000 people are currently classified as IDPs, and a further one million citizens as refugees.

Many of the HLP challenges in Somalia have been thoroughly outlined in a recent report commissioned by NRC, UN Habitat and UNHCR in 2008, and these will not be repeated here.² The present strategy paper draws on the results of the larger 2008 report, and highlights in particular the question of what creative measures might be taken by the international community now - despite ongoing insecurity in Somalia - to begin to process of more structurally addressing the HLP rights of internally displaced persons within the volatile and unpredictable environment of South Central Somalia (SCS).

It is clear that any planned initiatives by the humanitarian community in the SCS to restore or increase the HLP rights of the displaced population will face a plethora of structural hurdles. At the most basic level, the absence of the rule of law and HLP rights enforcement mechanisms within the country makes it practically impossible to even imagine invoking international human rights instruments as tools for ensuring the minimum respect for HLP rights.³ Although it is clear that the central Somali government does not have effective control over the territory recognised

by the international community as the Somalia, the effective presence of State authorities in South Central Somalia, while limited to two cities - Baidoa and certain districts in Mogadishu - nonetheless does generate certain legal obligations that these authorities should be assisted to uphold.

It is also important to emphasise that although Somalia may lack a central governing authority which is responsible, capable and willing to enforce basic human rights standards, the basic HLP rights of Somalia's citizens remain firmly in place. All of Somalia's displaced people, both within and outside the country, possess the full spectrum of internationally recognised housing, land and property rights, including the rights associated with the restitution of housing, land and property and the right to return to one's place of habitual residence..."

Somalia JNA, June 2006, p. 33:

Lack of land restitution mechanisms is a critical problem for refugees and IDPs originating from *South-Central* regions, who are unable to return to their homes. With no implementation of central government authority and the erosion of the legal system, land and property is vulnerable to unauthorized occupation. At the current stage of peace building and reconstruction, unresolved occupation of land and property is a major issue that requires resolution. This is necessary before sustainable durable solutions for the displaced, medium-term and large scale investments, and proper urban planning is possible, since families who owned property and assets prior to the displacement are unable to reclaim and resettle in their places of origin. All regional authorities currently lack the influence and authority to provide adequate protection to the displaced and to implement mechanisms for identification and restitution.

IRIN, 2 August 2005:

Even as Somalia tries to lift itself out of the devastation caused by nearly a-decade-and-a-half of civil war, fears abound that land disputes will erupt when the interim government becomes fully operational, threatening the country's stability once more.

In an interview with IRIN at the temporary seat of government in Jowhar, 90 km north of the capital, Mogadishu, the Minister of Land and Settlement, Mowlid Mani Mohamed, said plans were being drawn up to address questions of land ownership. Below are excerpts from the interview:

QUESTION: What is the first issue your ministry plans to tackle in Somalia?

ANSWER: The first issue is how to negotiate between those who are completely landless, because there are a lot of land disputes in Somalia after 15 years of catastrophe. There are people who looted plans [and] people who openly snatched land from other people. The biggest problem we shall face is how to solve the problem of land disputes.

Q: How do you plan to go about this?

A: We cannot absolutely force the people to give up the occupied land seized by gunmen. The solution is to use the traditional method to convince the person and to use traditional leaders to tell the occupier that he must leave the land. We cannot force them or use guns to get them to leave occupied land. We want to use our own traditional methods to vacate the land occupied by gunmen in Somalia.

Q: It sounds like a daunting task. Do you have records of titles to help you define who owns what?

A: We do, because all lands issued before the civil war broke out were recorded by the local government - in Mogadishu and every local government, in every village and city. All those records are still available, we can get them.

After the civil war [broke out], no one could issue permits or authorisation for owning a plot of land. So we will use the old records because these are the only legal documents that one can use to prove that the land is his. Some people have been known to issue fake documents, but luckily, Somalis know each other, nobody can fool us into pretending they own land they really don't.

Q: Your ministry is now established in Jowhar?

A: The ministry is not established in Jowhar. We are going to Mogadishu, since Mogadishu is the capital city of Somalia. We are moving as soon as the problem [of insecurity] there is solved, which is what we are working on now. As soon as Mogadishu is secure we will have, in all regions, representatives of the Ministry of Lands and Settlements who can respond to the demands of the people in the regions.

Q: Is there a role for Somali civil society to play in this task ?

A: The traditional leaders are part of the civil society, and we want to use these traditional leaders to solve the problem of land disputes; and there are other civil society members who must play their role. Because we cannot say that the Ministry of Lands and Settlements has an armed group who can enforce our decisions. We want to use the civil society and its traditional methods of resolving problems of the people in their area.

Q: What is the traditional Somali way of solving disputes?

A: Our traditional way of solving problems is according to our religion - we put every party on oath. They have to swear that the land is theirs, and the adverse party will not contest this, because we respect our religion very much, and people are afraid of lying in such conditions. We put the party's hand on the holy Quran, and we ask him to swear. If he is not the owner of the land, he will refrain from taking the oath. Then we deliver the sentence that gives back the land to its rightful owner. Before taking the oath, we always try to convince the person that the land is not his - if he insists, we show him the legal documents of the rightful owner.

A: We need the international community, because we want them to give us experts and personalities who are well qualified in land-mapping to draw technical surveys of Somalia.

A: We foresee a change in the legislation because the previous system was the one left by the colonialists. We have to invent a new method of issuing and registering the land.

A: Exactly, we will have land reform in the future. [...] For the time being we have not established them yet, but we are in the process of drafting it with engineers, experts and people who are qualified in this area, and who will assist the ministry.

IDPs face additional insecurity because they cannot own land (April 2006)

- For many IDPs, the fact that they cannot own land adds insecurity to their already precarious social and economic situation

WFP, 30 April 2006, p.11:

"3.19 Land ownership is the main issue for the majority, who live in shacks on private lands. The trauma of fleeing wars and droughts has turned into a nightmare of insecurity. Everyday the men and women set off in search of incomes leaving the children home in care of the eldest child. Land owners have extensive rights, charge rent, and often, without notice, would place rocks in the shacks. (An indication that the premises must be vacated immediately.) The parents would return to a terrified group of children and no alternative place to relocate. This insecurity has stifled their ability to plan, to invest in skills training or small businesses. Life is a daily survival with constant threat of eviction.

3.20 Permanent construction is forbidden, walls are made from cardboard boxes and houses are small one room shacks 4x4 meters (12 ft x 12 ft) in size. There is no electricity or plumbing. There are no private toilets. A camp of 500 households in Bossaso has six public toilets and the open coastline. To make matters worse, public toilets and the berket, which is the only source of water, are owned by the landowners who charge heavily for their use. With an average income of 10 thousand Somali Shillings (0.75 dollars) most of the household incomes are spent on water and food. Children do not attend school because fees and uniforms are unaffordable. Exploitation is the only suitable description of this racket. It is a human rights tragedy.

3.21 Land ownership is the primary issue of these IDPs in a country with a land mass larger than France. Once settled on their own lands, micro-credits, income generating schemes and free schooling would be required."

Farming minorities are particularly dependent on property restitution mechanisms (June 2006)

Somalia JNA, p.19:

"In *South-Central* Somalia, agricultural production is associated with distinct ethnic groups, and considered an inferior occupation by those with a pastoralist heritage. Some of the worst abuses perpetrated during the civil war were directed against the riverine Bantu farmers and the Bay region Rahanweyn agro-pastoralists. There is need for urgent restitution of riverine agricultural land to rightful former owners."

Most IDPs from south/central Somalia in Hargeisa rent land (Oct 2005)

- Displaced from south/central Somalia do not own their land and pay between 10,000-20,000Sshs monthly rent
- So far, the local authorities are unable or unwilling to allocate land for IDPs from south/central Somalia, as Somaliland already has to absorb over 800,000 returning refugees
- Some returning refugees having multiple cards were allocated extra land in resettlement area of Aw Aden which they then rent to IDPs
- IDPs would not be willing/able to afford to buy land because they wish to return to the south, and as non-Somalilanders, locals would grab the land from them and disputes would rise

Interviews, Hargeisa, August 2004 and October 2005

Most land in Somaliland is privately owned and the government owns little land. The resettlement site allocated by the government to returning refugees (of Somaliland origin) is the outcome of lengthy negotiations and it is unlikely that Somaliland authorities would allocate land to southern IDP. They may give them a temporary place of settlement. The authorities seem to want to avoid

IDP settlements to become permanent, for fear of attracting more IDPs. Finding solutions for permanent settlement of Hargeisa's IDPs is one of the key projects of the international organisations. Under the lead of UN Habitat, discussions are underway with the Hargeisa authorities to find land to allocate to IDPs, as has been done in the past for returnees. Currently, most IDPs rent land for between 10,000-20,000Sshs monthly. Some of the returnees who were allocated plots of land on government resettlement area in Aw Aden, had multiple returnee cards therefore were allocated more than one plot and then rent it to IDPs from the south.

In the view of some analysts, IDPs in Somaliland are not really interested in buying land, even if they could afford it, because in the future and when safety allows they would like to go back to southern Somalia. IDPs are also interested in avoiding any legal or social problems. Since they do not originally come from Somaliland and are considered illegal migrants, they are not considered to be entitled to land by other Somalilanders. The land would most likely be grabbed back from them, or they would suffer threats and risk to be involved in conflict.

Clark, June 2002, p.32

"- 30% of area residents report they owned property before the war and virtually all report having no access to it now, citing war and insecurity as the primary reasons why they no longer have access.

- Almost half of the residents currently own their land. The rest of the households live on land owned by the government (primarily Stadium and State House residents) or by private individuals (primarily in Daami). Three out of four households currently owning their land were allocated it by the government.

- Somalilanders are most likely to own their own land, while Southern Somalis generally do not own their land and are the group most likely to be paying rent for their land/home.

"75% of Daami residents who don't own their land pay rent on it; these residents are predominantly the Southern Somalis and Ethiopians. In Daami, 30 out of 34 interviewed Southern Somali families paid rent, while 11 out of 13 Ethiopian families paid rent. In Daami, only 4 out of 50 families originally from Somaliland pay rent."

Public land found for Bosasso IDPs (May 2006)

- At the end of 2005, five plots of public land have been identified for permanently relocating Bosasso's IDPs.
- So far, IDP settlements are build on privately-owned land; this often undermines provision of basic services which are appropriated by the land owners
- Although many fires destroyed IDP houses, IDPs would not build with better materials, because on private land they risk forced evictions at any time
- The fact that public land is 'privatized' by local residents and then rented for exorbitant prices worsens IDP status
- IDPs recurrently evicted incur high re-settlement expenditure

UN OCHA, 19 May 2006:

"A road map was produced to provide concrete proposals on how to operationalise the UNCT approved joint UN strategy to address the needs of IDPs/Returnees in Bosasso, based on discussions held in Bosasso in December 2005 with the international aid community and the local and regional authorities. UN Habitat took the lead of the small inter-agency task force, which worked with a working group established by the Puntland authorities.

Bosasso, a booming port town in the northeast of Puntland, has experienced strong demographic and economic growth, thanks to its relative political and social stability in the region. However, the city's spatial and economic development are severely constrained by the highly congested, inadequate road network, the lack of services and urban infrastructure and a lack of town planning to deal with the rapid urban growth and an increasing number of displaced moving from less stable areas. To deal with the settlement problems of the displaced in Bosasso, the Joint UN Strategy is being translated into an operational road map, clarifying the roles and responsibilities of international organizations and local counterparts. Two committees were formed: one for the improvement of current settlement sites of the displaced and one to deal with resettlement to sustainable locations. Previously the authorities struggled to find suitable land for resettlement but the committees managed to convince landowners to donate 5 parcels of land to be serviced and partially used for demonstration houses. Each will accommodate about 50 families, fully integrated into the host community. More land will be made available through land-sharing agreements. A priority action is to extend the water system through the eastern outskirts, where new expansion is expected to take place, servicing also existing temporary settlements. While this is being implemented, a broader planning framework is developed in parallel. Another priority is to decongest the central market area and the main road by creating a new artery on the eastern part of town. This will divert the heavy flow of trucks away from the congested central area, improve accessibility and hygienic conditions – and increase business - for the many informal vendors, who often originate from the displaced communities. These developments should give the East of Bosasso an economic boost.

Some agencies focus on water and sanitation, others on community mobilization, livelihood development and security. UNHABITAT, through its expertise in planning and urban design, provides an integrated framework beneficial to all, focusing on the provision of shelter (through self-help housing) and appropriate options for security of tenure. Joint action in Bosasso has been undertaken in collaboration with OCHA, UNDP, UNICEF, UNHCR, WFP and the Danish Refugee Council.

Email, UN HABITAT, December 2005:

The problem of IDP settlements on private land has been recognised for years, but it has been very difficult to find suitable public land on which the IDPs could settle without having to pay rent. The situation is also believed to be more conducive to aid agencies providing services to the internally displaced. At the end of 2005, five plots have been identified for permanently relocating IDPs from the 12 current settlement sites. A municipal by-law was to be drawn to institutionalise what is arranged between the land owners, municipality and inhabitants, with a provision that the latter cannot sell the house in the first five years.

The land owners give away the land in return for an upgrade in public services that will take place on the land. The land becomes public land and the IDPs get a long term lease and will own the house. In the future, there may be the possibility for IDPs to buy a plot of land.

A task force of several agencies is to implement projects to improve public services. Pledges have already been made for several hundreds of thousands of dollars, from NGOs and UN, to be implemented in the coming years. UN-HABITAT is trying to get funds to build houses following the approach that is used in Hargeisa and Garowe.

UNCU, 30 July 2002, p.19:

“The larger problem of the IDPs in Bosasso is the complete lack of urban planning and management of the town. While IDPs are the most vulnerable, the fact is that a high degree of land grabbing in which public land is spontaneously “privatized” by a resident landowner has worsened the status of the IDPs. More specifically, the landowners of land occupied by IDPs in Bosasso charge exorbitant rents not only for the occupied land, but also for the use of latrines and in many cases even the charge collection of water from shallow wells or water tankers. UNICEF officials have repeatedly discussed this issue with the camps’ landowners and asked them to reduce the rents they charge for UNICEF constructed latrines and water facilities.

A significant number of the displaced population are very vulnerable to spontaneously and forced relocations. The insecurity of land tenure and ownership on the part of IDPs was cited as the primary concern of the majority of IDPs we interviewed. To make matters worse the security situation in the camps is quite precarious and often dangerous for residents of the IDP camps. This is a particular source of concern for non-Darod clans such as the Madhiban and others displaced from Bay and Bakool.”

Land dispossession is the main driving force behind conflict in Somalia (2004)

- Civil war has redrawn the ethnic map of Somalia as strong clans took possession of urban real estates and agricultural lands
- The Hawiye occupied lands particularly in Mogadishu, Lower Shabelle and Jubba valley
- The Marehan occupied areas inhabited by the Rahanweyn and Aulihan, in turn the Aulihan have displaced Bantu and Hawiye clan in the Buaale area
- In 1999 the Haber Gedir militias led a scorched earth policy against Rahanweyn villages in Bay region
- Militarily powerful clan militias have illegally occupied lands belonging to other clans, who they evicted and sometimes conscripted as forced labour on the land they once owned
- The occupation of property and farmland will be a key issue to address and resolve in post-war Somalia
- Bantu minorities’ lands were occupied by Habr Gedir, Galjeecel and Absame clans
- Bantu and Rahanweyn minorities have been pushed closer towards the river banks where their fields are flooded seasonally

Menkhaus, UNHCR, August 2003, p.18-19, 32

“Should the Mbagathi talks or a successor peace process catalyze real efforts aimed at national reconciliation (and not merely power-sharing among elites), one of the burning issues it will raise is the matter of the forcible occupation of land and property in the course of the civil war. The civil war has redrawn the ethnic map of Somalia, as militarily stronger clans have come into possession of valuable urban and agricultural real estate (both private and state-owned). [...] Some have argued that the civil war itself has represented a continuation of a long-established pattern of land expropriation – previously via the laws of the state, now at the point of a gun – by stronger groups against weak agricultural communities. [...] The problem of land occupation is most pronounced in Mogadishu, Lower Shabelle, and the Jubba valley, and is most directly associated with the expansion of some powerful Hawiye clans into those areas. But it is by no means unique to the Hawiye; the Marehan clan has occupied land once inhabited by the Rahanweyn and Aulihan, the Aulihan have displaced Bantu and Hawiye clans in the Buaale area, the Hawadle have not permitted Haber Gedir property owners to return to Beled Weyn. At some point in the reconciliation process, the matter of occupation of homes, farmland, and state

property must be addressed and resolved. For aid agencies engaged in post-war rehabilitation projects which increase the value of private property, this issue can and does become a dangerous flash point.

[...]

Villages and occasionally neighbourhoods are often intentionally sacked and burned as part of armed clashes. Armed conflicts in the Medina district of Mogadishu in 2003, between the militias of Omar Finnish and Musa Sude, culminated in one of the most severe episodes of urban looting in several years. The serious armed clash between the RRA and Haber Gedir militia in Bay region in 1999 featured a virtual scorched earth policy against Rahanweyn villages by retreating Haber Gedir militia. Clashes between the Aulihan and Bartirre clans in Middle Jubba in 2003 also led to entire villages being burned. Such pillaging exacerbates household food insecurity and can contribute indirectly to needless deaths due to malnutrition and disease.

[...]

Clan militias have come to occupy important pieces of real estate in Mogadishu and parts of south Somalia. In contravention of the Geneva conventions, these valuable lands are being settled by the victorious clans at the expense of weaker clans, who have been pushed off their land, evicted from their houses, or in some instances conscripted as forced labour on the land they once owned. This has been a particular problem in parts of the Lower Shabelle and throughout the Jubba valley. In several locations such as Kismayo and Mogadishu occupying militia also restrict the movement of IDPs in camps which the militia control. IDPs may not return home, as the militia use the IDPs as bait for foreign assistance which they then divert."

FEWS, 8 May 2003

"Armed clan conflict that started in a form of revenge killings in the inland pastoral areas north of Hagar during November 2002 spilled over into a large area in Buale and Hagar districts[...]. Vulnerability assessment and baseline work recently carried out by FEWS NET and FSAU in March 2003 suggests that 15-25 percent of the houses in Buale town were burned down. Moreover, properties and food stocks were looted. Houses, business, standing crops and underground granaries (*bakaar*) were destroyed or looted and civilian populations displaced."

ODI, 31 December 2003, p.11-12

Bantu and Rahanweyn minorities forced off lands:

"Although land grab is not a new phenomenon during the past decade, Bantu communities on the west bank of the river Juba in particular (notably between Kamsuuma and Kismaayo) have seen their land occupied by the Habr Gedir and Galjeecel and, around Buale, by Absame clans. Agricultural implements and water pumps have been looted, water management systems have fallen into disrepair, and where land is no longer farmed it has reverted to scrub. Although some patron-client sharecropping arrangements exist on land under 'occupation', the collapse of plantation agriculture has dramatically reduced income opportunities."

CHR 18 February 1999, paras. 77-80

"During the civil war, the Bantu population has been systematically pushed off their land towards the river by militias or bandits. They are now so close to the river that they face a real risk of their settlements being washed away during floods.

[...]

The Rahanweyn minority lives on fertile agricultural land and is more advanced in agriculture. It too has been subjected to dispossession and displacement."

CHR 26 January 2000, p. 17

"Bantus continue to be forced off their land, their property continues to be looted and their villages destroyed."

Lindgaard 23 March 2001

IDPs only able to rent land:

" IDPs often come from minority groups (Bantu) and clans with low status in the community. One problem of the IDPs is that the major clans will not sell land to 'outsiders'/members of other clans. IDPs therefore only have access to rented land."

IRIN-CEA 24 October 2000, "Ten reported dead in Qoroley land struggle"

Jiddu sub-clan claim to own all land in Qoroley:

"Fighting between different clans with rival claims to land has left at least 10 dead and 15 injured in Yoroley, 75 km south of the Somali capital Mogadishu, the Associated Press agency (AP) reported on Monday [23 October 2000]. The fighting, which began on Sunday and continued sporadically Monday, pitted members of the Jiddu sub-clan, which claims to own all the land around Qoroley, and farmers from other clans who it claims have occupied its land, the report said. 'The Jiddu clan fighters have started displacing all of the other farmers, by either setting their animals to graze in the others' farms or just destroying them,' AP quoted a traditional elder Abdullahi Khalif Kobleh as saying. So far, six members of the Jiddu and four from other clans had been killed."

IDP women cannot access land without male support (July 2002)

- Most IDP women who lost their husband in conflict or during displacement are in a predicament to access land and feed their families

UNCU, 30 July 2002, p.35

"Representing the majority of IDP population in the district, women play a key role in supporting the household income. In their camps, the IDPs women bear two responsibilities reproductive and productive to support their household income. However, discrimination affects their socio-economic activities both in and outside their households. Traditionally women need a husband or male relative to have access to land. However, most of the IDPs women are single parent mothers who lost their husbands during the conflicts or displacement. They suffer lack of access to cultivable lands, which they can use to produce some subsistence food. Even when the husband is present, women still suffer social problems that results from entrenched attitudes of men towards women. In many cases men misuse their responsibilities and harass their wives, particularly when they want to misuse the household income to buy unnecessary goods such as miraa. Because of lack of jobs, most of the IDPs men are depressed and they chew miraa to entertain themselves."

PATTERNS OF RETURN AND RESETTLEMENT

Overview

Return and resettlement (Special report, 2006)

Due to continued insecurity in south and central Somalia, very few IDPs have gone back to their areas of origin. Surveys in settlements indicate that an overwhelming majority prefers to remain in the settlements or to buy land and settle locally. Pastoralists and farmers who have lived in urban settings for over ten years often do not wish to return to their previous way of life. In this context, the UN Country Team's IDP strategy for finding durable solutions focuses on local integration in urban areas by avoiding to create isolated settlements, and on offering incentives for returning to rural areas. The ongoing efforts to find suitable resettlement sites in northern cities as Hargeisa and Bossaso are part of that strategy.

While there are very few return movements to the south, international organisations are making increased efforts to create resettlement incentives by assisting pastoralists to return to their traditional way of life, and by re-creating agricultural areas for farmers. It is believed that a relatively high number of IDPs would return to rural areas if livelihood prospects and security were provided. The UN Country Team hopes that the planned country-wide IDP profiling will allow locating those IDPs willing to return (Joint UN IDP Strategy, July 2005).

Return

Significant returns to Mogadishu between January-April 2009 (May 2009)

- Some 75,000 people returned to Mogadishu between Jan-April 2009
- 14,000 people returned in April alone
- UNHCR report return to Mogadishu despite volatility of the situation

UN OCHA, 15 May 2009, pg 1&2

"IDPs continued to return to Mogadishu. During the month of April, some 14,000 returned. The total number of returnees stand at nearly 75,000 as of end April".

[...]

In April, IDP returns were the single greatest population movement in Somalia. Nearly 14,000 people who were displaced due to violence in Mogadishu over the last two years have returned to their homes in the capital. The returnees are coming from various locations in Somalia, with the most significant movements from Mudug, Hiraaan, and Galgaduud".

UN News Centre, 30 January 2009

"The United Nations refugee agency said today there are signs that, for the first time in two years, Somalis displaced by fighting in Mogadishu are beginning to return to their devastated neighbourhoods, but warned that the situation in the capital remains very volatile.

Over 16,000 internally displaced persons (IDPs) who had fled to various parts of Somalia have returned to Yaaqshiid, Haliwaa and Wardhiigley in the last two weeks, following the withdrawal of Ethiopian troops from Mogadishu, according to the UN High Commissioner for Refugees.

The three western districts were scenes of some of the worst violence and human rights abuses witnessed in Mogadishu some months ago.

UNHCR's local partners say that the returnees are families who intend to stay for good in the city, and not simply relatives who have gone in advance to assess the situation or check on their properties.

Despite the returns, the agency said the security situation in the city remains "extremely volatile," with some 10,000 civilians fleeing this week from Dharkenley and Wadajir districts in north-east Mogadishu to escape advancing Islamist militia, who wanted to seize control of the neighbourhood. "Most of the displaced have moved to other neighbourhoods within Mogadishu or to the outskirts of the city," said UNHCR spokesperson Ron Redmond..."

Small-scale returns in Bay and Hiran regions thanks to reconciliations (July 2004)

- Large number of IDPs who had fled from Baidoa to Mogadishu, Wajid and Burhakaba have started to returning after the RRA reconciled
- Reconciliation among Rahanweyn triggered the return of 2500 IDPs from Baydhabo in the Bay region
- The 1200 IDPs in Waajid who fled the fight between RRA are also expected to return
- IDPs in Wajid had already returned to Baidoa to prepare land in February 2004
- In Hiran region, a peace agreement signed between rival clans west of Belet Weyne allowed people who had fled hostilities around Belet Weyne to return

OCHA, 31 July 2004

"The recent peace agreement by the two RRA factions in Baidoa has improved the security situation in Bay and Bakool region. The number of roadblocks on the roads between Baidoa and Mogadishu has considerably reduced easing traffic movement. A large number of people who fled during the conflict to Mogadishu, Wajid and Burhakaba have started to return to their homes. The returns are a positive signal that the residents believe that the truce will hold. As result of improved road transport, food prices in Baidoa markets have come down."

UN, 15 June 2004, p.3

"Meanwhile, reconciliation efforts among the Rahanweyn have triggered the return of large numbers of IDPs to the villages surrounding Baydhaba in Bay region, more than 2,500 of who fled fighting amongst the Rahanweyn Resistance Army (RRA) in 2003. An estimated 1,200 remain in Waajid but these too are expected to return home. While the talks have yet to conclude, the area has been peaceful since they began in January 2004, and access has improved considerably."

FSAU, 25 March 2004, p.3

"In response to the recommendations of the Wajid multi-sectoral assessment in January 2004, World Vision visited Bakaar Yar and Bakaar Weyn IDP camps in early February, to provide primary health care services. However, World Vision found deserted IDP camps. The IDPs are reported to have returned to Baidoa after improvement of the security situation there and the fact that the land preparation period (Gu planting season in March/April) was approaching."

UNICEF, 30 June 2004

"In Hiran region, a peace agreement was signed between rival clans west of Belet Weyne. People who had been displaced earlier in fighting around Belet Weyne started flocking back."

IDPs from the South have little to return to owing to recurrent conflicts and unchecked human rights violations (Aug 2004)

- IDPs who fled Bu'aale in Middle Juba since the past two years of clan clashes are reluctant to return due to ongoing insecurity, poor rains and the burned villages stayed empty as of August 2004
- Clashes in Gedo discourages the return of IDPs to Belet Xaawo where houses were burnt down
- IDPs' right to return is stipulated in the ILO Convention No. 169 for Indigenous and Tribal People in Independent Countries, on freedom of movement and right to choose one's residence
- Most IDPs are from minority groups and are afraid of returning to their home areas by fear of attacks from the occupying clans
- The unresolved issue of transfer of property and land through clan nepotism during Barre is a major obstacle to return
- 44% IDPs from southern Somalia in Hargeisa want to stay there
- Over 80% southern Somalis state war as the main obstacle to return
- No social services or infrastructure in communities of origin make return unviable

OCHA, 5 August 2004

"Bu'ale [Middle Juba] was adversely affected by clan clashes for the last two years that has led to deaths and displacement. Some of the villages burnt at the height of the skirmishes remain uninhabited. Some of the IDPs are reluctant to return because of the failure of the last GU season as farming is their only livelihood."

OCHA, 31 July 2004

"In spite of various peace initiatives in Kenya, Ethiopia and Somalia, the security situation in Gedo region remains tense. Two houses were burnt down in Belet Xaawo on 22nd July 2004, ostensibly to discourage the return of people displaced by the May and June clashes. Rumours of impending attack caused the militia in the town to mobilise their resources in readiness for fighting. Tension heightened when peace talks hosted by the Ethiopian administration in Dolo Addo between the warring sub-clans broke down."

Ibrahim F., 15 August 2002, p.4

"Once persons are internally displaced, they need to be guaranteed the right to return voluntarily and in safety to their place of residence. Although there is no general rule that affirms the right of internally displaced persons to return to their original place of residence or to move to another safe place of their choice. However, such a right can in principle, be deduced from the freedom of movement and the right to choose one's residence. ILO Convention No. 169 concerning Indigenous and Tribal People in Independent Countries states explicitly that "whenever possible, these people shall have the right to return to their traditional lands, as soon as the grounds for relocation cease to exist" (art.16 para.3)"

UNCU/OCHA, 30 July 2002, p.26

"The Rahanweyn constitute over 50% of the IDPs in Luuq. They came from Hudur and Wajid following the violence and occupation that occurred in Bakool and Bay region from 1995 to 1999. Despite harsh living conditions of the IDPs are ambivalent about returning to their original lands. For example the Marehan IDPs have expressed profound fear of the persisting insecurity and sporadic clashes between Marehan subclan which caused their displacement. The Rahanweyn IDPs indicate that the situation in their original lands is not yet good for their return."

UNCU, 30 July 2002, p.34

"All IDPs have little prospects of returning to their original places, as conflicts and human rights violations still persist in some of these original places. For example, the Galagale IDPs have profound fear of persecution from the Abgal clan who is still in control of their territories. The Bantu lost all what they had during the conflict and they have little hope of getting back their ancestral lands."

UNDP Somalia, 2001, p.61

"However, few of the existing displaced seem to be returning to their original homes. For some who were displaced from rural areas such as Bay and Bakol, there is little economic incentive to do so. For others who were originally residents of Mogadishu, a significant proportion do not feel it is safe or viable to return there. This is a potential obstacle for future reconciliation. First, because it reflects the continuing instability of several regions, and second because it reflects a consolidation of population realignments and the violent transfer of property, such as land, that occurred during the war."

Clark, June 2002, p.27

"Interagency assessment conducted in 8 areas around Hargeisa (Somaliland) in returnee and IDP settlements (June 2002). The second largest settlement, Daami hosts about 10,000 people, of whom 35% are displaced from Southern Somalia."

Clark, June 2002, p.28

"All respondents were asked if they planned to remain living "here" for the rest of their lives, insh'allah; [...] Residents in all areas but Daami, State House, and Stadium responded "yes" in large numbers. The residents of State House and Stadium are aware that they do not own the land and that they may well be resettled, accounting for the low rate of planning to remain there."

Overall, non-Somali Ethiopians planned to remain at a significantly lower rate than those from Somaliland (a rate of 71% [56-82%] versus 85% [81-89%] ($P < 0.05$)). Those originally from Southern Somalia planned to stay at a rate of 44% [30-60%] compared to 85% [81-89%] ($P < 0.0001$) for those originally from Somaliland."

Clark, June 2002, p.31

"Southern Somalis report owning land before the wars at a significantly higher rate than those residents who are originally from Somaliland. Over 80% of Southern Somalis who had land before the war cited war or insecurity as a reason they could not return; the rest cited drought (under "other reason")."

UN December 1998, p. 10

"It is unlikely that the Somali diaspora can be attracted to return to a country where mere survival is often the main priority, development beyond aspiration and where social services and economic and administrative infrastructure have collapsed. Effectively addressing these gaps in services is crucial to the reintegration of the absolute poor, including returning refugees, IDPs and the poorest sectors of the urban and rural populations, who live on the brink of disaster.

[...]

Until security issues are addressed, recovery or progress towards it through reintegration, will remain under threat. Insecurity is a key component of recurrent emergencies in Somalia and one that needs to be taken into account in order to find viable and enduring solutions. Rehabilitation and reintegration interventions have significant potential to reduce insecurity. In particular, the demobilisation and reintegration of ex-militia during rehabilitation phases contribute to overall security in a region. Settling the militia has been a pre-requisite for lasting peace and security in current zones of recovery and transition."

Resettlement

Resettlement in Somaliland complicated by unemployment and poverty (June 2004)

- Many IDPs from the south have not integrated into host communities
- Most returnees live in slum areas and face the same destitution as IDPs and over 95% cannot meet their basic needs
- IDPs and returnees could upset the relative socio-economic balance achieved in Somaliland unless substantial reintegration assistance is invested there
- Since the early 1990s about 1 million refugees have returned to Somalia mainly to Somaliland, 470,000 of which with UNHCR assistance
- Many destitute returnees settle in urban areas alongside IDPs rather than returning to their areas of origin
- Reintegration is complicated by general poverty, scarcity of water, lack of services and unemployment
- The Government of Somaliland is resettling returnees/IDPs from the spontaneous settlements of State House, Stadium, Independence Garden, Hargeisa water storage area and Dami to the permanent settlements of Ayaha I and II and Aw Adan

- The Government of Somaliland has allocated land to returning refugees however is not able to provide the minimum services due to lack of resources
- While the UN designed programmes to resettle and reintegrate both IDPs and returnees, it is unclear whether the IDPs are being allocated resettlement land by the Somaliland authorities

UN, 18 November 2003, p.12-3

“They are largely from minority groups, and despite their often extended periods of displacement, have not been integrated geographically, economically, socially or politically into their host communities.

[...]

Since more than 800,000 Somalis fled their homeland at the height of the crisis in 1991 and 1992, about 465,000 have returned home with some form of international assistance, mainly to northern Somalia. Many more have returned home spontaneously. About 400,000 remain in exile mainly in Kenya, Djibouti, Yemen and Ethiopia.

[...]

But, after the short-term assistance they receive upon returning is depleted, they share the same multiple problems faced by IDPs and other vulnerable groups in Somalia, as the struggle to become self-reliant continues at home. According to a 2003 United Nations High Commissioner for Refugees (UNHCR) survey of returnees, more than 95% of them cannot meet their most basic needs. Only 5% are able to afford three meals a day. Most, or 64 %, live on one. Their access to basic services is also limited. More than 64% have no access to a health facility and nearly half are 30 to 50 minutes away from the nearest water source. Women and girls are more vulnerable to abuse and are often unable to take advantage of educational opportunities, as their days are spent trying to feed the family through small scale trade, casual employment, market selling and begging. Returnees themselves most frequently summed up their current situation in two phrases: “labour market doesn’t exist” and “lack of income makes us vulnerable to disease and malnutrition.”

The challenges of helping returnees integrate are equally severe for local authorities. Somaliland, the largest recipient of returnees (since 1997, 210,000 with UNHCR assistance and another estimated 400,000 who returned spontaneously), has been unable to prevent the establishment of slum areas where returnees concentrate, despite major town planning efforts. Its flagging economy has meant increased competition over scarce resources for all, which has the potential to threaten the hard won peace there. In Puntland, 600 refugees have been assisted to voluntarily repatriate in 2003, while over the years at least another 100,000 returned spontaneously on their own, attracted by the region’s current economic boom and relative peace. But the fragility of this economic upturn could pose major problems for their sustainable reintegration in the future, and thus the stability of the region, unless substantial reintegration assistance is forthcoming.”

IRIN, 13 October 2003, p.10

“The fact that IDPs and returning refugees are largely viewed as a burden to their host community makes their integration into the host community a long and difficult process. Providing them with skills that could make them self-reliant will therefore hasten the process of reintegration. It is worth noting that literacy centres run by women NGOs are providing some of the vocational skills but lack proper management and funding.”

UNDP/UNHCR, 1 April 2004

"In 2004/2005 a further 19,000 are expected to come to Somaliland from Ethiopia mainly from Aisha camp, while 22,000 in the Hol Hol and Ali Adde camps in Djibouti are destined for the same area. Of these numbers, some may choose to disperse in their present countries of asylum, thus final repatriation figures may be lower. Once these repatriation movements are completed, the chapter of voluntary repatriation from Ethiopia and Djibouti to Somaliland will be closed.

[...]

The voluntary return of about 1 million refugees to Somalia (470,000 with UNHCR assistance), since the height of the crisis, continues to take place in one of the world's poorest countries, with nearly half the population living on less than US\$1 a day and only 10% rural literacy. Less than one-fifth of all children attend primary school and 20% of children die before five years of age. A quarter of the population in urban areas is unemployed.

[.....]

If not carefully supported in a community-based local area development framework aimed at alleviating poverty, fostering economic development as well as providing access to basic services, the voluntary return of large numbers of refugees could result in instability and conflict, rather than be an element of peace-building."

Government of Somaliland, 14 June 2004

"The country's huge number of returnees and IDPs are the poorest segment of the Somaliland society, who is yet to be reintegrated with the rest of the society. Indubitably, the returnees and IDPs are the most indigent groups in Somaliland now. The vast number of poor returnees and IDPs has a forlorn hope to reintegrate and re-establish sustainable livelihoods among the rest of their own society, at least for the near future. Although the peace and stability have allowed for some significant development initiatives, however, Somaliland continues to suffer substantial economic losses because of the long-time on –going livestock ban. The government of Somaliland has allocated plots of land and some limited services to certain returning refugees, but the lack of adequate resources impedes the implementation of its commitments to provide all the necessary services for these communities.

[...]

Many returnees, who have been repatriated back to the country with limited and few marketable skills and education, have faced a difficult situation to compete for scarce available job opportunities. In addition, the returnees have no income generating alternatives for them to sustain their livelihoods. Such circumstances often forced the returnees to live under conditions much worse than found in the refugees' camps they left. Apparently, most of the returnees often settle, together with IDPs, in and around the urban centres, rather than returning to their areas of origin. Most of the intensions of these particular returnees are mainly to find some kind of employment opportunities to make up for their former lost economic activities, mainly in the livestock sector. Returnees to the urban areas create an enormous burden to the already insufficient necessary life supporting resources, such as water, sanitation, ect. To already overcrowded urban centres. For instance, more than 40% of the Hargeisa residents (800,000) are composed of recent returnees who have settled in five major areas in Hargeisa, (Sheikh Nuur, Mohamed Mooge, Sinai, Ayaha, and Aw Adan). To this context, the following is " **a Comprehensive Relocation Plan of Returnees and IDPs from the Existing Temporary Settlements to other Permanent Areas in city of Hargeisa, the Capital of Somaliland**" program that the Hargeisa Municipality earlier proposed.

Summary: There is a need to allocate certain permanent settlements for the huge number of returnees/IDPs, who are still residing in public properties for several years and increasing to settle in these areas. This is obviously the first step to reintegrate the returnees. The municipality of Hargeisa is now engaged to make a proactive role reintegration by coming up with the plan to develop areas such as "**Ayaha and Aw Adan**" resettlement areas to absorb an estimated 10,000 returnee families and IDPs currently residing in six identified temporary resettlement areas.

The municipality of Hargeisa has attracted the biggest number of returnees and IDPs after the civil wars. Such massive influx to Hargeisa continues to date as more returnees are coming back formally through UNHCR and spontaneously on their own as Somaliland continues to enjoy peace and stability. Many settled in permanent resettlement areas in Hargeisa, and a lot more unaccounted for are scattered in different poor communities in the city. Hargeisa Municipality has five permanent resettlement areas and six identified temporary resettlement areas of returnees and IDPs. The following table illustrates this point:

Table 1.1: statistic of identified permanent and temporary areas for returnees/IDPs

Permanent resettlements	Current number of estimated houses	Holding capacity	Temporary resettlements	Current number estimated houses
Mohamed Mooge	4,000	6,000	State House	3,000
Sheikh Nuur	5,000	6,000	Stadium	2,600
Sinai	800	1,500	Independence Garden	200
Aw Adan	1,500	5,000	Hargeisa Water Storage Area	1,200
Ayah (new)	52	6,000	Dami	1,800
			Pepsi Cola	648
Total	11,352	24,000		9,448

Bosasso allocated plots for resettlement of some IDPs (2005)

With the support of the international community, the Bossaso authorities have allocated five plots for permanent resettlement of a few hundred IDP families. The case of Bossaso should serve as pilot project for other towns hosting large numbers of IDPs and returnees. For more information on the Bossaso resettlement plans see under "Property Issues"

HUMANITARIAN ACCESS

General

Humanitarian Access hampered by insecurity (November 2009)

- Constant change of administration adversely affect humanitarian programmes
- Fighting in Afgooye area limiting humanitarian work
- IDPs go without food as WFP suspend food distribution because of insecurity
- Al-Shabaab insurgent group ban UN agencies in areas under their control

IRIN, 23 November 2009

"Both locals and internally displaced persons (IDPs) in Somalia's central town of Beletweyne are experiencing increased hardship with several changes in the town's administration, residents say.

"Every time you think this group is here to stay and you adjust to them, they are replaced by a new group; we have had a change of administration three times since September," a journalist, who requested anonymity, told IRIN on 23 November.

The town has been alternating between falling under the control of government forces and Islamist insurgents, who have been fighting in the area.

The journalist said this had adversely affected the population as "aid agencies are unable to operate properly because they don't know who their interlocutor will be tomorrow".

The displaced, estimated at 15,000, who live in dozens of camps around the town, are the most affected.

"These people have been displaced numerous times; the little they get from WFP [UN World Food Programme] is not enough and most used to supplement it by doing casual work in the town," Haji Abdulle Mumin, an elder, said.

However, Mumin said since there was little business going on in the town, "no one is hiring". He said poor residents who depended on petty trade were also suffering.

He added that many of the displaced lacked adequate food and there were reports of children dying of malnutrition..."

UN News, 02 October 2009

"Somali civilians are bearing the brunt in the latest upsurge in fighting in the country's troubled south central region, the United Nations refugee agency said today, adding that 145 people have reportedly been killed and another 285 injured in heavy clashes in September alone.

[...]

"We are extremely concerned about the dire humanitarian situation of hundreds of thousands of civilians who have been displaced by the continuing conflict in Somalia," UNHCR spokesperson Andrej Mahecic told reporters in Geneva.

"Should the fighting between Al Shabaab and Hisb-ul-Islam escalate, we fear that more than half a million internally displaced people in the Afgooye corridor, some 30 kilometres south of Mogadishu, could be affected and uprooted once again," he said.

Mr. Mahecic added that insecurity in the Afgooye area is already significantly limiting humanitarian access to the IDPs, but the situation could further deteriorate, making it even more difficult for Somali and international humanitarian agencies to deliver assistance to people in need..."

IRIN, 27 August 2009

"Two months after food deliveries to Somalia's south-central town of Jowhar were halted, several thousand internally displaced persons (IDPs) are facing a food crisis, sources said.

"The little food we were given in June is gone; we have had nothing in the last two months," Asiyu Jilibey, a community leader, told IRIN on 27 August. "I don't know what will happen next but if help does not arrive soon we are in trouble."

An estimated 9,000 IDP families (49,000 people), live mostly in seven camps in the town, 90km north of the capital, Mogadishu. The camps are Dayah, Kalagoye, Bada Cas, Baryare, Bulu Matuuni, Biyafo and Sheikh Omar Camp.

Jilibey said most of the IDPs had been in the camps since early 2007, when an upsurge in violence in Mogadishu sent hundreds of thousands of people fleeing, "but we had a new influx in May, June and early July [2009]".

Food distributions were stopped in Jowhar after June due to insecurity, according to the UN World Food Programme (WFP).

"We last distributed 124.46MT of assorted food assistance to 8,190 Jowhar IDPs in June," Mahamud Hassan "Guled", a spokesman for WFP Somalia, said. "But due to the insecurity, our local partner could not distribute the planned July food rations to the IDPs and the situation remains the same this month."

The Islamist al-Shabab has been in control of Jowhar since May 2009. The group raided and looted UN offices there. Jowhar was the UN Children's Fund (UNICEF) main hub for the southern and central regions of Somalia..."

BBC News, 20 July 2009

"Somali militants accused of links to al-Qaeda have banned three United Nations agencies from operating in two southern towns they control.

Members of al-Shabab also raided the offices of the UN Political Office for Somalia, the Development Programme and the Department of Safety and Security.

Al-Shabab, who are fighting the UN-backed interim government, accused the agencies of being enemies of Islam.

A UN official said the raids had halted vital humanitarian work in the country.

The UN brokered the deal which brought President Sheikh Sharif Sheikh Ahmed, a moderate Islamist, to power in January.

Although he has promised to introduce Sharia law, al-Shabab accuses him of being a Western stooge and stages frequent attacks on government targets.

One unnamed UN staff member told Reuters news agency that armed militia had surrounded the compound in Baidoa and taken away three cars.

Another official told AFP news agency that al-Shabab members had "told staff not to worry, nobody will harm them".

Roseanne Charlton, the UN's acting humanitarian co-ordinator for Somalia, told the BBC that crucial radio equipment had been taken from Baidoa.

She said the theft would hold up critical humanitarian work..."

ODI, October 2008

"In late October 2007, as the crisis deepened, 40 national and international agencies signed a press release setting out the seriousness of the crisis and their inability to deliver adequate aid because of insecurity. They also called on political actors to step up their diplomatic efforts. Subsequently, NGO and UN humanitarian representatives were invited to *ad hoc* meetings to advise international political officials on how they could best assist agencies in opening up access to people in need. Previously, donors had challenged humanitarian reports of the scale and seriousness of the crisis. Now, the tone was different. With 40 agencies *jointly* declaring a disaster, they could not be ignored. This was reinforced by the willingness of the new UN Special Representative, Ahmedou Ould-Abdallah, to call for accountability and highlight the deteriorating situation. Another statement, signed by 44 NGOs, was released in late March 2008, in time for a UN Security Council meeting on Somalia.

Despite these efforts little has changed, except that people continue to be displaced, violence against women continues, access is even more difficult, the environment is more lethal and impunity reigns. No political solution has been found, even though the UN Special Representative has been trying his best to retrieve the situation and to bring a measure of coherence to the international political response. While there is cautious optimism that the opposition and the TFG might be brought together, past history means that many within the NGO community are planning for the worst..."

Security, misperception hamper intervention (October 2008)

- Humanitarian access becoming more and more difficult as a result of insecurity
- Perception of confusion ranging from economic, political, military or ideological
- UN bureaucracy cited as a hinderance to provision of aid and misperception by beneficiaries

Action Against Hunger (UK), 28 May 2008

"While the needs exceed crisis point, humanitarian access is becoming more and more difficult and thousands of Somalis cannot be assisted. In addition to acts of banditry and conflict tensions, security threats – including kidnapping and killing – targeting humanitarian workers are increasing dramatically. It has always been challenging to work in the complex security context of Somalia and the risk of confusion, or perception of confusion, between economic, political, military or

ideological agendas and humanitarian independent actors is high. In the current context characterised by a profusion of various local and international armed groups, it is of utmost importance to reaffirm the neutrality of humanitarian independent aid workers, who work for the welfare of the population in need."

ODI, October 2008

[...]

UN was facing in 'delivering' in complex emergencies. Security rules and regulations, while intended to promote an 'enabling environment' for humanitarian assistance and protection, have tended to cut off aid workers from the assisted and host population. The emphasis on physical safety, while justified by the increased targeting of humanitarian workers, widens misperception, mistrust and distance between aid workers and the populations they serve. Mini 'green zones', in the form of heavily bunkered UN compounds, armed escorts, armoured vehicles and even bullet-proof flack jackets and helmets, all increasingly isolate humanitarian workers from their operating environment.

Some of the problem is of our own making: aid organisations in general, and UN agencies in particular, suffer from an image problem and deep mistrust among Somalis, fuelled by years of operating with very little direct engagement with communities. Mitigating measures to enhance access to populations are incomplete if not complemented with 'tea shop diplomacy' – engaging with communities through their own channels of communication. Even in a country as volatile as Somalia, international presence is possible, but it requires a great deal of flexibility and creativity. Alternative ways of operating could include mobile teams, which have the flexibility to move when and where necessary to carry out a mission. In Somalia, this approach has been adopted by the International Committee of the Red Cross (ICRC) and some NGOs, but the UN still has difficulty adjusting its approach in this way. Another factor stymieing an appropriately flexible response is the increasing bureaucratisation of procurement policy. There is no doubt that strict rules are essential to ensure fair process and prevent the misuse of UN assets. However, rigid application of these rules, combined with a risk-averse culture, can lead to paralysis.

Blaming the bureaucratic nature of the UN agencies is too easy. Where there is political will, a way has been found. Eighteen years ago, it took the UN agencies a mere ten days to build a temporary city in the middle of the desert to host tens of thousands people fleeing Kuwait. In Somalia, it has taken more than five months to build a compound in Afgooye which would allow humanitarian workers access to what is currently the public face of one of the world's worst humanitarian crises. What is possible in a highly visible context somehow seems impossible in a 'neglected' one.

Somalia was chosen as a pilot country in the roll-out of the humanitarian reform programme – intended to make humanitarian response more accountable, predictable and efficient. In Somalia's case, humanitarian reform has clearly enhanced the identity of the humanitarian community, which has developed a common understanding of the scope of the crisis, common strategies and a unified response plan. Pooled funding, through the Central Emergency Response Fund and the Humanitarian Response Fund, has contributed to the joint setting of priorities and improved response. That said, agencies still have a long way to go to meet the challenge of coordinating the response in their respective clusters. Two years after the roll-out, the Somalia operation still has only one fully dedicated cluster lead out of nine. The other eight must juggle conflicting loyalties and competing demands from their agencies. The reform effort, while laudable, is not always matched by the shift in attitudes and allocation of support and resources necessary to make it truly effective..."

Security an obstacle to humanitarian assistance (Apr 2008)

- Lack of security a hinderance
- Targetting of aid workers a big problem
- Killings of humanitarian workers affect delivery of services
- Humanitarian convoys at risk of extortion and physical attack

WFP, 27 March 2008

"The World Food Programme (WFP) has warned that Somalia is sinking deeper into an abyss of suffering with hundreds and thousands of women and children uprooted by fighting while a lack of security is preventing full humanitarian access to some areas."

[...] We call on all authorities in Somalia to help us reach those in need."

MSF, 03 April 2004

"Following the killing of three staff members on January 28, the medical humanitarian organization Médecins Sans Frontières (MSF) has decided to close its project in the southern city of Kismayo, Somalia. Although activities in Kismayo will end, MSF remains committed to providing medical care to the Somali people, therefore projects in other locations in Somalia will continue to operate.

"This has been an extremely difficult decision to make," said Arjan Hehenkamp, MSF's Director of Operations for Somalia. "There is a significant need for independent humanitarian assistance in Kismayo, but we cannot continue working in a place where our staff have been deliberately targeted and brutally murdered."

MSF condemns attacks against humanitarian aid workers and their consequences on the delivery of assistance to vulnerable populations in Somalia. "

Reuters, 30 Jan 2008

"High levels of malnutrition and the difficulties of delivering aid make Somalia the world's most pressing humanitarian crisis, the U.N. refugee agency's representative there said on Tuesday.

More than 1 million people have fled their homes in Somalia, which is convulsed by fighting between Ethiopian-backed government forces, Islamist insurgents and an assortment of warlords.

"I've never seen anything like Somalia before," Guillermo Bettocchi, representative of the U.N. High Commissioner for Refugees, said during a visit to London.

"The situation is very severe. It is the most pressing humanitarian emergency in the world today -- even worse than Darfur," he told reporters, referring to the war in western Sudan, which has driven 2.5 million from their homes.

A bomb attack which killed three foreign aid workers in Somalia on Monday underlined the difficulty in delivering aid in the anarchic country that has been wracked by clan violence for 17 years, he said.

Fifteen percent of the population suffer acute malnutrition while health services are very limited and sanitation, water and shelters are extremely poor, Bettocchi said".

Report of the independent expert expert by the SG on the situation of HR in Somalia pp. 6

"The provision of humanitarian assistance in south and central Somalia is still often problematic, and the ability of people in dire need to access humanitarian aid is hampered. Convoys delivering food and humanitarian assistance have been delayed by weeks and months and face illegal "taxation" at numerous temporary checkpoints. Food deliveries by ship have been hijacked by pirates in Somali waters and there are reports of theft of food from beneficiaries - particularly from minority groups - occurring during and immediately after food distribution.

Access to humanitarian assistance - such as food and basic amenities, water and sanitation, and primary medical care - is also compromised by threats and intimidation of aid personnel and the targeting of actual aid operations by various parties. In some places, aid vehicles have been shot and in the course of their work, humanitarian aid personnel are forced to navigate roads possibly mined or planted with improvised explosive devices.

During the independent expert's mission, it was raised by some observers that the scale and magnitude of the human tragedy in Somalia justified a declaration of a state of emergency by the humanitarian community. It was underscored that the humanitarian needs of the civilian population, including now more than one million internally displaced persons and attacks against aid workers must be addressed and that all parties to the conflict must be pressed to preserve this vital humanitarian space."

NATIONAL AND INTERNATIONAL RESPONSES

Overview

Overview: National and international response (July 2008)

National response

The TFG and regional authorities have so far played little part in responding to the needs of IDPs in displacement; partly because of resource constraints and partly because of the general insecurity throughout the country. Indeed, where there is TFG control, many local authorities do not have the necessary capacity to collect taxes for service provision. The TFG established the National Refugee Commission with a mandate to cater for IDPs. However, the Commission has failed to carry out its mandate due to lack of financial resources and the prevailing security situation.

A host of national and community-based organisations provide assistance by partnering with international organisations or local businesses. The Somalia Red Crescent has offices in most parts of the country, and the Elman Peace and Human Rights Organisation monitors and records human rights abuses by both the government and the insurgents (Reuters, 31 December 2007). Other local organisations carry out area-specific activities, particularly in areas where the UN and other international organisations do not have access. However, their impact is also constrained by the prevailing insecurity and lack of funding.

International response

The desperate situation facing millions of Somalis has led to the immediate scaling-up of existing humanitarian and livelihood-support programmes. In the 2008 Mid-Year Review, UN agencies and NGO partners of the CAP revised financial requirements upwards from the original \$413 million to \$638 million, an increase of 54 per cent. Against the revised requirements, the CAP is now approximately 34 per cent funded. Much of the increase is attributed to the fact that the requirements of the food aid cluster have doubled to support up to 3.5 million people by the end of 2008. The requirements for the protection cluster have been increased by 50 per cent. Other sectors, such as agriculture and livelihoods, coordination and support services, health, nutrition and WASH have revised their requirements upwards by 10 to 30 per cent (OCHA, July 2008).

Most aid agencies have discussed suspending operations in parts of Somalia hit by mounting insecurity and a recent wave of assassinations targeting senior local humanitarian workers (Reuters, 22 July 2008).

Mèdecins Sans Frontières talk of a widening gap between critical needs and humanitarian response in the health area (MSF, 26 June 2008).

Somalia is among the few countries where the cluster approach has been activated and implemented. Currently, there are seven operational clusters: agriculture and livelihoods; food; education; shelter; health and nutrition; water and sanitation; and protection. The cluster approach was formally adopted in July 2006, its operational implementation in Somalia did not commence in many areas of the south-central until early 2007. This was attributed to problems of

access and increasing insecurity in most parts of the country; planning challenges given the unpredictability of the situation; and insufficient and inconsistent field staff presence in southern Puntland and South-Central Somalia. If the security situation improves, a review of staffing will be necessary to ensure that the field presence can achieve proper coordination.

UN agencies such as UNICEF, UNHCR, WFP, as well as international actors such as the Norwegian Refugee Council, Gedo Health Consortium, the International Committee of the Red Cross, International Rescue Committee, Relief International (RI), and CARE try and provide much needed assistance in areas of health care, education, food aid, shelter and sanitation, and protection to IDPs in various locations albeit on a limited scale. However, a UNHCR evaluation team found in 2007 that agencies and NGOs were largely operating according to their separate mandates, with limited coordination, only minimal common needs assessments or mutually agreed priorities, varying target regions, and multiple beneficiaries (UNHCR, Sept. 2007).

National response

Local agencies assist IDPs and help international agencies implement projects

The Transitional Federal Government established the National Refugee Commission as a focal point for the humanitarian community but the agency is under funded and under staffed. In 2007, the TFG issued a directive that there no food distribution can take place anywhere in Somalia without being inspected and approved by the government. Hence UN agencies and any other organization that is planning to bring any relief to Somalia should submit the documents for the goods before shipment for checkup. Aid agencies felt that given the resources and focus of the TFG, this threatens to slow or cut off the flow of humanitarian aid to Somalis. The former UN's Humanitarian Coordinator for Somalia (up to December 2007) Eric Laroche, who previously said that the UN should cast its lot with the TFG, raised concerns regarding TFG's lack of physical and human capacity to carry out the inspections and opined that the directive may jeopardise the UN's capacity to deliver assistance.

Due to the prevailing security situation in Somalia and the targetting of aid workers for attack and kidnappings, most international humanitarian organisations rely on local Non-Governmental Organisations (NGOs) and Community Based Organisations (CBOs) to implement projects with them. Widespread insecurity in south-central Somalia has made the presence of international organisations and staff to be weak and inconsistent.

Local organisations have the advantage of understanding the local politico-social dynamics and are therefore better placed to advise on programme implementation. In the context of clan rivalries, this kind of local knowledge is very useful for international aid agencies working or intending to start operations in Somalia. It is also important that international counter-parts train local organisations in management and other necessary project management skills for sustainability of projects.

ICRC, a long established international humanitarian agency has been working through the Somali Red Crescent Society in delivering aid and implementing health and shelter programmes. WFP distributes food through NGO's.

However, local organisations are not spared from attack either due to inter-clan rivalries and perception of who the parties to the conflict think are benefitting from the project. A number of Somali staff working with local NGOs partnering international organisations and Somali staff of UN

agencies have over the last few months been either kidnapped or killed. This is clearly limiting the scope and coverage of local intervention.

Local organisations also lack adequate resources (especially financial) to carry out programmes. A limiting factor is lack of well qualified and trained personnel.

ICRC provides assistance through Somalia Red Crescent Society (June 2008)

- ICRC carries out its operations in Somalia in partnership with the Somalia Red Crescent Society
- Intervention areas include water provision, health, shelter, and food

British Red Cross, 27 June 2008

"...The ICRC is working closely with the Somali Red Crescent Society, focusing operations on large-scale relief for displaced families. In the coming weeks, the organisation plans to distribute four months worth of dry-food rations to 435,000 people.

The ICRC has increased its support for health clinics run by the Somali Red Crescent Society to treat up to 200,000 people. It is also maintaining its long-term support for the two main hospitals in the Somali capital Mogadishu where over 1,300 weapon-wounded people have been admitted since January, a third of them women and children."

ICRC, 4 June 2008

"..Between mid-February and May, 2.3 million litres of water per day were distributed to 470,000 people in more than 400 locations. Over 268,000 people received shelter materials and basic household items. Nearly 100,000 people received one-month food rations. In addition, the ICRC stepped up its support for health clinics run by the Somali Red Crescent Society to serve some 200,000 people, and is maintaining its long-term support for the main hospitals of Mogadishu (Keysaney and Medina). Since January, over 1,300 weapon-wounded people have been admitted to those hospitals, a third of them women and children. Over 4,000 wounded people were treated there last year.

"The Somali people are going through unbearable hardship", said Pascal Hundt. "We continue to urge all parties to the conflict to respect the rules of international humanitarian law – in particular the obligation to spare civilians, medical facilities and staff, as well as humanitarian workers."

The ICRC has been active in Somalia for the past 30 years. It carries out all its activities in close partnership with the Somali Red Crescent Society..."

Local organisations distribute aid to IDPs (Dec 2007)

- Local NGO distributes relief food

Shabelle Media Network, 16 December 2007

"Daryeel Bulsho Guud, a local NGO constructed education centers and distributed NFI's in different locations in the middle and lower Shabelle regions in Somalia.

Very recently the local NGO completed a construction at Arbiska and Elasha Biyaha between Afgoi district and Mogadishu. This project is mainly meant for the young displaced Somalis who could not continue their education in the city because of the frequent fighting".

International response

Humanitarian agencies fear further displacement due to funding uncertainty for 2010 (December 2009)

- Humanitarian agencies warn of impending crisis if donors do not increase funding for 2010 CAP

UN News Centre, 08 December 2009

"War-torn and drought-ravaged Somalia is facing a humanitarian crisis with no funding so far raised or pledged for next year for food, water, sanitation, health and other vital needs and the potential that the situation could spill over into a major regional crisis for its neighbours, senior United Nations officials warned today.

"The main message that we have is that the potential humanitarian funding crisis is life-threatening, it threatens a large proportion of the population," UN Resident and Humanitarian Coordinator Mark Bowden told a news briefing in New York, noting that UN agencies are going into a new humanitarian funding cycle with no carry-over finances,

"The consequences of not addressing the situation in Somalia are that we could expect more displacement into other parts of the region putting a great deal more stress on Djibouti, Ethiopia and Kenya at a time when they can't afford to support them either."

The agencies are talking to donors, some of whom are concerned about the effectiveness of aid in a country torn apart by factional fighting and without a functioning central government since 1991, or worried that humanitarian supplies could fall into the hands of terrorists, but so far nothing has been concluded.

"Time is precious... so if we don't resolve this soon, the humanitarian consequences are very, very serious indeed," he added. "Time is running out..."

Insecurity and Donor cuts hampering international response (November 2009)

- International humanitarian aid cut by some donors for fear that aid is being diverted to extremist groups
- WFP food distribution affected as the US suspends funding
- UNICEF suspends life saving activities due to insecurity
- WFP halts food distribution to IDPs in Jowhar because of insecurity

VOA, 10 November 2009

"Aid groups are raising increasing alarm over a delay in international food aid towards famine-stricken Somalia. Concerns over the misdirection of aid to an Islamic militant group has threatened contributions from the United States and other Western donors.

The World Food Program says nearly half the Somali population is in need of emergency food relief.

Ongoing lawlessness, plus a brutal drought has left much of central and southern Somalia with a severe food deficit, threatening millions of Somalis. Meanwhile, the United Nations says thousands more have been displaced by El-Niño related flash floods in the past week. The international body warns more than 280,000 additional Somalis could flee into neighboring countries if humanitarian conditions do not improve.

But the WFP said Friday the food supply line is "effectively broken", as warehouses full of food intended for Somalia sit untouched on the Kenyan coast.

Anti-government forces, including the extremist group al-Shabab, control much of the worst-affected areas in the war-torn nation, and U.S. authorities became concerned that portions of the famine relief aid were being siphoned off by the rebel groups.

In light of U.S. anti-terrorism laws that prohibit aiding designated terrorist groups such as al-Shabab, the U.S. suspended food assistance while it reviewed its Somalia aid policy. It has since created a list of restrictions that all intermediary aid groups must follow to distribute U.S.-donated food in the region.

A researcher at The Century Foundation in New York, Natalie Parke, says the regulations have put aid groups operating in the area in a near-impossible bind. "But the problem with these conditions is that they are extremely restrictive. Basically they would preclude humanitarian organizations from operating in al-Shabab controlled areas of Somalia, and that would include about 60 percent of the most needy people in Somalia," she said..."

New York Times, 06 November 2009

"United Nations officials said Friday that the supply of critical food aid to Somalia had been interrupted and that rations to starving people needed to be cut, partly because the American government had delayed food contributions out of fears that they would be diverted to terrorists.

Last month, American officials said they had suspended millions of dollars of food aid because of concerns that Somali contractors working for the United Nations were funneling food and money to the Shabab, an Islamist insurgent group with growing ties to Al Qaeda.

American officials played down the impact of the delays and said the food shipments would resume soon, once the United States government was assured that the United Nations was doing more to police the aid deliveries.

But on Friday, the World Food Program said, "The food supply line to Somalia is effectively broken."

United Nations officials said that around 40 million pounds of American-donated food was being held up in warehouses in Mombasa, in neighboring Kenya, because American officials were not allowing aid workers to distribute it until a new set of tighter regulations was ironed out..."

UN News, 21 October 2009

"Expressing his shock at the level of violence faced by civilians in Somalia, an independent United Nations human rights expert today rebuked the international community for failing the 1.5 million people uprooted from their homes in the Horn of Africa nation.

"Serious violations of international humanitarian and human rights law, in particular indiscriminate attacks and shelling of areas populated or frequented by civilians, are being perpetrated by all parties to the conflict with total impunity," Walter Kälin, the Secretary-General's Special Representative on the human rights of internally displaced persons (IDPs), who wrapped up a week-long visit to Somalia today said.

These acts could be tantamount to war crimes, he said, adding that people are also fleeing their homes due to death threats, the risk of targeted killings and forced recruitment by militias.

During visits with IDPs, Mr. Kälin was told that violations, also including rapes, are especially rampant in areas controlled by those acting under the umbrella of anti-Government groups.

He called on all parties to the long-running conflict – including State actors, rebel groups and militias – to abide by their obligations under international law, while urging international troops to ensure that their operations do not affect civilians.

In spite of the risk of aid diversion, donors must not reduce their levels of humanitarian assistance, the expert stressed. "This would not only mean punishing the most vulnerable among already destitute communities, but also playing into the hands of radical elements who could easily exploit the situation..."

IRIN, 27 August 2009

"Two months after food deliveries to Somalia's south-central town of Jowhar were halted, several thousand internally displaced persons (IDPs) are facing a food crisis, sources said.

"The little food we were given in June is gone; we have had nothing in the last two months," Asiyo Jilibey, a community leader, told IRIN on 27 August. "I don't know what will happen next but if help does not arrive soon we are in trouble."

An estimated 9,000 IDP families (49,000 people), live mostly in seven camps in the town, 90km north of the capital, Mogadishu. The camps are Dayah, Kalagoye, Bada Cas, Baryare, Bulu Matuuni, Biyafo and Sheikh Omar Camp.

Jilibey said most of the IDPs had been in the camps since early 2007, when an upsurge in violence in Mogadishu sent hundreds of thousands of people fleeing, "but we had a new influx in May, June and early July [2009]".

Food distributions were stopped in Jowhar after June due to insecurity, according to the UN World Food Programme (WFP).

"We last distributed 124.46MT of assorted food assistance to 8,190 Jowhar IDPs in June," Mahamud Hassan "Guled", a spokesman for WFP Somalia, said. "But due to the insecurity, our local partner could not distribute the planned July food rations to the IDPs and the situation remains the same this month."

The Islamist al-Shabab has been in control of Jowhar since May 2009. The group raided and looted UN offices there. Jowhar was the UN Children's Fund (UNICEF) main hub for the southern and central regions of Somalia..."

UNICEF, 13 August 2009

“UNICEF today had to postpone the dispatch of hundreds of tons of life-saving nutritional supplies for the prevention and treatment of acute malnutrition in over 85,000 Somali children in certain areas in central and southern regions of Somalia due to increased hostility towards aid organisations.

Distribution of malaria prevention bed-nets to more than 100,000 women and children has also been disrupted. In areas of these regions, where security assurances are provided, UNICEF continues to deliver its humanitarian supplies and programmes.

“We need concrete assurances from local authorities for the safe delivery and storage of supplies to ensure that we can carry out programmes for the survival of Somali children and women.” said Ms Rozanne Chorlton, UNICEF Representative to Somalia. “We hope these assurances will be forthcoming very soon so that we can continue our operations at a level that matches the needs of children and women and prevent the deaths that will otherwise certainly occur.”

UNICEF’s compound in Jowhar (Central Somalia) - the main hub for its programme operations in Central South Somalia - was taken over on 17 May 2009 where large volumes of life-saving humanitarian supplies and communications equipment were destroyed or taken from the compound and from UNICEF warehouses in Jowhar. In addition, reports indicate that UNICEF emergency supplies stored in a partner’s warehouse in Jammame (Lower Juba region) were taken in early August...”

Humanitarian agencies provide assistance despite security challenges and funding problems (May 2009)

- Agencies providing food and other basic services to IDPs
- CAP Funding for 2009 only at 34% as of May 2009

UN OCHA, 15 May 2009

"In Mogadishu and the Afgooye corridor, more than 2,000 severely acute malnourished children and 1,400 moderately acute malnourished children are reached every month through therapeutic or supplementary feeding. UNICEF with WFP,

Oxfam/NOVIB-SAACID are currently discussing ways to scale up nutritional interventions to reach an additional estimated 500 children every month during the first phase in eight districts or half of the city of Mogadishu. About 23,000 children in Afgooye and Mogadishu IDP camps are reached with Plumpy'doz, a ready-to-use food, in the blanket supplementary feeding programme to prevent malnutrition by supplementing regular diet with vitamins, minerals and high quality proteins

and fats. Over the course of 2009 the number of severely malnourished children in Mogadishu is projected to be more than 15,000, according to latest Food Security Analysis Unit estimates.

In Waajid, Bakool region, 1,400 metric tons of WFP food was distributed to 84,500 beneficiaries while in Buale, Middle Juba, 33 metric tons were distributed to 340 beneficiaries. In Hargeysa, 1,931 metric tons of food benefited 19,082 people. Some 127 metric tons of assorted food commodities were distributed in Gaalkacyo, Puntland, to 849 beneficiaries of food for training programme, 12 caretakers of malnourished children, 399 Tuberculosis patients, and 44 expectant women, lactating mothers and HIV patients in Bossaso hospital.

More than 920,000 children under the age of five years and 720,000 women of child bearing age have been reached during UNICEF and WHO joint programme Child Health Days in Somaliland

and South/Central Somalia (excluding two regions in South Central Somalia, Banadir, and Lower Shabelle and one Kismayo district due to security constraints) to date. The second round of CHDs in Somaliland is planned for the third quarter of 2009 and in South/Central during the fourth quarter of this year.

Funding received for the Consolidated Appeal Process so far covers only 34 percent of the US\$918 million requested. While food aid has received the highest funding – 41 percent, WFP states it needs an additional US\$59 million for the next six months (May–October) to avert a pipeline break from September. No money has been received for CAP programme for non-food items including emergency shelter".

UNICEF and partners continue delivering nutritional services for Somali children (July 2008)

UNICEF, 24 July 2008

"While security conditions continue to deteriorate particularly in the Southern parts of Somalia, UNICEF and partners completed the second round of distributing UNIMIX- food supplement rich with vitamins and minerals- to 54,000 under-five children in the IDP camps of Afgoye Corridor and Mogadishu. The blanket feeding scheme is part of UNICEF's nutrition programme which addresses the alarming high malnutrition rates in the country.

UNICEF has scaled up its nutrition interventions to reach more children with quality services as the nutrition situation continues to deteriorate in the country. According to a new survey conducted by the FSAU (Food Security Analysis Unit in Somalia), it is estimated that nearly 180,000 children in Somalia are acutely malnourished, among which 25,000 are severely malnourished. This is an 11 per cent increase in the last 6 months with about 1 in 6 children being acutely malnourished and 1 in 40 being severely malnourished.

"So far we have been lucky to be strongly backed by our donors, however with the recent increase in malnutrition rates and the need for accelerated humanitarian assistance, more funds are required, for us to continue and expand our programmes effectively", said Christian Balslev-Olesen, UNICEF Representative to Somalia.

The IDP concentration areas are one of the most vulnerable to factors causing malnutrition. The prolonged conflict and civil insecurity in Mogadishu and its surrounding areas have led to the influx of displaced people into temporary settlements across the country. Afgoye hosts one of the biggest IDP settlements with a displaced population exceeding 300,000 people. Analyses indicate that the nutrition situation in Afgoye is critical, further complicated by the limited access due to the security situation.

This latest round of the UNIMIX distribution had expanded its coverage to include 3 IDP camps located inside Mogadishu- in addition to the original 221 IDP camps in Afgoye Corridor- targeting 54,000 children under five years of age in total. Jumbo Peace and Development Organization- a local NGO partnering with UNICEF- distributed 10 kg of UNIMIX for each child, with the support of local community elders and IDP camp leaders. In Jowhar, where 4 camps are located with an estimated 4,000 IDPs, UNICEF supports the daily distribution of cooked supplementary food targeting 600 under-five children.

Northern parts of Somalia are also hit hard by the deteriorating nutrition conditions, worsened by the skyrocketing food prices and the devaluation of the Somali Shilling. The urban poor and displaced population are the most vulnerable in the area, with thousands of families from the conflict affected South forced to seek temporary refuge in the Northern parts of the country. In Bossaso IDP camps, where about 28,000 people are located, global acute malnutrition rates have been recorded at 23.3 per cent. In Galkayo and Garowe IDP camps as well, very critical global acute malnutrition rates have been recorded.

Starting August and throughout the remainder of the year, UNICEF and partners will provide rations of UNIMIX (10 kg a month per child) to approximately 7,500 under-five children in Bossaso IDP camps, as well as to children in Garowe and Galkayo IDP camps, combined with a

therapeutic feeding programme for severely malnourished children. The next round of UNIMIX distribution in Afgoye and Mogadishu camps is also scheduled in August."

Red Cross provides food relief in Somalia crisis (June 2008)

British Red Cross, 27 June 2008

"The British Red Cross has contributed £200,000 to address the deepening crisis in Somalia.

Hundreds of thousands of Somalis face life-threatening food and water shortages due to the escalating armed conflict and effects of the recent severe drought.

High inflation and rising prices of imported food, due to the global crisis, are also aggravating the situation.

The British Red Cross contribution will help provide food for more than 1,500 households for two months in the regions of Somaliland, South Mudug and Galgadud. The money supports the International Committee of the Red Cross' (ICRC) relief operation, launched in June, which will support half a million people affected by the crisis.

Deteriorating situation

There has been no effective government in Somalia since 1991 and recent increased violence between rival factions is jeopardising the survival of rural communities already severely affected by low rainfall and poor harvests.

Many civilians have been wounded or killed with hundreds of thousands living in makeshift camps, far from any medical facilities. The UN says almost two million Somalis are in desperate need of outside assistance.

"We are witnessing the worst tragedy of the past decade in Somalia," said Pascal Hundt, head of the ICRC's delegation for Somalia. "The living conditions for many families are extremely difficult, finding water and food is a daily challenge. People are completely exhausted from the non-stop struggle to survive."

Red Cross response

The ICRC is working closely with the Somali Red Crescent Society, focusing operations on large-scale relief for displaced families. In the coming weeks, the organisation plans to distribute four months worth of dry-food rations to 435,000 people.

The ICRC has increased its support for health clinics run by the Somali Red Crescent Society to treat up to 200,000 people. It is also maintaining its long-term support for the two main hospitals in the Somali capital Mogadishu where over 1,300 weapon-wounded people have been admitted since January, a third of them women and children.

Earlier this year, the British Red Cross channelled £3 million from the Department for International Development to support the ICRC's work in Somalia."

ICRC mounts operation for displaced people in Somalia (June 2008)

- ICRC, in conjunction with WFP, plan to assist displaced people and host communities with relief goods

ICRC, 4 June 2008:

"Hundreds of thousands of Somalis face life-threatening food and water shortages due to the escalating armed conflict and the effects of the recent severe drought in central Somalia. High inflation and the worldwide rise in commodity prices, especially for key imports such as food and fuel, are aggravating the situation.

[...]

Many civilians have been wounded or killed. Hundreds of thousands have been displaced within Somalia, with the majority now living in the open or in makeshift camps, far from any medical facilities. The deteriorating security situation and extremely fragile economy are further jeopardizing the survival of many rural communities whose coping mechanisms were already stretched to the limit. The most severely affected areas are in central Somalia, which has suffered from poor rainfall and low crop yields for over two years. Food shortages are severe and livestock are weakening as pasture land dried up. A growing percentage of the population has become dependent on humanitarian aid to survive.

In response, the ICRC has adapted its operations to focus almost exclusively on large-scale relief for displaced families and their host communities. In the coming weeks, the organization is planning to distribute four months worth of dry-food rations to 435,000 people in close coordination with the World Food Programme and Care. Some 150,000 people will receive essential household items such as blankets, shelter materials and kitchen sets. To finance this emergency response in Somalia, the ICRC is approaching its international donors.

Between mid-February and May, 2.3 million litres of water per day were distributed to 470,000 people in more than 400 locations. Over 268,000 people received shelter materials and basic household items. Nearly 100,000 people received one-month food rations. In addition, the ICRC stepped up its support for health clinics run by the Somali Red Crescent Society to serve some 200,000 people, and is maintaining its long-term support for the main hospitals of Mogadishu (Keysaney and Medina). Since January, over 1,300 weapon-wounded people have been admitted to those hospitals, a third of them women and children. Over 4,000 wounded people were treated there last year."

Norwegian Refugee Council help with shelter (March 2008)

- Few humanitarian organisations working in South-Central Somalia
- NRC distribute improved temporary shelters to IDPs

Norwegian Refugee Council, 07 March 2008

"NRC is one of few humanitarian organisations still operating in South and Central Somalia. Over the past weeks, the organisation has launched a shelter project to assist people who have fled fighting.

"The situation is simply dire. People lack everything, including food, sanitation, shelter, education and health facilities. They are living in makeshift shelters made by things they have scrambled together; sticks, cloths, cardboards and strings. These are very weak structures that need

constant repair and that are not providing enough privacy to the families", says NRC Head of Office Hassan Khaire.

To improve this situation, NRC started distributing improved temporary shelters to beneficiaries in Mogadishu in February 2008. The structure is made of metal sticks that can be re-used if the families need to move, and the walling is made of fire retardant canvas. NRC is the first organization in 17 years to address the issues of congestion in IDP settlements inside Mogadishu and distributing improved shelters."

Italian Government give monetary aid to UN-HABITAT to assist IDPs (May 2008)

- Italian government gives UN-HABITAT €600,000
- Funding is for shelter for IDPs

UN-HABITAT, 14 May 2008

"The Italian government this week announced a donation of EUR 600,000 to UN-HABITAT which will go towards improving the living conditions of Internally Displaced Persons (IDPs) in Somalia.

In a statement of appreciation to the Italians, UN-HABITAT said shelter and settlement was an important component in the agency's response to humanitarian and emergency needs in the Somali regions. The new funding will go towards an ongoing IDP project currently financed by the Swedish International Development Cooperation Agency (SIDA) in Jowhar/Baidoa in south-centre Somalia.

"The intention is to ensure that displaced communities and vulnerable groups have access to secure and improved living conditions, both in their temporary locations and in permanent settlements," the statement said.

In urban areas, assistance to displaced communities must not exclude the broader category of the urban poor and the host communities. Resettlement, land management, site upgrading, and improved service delivery are part of a broad concept that addresses sustainable urban growth, as initiated in Hargeisa, Bosasso, Garowe, and now in Jowhar and Baidoa.

The contribution was made after long discussions between the UN-HABITAT Somalia team and the Italian Cooperation which started in late 2007. Italian representatives subsequently participated in a successful Joint Monitoring Mission in February and a Steering Committee in April 2008 of UN-HABITAT's Somalia Urban Development Programme (SUDP)".

Aid agencies help with NFI's; Healthcare; Food aid (May 2008)

- ICRC assist with medical care through Somalia Red Crescent Society
- UNHCR distributes aid to 40,000 IDPs in Afgooye

ICRC, 11 March 2008

During the first two months of 2008 the ICRC assisted the Somali Red Crescent Society in opening three temporary clinics in Afgoy and one in Daynile. The three Afgoy clinics give an average of 130 consultations a day; the Daynile clinic treats 70 patients a day. The Somali Red Crescent, with the support of the ICRC, runs 25 clinics in central and southern Somalia, which serve 260,000 people. Since January, these clinics have provided almost 18,000 consultations.

UNHCR, 16 May 2008

"The UN refugee agency this week distributed aid to some 40,000 internally displaced people (IDP) living in more than 50 settlements west of the volatile Somalia capital, Mogadishu.

The recipients of the aid are among an estimated 300,000 people living along a 30-kilometre stretch of road leading from the capital to the town of Afgooye after fleeing months of fighting in Mogadishu between the Ethiopian-backed Transitional Federal Government and rebel forces.

The IDPs targeted during this round of distribution of essential supplies were the most vulnerable households, including people who fled Mogadishu recently, as well as some of the poorest families. The distribution was carried out from Monday to Wednesday in partnership with a Somali non-governmental organization".

[...]

Each family received one plastic sheet, one kitchen set, three blankets and six sleeping mats – all desperately needed by the displaced. There is particularly high demand for plastic sheets, which the IDPs use to protect their makeshift shelters from the rain.

[...]

This first round of distribution will be followed by a second one in a few weeks for another 40,000 IDPs in Afgooye and the outskirts of Mogadishu. Essential supplies will also be distributed in the coming weeks to 12,000 people who fled recently to the town of Marka, some 80 kms south-west of Mogadishu. The seaside town has an estimated 14,000 IDPs from Mogadishu.

Over the last year, UNHCR has distributed aid to more than 100,000 people living in the Mogadishu-Afgooye corridor. More than 42,000 civilians have fled the capital since March, amid escalated fighting. An estimated 800,000 people have fled Mogadishu since the current cycle of violence engulfed the city in February 2007".

UNICEF intervenes in areas of Education and WASH (Jan 2008)

- UNICEF assists IDPs in the south and north through local partners

UNICEF, January 2008:

"NEEDS ASSESSMENT

THE SOUTH - Afgoye corridor: The 200,000+ IDPs dispersed along a 15-kilometre stretch of the Afgoye Corridor require shelter, water, sanitation and food. There are not enough latrines and almost no learning spaces for children. Whilst MSF-CH is managing severe and moderate malnourished children along part of the corridor, there is a gap in providing coverage for all children. WFP will be providing 10 kg of blended food for children under 5-years with their next general food distribution in late-December.

THE NORTH - Situation in Lasanod: Those displaced by the fighting in Sool and Sanaag, numbering between 7,000 to 9,000 families, require shelter, blankets, food, utensils, mosquito nets and water – even though many are being hosted by their extended families.

UNICEF RESPONSE

THE SOUTH (AFGOYE CORRIDOR):

Health and Nutrition

Combined results of a July Measles and Vitamin A Campaign and an October mop-up campaign indicate that 110,560 children were immunized against measles with 36,354 given vitamin A.

50,000 ITNs ordered in preparation of the upcoming malaria season.

Project Cooperation Agreement being finalised to establish therapeutic feeding centres and mobile health clinics in areas not covered by MSF.

Water, Sanitation and Hygiene (WASH)

UNICEF trucking in 550,000 litres of water each day for 58,400 IDPs and SRCS and SOPHPA constructing an additional 300 latrines (they already completed 100). These activities are being complemented by the provision of soap, sanitation tools, training of hygiene promoters and water committee members and the implementation of clean up campaigns.

Emergency WASH response plans involving rehabilitation of water sources developed for three IDP settlements to enable the eventual phasing out of water trucking.

Education

On December 15, 2007, 21 tents (and education supplies such as blackboards and chalk) moved out of a previously inaccessible warehouse in Mogadishu (inaccessible due to security reasons) and have been delivered to partners along the Afgoye Corridor. An additional 19 tents are being packaged for delivery, to bring the total to 40. This donation will enable 6,000 children to resume their schooling.

Protection

UNICEF continues to support SOPHPA to conduct orientation sessions on cholera prevention, protection, education and HIV and AIDS as well as supporting NGO-AYUB to mobilize communities on cholera prevention, protection, education and HIV and AIDS in Afgoye town.

THE NORTH (SOOL RESPONSE)

Health and Nutrition

In response to increased malnutrition amongst children under five in Buroa and Berbera IDP Camps, UNICEF in collaboration with SRCS, MOHL, and WFP started supplementary feeding for 1500 children.

WASH

UNICEF also distributed 200 Family Relief Kits (FRKs) and organised sanitation activities for residents in Buhioodle town. An additional 1,000 FRKs, 3,000 collapsible jerry cans, 4 bladder water tanks, 2 drums of chlorine powder and 10 sprayers were distributed to IDPs from the

Bossaso side. The rehabilitation of 30 shallow wells and the construction of 400 latrines is currently ongoing in camps housing Sool IDPs.

To respond to the outbreak of AWD, UNICEF provided oral dehydration solution (3000 sachets); health education printed material and a treatment kit to Zeila district health authorities and began water chlorination and social mobilisation activities to prevent further AWD cases".

Policy and recommendations

Recommendations of Amnesty International (May 2008)

Amnesty International, 13 May 2008; pp 28-29

To Transitional Federal Government:

[...]

"Ensure that victims of human rights violations or their relatives are able to obtain effective reparations, including restitution, compensation, rehabilitation, satisfaction and guarantees of non-repetition;

Ensure protection for all displaced persons without discrimination, with special attention to the need to provide protection from rape and other attacks on the roadways;

To Insurgent Groups opposed to the TFG:

[...]

"Take all other necessary measures to protect the civilian population from the dangers arising from military operations, including not locating military objectives among civilian concentrations;

To the UN Security Council:

[...]

"Strongly urge the TFG and the Ethiopian government to fulfil their obligations under international law to investigate and bring to justice armed forces commanders and other personnel suspected of violations of international human rights and humanitarian law;

- Strongly encourage that the African Union Mission in Somalia (AMISOM) and any succeeding UN peacekeeping mission be mandated to protect civilians— including women, children, discriminated Somali minorities and internally displaced persons, and include a strong human rights component with the capacity to monitor, investigate and publicly report human rights violations;
- Call on the TFG and other parties to the conflict to remove all obstacles to the delivery of humanitarian assistance, and take effective measures to ensure the safety of local and international humanitarian workers;

To the international community:

[...]

"The governments of all countries to which Somali refugees have fled from persecution must ensure that they are afforded protection and full respect for their human rights, as required under international law and international standards governing the treatment of refugees;

- The Government of Kenya should open its border and allow access to its territory to people fleeing Somalia to seek asylum in Kenya, and ensure the protection and delivery of humanitarian services to Somali refugees in Kenya;

· UN agencies and member states should fully fund and staff emergency humanitarian assistance programs to meet the needs of vulnerable Somali civilians in Somalia and throughout the region.

Recommendations of the independent Human Rights expert appointed by the Sec. General (March 2008)

- Urges the UN to give support to TFI's to provide protection to Somali people
- Calls upon Somali authorities to provide full protection and independence for, among others, humanitarian personnel working in Somalia
- Calls upon the UN and Somali authorities for greater humanitarian assistance and protection for IDPs
- Calls upon the international community to help Somalia achieve peace

OHCHR, 17 March 2008: pp

"82. The independent expert:

- (a) Calls upon the United Nations to encourage greater support to the Transitional Federal Institutions to press them to provide protection to the Somali population and to implement the human rights principles contained in the Transitional Federal Charter. The independent expert supports the establishment of a standing dialogue/engagement mechanism for the United Nations to address humanitarian and human rights issues with the TFIs;
- (b) Calls upon the Transitional Federal Parliament and Transitional Federal Government of Somalia to ensure that human rights safeguards and principles are included in all their deliberations, documentation, institutions and actions;
- (c) Calls upon all Somali authorities to provide full protection and independence for journalists and media personnel, human rights defenders and international humanitarian aid personnel operating in Somalia;
- (d) Calls upon the Transitional Federal Parliament to undertake discussions to work towards signing and ratifying the core international human rights treaties, in particular the Convention on the Rights of the Child;
- (e) Urges that in their engagement with the TFIs, the international community should emphasize and strongly support the building of key State institutions with the rule of law and human rights as their cornerstone;
- (f) Calls upon the United Nations and the Somali authorities to increase their efforts to address the immediate humanitarian needs and protect the human rights of the approximately 1 million internally displaced persons in Somalia;
- (i) Calls upon the international community to support Somalis in their reconciliation efforts and processes, bearing in mind that an event such as the recent National Reconciliation Congress is within a larger framework of reconciliation and as such is the beginning of a process which does not preclude other transitional justice initiatives or processes;

A/HRC/7/26

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- (j) Urges that in the event that a United Nations mission is authorized for Somalia, such an operation include a human rights component to conduct monitoring and investigations as well as undertaking capacity development and awareness-raising, and have a strong mandate for the protection of civilians;
- (k) Urges that a human rights presence for Somalia be established, either as part of a peacekeeping operation or, more advisable, as a separate office. The human rights

situation in Somalia is sufficiently grave that a focused human rights presence is required to monitor and report regularly on the situation and provide much-needed human rights expertise;

(l) Calls upon Somali authorities to establish independent human rights institutions for the protection and promotion of human rights, and encourages the United Nations agencies as well as donor countries to provide technical assistance and financial support;

(m) Calls upon all Somali authorities to pay serious attention to the protection of children and to coordinate with UNICEF and relevant international NGOs to achieve the goal of a better life for the children of Somalia;"

Recommendations by the Inter-Agency Internal Displacement Division (May 2005)

Recommendations

a) Country Team to endorse protection strategy submitted in June by Protection Working Group and agree on respective roles and responsibilities of protection-mandated operation agencies.

b) OCHA's protection coordinator post to be merged with the proposed IDP Adviser post, to create a Protection/IDP Adviser. However, to avoid delaying recruitment processes currently underway for the protection coordinator, and in the event that a suitable candidate with a solid background is identified, it is recommended that recruitment proceed and TORs be adjusted afterwards. Otherwise the post should be re-advertised at the L4 level. Through the OCHA office, the Protection/IDP Adviser would support and advise the RC/HC and the CT on IDP protection/assistance planning and response, in line with IASC guidance.

c) OCHA/IDD to follow up on the UNCT's request for an L4 OHCHR protection officer, to be based out of Nairobi. OCHA Somalia has offered to accommodate such an officer. d) UNHCR to explore options for longer-term dedicated capacity on IDP issues for Somalia.

e) UNICEF Somalia to be encouraged to deploy further child protection officers to the field.

f) UNEP to engage more proactively on the issue of non-Tsunami related environmental degradation.

g) The UN, through the ERC and OCHA/IDD, to step up advocacy with donors on enhanced support for the Consolidated Appeal, on the basis of the IDP Task Force's forthcoming under-funded projects summary and the advice of the UNHCR senior IDP adviser. Particular areas of concern include shelter, income generation, health services, education and airstrip security.

h) The UN, through the HC/RC and Country team, to continue to put pressure on host authorities (TFG, Somaliland and Puntland) to meet obligations toward IDP populations.

Reference to the Guiding Principles on Internal Displacement

Somalia signs the AU Convention for the Protection and Assistance of IDPs in Africa (October 2009)

- The AU Convention aims to prevent, prohibit and find durable solutions for IDPs
- Even though the Convention is legally binding, implementation will be a daunting task
- References to the Guiding Principles Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

UNHCR, 23 October 2009

"African leaders meeting in the Ugandan capital, Kampala, adopted a seminal convention Friday that will provide legal protection and assistance to millions of people displaced within their own countries by conflicts and natural calamities on the continent.

Ugandan President Yoweri Museveni, chairing a two-day special African Union (AU) summit on forcibly displaced people, praised the pact as an "historic agreement aimed at protecting and assisting our brothers and sisters, the internally displaced."

The new African Union Convention for the Protection and Assistance of Internally Displaced Persons in Africa is the first legal instrument of its kind in the world. It defines the obligations that states, and even armed groups, have to protect and assist their own uprooted citizens.

Forty-six African nations unanimously adopted the landmark convention while 17 heads of state and government, and foreign ministers signed it, including the presidents of Uganda, Zambia, Zimbabwe and Somalia, and the prime ministers and vice presidents of Burundi, the Central African Republic, Equatorial Guinea and Rwanda. The convention still requires ratification by a minimum of 15 countries.

In the official summit declaration, the AU heads of state and government vowed to take measures to "prevent and finally eliminate from our continent the occurrence of forced displacement of people arising from conflict and natural disasters."

[...]

The convention, in its preamble, underscores the need to "promote and strengthen regional and national measures to prevent or mitigate, prohibit and eliminate root causes of internal displacement as well as provide for durable solutions." It notes the specific protection expertise of UNHCR and asks the organization to continue and reinforce its role in the protection of and assistance to IDPs.

AU Political Commissioner Julia Dolly Joiner said "the convention that has been adopted, the first of its kind by any regional group or organization in the world, is a unique, comprehensive and unequivocal response to the challenges of forced displacement. This instrument clearly demonstrates that African leaders are conscious of the difficulties that displaced persons..."

IRIN, 27 October 2009

[...]This latest instrument, also known as the Kampala Convention because it was signed in the Ugandan capital, "obliges governments to recognize that IDPs have specific vulnerabilities and

must be supported", said Walter Kälin, Representative of the UN Secretary-General on the Human Rights of Internally Displaced Persons.

"It covers all causes of displacement, is forceful in terms of responsibility and goes beyond addressing the roles of states to those of others like the AU and non-state actors."

Signed by 17 African states at the end of summit on 23 October, the convention defines IDPs broadly, irrespective of who is displacing them.

According to the International Committee of the Red Cross (ICRC), the convention provides a solid framework for enhancing the protection and assistance of IDPs in Africa. The ICRC is the custodian of international humanitarian law.

"The crucial challenge now is the same one facing international humanitarian law in general – ensuring that once the convention is signed and ratified by as many states as possible, it is actually implemented and respected," ICRC president Jakob Kellenberger said.

"States must now take concrete steps to implement the convention into their own national legislation and regulation systems, and develop plans of action to address issues of displacement.

"The convention goes further than international humanitarian law treaties in some aspects, for example, in the rules it contains on safe and voluntary return, and on access to compensation or other forms of reparation," Kellenberger added.

To become a binding document, the convention has to be ratified by 15 of the AU's 53 member states.

"No international treaty is perfect, and the AU IDP Convention does have a few weaknesses. Concerns over the lack of effective enforcement mechanisms and insufficient guarantees for equality and non-discrimination have been raised," the [Brookings-Bern Project on Internal Displacement](#) noted in a statement.

"There is some question regarding the extent to which non-state actors and armed groups called upon by the convention to protect IDPs can be bound by its provisions. Nevertheless, the convention, which has benefited from the input of international experts, is considered to be generally consistent with international standards such as the Guiding Principles on Internal Displacement."

AU officials in Kampala were cautiously upbeat, urging member states to remain engaged. "It is the responsibility of member states that the convention becomes a binding instrument," Jean Ping, AU Commission President, said. "At this point, it is an achievement, but not an end in itself."

Zambian president Rupiah Banda also chose his words carefully. "We have given legal force to the task ahead and Zambia is ready to sign," he said. "Those who are displaced should not be forgotten."

An observer who requested anonymity said progress would require member states to demonstrate greater political will to implement the convention and address concerns about sovereignty and enforcement...”

Reference to the Guiding Principles in the national legislation

None.

Other references to the Guiding Principles

The Joint UN IDP Strategy, as developed in 2005, bases its human rights and protection-based approach on the Guiding Principles .

Availability of the Guiding Principles

The Guiding Principles on Internal Displacement have been translated in Somali

You can access the Somali version here:

<http://www.brook.edu/fp/projects/idp/resources/GPSomali.pdf>

Training on the Guiding Principles

A workshop on the Guiding Principles for Internally Displaced Persons was facilitated by UNHCR and OCHA in Hargeisa in June 2004; two other workshops organised by OCHA and NRC were held in Bosaso and Hargeisa in August 2004. A further workshop was held in Garowe in July 2007.

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